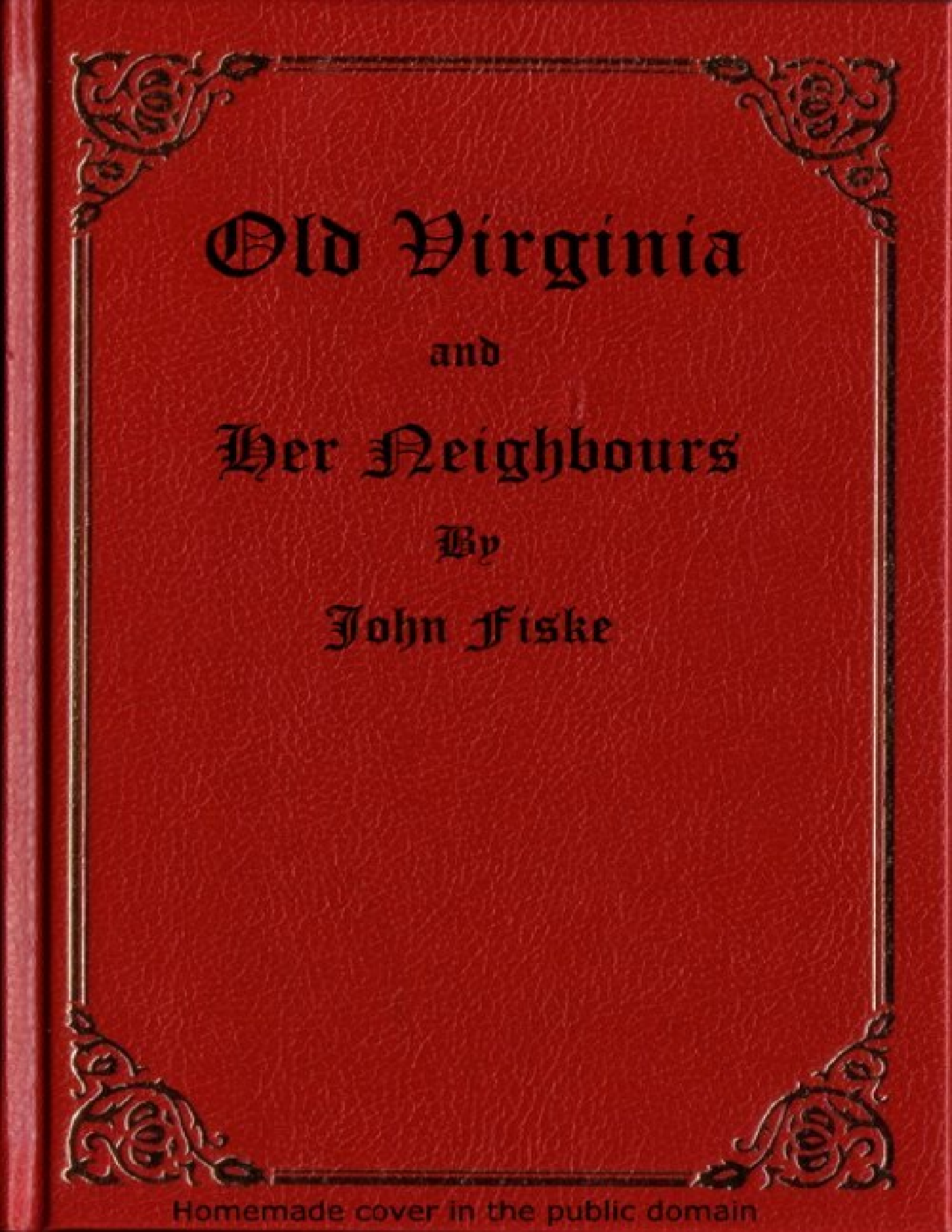




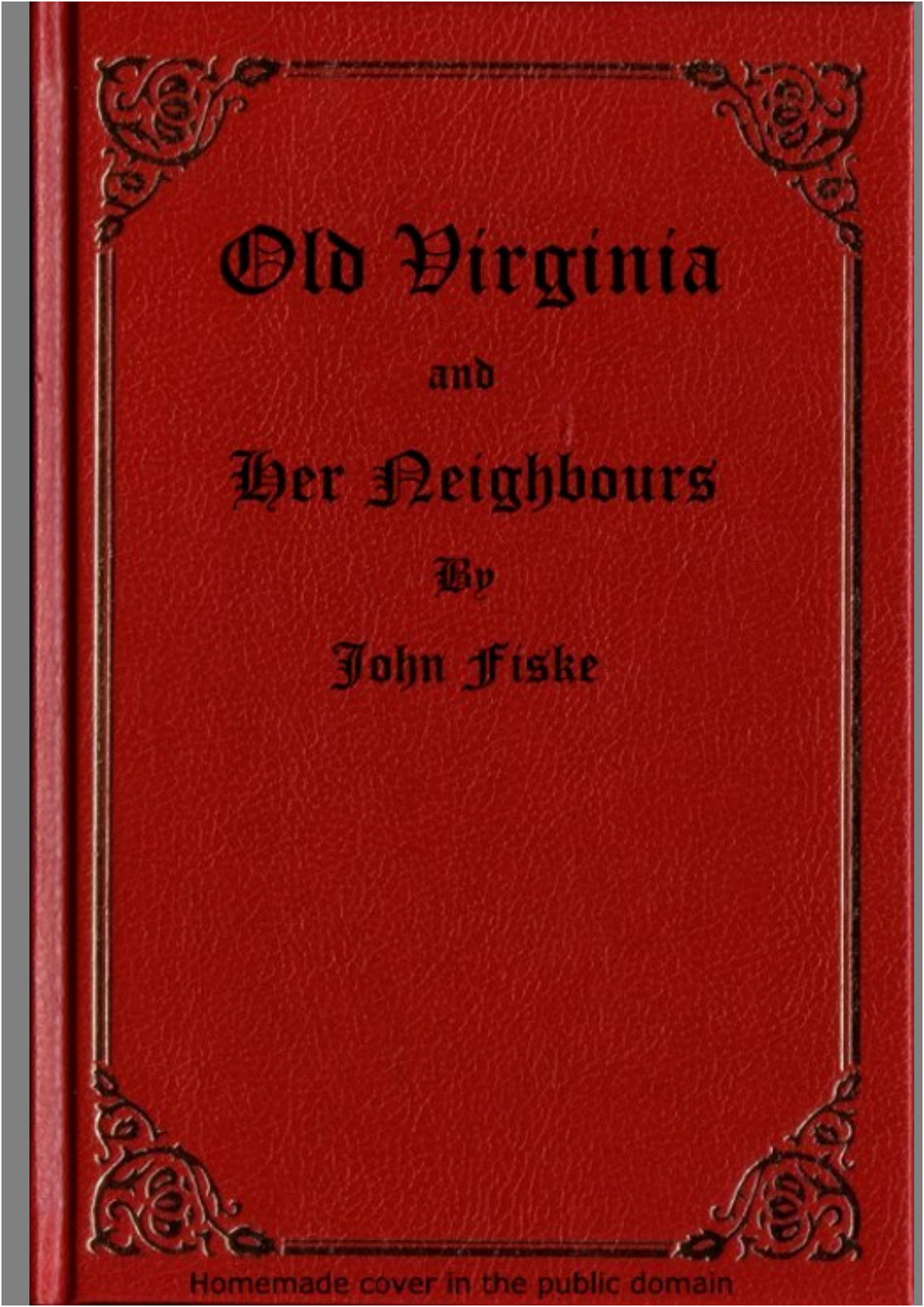
Old Virginia

and

Her Neighbours

By

John Fiske



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Title: Old Virginia and Her Neighbours, Vol. 1 (of 2)

Author: John Fiske

Release date: November 19, 2017 [eBook #56003]

Most recently updated: October 23, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/56003

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MAP OF TIDEWATER VIRGINIA

OLD VIRGINIA AND HER NEIGHBOURS

BY

JOHN FISKE

Οὐ λίθοι, οὐδὲ ξύλα, οὐδὲ
Τέχνη τεκτόνων αἱ πόλεις εἶσιν
Ἄλλ' ὅπου ποτ' ἄν ᾤσιν ἌΝΔΡΕΣ
Αὐτοὺς σῶζειν εἰδότες,
Ἐνταῦθα τείχη καὶ πόλεις.

Alcæus



IN TWO VOLUMES

VOLUME I

BOSTON AND NEW YORK
HOUGHTON MIFFLIN COMPANY

The Riverside Press Cambridge

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To

MY OLD FRIEND AND COMRADE

JOHN KNOWLES PAINE

COMPOSER OF ST. PETER, OEDIPUS TYRANNUS, THE "SPRING"
AND C MINOR SYMPHONIES, AND OTHER NOBLE WORKS

I dedicate this book

"Long days be his, and each as lusty-sweet
As gracious natures find his song to be;
May age steal on with softly-cadenced feet
Falling in music, as for him were meet
Whose choicest note is harsher-toned than he!"

PREFACE.

IN the series of books on American history, upon which I have for many years been engaged, the present volumes come between "The Discovery of America" and "The Beginnings of New England." The opening chapter, with its brief sketch of the work done by Elizabeth's great sailors, takes up the narrative where the concluding chapter of "The Discovery of America" dropped it. Then the story of Virginia, starting with Sir Walter Raleigh and Rev. Richard Hakluyt, is pursued until the year 1753, when the youthful George Washington sets forth upon his expedition to warn the approaching Frenchmen from any further encroachment upon English soil. That moment marks the arrival of a new era, when a book like the present—which is not a local history nor a bundle of local histories—can no longer follow the career of Virginia, nor of the southern colonies, except as part and parcel of the career of the American people. That "continental state of things," which was distinctly heralded when the war of the Spanish Succession broke out during Nicholson's rule in Virginia, had arrived in 1753. To treat it properly requires preliminary consideration of many points in the history of the northern colonies, and it is accordingly reserved for a future work.

It will be observed that I do not call the present work a "History of the Southern Colonies." Its contents would not justify such a title, inasmuch as

its scope and purpose are different from what such a title would imply. My aim is to follow the main stream of causation from the time of Raleigh to the time of Dinwiddie, from its sources down to its absorption into a mightier stream. At first our attention is fixed upon Raleigh's Virginia, which extends from Florida to Canada, England thrusting herself in between Spain and France. With the charter of 1609 (see below, vol. i. p. 145) Virginia is practically severed from North Virginia, which presently takes on the names of New England and New Netherland, and receives colonies of Puritans and Dutchmen, with which this book is not concerned.

From the territory of Virginia thus cut down, further slices are carved from time to time; first Maryland in 1632, then Carolina in 1663, then Georgia in 1732, almost at the end of our narrative. Colonies thus arise which present a few or many different social aspects from those of Old Virginia; and while our attention is still centred upon the original commonwealth as both historically most important and in personal detail most interesting, at the same time the younger commonwealths claim a share in the story. A comparative survey of the social features in which North Carolina, South Carolina, and Maryland differed from one another, and from Virginia, is a great help to the right understanding of all four commonwealths. To Maryland I find that I have given 107 pages, while the Carolinas, whose history begins practically a half century later, receive 67 pages; a mere mention of the beginnings of Georgia is all that suits the perspective of the present story. The further development of these southern communities will, it is hoped, receive attention in a later work.

As to the colonies founded in what was once known as North Virginia, I have sketched a portion of the story in "The Beginnings of New England," ending with the accession of William and Mary. The remainder of it will form the subject of my next work, already in preparation, entitled "The Dutch and Quaker Colonies in America;" which will comprise a sketch of the early history of New York, New Jersey, Delaware, and Pennsylvania, with a discussion of the contributions to American life which may be traced to the Dutch, German, Protestant French, and Scotch-Irish migrations previous to the War of Independence.

To complete the picture of the early times and to "make connections" with "The American Revolution," still another work will be needed, which shall resume the story of New England at the accession of William and Mary.

With that story the romantic fortunes of New France are inseparably implicated, and in the course of its development one colony after another is brought in until from the country of the Wabenaki to that of the Cherokees the whole of English America is involved in the mightiest and most fateful military struggle which the eighteenth century witnessed. The end of that conflict finds thirteen colonies nearly ripe for independence and union.

The present work was begun in 1882, and its topics have been treated in several courses of lectures at the Washington University in St. Louis, and elsewhere. In 1895 I gave a course of twelve such lectures, especially prepared for the occasion, at the Lowell Institute in Boston. But the book cannot properly be said to be "based upon" lectures; the book was primary and the lectures secondary.

The amount of time spent in giving lectures and in writing a schoolbook of American history has greatly delayed the appearance of this book. It is more than five years since "The Discovery of America" was published; I hope that "The Dutch and Quaker Colonies" will appear after a much shorter interval.

CAMBRIDGE, *October* 10, 1897.

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CHAPTER I.

THE SEA KINGS.

WHEN one thinks of the resounding chorus of congratulations with which the four hundredth anniversary of the Discovery of America was lately heralded to a listening world, it is curious and instructive to notice the sort of comment which that great event called forth upon the occasion of its third centenary, while the independence of the United States was as yet a novel and ill-appreciated fact. In America very little fuss was made. Railroads were as yet unknown, and the era of world's fairs had not begun. Of local celebrations there were two; one held in New York, the other in Boston; and as in 1892, so in 1792, New York followed the Old Style date, the twelfth of October, while Boston undertook to correct the date for New Style. This work was discredibly bungled, however, and the twenty-third of October was selected instead of the true date, the twenty-first. In New York the affair was conducted by the newly founded political society named for the Delaware chieftain Tammany, in Boston by the Massachusetts Historical Society, whose founder, Dr. Jeremy Belknap, delivered a thoughtful and scholarly address upon the occasion. Both commemorations of the day were very quiet and modest.^[1]

Tercentenary of the
Discovery of
America, 1792.

In Europe little heed was paid to America and its discovery, except in France, which, after taking part in our Revolutionary War, was at length embarking upon its own Revolution, so different in its character and fortunes. Without knowing much about America, the Frenchmen of that day were fond of using it to point a moral and adorn a tale. In 1770 the famous Abbé Raynal had published his "Philosophical and Political History of the Establishments and Commerce of the Europeans in the Two Indies," a book in ten volumes, which for a time enjoyed immense popularity. Probably not less than one third of it was written by Diderot, and more than a dozen other writers contributed to its pages, while the abbé, in editing these various chapters and adding more from his own hand, showed himself blissfully ignorant of

Abbé Raynal.

the need for any such thing as critical judgment in writing history. In an indescribably airy and superficial manner the narrative flits over the whole vast field of the intercourse of Europeans with the outlying parts of the earth discovered since the days of Columbus and Gama; and at length, in the last chapter of the last volume, we are confronted with the question, What is all this worth? Our author answers confidently, Nothing! worse than nothing! the world would have been much better off if America had never been discovered and the ocean route to Asia had remained unknown!

This opinion seems to have been a favourite hobby with the worthy Raynal; for in 1787, in view of the approaching tercentenary, we find him proposing to the Academy of Lyons the offer of a prize of fifty louis for the best essay upon the question whether the discovery of America had been a blessing or a curse to mankind. It was furthermore suggested that the essay should discuss the most practicable methods of increasing the benefits and diminishing the ills that had flowed and continued to flow from that memorable event. The announcement of the question aroused considerable interest, and a few essays were written, but the prize seems never to have been awarded. One of these essays was by the Marquis de Chastellux, who had served in America as major-general in the army of Count Rochambeau. The accomplished author maintains, chiefly on economic grounds, that the discovery has been beneficial to mankind; in one place, mindful of the triumph of the American cause in the grand march upon Yorktown wherein he had himself taken part, he exclaims, "O land of Washington and Franklin, of Hancock and Adams, who could ever wish thee non-existent for them and for us?" To this Baron Grimm^[2] replied, "Perhaps he will wish it who reflects that the independence of the United States has cost France nearly two thousand million francs, and is hastening in Europe a revolutionary outbreak which had better be postponed or averted." To most of these philosophers no doubt Chastellux seemed far too much of an optimist, and the writer who best expressed their sentiments was the Abbé Genty, who published at Orleans, in 1787, an elaborate essay, in two tiny volumes, entitled "The Influence of the Discovery of America upon the Happiness of the Human Race." Genty has no difficulty in reaching the conclusion that the influence has been chiefly for the bad. Think what a slaughter there had been of innocent and high-minded red

Was the discovery of America a blessing or a curse to mankind?

Abbé Genty.

Quinine.

men by brutal and ruthless whites! for the real horrors described by Las Casas were viewed a century ago in the light of Rousseau's droll notions as to the exalted virtues of the noble savage. Think, too, how most of the great European wars since the Peace of Westphalia had grown out of quarrels about colonial empire! Clearly Columbus had come with a sword, not with an olive branch, and had but opened a new chapter in the long Iliad of human woe. Against such undeniable evils, what benefits could be alleged except the extension of commerce, and that, says Genty, means merely the multiplication of human wants, which is not in itself a thing to be desired.^[3] One unqualified benefit, however, Genty and all the other writers freely admit; the introduction of quinine into Europe and its use in averting fevers. That item of therapeutics is the one cheery note in the mournful chorus of disparagement, so long as our attention is confined to the past. In the future, perhaps, better things might be hoped for. Along the Atlantic coast of North America a narrow fringe of English-speaking colonies had lately established their political independence and succeeded in setting on foot a federal government under the presidency of George Washington. The success of this enterprise might put a new face upon things and ultimately show that after all the discovery of the New World was a blessing to mankind.^[4] So says the Abbé Genty in his curious little book, which even to-day is well worth reading.

If now, after the lapse of another century, we pause to ask the question why the world was so much more interested in the Western hemisphere in 1892 than in 1792, we may fairly say that it is because of the constructive work, political and social, that has been done here in the interval by men who speak English. Surely, if there were nothing to show but the sort of work in colonization and nation-making that characterized Spanish America under its Old Régime, there would be small reason for celebrating the completion of another century of such performance. During the present century, indeed, various parts of Spanish America have begun to take on a fresh political and social life, so that in the future much may be hoped for them. But the ideas and methods which have guided this revival have been largely the ideas and methods of English-speaking people, however imperfectly conceived and reproduced. The whole story of this western hemisphere since Genty wrote gives added point to his opinion that its value to mankind would be

Spanish and
English America.

determined chiefly by what the people of the United States were likely to do.

The smile with which one regards the world-historic importance accorded to the discovery of quinine is an index of the feeling that there are broad ways and narrow ways of dealing with such questions. To one looking through a glass of small calibre a great historical problem may resolve itself into a question of food and drugs. Your anti-tobacco fanatic might contend that civilized men would have been much better off had they never become acquainted with the Indian weed. An economist might more reasonably point to potatoes and maize—to say nothing of many other products peculiar to the New World—as an acquisition of which the value can hardly be overestimated. To reckon the importance of a new piece of territory from a survey of its material productions is of course the first and most natural method. The Spanish conquerors valued America for its supply of precious metals and set little store by other things in comparison. But for the discovery of gold mines in 1496 the Spanish colony founded by Columbus in Hispaniola would probably have been abandoned. That was but the first step in the finding of gold and silver in enormous quantities, and thenceforth for a long time the Spanish crown regarded its transatlantic territories as an inexhaustible mine of wealth. But the value of money to mankind depends upon the uses to which it is put; and here it is worth our while to notice the chief use to which Spain applied her American treasure during the sixteenth century.

Precious metals.

The relief of the church from threatening dangers was in those days the noblest and most sacred function of wealth. When Columbus aimed his prow westward from the Canaries, in quest of the treasures of Asia, its precious stones, its silk-stuffs, its rich shawls and rugs, its corals and dye-woods, its aromatic spices, he expected to acquire vast wealth for the sovereigns who employed him and no mean fortune for himself. In all negotiations he insisted upon a good round percentage, and could no more be induced to budge from his price than the old Roman Sibyl with her books. Of petty self-seeking and avarice there was probably no more in this than in commercial transactions generally. The wealth thus sought by Columbus was not so much an end as a means. His spirit was that of a Crusader, and his aim was not to discover a

Aims of Columbus.

New World (an idea which seems never once to have entered his head), but to acquire the means for driving the Turk from Europe and setting free the Holy Sepulchre. Had he been told upon his melancholy death-bed that instead of finding a quick route to Cathay he had only discovered a New World, it would probably have added fresh bitterness to death.

But if this lofty and ill-understood enthusiast failed in his search for the treasures of Cathay, it was at all events not long before Cortes and Pizarro succeeded in finding the treasures of Mexico and Peru, and the crusading scheme of Columbus descended as a kind of legacy to the successors of Ferdinand and Isabella, the magnanimous but sometimes misguided Charles, the sombre and terrible Philip. It remained a crusading scheme, but, no longer patterned after that of Godfrey and Tancred, it imitated the mad folly which had once extinguished in southern Gaul the most promising civilization of its age. Instead of a Spanish crusade which might have expelled the most worthless and dangerous of barbarians from eastern Europe, it became a Spanish crusade against everything in the shape of political and religious freedom, whether at home or abroad. The year in which Spanish eyes first beheld the carved serpents on Central American temples was the year in which Martin Luther nailed his defiance to the church door at Wittenberg. From the outworn crust of mediævalism the modern spirit of individual freedom and individual responsibility was emerging, and for ninety years all Europe was rent with the convulsions that ensued. In the doubtful struggle Spain engaged herself further and further, until by 1570 she had begun to sacrifice to it all her energies. Whence did Philip II. get the sinews of war with which he supported Alva and Farnese, and built the Armada called Invincible? Largely from America, partly also from the East Indies, since Portugal and her colonies were seized by Philip in 1580. Thus were the first-fruits of the heroic age of discovery, both to east and to west of Borgia's meridian, devoted to the service of the church with a vengeance, as one might say, a lurid vengeance withal and ruthless. By the year 1609, when Spain sullenly retired, baffled and browbeaten, from the Dutch Netherlands, she had taken from America more gold and silver than would to-day be represented by five thousand million dollars, and most of this huge treasure she had employed in maintaining the gibbet for political reformers and the stake for heretics. In view of this grewsome fact, Mr. Charles Francis Adams has lately asked the question whether the discovery of America was not, after

Spain and the
Protestant revolt.

all, for at least a century, fraught with more evil than benefit to mankind. One certainly cannot help wondering what might have been the immediate result had such an immense revenue been at the disposal of William and Elizabeth rather than Philip.

Such questions are after all not so simple as they may seem. It is not altogether clear that such a reversal of the conditions from the start would have been of unmixed benefit to the English and Dutch. After the five thousand millions had been scattered to the winds, altering the purchasing power of money in all directions, it was Spain that was impoverished while her adversaries were growing rich and strong. A century of such unproductive expenditure went far toward completing the industrial ruin of Spain, already begun in the last Moorish wars, and afterward consummated by the expulsion of the Moriscos. The Spanish discovery of America abundantly illustrates the truths that if gold were to become as plentiful as iron it would be worth much less than iron, and that it is not inflation but production that makes a nation wealthy. In so far as the discovery of America turned men's minds from steady industry to gold-hunting, it was a dangerous source of weakness to Spain; and it was probably just as well for England that the work of Cortes and Pizarro was not done for her.

Nations are made wealthy, not by inflation but by production.

But the great historic fact, most conspicuous among the consequences of the discovery of America, is the fact that colonial empire, for England and for Holland, grew directly out of the long war in which Spain used American and East Indian treasure with which to subdue the English and Dutch peoples and to suppress the principles of civil and religious liberty which they represented. The Dutch tore away from Spain the best part of her East Indian empire, and the glorious Elizabethan sea kings, who began the work of crippling Philip II. in America, led the way directly to the English colonization of Virginia. Thus we are introduced to the most important aspect of the discovery of America. It opened up a fresh soil, enormous in extent and capacity, for the possession of which the lower and higher types of European civilization and social polity were to struggle. In this new arena the maritime peoples of western Europe fought for supremacy; and the conquest of so vast a field has given to the ideas of the

Deepest significance of the discovery of America.

victorious people, and to their type of social polity, an unprecedented opportunity for growth and development. Sundry sturdy European ideas, transplanted into this western soil, have triumphed over all competitors and thriven so mightily as to react upon all parts of the Old World, some more, some less, and thus to modify the whole course of civilization. This is the deepest significance of the discovery of America; and a due appreciation of it gives to our history from its earliest stages an epic grandeur, as the successive situations unfold themselves and events with unmistakable emphasis record their moral. In the conflict of Titans that absorbed the energies of the sixteenth century, the question whether it should be the world of Calderon or the world of Shakespeare that was to gain indefinite power of future expansion was a question of incalculable importance to mankind.

The beginnings of the history of English-speaking America are thus to be sought in the history of the antagonism between Spain and England that grew out of the circumstances of the Protestant Reformation. It was as the storehouse of the enemy's treasure and the chief source of his supplies that America first excited real interest among the English people.

English ships had indeed crossed the Atlantic many years before this warfare broke out. The example set by Columbus had been promptly followed by John Cabot and his young son Sebastian, in the two memorable voyages of 1497 and 1498, but the interest aroused by those voyages was very short-lived. In later days it suited the convenience of England to cite them in support of her claim to priority in the discovery of the continent of North America; but many years elapsed before the existence of any such continent was distinctly known and before England cared to put forth any such claim. All that contemporaries could see was that the Cabots had sailed westward in search of the boundless treasures of Cathay, and had come home empty-handed without finding any of the cities described by Marco Polo or meeting any civilized men. So little work was found for Sebastian Cabot that he passed into the service of Spain, and turned his attention to voyages in the South Atlantic. Such scanty record was kept of the voyages of 1497 and 1498 that we cannot surely tell what land the Cabots first saw; whether it was the bleak coast of northern Labrador or some point as far south as Cape Breton is still a matter of dispute. The case was almost the same as

Voyages of the
Cabots.

with the voyage of Pinzon and Vespuccius, whose ships were off Cape Honduras within a day or two after Cabot's northern landfall, and who, after a sojourn at Tampico, passed between Cuba and Florida at the end of April, 1498. In the one case, as in the other, the expeditions sank into obscurity because they found no gold.

The triumphant return of Gama from Hindustan, in the summer of 1499, turned all men's eyes to southern routes, and little heed was paid to the wild inhospitable shores visited by John Cabot and his son. The sole exception to the general neglect was the case of the fisheries on the banks of Newfoundland. From the beginning of the sixteenth century European vessels came almost yearly to catch fish there, but at first Englishmen took little or no part in this, for they had long been wont to get their fish in the waters about Iceland, and it took them some years to make the change. On the bright August day of 1527 when Master John Rut sailed into the bay of St. John, in Newfoundland, he found two Portuguese, one Breton, and eleven Norman ships fishing there. Basques also came frequently to the spot. Down to that time it is not likely that the thought of the western shores of the Atlantic entered the heads of Englishmen more frequently than the thought of the Antarctic continent, discovered sixty years ago, enters the heads of men in Boston to-day.

The Newfoundland fisheries.

The lack of general interest in maritime discovery is shown by the fact that down to 1576, so far as we can make out, only twelve books upon the subject had been published in England, and these were in great part translations of works published in other countries. The earliest indisputable occurrence of the name America in any printed English document is in a play called "A new interlude and a mery of the nature of the iiij elements," which was probably published in 1519.^[5] About the same time there appeared from an Antwerp press a small book entitled "Of the newe landes and of y^e people found by the messengers of the Kynge of Portugal;" in it occurs the name *Armenica*, which is probably a misprint for America, since the account of it is evidently taken from the account which Vespuccius gives of the natives of Brazil, and in its earliest use the name America was practically equivalent to Brazil. With the exception of a dim allusion to Columbus in Sebastian Brandt's "Ship of Fools," these are the only

Earliest English references to America.

references to the New World that have been found in English literature previous to 1553.

The youthful Edward VI., who died that year, had succeeded in recalling Sebastian Cabot from Spain, and under the leadership of that navigator was formed the joint-stock company quaintly entitled, "The Mysterie and Companie of the Merchant Adventurers for the Discoverie of Regions, Dominions, Islands, and Places unknown." It was the first of that series of sagacious and daring combinations of capital of which the East India Company has been the most famous. It was afterwards more briefly known as the Muscovy Company. Under its auspices, on the 21st of May, 1553, an English fleet of exploration, under Sir Hugh Willoughby, set sail down the Thames while the cheers of thronging citizens were borne through the windows of the palace at Greenwich to the ears of the sick young king. The ill-fated expedition, seeking a northeasterly passage to Cathay, was wrecked on the coast of Lapland, and only one of the ships got home, but the interest in maritime adventure grew rapidly. A few days before Edward's death, Richard Eden published his "Treatyse of the Newe India," which was largely devoted to the discoveries in America. Two years later, in 1555, Eden followed this by his "Decades of the Newe World," in great part a version of Peter Martyr's Latin. This delightful book for the first time made the English people acquainted with the results of maritime discovery in all quarters since the great voyage of 1492. It enjoyed a wide popularity; poets and dramatists of the next generation read it in their boyhood and found their horizon wondrously enlarged. In its pages doubtless Shakespeare found the name of that Patagonian deity Setebos, which Caliban twice lets fall from his grotesque lips. Three years after Eden's second book saw the light the long reign of Queen Elizabeth began, and with it the antagonism, destined year by year to wax more violent and deadly, between England and Spain.

The Muscovy Company.

Richard Eden.

Meanwhile English mariners had already taken a hand in the African slave-trade, which since 1442 had been monopolized by the Portuguese. It is always difficult to say with entire confidence just who first began anything, but William Hawkins, an enterprising merchant of Plymouth, made a voyage on the Guinea coast as early as 1530, or earlier, and carried away a

John Hawkins and the African slave-trade.

few slaves. It was his son, the famous Captain John Hawkins, who became the real founder of the English trade in slaves. In this capacity Americans have little reason to remember his name with pleasure, yet it would be a grave mistake to visit him with unmeasured condemnation. Few sturdier defenders of political freedom for white men have ever existed, and among the valiant sea kings who laid the foundations of England's maritime empire he was one of the foremost. It is worthy of notice that Queen Elizabeth regarded the opening of the slave-trade as an achievement worthy of honourable commemoration, for when she made Hawkins a knight she gave him for a crest the device of a negro's head and bust with the arms tightly pinioned, or, in the language of heraldry, "a demi-Moor proper bound with a cord." Public opinion on the subject of slavery was neatly expressed by Captain Lok, who declared that the negroes were "a people of beastly living, without God, law, religion, or commonwealth,"^[6] so that he deemed himself their benefactor in carrying them off to a Christian land where their bodies might be decently clothed and their souls made fit for heaven. Exactly three centuries after Captain Lok, in the decade preceding our Civil War, I used to hear the very same defence of slavery preached in a Connecticut pulpit; so that perhaps we are not entitled to frown too severely upon Elizabeth's mariners. It takes men a weary while to learn the wickedness of anything that puts gold in their purses.

It was in 1562 that John Hawkins made his first famous expedition to the coast of Guinea, where he took three hundred slaves and carried them over to San Domingo.

Hawkins and
Laudonnière.

It was illicit traffic, of course, but the Spanish planters and miners were too much in need of cheap labour to scrutinize too jealously the source from which it was offered. The Englishman found no difficulty in selling his negroes, and sailed for home with his three ships loaded with sugar and ginger, hides and pearls. The profits were large, and in 1564 the experiment was repeated with still greater success. On the way home, early in August, 1565, Hawkins stopped at the mouth of the St. John's River in Florida, and found there a woebegone company of starving Frenchmen. They were the party of René de Laudonnière, awaiting the return of their chief commander, Jean Ribaut, from France. Their presence on that shore was the first feeble expression of the master thought that in due course of time originated the United States of America, and the author of that master thought was the great Admiral Coligny. The Huguenot wars had lately

broken out in France, but already that far-sighted statesman had seen the commercial and military advantages to be gained by founding a Protestant state in America. After an unsuccessful attempt upon the coast of Brazil, he had sent Jean Ribaut to Florida, and the little colony was now suffering the frightful hardships that were the lot of most new-comers into the American wilderness. Hawkins treated these poor Frenchmen with great kindness, and his visit with them was pleasant. He has left an interesting account of the communal house of the Indians in the neighbourhood, an immense barn-like frame house, with stanchions and rafters of untrimmed logs, and a roof thatched with palmetto leaves. Hawkins liked the flavour of Indian meal, and in his descriptions of the ways of cooking it one easily recognizes both "hasty pudding" and hoe-cake. He thought it would have been more prudent in the Frenchmen if they had raised corn for themselves instead of stealing it from the Indians and arousing a dangerous hostility. For liquid refreshment they had been thrown upon their own resources, and had contrived to make a thousand gallons or more of claret from the native grapes of the country. A letter of John Winthrop reminds us that the Puritan settlers of Boston in their first summer also made wine of wild grapes,^[7] and according to Adam of Bremen the same thing was done by the Northmen in Vinland in the eleventh century,^[8] showing that in one age and clime as well as in another thirst is the mother of invention.

As the Frenchmen were on the verge of despair, Hawkins left them one of his ships in which to return to France, but he had scarcely departed when the long expected Ribaut arrived with reinforcements, and soon

Massacre of
Huguenots: the
painter Le Moine.

after him came that terrible Spaniard, Menendez, who butchered the whole company, men, women, and children, about 700 Huguenots in all. Some half dozen escaped and were lucky enough to get picked up by a friendly ship and carried to England. Among them was the painter Le Moine, who became a friend of Sir Philip Sidney, and aroused much interest with his drawings of American beasts, birds, trees, and flowers. The story of the massacre awakened fierce indignation. Hostility to Spain was rapidly increasing in England, and the idea of Coligny began to be entertained by a few sagacious heads. If France could not plant a Protestant state in America, perhaps England could. A little later we find Le Moine consulted by the gifted half-brothers, Humphrey Gilbert and Walter Raleigh.

Meanwhile, in 1567, the gallant Hawkins went on an eventful voyage, with five stout ships, one of which was commanded by a very capable and well educated young man, afterwards and until Nelson's time celebrated as the greatest of English seamen. Francis Drake was a native

Francis Drake.

The affair of San
Juan de Ulua.

of Devonshire, son of a poor clergyman who had been molested for holding Protestant opinions. The young sea king had already gathered experience in the West Indies and on the Spanish Main; this notable voyage taught him the same kind of feeling toward Spaniards that Hannibal cherished toward Romans. After the usual traffic among the islands the little squadron was driven by stress of weather to seek shelter in the port of San Juan de Ulua, at the present site of Vera Cruz. There was no force there fit to resist Hawkins, and it is droll to find that pious hero, such a man of psalms and prayers, pluming himself upon his virtue in not seizing some Spanish ships in the harbour laden with what we should call five million dollars' worth of silver. The next day a fleet of thirteen ships from Spain arrived upon the scene. Hawkins could perhaps have kept them from entering the harbour, but he shrank from the responsibility of bringing on a battle in time of peace; the queen might disapprove of it. So Hawkins parleyed with the Spaniards, a solemn covenant of mutual forbearance was made and sworn to, and he let them into the harbour. But the orthodox Catholic of those days

sometimes entertained peculiar views about keeping faith with heretics. Had not his Holiness Alexander VI. given all this New World to Spain? Poachers must be warned off; the Huguenots had learned a lesson in Florida, and it was now the Englishmen's turn. So Hawkins was treacherously attacked, and after a desperate combat, in which fireships were used, three of his vessels were destroyed. The other two got out to sea, but with so scanty a larder that the crews were soon glad to eat cats and dogs, rats and mice, and boiled parrots. It became necessary to set 114 men ashore somewhere to the north of Tampico. Some of these men took northeasterly trails, and mostly perished in the woods, but David Ingram and two companions actually made their way across the continent and after eleven months were picked up on the coast of Nova Scotia by a friendly French vessel and taken back to Europe. About seventy, led by Anthony Goddard, less prudently marched toward the city of Mexico, and fell into the clutches of the Inquisition; three were burned at the stake and all the rest were cruelly flogged and sent to the galleys for life. When the news of this affair reached England a squadron of Spanish treasure-ships, chased into the Channel by Huguenot cruisers, had just sought refuge in English harbours, and the queen detained them in reprisal for the injury done to Hawkins.

News had lately arrived of the bloody vengeance wreaked by Dominique de Gourgues upon the Spaniards in Florida, while the cruelties of Alva were fast goading the Netherlands into rebellion. Next year, 1570, on a fresh May morning, the Papal Bull "declaring Elizabeth deposed and her subjects absolved from their allegiance was found nailed against the Bishop of London's door,"^[9] and when the rash young gentleman who had put it there was discovered he was taken back to that doorstep and quartered alive. Two years later came the Paris Matins on the day of St. Bartholomew, and the English ambassador openly gave shelter to Huguenots in his house. Elizabeth's policy leaned more and more decidedly toward defiance of the Catholic powers until it culminated in alliance with the revolted Netherlands in January, 1578. Meanwhile the interest in America quickly increased. Those were the years when Martin Frobisher made his glorious voyages in the Arctic Ocean, soon to be followed by John Davis. Almost yearly Drake crossed the Atlantic and more than once attacked and ravaged the Spanish settlements in revenge for the treachery at San Juan de Ulua. Books and

Growing hostility to Spain in England.

pamphlets about America began to come somewhat frequently from the press.

It is worth our while here to pause for a moment and remark upon the size and strength of the nation that was so soon to contend successfully for the mastery of the sea. There is something so dazzling in the brilliancy of the age of Queen Bess, it is so crowded with romantic incidents, it fills so large a place in our minds, that we hardly realize how small England then was according to modern standards of measurement. Two centuries earlier, in the reign of Edward III., the population of England had reached about 5,000,000, when the Black Death at one fell swoop destroyed at least half the number. In Elizabeth's time the loss had just about been repaired. Her England was therefore slightly less populous, and it was surely far less wealthy, than either New York or Pennsylvania in 1890. The Dutch Netherlands had perhaps somewhat fewer people than England, but surpassed her in wealth. These two allies were pitted against the greatest military power that had existed in Europe since the days of Constantine the Great. To many the struggle seemed hopeless. For England the true policy was limited by circumstances. She could send troops across the Channel to help the Dutch in their stubborn resistance, but to try to land a force in the Spanish peninsula for aggressive warfare would be sheer madness. The shores of America and the open sea were the proper field of war for England. Her task was to paralyze the giant by cutting off his supplies, and in this there was hope of success, for no defensive fleet, however large, could watch all Philip's enormous possessions at once. The English navy, first permanently organized under Henry VIII., grew rapidly in Elizabeth's reign under the direction of her incomparable seamen; and the policy she adopted was crowned with such success that Philip II. lived to see his treasury bankrupt.

Size and strength of Elizabeth's England.

How the sea became England's field of war.

This policy was gradually adopted soon after the fight at San Juan de Ulua, and long before there was any declaration of war. The extreme laxness of that age, in respect of international law, made it possible for such things to go on to an extent that now seems scarcely comprehensible. The wholesale massacre of Frenchmen

Loose ideas of international law.

Bold advice to Elizabeth.

in Florida, for example, occurred at a time of profound peace between France and Spain, and reprisal was made, not by the French government but by a private gentleman who had to sell his ancestral estate to raise the money. It quite suited Elizabeth's tortuous policy, in contending against formidable odds, to be able either to assume or to disclaim responsibility for the deeds of her captains. Those brave men well understood the situation, and with earnest patriotism and chivalrous loyalty not only accepted it, but even urged the queen to be allowed to serve her interests at their own risk. In a letter handed to her in November, 1577, the writer begs to be allowed to destroy all Spanish ships caught fishing on the banks of Newfoundland, and adds, "If you will let us first do this we will next take the West Indies from Spain. You will have the gold and silver mines and the profit of the soil. You will be monarch of the seas and out of danger from every one. I will do it if you will allow me; only you must resolve and not delay or dally—the wings of man's life are plumed with the feathers of death."^[10] The signature to this bold letter has been obliterated, but it sounds like Sir Humphrey Gilbert, and is believed to be his.

In connection with this it should be remembered that neither in England nor elsewhere at that time had the navy become fully a national affair as at present. It was to a considerable extent supported by private speculation, and as occasion required a commercial voyage or a voyage of discovery might be suddenly transformed into a naval campaign. A flavour of buccaneering pervades nearly all the maritime operations of that age and often leads modern writers to misunderstand or misjudge them. Thus it sometimes happens that so excellent a man as Sir Francis Drake, whose fame is forever a priceless possession for English-speaking people, is mentioned in popular books as a mere corsair, a kind of gentleman pirate. Nothing could show a more hopeless confusion of ideas. In a later generation the warfare characteristic of the Elizabethan age degenerated into piracy, and when Spain, fallen from her greatness, became a prey to the spoiler, a swarm of buccaneers infested the West Indies and added another hideous chapter to the lurid history of those beautiful islands. They were mere robbers, and had nothing in common with the Elizabethan heroes except courage. From the deeds of Drake and Hawkins to the deeds of Henry Morgan, the moral distance is as great as from slaying your antagonist in battle to murdering your neighbour for his purse.

The sea kings were not buccaneers.

It was Drake who first put into practice the policy of weakening Philip II. by attacking him in America. It served the direct purpose of destroying the sinews of war, and indirectly it neutralized for Europe some of Spain's naval strength by diverting it into American waters for self-defence. To do such work most effectively it seemed desirable to carry the warfare into the Pacific Ocean. The circumstances of its discovery had made Spanish America almost more of a Pacific than an Atlantic power. The discoverers happened to approach the great double continent where it is narrowest, and the hunt for precious metals soon drew them to the Cordilleras and their western slopes. The mountain region, with its untold treasures of gold and silver, from New Mexico to Bolivia, became theirs. In acquiring it they simply stepped into the place of the aboriginal conquering tribes, and carried on their work of conquest to completion. The new rulers conducted the government by their own Spanish methods, and the white race was superposed upon a more or less dense native population. There was no sort of likeness to colonies planted by England, but there were some points of resemblance to the position of the English in recent times as a ruling race in Hindustan. Such was the kind of empire which Spain had founded in America. Its position, chiefly upon the Pacific coast, rendered it secure against English conquest, though not against occasional damaging attacks. In South America, where it reached back in one or two remote points to the Atlantic coast, the chief purpose was to protect the approach to the silver mines of Bolivia by the open route of the river La Plata. It was this military need that was met by the growth of Buenos Ayres and the settlements in Paraguay, guarding the entrance and the lower reaches of the great silver river.

Why Drake carried the war into the Pacific Ocean.

Soon after the affair of San Juan de Ulua, Drake conceived the idea of striking at this Spanish domain upon its unguarded Pacific side. In 1573, after marching across the isthmus of Darien, the English mariner stood upon a mountain peak, not far from where Balboa sixty years before had stood and looked down upon the waste of waters stretching away to shores unvisited and under stars unknown. And as he looked, says Camden, "vehemently transported with desire to navigate that sea, he fell upon his knees and implored the divine assistance that he might at

Drake upon a peak in Darien.

Voyage of the Golden Hind.

A noble banquet room.

some time sail thither and make a perfect discovery of the same." On the 15th of November, 1577, Drake set sail from Plymouth, on this hardy enterprise, with five good ships. It was a curious coincidence that in the following July and August, while wintering on the Patagonia coast at Port St. Julian, Drake should have discovered symptoms of conspiracy and felt obliged to behead one of his officers, as had been the case with Magellan at the same place. By the time he had passed the straits in his flagship, the Golden Hind,^[11] he had quite lost sight of his consorts, who had deserted him in that watery labyrinth, as Gomez had stolen away from Magellan. For men of common mould a voyage in the remote South Sea still had its terrors; but the dauntless captain kept on with his single ship of twenty guns, and from Valparaiso northward along the Peruvian coast dashed into seaports and captured vessels, carrying away enormous treasures in gold and silver and jewels, besides such provisions as were needed for his crew. With other property he meddled but little, and no acts of wanton cruelty sullied his performances. After taking plunder worth millions of dollars, this corsair-work gave place to scientific discovery, and the Golden Hind sailed far northward in search of a northeast passage into the Atlantic. Drake visited a noble bay, which may have been that of San Francisco, and sailed some distance along that coast, which he called New Albion. It is probable, though not quite certain, that he saw some portion of the coast of Oregon. Not finding any signs of a northeast passage, he turned his prow westward, crossed the Pacific, and returned home by way of the Cape of Good Hope, arriving at Plymouth in September, 1580. Some time afterward he went up the Thames to Deptford, where the queen came to dinner on board the Golden Hind, and knighted on his own quarter-deck the bold captain who had first carried the English flag around the world. The enthusiastic chronicler Holinshed wished that in memory of this grand achievement the ship should be set upon the top of St. Paul's Cathedral, "that being discerned farre and neere, it might be noted and pointed at of people with these true termes: Yonder is the barke that hath sailed round about the world."^[12] A different career awaited the sturdy Golden Hind; for many a year she was kept at Deptford, a worthy object of popular admiration, and her cabin was made into a banquet room wherein young and old might partake of the mutton and ale of merry England; until at last, when the venerable ship herself had succumbed to the tooth of Time, a capacious chair was carved from her timbers and presented to the University of Oxford, where it may

still be seen in the Bodleian Library. In it sat Abraham Cowley when he wrote the poem in which occur the following verses:—

"Drake and his ship could not have wished from Fate
A happier station or more blest estate.
For lo! a seat of endless rest is given
To her in Oxford and to him in heaven."

Meanwhile in the autumn of 1578, while the coasts of Chili were echoing the roar of the Golden Hind's cannon, a squadron of seven ships sailed from England, with intent to found a permanent colony on the Atlantic coast of North America. Its captain was one of the most eminent of Devonshire worthies, Sir Humphrey Gilbert, and one of the ships was commanded by his half-brother, Walter Raleigh, a young man of six-and-twenty who had lately returned from volunteer service in the Netherlands. The destination of the voyage was "Norumbega," which may have meant any place between the Hudson and Penobscot rivers, but was conceived with supreme vagueness, as may be seen from Michael Lok's map of 1582.^[13] This little fleet had at least one savage fight with Spaniards, and returned to Plymouth without accomplishing anything. In 1583 Gilbert sought a favourable place for settlement on the southern coast of Newfoundland, probably with a view to driving the Spaniards away from the fishing grounds, but an ill fate overtook him. On the American coast his principal vessel crushed its bows against a sunken rock and nearly all hands were lost. With two small ships the captain soon set sail for home, but his own tiny craft foundered in a terrible storm near Fayal. As she sank, Gilbert cheerily shouted over the tafferel to his consort, "The way to heaven is as near by sea as by land," a speech, says his chronicler, "well beseeeming a soldier resolute in Jesus Christ, as I can testify he was."

Voyage of Gilbert
and Raleigh.

Shipwreck of
Gilbert.

It was not Raleigh's fault that he did not share the fate of his revered half-brother, for the queen's mind had been full of forebodings and she had refused to let him go on the voyage. It was since the former disastrous expedition that Raleigh had so quickly risen in favour at court; that he had thrown down his velvet cloak

Gilbert's patent
granted to Raleigh.

as a mat for Elizabeth's feet and had written on a window-pane the well-known verse which that royal coquette so cleverly capped. He became Captain of the Queen's Guard and Lord Warden of the Stannaries, and was presented with the confiscated estates of traitors in England and Ireland. In 1584, when his late half-brother's patent for land in America expired, it was renewed in Raleigh's name. On March 25th was sealed the document that empowered him to "hold by homage remote heathen and barbarous lands, not actually possessed by any Christian prince, nor inhabited by Christian people, which he might discover within the next six years."^[14] As had been the custom with Spanish and Portuguese grants to explorers, one fifth of the gold and silver to be obtained was to be reserved for the crown. The heathen and barbarous land which Raleigh had in view was the Atlantic coast of North America so far as he might succeed in occupying it. He knew that Spain claimed it all as her own by virtue of the bull of Pope Alexander VI., but Elizabeth had already declared in 1581 that she cared nothing for papal bulls and would recognize no Spanish claims to America save such as were based upon discovery followed by actual possession.^[15] Raleigh's attention had long been turned toward Florida. In youth he had served in France under Coligny, and had opportunities for hearing that statesman's plan for founding a Protestant state in America discussed. We have seen Le Moine, the French artist who escaped from the Florida massacre, consorting with Raleigh and with Sir Philip Sidney. Upon those men fell the mantle of Coligny, and the people of the United States may well be proud to point to such noble figures standing upon the threshold of our history.

One provision in the Gilbert patent, now renewed for Raleigh, is worth especial mention. It was agreed that the English colonies which should be planted in America "should have all the privileges of free denizens and persons native of England, in such ample manner as if they were born and personally resident in our said realm of England," and that any law to the contrary should be of no effect; furthermore, that the people of those colonies should be governed by such statutes as they might choose to establish for themselves, provided that such statutes "conform as near as conveniently may be with those of England, and do not oppugn the Christian faith, or anyway withdraw the people of those lands from our allegiance." A more unequivocal acknowledgment of the rights of self-government which a British

Promise of self-government.

government of two centuries later saw fit to ignore, it would be hard to find. Gilbert and Raleigh demanded and Elizabeth granted in principle just what Patrick Henry and Samuel Adams demanded and George III. refused to concede.

The wealthy Raleigh could act promptly, and before five weeks had elapsed two ships, commanded by Philip Amidas and Arthur Barlow, had started on a reconnoitring voyage. On the 4th of July, 1584, they reached the country now known as North Carolina, at some point not far from Cape Lookout. Thence a northerly run of over a hundred miles brought them to the New Inlet, through which they passed into Pamlico Sound and visited Roanoke Island. They admired the noble pine-trees and red cedars, marvelled at the abundance of game, and found the native barbarians polite and friendly. Their attempt to learn the name of the country resulted as not uncommonly in such first parleys between strange tongues. The Indian of whom the question was asked had no idea what was meant and uttered at random the Ollendorfian reply, "Win-gan-da-coa," which signified, "What pretty clothes you wear!" So when Amidas and Barlow returned to England they said they had visited a country by the name of Wingandacoa; but the queen, with a touch of the euphuism then so fashionable, suggested that it should be called, in honour of herself, Virginia.

Voyage of Amidas and Barlow, 1584.

In the spring of 1585 Raleigh, who had lately been knighted, sent out a hundred or more men commanded by Ralph Lane, to make the beginnings of a settlement. They were convoyed by Raleigh's cousin, Sir Richard Grenville, with seven well-armed ships. They entered Pamlico Sound through Ocracoke Inlet, and trouble with the natives at once began. One of the Indians stole a silver cup, and Grenville unwisely retaliated by setting fire to their standing corn. Having thus sown the seeds of calamity he set the colonists ashore upon Roanoke Island and went on his way. The sagacious and energetic Lane explored the neighbouring mainland for many miles along the coast and for some distance into the interior, and even tried to find a waterway into the Pacific Ocean. He made up his mind that the country was not favourable for a new colony, and he gathered sundry bits of information which seemed to point to Chesapeake Bay as a much better place. The

Ralph Lane's expedition, 1585.

Rescue of Lane by Sir Francis "the Dragon."

angry Indians made much trouble, and after a year had passed the colonists were suffering from scarcity of food, when all at once Sir Francis Drake appeared on the scene with a superb fleet of three-and-twenty ships. War between Spain and England had been declared in July, 1585, when Sidney and Drake were about ready to execute a scheme that contemplated the founding of an American colony by Sidney. But the queen interfered and sent Sidney to the Netherlands, where he was so soon to die a noble death. The terrible Drake, whom Spaniards, punning upon his name, had begun to call "Dragon," gave them fresh cause to dread and revile him. He had captured 20 ships with 250 cannon, he had taken and sacked Cartagena, St. Domingo, and St. Augustine, and on his way home looked in at Roanoke Island, in time to take Lane and his starving party on board and carry them back to England. They had not long been gone when Grenville arrived with supplies, and was astonished at finding the island deserted. Knowing nothing of Lane's change of purpose, and believing that his party must still be somewhere in the adjacent country, Grenville left a guard of fifteen men on the island, with ample supplies, and sailed away.

The stirring days of the Armada were approaching. When Lane arrived in England, his services were needed there, and after a while we find him a member of the Council of War. One of this first American colonizing party was the wonderful Suffolk boy, Thomas Cavendish, aged two-and-twenty, who had no sooner landed in England than he set sail in command of three ships, made his way into the Pacific Ocean, and repeated the exploits of Drake from Chili to California, captured one of Spain's finest galleons, and then in two years more completed the circumnavigation of the globe. While the pupil was thus nobly acquitting himself, the master in the spring of 1587 outdid all former achievements. Sailing into the harbour of Cadiz, Drake defeated the warships on guard there, calmly loaded his own vessels with as much Spanish spoil as could safely be carried, then set fire to the storeships and cut their cables. More than a hundred transports, some of them 1,500 tons in burthen, all laden with stores for the Armada, became a tangled and drifting mass of blazing ruin, while amid the thunder of exploding magazines the victor went forth on his way unscathed and rejoicing. Day after day he crouched under the beetling crags of Cintra, catching and sinking every craft that passed that lair, then swept like a tempest into the

Cavendish's voyage around the world, 1586-88.

Drake "singes the beard" of Philip II.

bay of Coruña and wrought similar havoc to that of Cadiz, then stood off for the Azores and captured the great carrack on its way from the Indies with treasure reckoned by millions. Europe stood dumb with amazement. What manner of man was it that could thus "sing the King of Spain's beard"? "Philip one day invited a lady of the court to join him in his barge on the Lake of Segovia. The lady said she dared not trust herself on the water, even with his Majesty," for fear of Sir Francis Drake.^[16] Philip's Armada had to wait for another year, while by night and day the music of adze and hammer was heard in English shipyards.

Just as "the Dragon" returned to England another party of Raleigh's colonists was approaching the American coast. There were about 150, including 17 women. John White, a man deft with water-colours, who had been the artist of Lane's expedition, was their governor. Their settlement was to be made on the shore of Chesapeake Bay, but first they must stop at Roanoke Island and pick up the fifteen men left on watch by Grenville. Through some carelessness or misunderstanding or bad faith on the part of the convoy, the people once landed were left in the lurch with only one small vessel, and thus were obliged to stay on that fatal Roanoke Island. They soon found that Grenville's little guard had been massacred by red men. It was under these gloomy circumstances that the first child of English parents was born on the soil of the United States. The governor's daughter Eleanor was wife of Ananias Dare, and their little girl, born August 18, 1587, was named Virginia. Before she was ten days old her grandfather found it necessary to take the ship and return to England for help.

White's colony on
Roanoke Island,
1587.

But the day of judgment for Spain and England was at hand, and lesser things must wait. Amid the turmoil of military preparation, Sir Walter was not unmindful of his little colony. Twice he fitted out relief expeditions, but the first was stopped because all the ships were seized for government service, and the second was driven back into port by Spanish cruisers. While the anxious governor waited through the lengthening days into the summer of 1588, there came, with its imperious haste, its deadly agony and fury, its world-astounding triumph, the event most tremendous, perhaps, that mankind have witnessed since the star of the Wise Men stood over the stable at Bethlehem. Then you might have seen the sea kings working in good fellowship together,—Drake

The Invincible
Armada, 1588.

and Hawkins, Winter and Frobisher, with Howard of Effingham in the Channel fleet; Raleigh and Grenville active alike in council and afield; the two great ministers, Burghley and Walsingham, ever crafty and vigilant; and in the background on her white palfrey the eccentric figure of the strangely wayward and wilful but always brave and patriotic Queen. Even after three centuries it is with bated breath that we watch those 130 black hulks coming up the Channel, with 3,000 cannon and 30,000 men on board, among them ninety executioners withal, equipped with racks and thumbscrews, to inaugurate on English soil the accursed work of the Inquisition. In camp at Dunkirk the greatest general of the age, Alexander Farnese, with 35,000 veterans is crouching for a spring, like a still greater general at Boulogne in later days; and one wonders if the 80,000 raw militia slowly mustering in the busy little towns and green hamlets of England can withstand these well-trained warriors.

In the English fleet there were about as many ships as the enemy had, much smaller in size and inferior in weight of metal, but at the same time far more nimble in movement. Of cannon and men the English had scarcely half as many as the Spaniards, but this disparity was more than offset by one great advantage. Our forefathers had already begun to display the inventive ingenuity for which their descendants in both hemispheres have since become preëminent. Many of their ships were armed with new guns, of longer range than any hitherto known, and this advantage, combined with their greater nimbleness, made it possible in many cases to pound a Spanish ship to pieces without receiving any serious hurt in return. In such respects, as well as in the seamanship by which the two fleets were handled, it was modern intelligence pitted against mediæval chivalry. Such captains as served Elizabeth were not reared under the blighting shadow of the Escorial. With the discomfiture of the Invincible Armada before Dunkirk, the army of Farnese at once became useless for invading England. Then came the awful discovery that the mighty fleet was penned up in the German Ocean, for Drake held the Strait of Dover in his iron grip. The horrors of the long retreat through northern seas have never been equalled save when Napoleon's hosts were shattered in Russia. In the disparity of losses, as in the immensity of the issues at stake, we are reminded of the Greeks and Persians at Salamis; of Spaniards more than 20,000 perished, but scarcely 100 Englishmen. The frightful loss

Defeat of the
Invincible Armada.

Battle of Cadiz,
1596.

of ships and guns announced the overthrow of Spanish supremacy, but the bitter end was yet to come. During the next three years the activity of the sea kings reached such a pitch that more than 800 Spanish ships were destroyed.^[17] The final blow came soon after the deaths of Drake and Hawkins in 1596, when Raleigh, with the Earl of Essex and Lord Thomas Howard, destroyed the Spanish fleet in that great battle before Cadiz whereof Raleigh wrote that "if any man had a desire to see Hell itself, it was there most lively figured."^[18]

It was not until March, 1591, that Governor White succeeded in getting to sea again for the rescue of his family and friends. He had to go as passenger in a West Indiaman. When he landed, upon the return voyage, at Roanoke Island, it was just in time to have celebrated his little grandchild's fourth birthday. It had been agreed that should the colonists leave that spot they should carve upon a tree the name of the place to which they were going, and if they should add to the name a cross it would be understood as a signal of distress. When White arrived he found grass growing in the deserted blockhouse. Under the cedars hard by five chests had been buried, and somebody had afterwards dug them up and rifled them. Fragments of his own books and pictures lay scattered about. On a great tree was cut in big letters, but without any cross, the word CROATAN, which was the name of a neighbouring island. The captain of the ship was at first willing to take White to Croatan, but a fierce storm overtook him and after beating about for some days he insisted upon making for England in spite of the poor man's entreaties. No more did White ever hear of his loved ones. Sixteen years afterward the settlers at Jamestown were told by Indians that the white people abandoned at Roanoke had mingled with the natives and lived with them for some years on amicable terms until at the instigation of certain medicine-men (who probably accused them of witchcraft) they had all been murdered, except four men, two boys, and a young woman, who were spared by request or order of a chief. Whether this young woman was Virginia Dare, the first American girl, we have no means of knowing.^[19]

Mystery of the fate of White's colony.

Nothing could better illustrate than the pathetic fate of this little colony how necessary it was to destroy the naval power of Spain before England could occupy the soil of North America. The defeat of the Invincible

Significance of the defeat of the Armada.

Armada was the opening event in the history of the United States. It was the event that made all the rest possible. Without it the attempts at Jamestown and Plymouth could hardly have had more success than the attempt at Roanoke Island. An infant colony is like an army at the end of a long line of communications; it perishes if the line is cut. Before England could plant thriving states in America she must control the ocean routes. The far-sighted Raleigh understood the conditions of the problem. When he smote the Spaniards at Cadiz he knew it was a blow struck for America. He felt the full significance of the defeat of the Armada, and in spite of all his disappointments with Virginia, he never lost heart. In 1602 he wrote to Sir Robert Cecil, "I shall yet live to see it an English nation."

In the following chapters we shall see how Raleigh's brave words came true.

CHAPTER II.

A DISCOURSE OF WESTERN PLANTING.

IN all the history of human knowledge there is no more fascinating chapter than that which deals with the gradual expansion of men's geographical ideas consequent upon the great voyages of the fifteenth and sixteenth centuries. It is not a tale so written that he who runs may read it, but its events have rather to be slowly deciphered from hundreds of quaint old maps, whereon islands and continents, mountains and rivers, are delineated with very slight resemblance to what we now know to be the reality; where, for instance, Gog and Magog show a strong tendency to get mixed up with Memphremagog, where the capital of China stands a few hundred miles north of the city of Mexico, and your eye falls upon a river which you feel sure is the St. Lawrence until you learn that it is meant for the Yang-tse-Kiang. In the sixteenth century scarcely any intellectual stimulus could be found more potent than the sight of such maps, revealing unknown lands, or cities and rivers with strange names, places of which many marvels had been recounted and almost anything might be believed.

Sixteenth century maps.

One afternoon in the year 1568, the lawyer Richard Hakluyt was sitting at his desk in the Middle Temple, with a number of such maps and sundry new books of cosmography spread out before him, when the door opened and his young cousin and namesake, then a boy of sixteen studying at Westminster School, came into the room. The elder Richard opened the Bible at the 107th Psalm, and pointed to the verses which declare that "they which go downe to the sea in ships and occupy by the great waters, they see the works of the Lord and his wonders in the deep;" then he called the lad's attention to the maps, in which he soon became absorbed. This incident determined the career of the younger Richard Hakluyt, and led to his playing an important part in the beginnings of the United States of America. A learned and sagacious writer upon American history, Mr. Doyle, of All Souls College, Oxford, has truly said that it is "hard to estimate at its full value the debt which succeeding

Richard Hakluyt.

generations owe to Richard Hakluyt."^[20] In 1570 he became a student at Christ Church, Oxford, and took his master's degree in 1577. His book called "Divers Voyages," dedicated to Sir Philip Sidney, was published in 1582. From 1583 to 1588 he was chaplain of the English legation at Paris, and before his return he was appointed canon of Bristol, an office which he held till 1605. Thus for many years he lived in the city of the Cabots, the cradle of the new era of maritime adventure. He came to be recognized as one of the foremost geographers of the age and the greatest living English authority on matters relating to the New World. The year following the defeat of the Armada witnessed the publication of his book entitled "Principal Voyages," which Froude well calls "the prose epic of the modern English nation."^[21] In 1605 he was made a prebendary of Westminster, and eleven years later was buried with distinguished honours beneath the pavement of the great Abbey.

The book of Hakluyt's which here most nearly concerns us is the "Discourse of Western Planting," written in 1584, shortly before the return of the ships of Amidas and Barlow from Roanoke Island. It was not published, nor was immediate publication its aim. It was intended to influence the mind of Queen Elizabeth. The manuscript was handed to her about September, 1584, and after a while was lost sight of until after a long period of oblivion it turned up in the library of Sir Peter Thomson, an indefatigable collector of literary treasures, who died in 1770. It was bought from his family by Lord Valentia, after whose death it passed into the hands of the famous bibliophile Henry Stevens, who sold it to Sir Thomas Phillips for his vast collection of archives at Thirlestane House, Cheltenham. In 1869 a copy of it was made for Dr. Leonard Woods, President of Bowdoin College, by whom it was ably edited for the Maine Historical Society; and at length, in 1877, after a sleep of nearly three centuries, it was printed at our New England Cambridge, at the University Press, and published with valuable notes by the late Dr. Charles Deane.

Adventures of a
manuscript.

Hakluyt wrote this document at the request of Raleigh, who wished to persuade the queen to invest money in a colonizing expedition to the New World. Such an enterprise, he felt, was too great for any individual purse and needed support from government. No one had

Reasons for
planting English
colonies in
America.

studied the subject so thoroughly as Hakluyt, and so Raleigh enlisted his services. In twenty-one brief chapters Hakluyt sets forth the various reasons why England should plant colonies on the coast of North America. The chief reasons are that such colonies will enlarge the occasions and facilities for driving Spanish ships from the Newfoundland fisheries and capturing Spanish treasure on its way from Mexico and the isthmus of Darien; they will be serviceable as stations toward the discovery and use of the northwest passage to Cathay; after a while they will furnish a valuable market for the products of English industry, especially woollen and linen cloths; they will increase the royal revenue by customs duties; they will afford new material for the growth of the navy; and in various ways they will relieve England of its idlers and vagrants by finding occupation for them abroad. In his terse quaint way, the writer emphasizes these points. As for the Spanish king, "if you touche him in the Indies you touche the apple of his eye; for take away his treasure, which is *nervus belli*, and which he hath almoste [all] out of his West Indies, his olde bandes of souldiers will soone be dissolved, his purposes defeated, ... his pride abated, and his tyranie utterly suppressed." "He shall be left bare as Æsop's proude crowe." With regard to creating a new market he says: "Nowe if her Majestie take these westerne discoveries in hande, and plant there, yt is like that in short time wee shall vente as greate a masse of clothe yn those partes as ever wee did in the Netherlandes, and in tyme moche more." In this connection he gives a striking illustration of the closeness of the commercial ties which had been knit between England and the Low Countries in the course of the long alliance with the House of Burgundy. In 1550, when Charles V. proposed to introduce the Spanish Inquisition into the Netherlands, it was objected that all English merchants would then quit the country, and the English trade would be grievously diminished. At this suggestion, "search was made what profite there came and comoditie grewe by the haunte of the Englishe marchantes. Then it was founde by searche and enquirie, that within the towne of Antwerpe alone there were 14,000 persons fedde and mayneteyned onely by the workinge of English commodities, besides the gaines that marchantes and shippers with other in the said towne did gett, which was the greatest part of their lyvinge, which were thoughte to be in nomber halfe as many more; and in all other places of his Netherlandes by the indraping of Englishe woll into clothe, and by the working of other

English trade with
the Netherlands.

Englishe comodities, there were 30,000 persons more mayneteyned and fedd; which in all amounteth to the number of 51,000 persons." When this report was given to Charles V. it led him to pause and consider, as well it might.

According to Hakluyt an English colony in America would soon afford as good a market for English labour as the Netherlands. He was impressed with the belief that the population of England was fast outrunning its means of subsistence. Now if the surplus of population could be drawn to America it would find occupation in raising the products of that new soil to exchange for commodities from England, and this exchange in its turn would increase the demand for English commodities and for the labour which produced them, so that fewer people in England would be left without employment. Such is Hakluyt's idea, though he nowhere states it quite so formally. It is interesting because there is no doubt that he was not alone in holding such views. There was in many quarters a feeling that, with its population of about 5,000,000, England was getting to be over-peopled. This was probably because for some time past the supply of food and the supply of work had both been diminishing relatively to the number of people. For more than a century the wool trade had been waxing so profitable that great tracts of land which had formerly been subject to tillage were year by year turned into pastures for sheep. This process not only tended to raise the price of food, but it deprived many people of employment, since sheep-farming requires fewer hands than tilling the soil. Since the accession of Henry VIII. there had been many legislative attempts to check the conversion of ploughed land into grassy fields, but the change still continued to go on.^[22] The enormous increase in the quantity of precious metals had still further raised the price of food, while as people were thrown out of employment the labour market tended to become overstocked so that wages did not rise. These changes bore with especial severity upon the class of peasants. The condition of the freeholding yeomanry was much improved during the sixteenth century. Stone houses with floors had taken the place of rude cabins with rushes carpeting the ground; meat was oftener eaten, clothes were of better quality. But it was otherwise with the peasants who held by servile tenures. In the abolition of mediæval serfdom which had been going on for two centuries and was

An American market.

The change from tillage to pasturage.

Growth of pauperism.

completed in England so much earlier than in any other part of Europe, it was not all gain for the lowest grades of labourers. Some through energy and good fortune rose to recruit the ranks of freeholders, but many others became paupers and thieves. The change from tillage to pasturage affected this class more than any other, for it turned many out of house and home; so that, in the words of an old writer, they "prowled about as idle beggars or continued as stark thieves till the gallows did eat them."^[23] The sudden destruction of the monasteries by Henry VIII. deprived the pauper of such scanty support as he had been wont to get from the vast wealth of the Church, and besides it had let loose upon society a vast number of persons with their old occupations gone and set aside.^[24] In Elizabeth's reign, therefore, for the various reasons here mentioned, the growth of pauperism began to attract especial attention as a lamentable if not formidable evil, and the famous "poor law" of 1601 marks a kind of era in the social history of England. Under such circumstances, for men disheartened by poverty and demoralized by idleness, struggling for life in a community that had ceased to need the kind of labour they could perform, the best chance of salvation seemed to lie in emigration to a new colony where the demand for labour was sure to be great, and life might be in a measure begun anew. So thought the good Hakluyt, and the history of the seventeenth century did much to justify his opinion. The prodigious development of the English commercial and naval marine, to which the intercourse with the new and thriving American colonies greatly contributed, went far toward multiplying the opportunities for employment and diminishing the numbers of the needy and idle class. Many of the sons of the men who had been driven from their farms by sheep-raising landlords made their home upon the ocean, and helped to secure England's control of the watery pathways. Many of them found new homes in America, and as independent yeomen became more thrifty than their peasant fathers.

While there were many people who espoused Hakluyt's views, while preachers might be heard proclaiming from the pulpit that "Virginia was a door which God had opened for England," on the other hand, as in the case of all great enterprises, loud voices were raised in opposition. To send parties of men and women to starve in the wilderness, or be murdered by savages or Spaniards, was a

Opposition to Hakluyt.

The queen's penuriousness.

proceeding worthy of severe condemnation for its shocking cruelty, to say nothing of its useless extravagance. Then, as usual, the men who could see a few inches in front of their noses called themselves wise and practical, while they stigmatized as visionary theorists the men whose imaginations could discern, albeit in dim outlines, the great future. As for the queen, who clearly approved in her innermost heart the schemes of Raleigh and Hakluyt, not much was to be expected from her when it came to a question of spending money. Elizabeth carried into the management of public affairs a miserly spirit inherited, perhaps, from her grandfather, Henry VII. When the Armada was actually entering the Channel she deemed it sound economy to let her sailors get sick with sour ale rather than throw it away and buy fresh for them. Such a mind was not likely to appreciate the necessity for the enormous immediate outlay involved in planting a successful colony. That such a document as Hakluyt's should be laid away and forgotten was no more than natural. To blame Elizabeth unreservedly, however, without making some allowance for the circumstances in which she was placed, would be crude and unfair. It was the public money that she was called upon to spend, and the military pressure exerted by Spain made heavy demands upon it. In spite of her pennywise methods, which were often so provoking, they were probably less ill suited to that pinching crisis than her father's ready lavishness would have been.

That Raleigh should appeal to the sovereign for aid in his enterprise was to have been expected. It was what all explorers and colonizers had been in the habit of doing. Since the days of Prince Henry the Navigator the arduous work of discovering and subduing the heathen world outside of Europe had been conducted under government control and paid from the public purse whenever the plunder of the heathen did not suffice. In some cases the sovereign was unwilling to allow private capital to embark in such enterprises; as for example in the spring of 1491, when the Duke of Medina-Celi offered to fit out two or three caravels for Columbus and Queen Isabella refused to give him the requisite license, probably because she was "unwilling to have the duke come in for a large share of the profits in case the venture should prove successful."^[25] Usually, however, such work was beyond the reach of private purses, and it was not until the middle of the sixteenth century, and in such commercial countries as the Netherlands and England, with comparatively free governments, that joint-

The beginnings of joint-stock companies.

stock companies began to be formed for such purposes. I have already alluded to the famous Muscovy Company, first formed in the reign of Edward VI., and from that time forth the joint-stock principle went on rapidly gaining strength until its approach to maturity was announced by the creation of the English East India Company in 1600 and the Dutch East India Company in 1602. The latter was "the first great joint-stock company whose shares were bought and sold from hand to hand,"^[26] and these events mark the beginning of a new era in European commerce.

This substitution of voluntary coöperation among interested individuals for compulsory action under government control was one of the most important steps taken toward bringing in the modern era. Americans have no reason to regret that the beginnings of English colonization in the New World were not made by an English sovereign. There can be no doubt that the very slight connection between these colonies and the Crown was from the first extremely favourable to their free and untrammelled development. Far better that the worthy Hakluyt's essay should get tucked away in a pigeon-hole than that it should have fired Elizabeth to such zeal for Virginia as Louis XIV. a century afterward showed for New France!

By 1589 Raleigh seems to have despaired of finding the queen disposed to act as a fairy godmother. He reckoned that he had already spent £40,000 on Virginia, although this sum may perhaps have included his contributions toward the Arctic voyages of John Davis. Such a sum would be equivalent to not less than \$1,000,000 of our modern money, and no wonder if Raleigh began to feel more than ever that the undertaking was too great for his individual resources. In March, 1589, we find him, as governor of Virginia, assigning not his domain but the right to trade there to a company, of which John White, Thomas Smith, and Rev. Richard Hakluyt were the most prominent members. He reserved for himself a royalty of one fifth of all the gold and silver that should be obtained. The Company did not show much activity. We may well believe that it was too soon after the Armada. Business affairs had not had time to recover from that severe strain. But Raleigh never lost sight of Virginia. Southey's accusation that he sent out colonists and then abandoned them was ill-considered. We have already seen why it proved impossible to send help to John White's colony.

Raleigh's
difficulties.

In the pursuit of his various interests the all-accomplished knight sometimes encountered strange vicissitudes. With all his flattery of the crowned coquette, Elizabeth Tudor, the true sovereign of his heart was one of the ladies of the court, the young and beautiful Elizabeth Throckmorton. To our prosaic modern minds the attitude of the great queen toward the favourite courtiers whom she could by no possibility dream of raising to the dignity of prince-consort seems incomprehensible. But after a due perusal of the English dramatists of the time, the romance of Sidney, the extravagances of Lyly, the poetry of Spenser and Ronsard, or some of those tales of chivalry that turned good Don Quixote's brain, we are beguiled into the right sort of atmosphere for understanding it. For any of Elizabeth's counsellors or favourites to make love to any other lady was apt to call down some manifestation of displeasure, and in 1592 some circumstances connected with Raleigh's marriage^[27] led to his imprisonment in the Tower. But his evil star was not yet in the ascendant. Within a few weeks one of his captains, Christopher Newport, whom we shall meet again, brought into Dartmouth harbour the great Spanish carrack Madre de Dios, with treasure from the Indies worth nearly four millions of modern dollars. A large part of Raleigh's own share in the booty was turned over to his sovereign with that blithesome grace in which none could rival him, and it served as a ransom. In 1594 we find him commanding an expedition to Guiana and exploring the vast solitudes of the Orinoco in search of El Dorado. On his return to England he found a brief interval of leisure in which to write that fascinating book on Guiana which David Hume declared to be full of lies, a gross calumny which subsequent knowledge, gathered by Humboldt and since his time, has entirely refuted. Then came the great battle at Cadiz in 1596, already mentioned, and the capture of Fayal in 1597, when Raleigh's fame reached its zenith. About this time, or soon after, began those ambrosial nights, those feasts of the gods, at the Mermaid Tavern, where Selden and Camden, Beaumont and Fletcher, Ben Jonson and Dr. Donne, sat around the table with Raleigh and Shakespeare. In that happy time the opportunity for colonizing Virginia seemed once more to have come, and in 1602 Raleigh sent out Samuel Mace on an expedition of which less is known than one could wish, save that renewed search was made for White's lost colony. Otherwise, says the

The great Spanish carrack.

The Mermaid Tavern.

King James I.

historian Stith, this Mace "performed nothing, but returned with idle stories and frivolous allegations."^[28] When he arrived in England in 1603, sad changes had occurred. The great queen—great and admirable with all her faults—had passed away, and a quaint pedantic little Scotchman, with uncouth figure and shambling gait and a thickness of utterance due partly to an ill-formed tongue and partly to excessive indulgence in mountain dew, had stepped into her place. A web of intrigue, basely woven by Robert Cecil and Henry Howard, had caught Raleigh in its meshes. He was hurried off to the Tower, while an attainder bereft him of his demesne of Virginia and handed it over to the crown.

But other strong hands were taking up the work. That Earl of Southampton to whom Shakespeare ten years before had dedicated his "Venus and Adonis" had been implicated in Essex's rebellion and narrowly escaped with his life. The accession of James I., which was fraught with such ill for Raleigh, set Southampton free.

Henry, Earl of
Southampton.

Gosnold, Pring and
Weymouth.

But already in 1602, while he was still a prisoner in the Tower, an expedition organized under his auspices set sail for Virginia. It was commanded by one of Raleigh's old captains, Bartholomew Gosnold, and has especial interest as an event in the beginnings alike of Virginia and of New England. Gosnold came to a region which some persons called Norumbega, but was soon to be known for a few years as North Virginia, and always thereafter as New England. It was he who first wrote upon the map the names Cape Cod and Martha's Vineyard, and the Elizabeth Islands in what we call Buzzard's Bay. His return to England was the occasion of a fresh and strong renewal of interest in the business of what Hakluyt called "western planting." The voyage of Martin Pring to North Virginia, at the expense of sundry Bristol merchants, followed in 1603, and at the same time Bartholomew Gilbert, son of Sir Humphrey, coasted the shores of Chesapeake Bay, and was slain by the Indians with several of his men. Early in 1605 Captain George Weymouth set out in a vessel equipped by the Earl of Southampton, Lord Arundel of Wardour, and Sir Ferdinando Gorges, governor of the garrison at Plymouth. After spending a month in North Virginia, Weymouth returned to England with five captive Indians, and the popular interest aroused by his arrival surpassed that which had been felt upon former occasions.

The excitement over Virginia was promptly reflected upon the stage. The comedy of "Eastward Ho," written by Chapman and Marston, with contributions from Ben Jonson, was acted in 1605 and published in the autumn of that year. The title is a survival of forms of speech current when America was believed to be a part of the oriental world. Some extracts from this play will serve to illustrate the popular feeling. In the second act old Security, the money lender, is talking with young Frank Quicksilver about the schemes of Sir Petronel Flash. Quicksilver says, "Well, dad, let him have money; all he could anyway get is bestowed on a ship, now bound for Virginia." Security replies, "Now a frank gale of wind go with him, Master Frank! We have too few such knight adventurers. Who would not sell away competent certainties to purchase (with any danger) excellent uncertainties? Your true knight venturer ever does it." In the next act a messenger enters.

"Eastward Ho!"

Messenger. Sir Petronel, here are three or four gentlemen desire to speak with you.

Petronel. What are they?

Quicksilver. They are your followers in this voyage, knight captain Seagull and his associates; I met them this morning and told them you would be here.

Petronel. Let them enter, I pray you....

Enter Seagull, Spendall, and Scapethrift.

Seagull. God save my honourable colonel!

Petronel. Welcome, good Captain Seagull and worthy gentlemen; if you will meet my friend Frank here and me at the Blue Anchor tavern, by Billingsgate, this evening, we will there drink to our happy voyage, be merry, and take boat to our ship with all expedition....

ACT III., SCENE 2. *Enter Seagull, Spendall, and Scapethrift in the Blue Anchor tavern, with a Drawer.*

Seagull. Come, drawer, pierce your neatest hogsheads, and let's have cheer,—not fit for your Billingsgate tavern, but for our Virginian colonel; he will be here instantly.

Drawer. You shall have all things fit, sir; please you have any more wine?

Spendall. More wine, slave! whether we drink it or no, spill it, and draw more.

Scapethrift. Fill all the pots in your house with all sorts of liquor, and let 'em wait on us here like soldiers in their pewter coats; and though we do not employ them now, yet we will maintain 'em till we do.

Drawer. Said like an honourable captain; you shall have all you can command, sir. [*Exit Drawer.*]

Seagull. Come boys, Virginia longs till we share the rest of her....

Spendall. Why, is she inhabited already with any English?

Seagull. A whole country of English is there, bred of those that were left there in '79 [Here our dramatist's date is wrong; White's colony, left there in 1587, is meant]; they have married [continues *Seagull*] with the Indians ... [who] are so in love with them that all the treasure they have they lay at their feet.

Scapethrift. But is there such treasure there, Captain, as I have heard?

Seagull. I tell thee, gold is more plentiful there than copper is with us; and for as much red copper as I can bring I'll have thrice the weight in gold. Why, man, all their dripping-pans ... are pure gold; and all the chains with which they chain up their streets are massy gold; all the prisoners they take are fettered in gold; and for rubies and diamonds they go forth on holidays and gather 'em by the seashore to hang on their children's coats, and stick in their children's caps, as commonly as our children wear saffron-gilt brooches and groats with holes in 'em.

Scapethrift. And is it a pleasant country withal?

Seagull. As ever the sun shined on: temperate, and full of all sorts of excellent viands; wild boar is as common there as our tamest bacon is here; venison as mutton. And then you shall live freely there, without sergeants, or courtiers, or lawyers.... Then for your means to advancement, there it is simple and not preposterously mixed. You may be an alderman there, and never be scavenger; you may be any other officer, and never be a slave. You may come to preferment

enough, ... to riches and fortune enough, and have never the more villainy nor the less wit. Besides, there we shall have no more law than conscience, and not too much of either; serve God enough, eat and drink enough, and enough is as good as a feast.

Spendall. Gods me! and how far is it thither?

Seagull. Some six weeks sail, no more, with any indifferent good wind. And if I get to any part of the coast of Africa, I'll sail thither with any wind; or when I come to Cape Finisterre, there's a fore-right wind continual wafts us till we come to Virginia. See, our colonel's come.

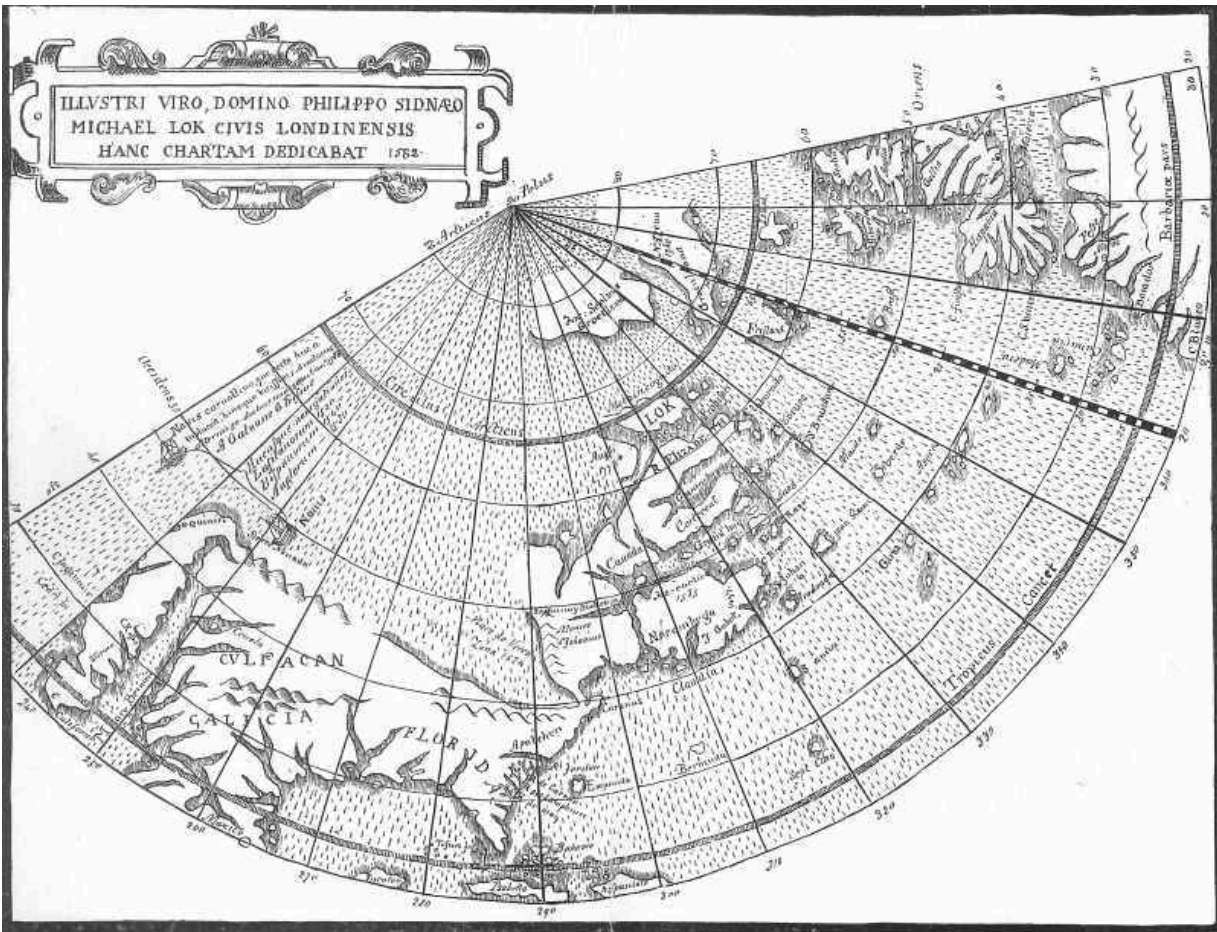
Enter Sir Petronel Flash with his followers.

Sir Petronel. We'll have our provided supper brought aboard Sir Francis Drake's ship that hath compassed the world, where with full cups and banquets we will do sacrifice for a prosperous voyage.^[29]

The great popularity of this play, both on the stage and in print,—for it went through four editions between September and Christmas,—is an indication of the general curiosity felt about Virginia. The long war with Spain had lately been brought to an end by the treaty of 1604. It had left Spain so grievously weakened that the work of encroaching upon her American demesnes was immeasurably easier than in the days when Hawkins began it and Elizabeth connived at it. In a cipher despatch from the Spanish ambassador Zuñiga to his sovereign, Philip III., dated London, March 16, 1606, N. S., mention is made of an unpalatable scheme of the English: "They also propose to do another thing, which, is to send five or six hundred men, private individuals of this kingdom, to people Virginia in the Indies, close to Florida. They sent to that country some small number of men in years gone by, and having afterwards sent again, they found a part of them alive."^[30] In this reference to White's colony the Spaniard is of course mistaken; no living remnant was ever found. He goes on to say that the principal leader in this business is Sir John Popham, Lord Chief Justice of England, who is a terrible Puritan; and when reminded that this enterprise is an encroachment upon Spanish territory and a violation of the treaty, this astute judge says that he is only undertaking it in order to clear England of thieves and get them drowned in

Zuñiga's report to Philip III.

the sea. I have not yet complained of this to the king, says Zuñiga, but I shall do so.



**ILLVSTRI VIRO, DOMINO PHILIPPO SIDNÆO
MICHAEL LOK CIVIS LONDINENSIS
HANC CHARTAM DEDICABAT 1582**

It was very soon after this despatch, on April 10, O. S., that James I. issued the charter under which England's first permanent colony was established. This memorable document begins by defining the territorial limits of Virginia, which is declared to extend from the 34th to the 45th parallel of latitude, and from the seashore one hundred miles inland. In a second charter, issued three years later, Virginia is described as extending from sea to sea, that is, from the Atlantic Ocean to the Pacific. It is not likely that the king and his advisers understood the westward extension of the grant, as here specified, to be materially different

First charter of
Virginia, 1606.

The "Sea of
Verrazano".

from that mentioned in the first charter. The width of the continent between Chesapeake Bay and the valley of the St. Lawrence was supposed to be no greater than from one to two hundred miles. It is true that before the middle of the sixteenth century the expeditions of Soto and Coronado had proved the existence of a continuous mass of land from Florida to California, but many geographers believed that this continental mass terminated at the 40th parallel or even some degrees lower, and that its northern coast was washed by an enormous bay of the Pacific Ocean, called on old maps the Sea of Verrazano. The coast land from Virginia to Labrador was regarded as a thin strip separating the two oceans after somewhat the same fashion as Central America, and hence the mouths and lower reaches of such broad rivers as the Hudson and the Delaware were mistaken for straits. After one has traced the slow development of knowledge through the curious mingling of fact with fancy in the maps of Baptista Agnese published in 1536, and that of Sebastian Münster in 1540, down to the map which Michael Lok made for Sir Philip Sidney in 1582, he will have no difficulty in understanding either the language of the early charters or the fact that such a navigator as Henry Hudson should about this time have entered New York harbour in the hope of coming out upon the Pacific Ocean within a few days. Without such study of the old maps the story often becomes incomprehensible.

As for the northern and southern limits of Virginia, they were evidently prescribed with a view to arousing as little antagonism as possible on the part of Spain and France. Expressed in terms of the modern map, the 34th parallel cuts through the mouth of the Cape Fear River and passes just south of Columbia, the capital of South Carolina; while the 45th parallel is that which divides Vermont from Canada. English settlers were thus kept quite clear of the actual settlements of Spaniards in Florida, and would not immediately be brought into collision with the French friars and fur-traders who were beginning to find their way up the St. Lawrence.

Northern and southern limits of Virginia.

The Virginia thus designated was to be open for colonization by two joint-stock companies, of which the immediate members and such as should participate with them in the enterprise should be called respectively the First Colony and the Second Colony. The First Colony was permitted to occupy the territory between the 34th and the 41st parallels, while the

The twin joint-stock companies, and the three zones.

Second Colony was permitted to occupy the territory between the 38th and the 45th parallels. It will thus be observed that the strip between the 38th and 41st parallels was open to both, but it was provided that neither colony should make a plantation or settlement within a hundred miles of any settlement already begun by the other. The elaborate ingenuity of this arrangement is characteristic of James's little device-loving mind; its purpose, no doubt, was to quicken the proceedings by offering to reward whichever colony should be first in the field with a prior claim upon the intervening region. The practical result was the division of the Virginia territory into three strips or zones. The southern zone, starting from the coast comprised between the mouth of the Cape Fear River and the mouth of the Potomac, was secured to the First Colony. The northern zone, starting from the coast comprised between the Bay of Fundy and Long Island Sound, was secured to the Second Colony. The middle zone, from the lower reaches of the Hudson River down to the mouth of the Potomac, was left open to competition between the two, with a marked advantage in favour of the one that should first come to be self-supporting.

It is a curious fact that, although the actual course taken by the colonization of North America was very different from what was contemplated in this charter, nevertheless the division of our territory into the three zones just mentioned has happened to coincide with a real and very important division that exists to-day. Of our original thirteen states, those of New Hampshire, Massachusetts, Rhode Island, and Connecticut were founded in the northern zone, and within it their people have spread through central New York into the Far West. In the middle zone, with the exception of a few northerly towns upon the Hudson, were made the beginnings of New York, New Jersey, Pennsylvania, Delaware, and Maryland. In the southern zone were planted Virginia, the Carolinas, and Georgia. Between the three groups the differences in local government have had much significance in the history of the American people. In the northern zone the township system of local government has prevailed, and in the southern zone the county system, while in the middle zone the mixed township-and-county system has exhibited various phases, here and there reaching a very high stage of development.^[31]

The three zones in American history.

To return to King James's charter, the government which it provided for his two American colonies was such as he believed would prove of the two simple and efficient. A

Government of the two colonies.

Royal Council of Virginia, consisting of thirteen persons, was created in London, and its members were to be appointed by the king. It was to exercise a general supervision over the two colonies, but the direct management of affairs in each colony was to be entrusted to local resident councils. Each local council was to consist of thirteen persons, of whom one was to be president, with a casting vote. The council in London was to give the wheels of government a start by appointing the first members of the two colonial councils and designating that member of each who should serve as president for the first year. After that the vehicle was to run of itself; the colonial council was to elect its president each year, and could depose him in case of misconduct; it could also fill its own vacancies, arising from the resignation, deposition, departure, or death of any of its members. Power was given to the colonial council to coin money for trade between the colonies and with the natives, to invite and carry over settlers, to drive out intruders, to punish malefactors, and to levy and collect duties upon divers imported goods. All lands within the two colonies were to be held in free and common socage, like the demesnes of the manor of East Greenwich, in the county of Kent and the settlers and their children forever were to enjoy all the liberties, franchises, and immunities enjoyed by Englishmen in England,—a clause which was practically nullified by the failure to provide for popular elections or any expression whatever of public opinion. The authority of the colonial councils was supreme within the colonies, but their acts were liable to a veto from the Crown.

This first English attempt at making an outline of government for an English colony can never fail to be of interest. It was an experimental treatment of a wholly new and unfamiliar problem, and, as we shall hereafter see, it was soon proved to be a very crude experiment, needing much modification. For the present we are concerned with the names and characters of the persons to whom this ever-memorable charter was granted.

The persons interested in the First Colony, in that southern zone which had been the scene of Raleigh's original attempts, were represented by some eminent citizens of London and its neighbourhood, so that they

Persons chiefly interested in the First Colony; the London Company.

came afterward to be commonly known as the London Company. The names mentioned in the charter are four: the Rev. Richard Hakluyt, who had lately been made a prebendary of Westminster; Sir Thomas Gates, Sir George Somers, and Captain Edward Maria Wingfield. Gates was a Devonshire soldier who had been knighted in 1596 for brave conduct in the battle of Cadiz, and had afterward served in the Netherlands. Somers was a native of Dorsetshire, and had received knighthood for eminent services as commander in several naval expeditions against the Spaniards. Captain Edward Maria Wingfield, of Stoneley Priory, in Huntingdonshire, was of a very ancient and honourable Catholic family; Queen Mary Tudor and Cardinal Pole had been sponsors for his father, which accounts for the feminine middle name; he had served in the Netherlands and in Ireland; among his near relatives, or connections by marriage, were Shakespeare's Earl of Southampton, the lords Carew and Hervey, and John Winthrop, of Groton, afterwards governor of Massachusetts. But the name which, after Hakluyt's, has been perhaps most closely identified with the London Company is that of Sir Thomas Smith, the eminent London citizen who was its first treasurer. From the time of his student days at Oxford Smith felt a strong interest in "western planting," and we have already met with his name on the list of those to whom Raleigh in 1589 assigned his trading interests in Virginia. He was knighted in 1596 for gallantry at Cadiz, was alderman and sheriff of London, and first governor of the East India Company in 1600. He was at various times a member of Parliament, served as ambassador to Russia, and was especially forward in promoting Arctic discovery. He was one of those who sent Henry Hudson in 1610 upon his last fatal voyage, and it was under his auspices that William Baffin was sailing in 1616 when he discovered that remote strait leading to the Polar Sea which has ever since been known as Smith's Sound. Few men of that time contributed more largely in time and money to the London Company than Sir Thomas Smith.

The persons interested in the Second Colony, in that northern zone to which attention had recently been directed by the voyages of Gosnold, Pring, and Weymouth, were represented by certain gentlemen connected with the western counties, especially by Ferdinando Gorges, governor of the garrison at Plymouth in Devonshire, who was afterwards to be Lord Proprietor of the

Persons chiefly interested in the Second Colony; the Plymouth Company.

Province of Maine, and to play a part of some importance in the early history of New England. This company came to be known as the Plymouth Company. The four names mentioned in the charter are Raleigh Gilbert, William Parker, Thomas Hanham, and George Popham. The name of the first of these gentlemen tells its own story; he was a younger son of Sir Humphrey Gilbert and named for his uncle. William Parker was son and heir of Lord Morley, and commonly known by his courtesy title as Lord Monteagle. It was he who received the anonymous letter which led to the detection of the Gunpowder Plot, in which his wife's brother was concerned. George Popham was a nephew,^[32] and Thomas Hanham was a grandson, of Sir John Popham, Chief Justice of the King's Bench. They were a Somersetshire family. In securing the charter incorporating the London and Plymouth companies nobody was more active or influential than the chief justice, whom we have seen singled out for mention by the Spanish ambassador.

Among other persons especially interested in the colonization of Virginia, one should mention George Abbot, Master of University College, Oxford, one of the translators of the common version of the Bible, afterwards Archbishop of Canterbury; and Sir Julius Cæsar, member of Parliament for Westminster and Chancellor of the Exchequer, son of Julius Cæsar Adelmare, Queen Elizabeth's Italian physician; his strong interest in maritime discovery and western planting may have been due to the fact that, after the death of his father and while he was still a child, his mother married the celebrated geographer, Dr. Michael Lok. We should not forget Sir Maurice Berkeley, two of whose sons we shall meet hereafter, one of them, Sir William Berkeley, the most conspicuous figure among the royal governors of Virginia, the other, Lord Berkeley of Stratton, one of the proprietors of Carolina. An important subscriber to the company was Sir Anthony Ashley, grandfather of the famous Earl of Shaftesbury, who was also one of the Carolina proprietors; another was William Herbert, Earl of Pembroke, nephew of Sir Philip Sidney and devoted friend of Shakespeare; another was Sir Henry Cary, father of the pure and high-minded statesman, Lucius, Viscount Falkland. Of more importance for Virginian history than any of the foregoing was Sir Edwin Sandys, son of Edwin Sandys, Archbishop of York. Sir Edwin was a pupil of the great Richard Hooker, and learned from him principles of toleration little understood in that age.

Other eminent
persons interested
in the scheme.

After his travels on the continent he published in 1605 a treatise entitled "Europæ Speculum, a relation of the state of religion in ... these Western Parts of the World;" its liberal opinions gave so much offence that about four months after its publication it was burned in St. Paul's Churchyard by order of the Court of High Commission. At that very time Sandys was one of the most admired and respected members of the House of Commons, and it was on his motion that the House first began keeping a regular journal of its transactions. He was associated with Sir Francis Bacon in drawing up the remonstrance against King James's behaviour toward Parliament. In later years he was an active friend of the Mayflower Pilgrims and gave them valuable aid in setting out upon their enterprise. But his chief title to historic fame consists in the fact that it was under his auspices and largely through his exertions that free representative government was first established in America. How this came about will be shown in a future chapter. For the present we may note that at least half a dozen of his immediate family were subscribers to the London Company; one of his brothers had for godfather Sir Thomas Lucy, of Charlecote Hall, the Puritan knight who figures as Justice Shallow in the "Merry Wives of Windsor;" there were at least two intermarriages between this Sandys family and that of Lawrence Washington, of Sulgrave, ancestor of George Washington. It is pleasant to trace the various connections, near and remote, whether in blood-relationship or in community of interests and purposes, between the different personages of a great era that has passed away; for the more we come to discern in its concrete details the intricate web of associations running in all directions among the men and events of the vanished age, the more vividly is that age reproduced in our minds, the closer does it come to the present, the more keenly does it enlist our sympathies. As we contemplate the goodly array here brought forward of personages concerned in the first planting of an English nation in America, the inquiry as to what sort of men they were, for intelligence and character, is one that can be answered with satisfaction.

In accordance with the provisions of the charter, both London and Plymouth companies made haste to organize expeditions for planting their colonies in the New World. The London Company was the first to be ready, but before we follow its adventures a word about the Plymouth Company seems called for. On the last day of May, 1607, two

Expedition of the
Plymouth
Company; failure of
the Popham Colony.

ships—the Gift of God, commanded by George Popham, and the Mary and John, commanded by Raleigh Gilbert—set sail from Plymouth with a hundred settlers. In August, after some exploration of the coast, they selected a site by the mouth of the Kennebec River, and built there a rude fort with twelve guns, a storehouse and church, and a few cabins. They searched diligently but in vain for traces of gold or silver; the winter brought with it much hardship, their storehouse was burned down, and Captain Popham died. In the spring a ship which arrived with supplies from England brought the news of two deaths, that of Chief Justice Popham, and that of Gilbert's elder brother, to whose estates he was heir. The enterprise was forthwith abandoned and all returned to England with most discouraging reports. The further career of the Plymouth Company does not at present concern us. It never achieved any notable success. When the colonization of New England was at length accomplished it was in a manner that was little dreamed of by the king who granted or the men who obtained the charter of 1606.

The expedition fitted out by the London Company was in readiness a little before Christmas 1606, and was placed under command of Captain Christopher Newport, the stout sailor who had brought in the great Spanish carrack for Raleigh. He was one of the most skilful and highly esteemed officers in the English navy. Of the three ships that were to go to Virginia his was the Susan Constant. The Godspeed was commanded by Bartholomew Gosnold, and the Discovery by John Ratcliffe. Besides their crews, the three ships carried 105 colonists. By some queer freak of policy the names of the persons appointed to the colonial council were carried in a sealed box, not to be opened until the little squadron should arrive at its destination. An important paper of instructions was drawn up for the use of the officers on landing. Hakluyt was commonly called upon to prepare such documents, and the style of this one sounds like him. The suggestions are those of a man who understood the business.^[33]

Expedition of the
London Company.

"When it shall please God to send you on the coast of Virginia, you shall do your best endeavour to find out a safe port in the entrance of some navigable river, making choice of such a one as runneth farthest into the land.... When you have made choice of the river on which you mean to settle, be not hasty in

Instructions to the
colonists.

landing your victuals and munitions, but first let Captain Newport discover how far that river may be found navigable, that you make election of the strongest, most wholesome and fertile place, for if you make many removes, besides the loss of time, you shall greatly spoil your victuals and your casks.

"But if you choose your place so far up as a bark of 50 tons will float, then you may lay all your provisions ashore with ease, and the better receive the trade of all the countries about you in the land; and such a place you may perchance find a hundred miles from the river's mouth, and the further up the better, for if you sit down near the entrance, except it be in some island that is strong by nature, an enemy that may approach you on even ground may easily pull you out; *and* [*i. e.* but] if he be driven to seek you a hundred miles *the* [*i. e.* in] land in boats, you shall from both sides of the river where it is narrowest, so beat them with your muskets as they shall never be able to prevail against you."

Where to choose a site for a town.

That the enemy in the writer's mind was the Spaniard is clearly shown by the next paragraph, which refers expressly to the massacre of the Huguenot colony in Florida and the vengeance taken by Dominique de Gourgues.

"And to the end that you be not surprised as the French were in Florida by Melindus [*i. e.* Menendez] and the Spaniard in the same place by the French, you shall do well to make this double provision: first erect a little store at the mouth of the river that may lodge some ten men, with whom you shall leave a light boat, that when any fleet shall be in sight they may come with speed to give you warning. Secondly, you must in no case suffer any of the native people to inhabit between you and the sea-coast, for you cannot carry yourselves so towards them but they will grow discontented with your habitation, and be ready to guide and assist any nation that shall come to invade you; and if you neglect this you neglect your safety.

Precautions against a surprise.

"You must observe if you can whether the river on which you plant doth spring out of mountains or out of lakes. If it be out of any lake the passage to the other sea [*i. e.* the Pacific Ocean] will be the more easy; and [it] is like enough that out of the same lake you shall find some [rivers] spring which run the

You must try to find the Pacific Ocean.

contrary way toward the East India Sea, for the great and famous rivers of Volga, Tanais, and Dwina have three heads near joined, and yet the one falleth into the Caspian Sea, the other into the Euxine Sea, and the third into the Polonian Sea.

"... You must have great care not to offend the naturals, if you can eschew it, and employ some few of your company to trade with them for corn and all other lasting victuals ..., and this you must do before that they perceive you mean to plant among them.... Your discoverers that pass over land with hired guides must look well to them that they slip not from them, and for more assurance let them take a compass with them, and write down how far they go upon every point of the compass, for that country having no way or path, if that your guides run from you in the great woods or desert, you shall hardly ever find a passage back. And how weary soever your soldiers be, let them never trust the country people with the carriage of their weapons, for if they run from you with your shot which they only fear, they will easily kill *them* [*i. e.* you] all with their arrows. And whensoever any of yours shoots before them, be sure that they be chosen out of your best marksmen, for if they see your learners miss what they aim at, they will think the weapon not so terrible, and thereby will be bold to assault you.

Do not offend the natives, or put much trust in them.

"Above all things, do not advertise the killing of any of your men [so] that the country people may know it. If they perceive that they are but common men, and that with the loss of many of theirs they may diminish any part of yours, they will make many adventures upon you.... You shall do well also not to let them see or know of your sick men, if you have any....

Conceal from them your weaknesses.

"You must take especial care that you choose a seat for habitation that shall not be overburthened with woods near your town, for all the men you have shall not be able to cleanse twenty acres a year, besides that it may serve for a covert for your enemies round about.

Beware of woodland converts.

"Neither must you plant in a low or moist place, because it will prove unhealthful. You shall judge of the good air by the people, for some part of that coast where the lands are low have their people blear eyed, and with swollen bellies and

Avoid malaria.

legs, but if the naturals be strong and clean made it is a true sign of a wholesome soil.

"You must take order to draw up the pinnacle that is left with you under the fort, and take her sails and anchors ashore, all but a small kedge to ride by, lest some ill-disposed persons slip away with her."

Guard against
desertion.

The document contains many other excellent suggestions and directions, two or three of which will suffice for the purposes of our narrative.

"Seeing order is at the same price with confusion it shall be advisably done to set your houses even and by a line, that your streets may have a good breadth and be carried square about your market-place, and every street's end opening into it, that from thence with a few field-pieces you may command every street throughout...."

Build your town
carefully.

"You shall do well to send a perfect relation by Captain Newport of all that is done, what height you are seated, how far into the land, what commodities you find, what soil, woods and their several kinds, and so of all other things else, to advertise particularly; and to suffer no man to return but by passport from the President and Council, nor to write [in] any letter of anything that may discourage others."

Do not send home
any discouraging
news.

"Lastly and chiefly, the way to prosper and achieve good success is to make yourselves all of one mind for the good of your country and your own, and to serve and fear God, the Giver of all goodness, for every plantation which our Heavenly Father hath not planted shall be rooted out."

The allusion to the Florida tragedy, in this charming paper, was by no means ill considered. For in March, 1607, the King of Spain wrote from Madrid to Zuñiga in London as follows: "You will report to me what the English are doing in the matter of Virginia; and if the plan progresses which they contemplated, of sending men there and ships; and thereupon it will be taken into consideration here what steps had best be taken to prevent it."^[34] A few days after this letter Philip III. held a meeting with his council to discuss measures which boded no good to Captain Newport's little company. We do

What Spain thought
of it.

not know just what was said and done, but we hardly need to be told that the temper of Spain was notably changed in the forty-two years since Menendez's deed of blood. How to ruin the Virginia enterprise without coming to blows with England was now the humbler problem for Spain to solve, and it was not an easy one.

Meanwhile Newport's little fleet was half way on its voyage. It started down the Thames from Blackwall on the 19th of December, but by reason of "unprosperous winds" it was obliged to keep its moorings "all in the Downs," as in the ballad of "Black-eyed Susan," until New Year's Day, 1607, when it finally got under way. A farewell blessing was wafted to them in Michael Drayton's quaint stanzas:^[35]—

A poet laureate's
farewell blessing.

"You brave heroic minds,
Worthy your country's name,
That honour still pursue,
Go and subdue,
Whilst loitering hinds
Lurk here at home with shame.

"Britons, you stay too long,
Quickly aboard bestow you,
And with a merry gale
Swell your stretched sail,
With vows as strong
As the winds that blow you.

"Your course securely steer,
West and by South forth keep;
Rocks, lee shores, nor shoals,
When Æolus scowls,
You need not fear,
So absolute the deep.

"And cheerfully at sea
Success you still entice,
To get the pearl and gold,
And ours to hold
VIRGINIA,
Earth's only paradise!

"Where nature hath in store
Fowl, venison, and fish;
 And the fruitfull'st soil
 Without your toil,
Three harvests more.
All greater than you wish.

"And the ambitious vine
Crowns with his purple mass
The noble, shining shield

The cedar reaching high
 To kiss the sky,
The cypress, pine,
And useful sassafras.

"To whose, the Golden Age
Still nature's laws doth give;
 No other cares that tend,
 But them to defend
From winter's age,
That long there doth not live.

"When as the luscious smell
Of that delicious land,
 Above the seas that flows
 The clear wind throws
Your hearts to swell,
Approaching the dear strand.

"In kenning of the shore
(Thanks to God first given)
 O you, the happiest men
 Be frolic then;
Let cannons roar,
Frighting the wide heaven.

"And in regions farre,
Such heroes bring ye forth
 As those from whom we came;
 And plant our name
Under that star
Not known unto our north.

"And as there plenty grows
Of laurel everywhere,
 Apollo's sacred tree,
 You it may see,
A poet's brows
To crown that may sing there

to crown, that may sing there.

"Thy voyages attend,
Industrious Hakluyt,
Whose reading shall inflame
Men to seek fame,
And much commend
To after times thy wit."

With rich omen sailed from merry England the men who were to make the beginnings of the United States of America. What they found and how they fared in the paradise of Virginia shall be the theme of our next chapter.

CHAPTER III.

THE LAND OF THE POWHATANS.

WHILE Captain Christopher Newport, with the ships of the London Company, is still in mid-ocean, and the seal of the king's casket containing the names of Virginia's first rulers is still unbroken, we may pause for a moment in our narrative, to bestow a few words upon the early career of the personage that is next to come upon the scene,—a man whose various and wild adventures have invested the homeliest of English names with a romantic interest that can never die. The life of Captain John Smith reads like a chapter from "The Cloister and the Hearth." It abounds in incidents such as we call improbable in novels, although precedents enough for every one of them may be found in real life. The accumulation of romantic adventures in the career of a single individual may sometimes lend an air of exaggeration to the story; yet in the genius for getting into scrapes and coming out of them sound and whole, the differences between people are quite as great as the differences in stature and complexion. John Smith evidently had a genius for adventures, and he lived at a time when one would often meet with things such as nowadays seldom happen in civilized countries. In these days of Pullman cars and organized police we are liable to forget the kind of perils that used to dog men's footsteps through the world. The romance of human life has by no means disappeared, but it has somewhat changed its character since the Elizabethan age, and is apt to consist of different kinds of incidents, so that the present generation has witnessed a tendency to disbelieve many stories of the older time. In the case of John Smith, for whose early life we have little else but his autobiography to go by, much incredulity has been expressed.^[36] To set him down as an arrant braggadocio would seem to some critics essential to their reputation for sound sense. Such a judgment, however, may simply show that the critic has failed to realize all the conditions of the case. Queer things could happen in the Tudor times. Lord Campbell tells us that Sir John Popham, when he was a law-student in the Middle Temple, used after nightfall to go out with his pistols and take purses on Hounslow Heath, partly to show that

Captain John Smith.

he was a young man of spirit, partly to recruit his meagre finances, impaired by riotous living.^[37] This amateur highwayman lived to become Chief Justice of England. The age in which such things could be done was that in which John Smith grew to manhood.

A Latin entry in the parish register at Willoughby in Lincolnshire shows that he received infant baptism in the church there on the 9th of January, 1580. After the death of his parents, an irrepressible craving for adventure led him at an early age to France, where he served as a soldier for a while and afterward spent three years in the Netherlands fighting against the Spaniards. In the year 1600 he returned to Willoughby, "where within a short time, being gluttoned with too much company wherein he took small delight, he retired himself into a little woody pasture a good way from any town, environed with many hundred acres of woods. Here by a fair brook he built a pavilion of boughs where only in his clothes he lay. His study was Machiavelli's Art of War and Marcus Aurelius; his exercise a good horse, with lance and ring; his food was thought to be more of venison than anything else."^[38] However, he adds, these hermit-like pleasures could not content him long. "He was desirous to see more of the world, and try his fortune against the Turks; both lamenting and repenting to have seen so many Christians slaughtering one another." In passing through France he was robbed of all he had about him, but his life was saved by a peasant who found him lying in the forest, half dead with hunger and grief and nearly frozen. He made his way to Marseilles, and embarked with a company of pilgrims for the Levant; but a violent storm arose, which they said was all because of their having this heretic on board, and so, like Jonah, the young adventurer was thrown into the sea. He was a good swimmer, however, and "God brought him," he says, to a little island with no inhabitants but a few kine and goats. Next morning he was picked up by a Breton vessel which carried him as far as Egypt and Cyprus. The commanding officer, Captain La Roche, who knew some of Smith's friends in France, treated him with great kindness and consideration. On their return voyage, at the entrance of the Adriatic Sea, a Venetian argosy fired upon them, and a hot fight ensued, until the Venetian struck her colours. The Bretons robbed her of an immense treasure in silks and velvets, besides Turkish gold and silver coin, as much as they could

His early life.

A cruise in the Mediterranean.

carry without overloading their own ship, and then let her go on her way. When the spoil was divided, Smith was allowed to share with the rest, and thus received £225 in coin besides a box of stuffs worth nearly as much more. After Captain La Roche, of whom he speaks with warm affection, had set him ashore in Piedmont, he made a comfortable journey through Italy as far as Naples, and seems to have learned much and enjoyed himself in "sight seeing," quite like a modern traveller. At Rome he saw Pope Clement VIII. with several cardinals creeping on hands and knees up the Holy Staircase. He called on Father Parsons, the famous English Jesuit; he "satisfied himself with the rarities of Rome;" he visited in like manner Florence and Bologna, and gradually made his way to Venice, and so on to Gratz in Styria, where he entered the service of the Emperor Rudolph II., and was presently put in command of a company of 250 cavalry with the rank of captain. On one occasion he made himself useful by devising a system of signals, and on another occasion by inventing a kind of rude missiles which he called "fiery dragons," which sorely annoyed the Turks by setting fire to their camp.

During the years 1601 and 1602 Smith saw much rough campaigning. The troop to which his company belonged passed into the service of Sigismund^[39] Bathori, Prince of Transylvania; and now comes the most notable incident in Smith's narrative. The Transylvanians were besieging Regal, one of their towns which the Turks had occupied, and the siege made but little progress, so that the barbarians from the top of the wall hurled down sarcasms upon their assailants and complained of growing fat for lack of exercise. One day a Turkish captain sent a challenge, declaring that "in order to delight the ladies, who did long to see some court-like pastime, he did defy any captain that had the command of a company, who durst combat with him for his head." The challenge was accepted by the Christian army, it was decided to select the champion by lot, and the lot fell upon Smith. A truce was proclaimed for the single combat, the besieging army was drawn up in battle array, the town walls were crowded with veiled dames and turbaned warriors, the combatants on their horses politely exchanged salutes, and then rushed at each other with levelled lances. At the first thrust Smith killed the Turk, and dismounting unfastened his helmet, cut off his head, and carried it to the commanding general, Moses Tzekely, who accepted it graciously. The Turks were so chagrined that one of their captains sent a

The three Turks' heads.

personal challenge to Smith, and next day the scene was repeated. This time both lances were shattered and recourse was had to pistols, the Turk received a ball which threw him to the ground, and then Smith beheaded him. Some time afterward our victorious champion sent a message into the town "that the ladies might know he was not so much enamoured of their servants' heads, but if any Turk of their rank would come to the place of combat to redeem them, he should have his also upon the like conditions, if he could win it." The defiance was accepted. This time the Turk, having the choice of weapons, chose battle-axes and pressed Smith so hard that his axe flew from his hand, whereat loud cheers arose from the rampart; but with a quick movement of his horse he dodged his enemy's next blow, and drawing his sword gave him a fearful thrust in the side which settled the affair; in another moment Smith had his head. At a later time, after Prince Sigismund had heard of these exploits, he granted to Smith a coat-of-arms with three Turks' heads in a shield.

This story forcibly reminds us that the Middle Ages, which had completely passed away from France and Italy, the Netherlands and England, still survived at the beginning of the seventeenth century in the eastern parts of Europe. In the Middle Ages such "court-like pastime," in the intervals of relaxation from more serious warfare, was not unfashionable. Still, though the incidents are by no means incredible, the story has enough of the look of an old soldier's yarn to excite a moment's doubt of it. Surely here if anywhere Smith may seem to be drawing the long bow. But at the Heralds' College in London, in the official register of grants of arms, there is an entry in Latin which does not sustain such a doubt. It is the record of a coat-of-arms granted by Sigismund Bathori, Prince of Transylvania, "to John Smith, captain of 250 soldiers, etc. ... in memory of three Turks' heads which with his sword before the town of Regal he did overcome, kill, and cut off, in the province of Transylvania."^[40] The document on record, which contains this mention of the grant, is a letter of safe conduct dated December 9, 1603, signed by Sigismund at Leipsic and given by him to Smith. The entry is duly approved, and the genuineness of Sigismund's seal and signature certified, by Sir William Segar, Garter King at Arms. Some critics have suggested that Smith may have imposed upon Segar with a bogus document, and since the entry at the Heralds' College was made in 1625, it is urged that such a long delay in registering invests the whole affair with suspicion.

The entry in the
Heralds' College.

The document, however, cannot be thus summarily set aside. In the year 1625 Rev. Samuel Purchas published the second volume of his delightful *Pilgrimes*,^[41] and in the course of it he devotes several pages to Captain Smith's adventures in the east of Europe, including the story of the three Turks as above given. Purchas's authority for the story was "a Booke intituled The Warres of Transylvania, Wallachi, and Moldavia," written in Italian by Francesco Farnese, secretary to Prince Sigismund. This history seems never to have been published in its original form, and the manuscript is now apparently lost,^[42] but there can be no doubt that Purchas had it, or a copy of it, in his hands about 1623. Smith's own book entitled "True Travels" was not published until 1629, so that our original authority for this passage at arms is not Smith himself, but one of Prince Sigismund's secretaries, who first told the story of the English captain's exploit in a book written for Italian readers. To the flippant criticism which treats Smith as a vapouring braggart, this simple fact is a staggering blow between the eyes. Let me add that in his way of telling his tale there is no trace of boastfulness.^[43] For freedom from egotistic self-consciousness Smith's writings remind me strongly of such books as the *Memoirs of General Grant*. Inaccuracies that are manifest errors of memory now and then occur, prejudices and errors of judgment here and there confront us, but the stamp of honesty I find on every page.

Farnese's
manuscript history.

At the bloody battle of Rothenthurm, November 18, 1602, Smith was taken prisoner and sold into slavery. At Constantinople the lady Charatza Tragabigzanda, into the service of whose family he passed, was able to talk with him in Italian and treated him with kindness. One can read between the lines that she may perhaps have cherished a tender feeling for the young Englishman, or that he may have thought so. It would not have been strange. Smith's portrait, as engraved and published during his lifetime, is that of an attractive and noble-looking man. His brief narrative does not make it clear how he regarded the lady, or what relations they sustained to each other, but she left an abiding impression upon his memory. When in 1614 he explored the coast of New England he gave the name Tragabigzanda to the cape which Prince Charles afterwards named Cape Anne, and the three little neighbouring islands he called the Turks' Heads.

Smith is sold as a
slave,

The narrative is far from satisfying us as to the reasons why Smith was sent away from Constantinople. To the east of the Sea of Azov, and bordering on the Cossack country, was a territory which Gerard Mercator calls Nalbrits, and Timour, the Pasha of Nalbrits, was brother to the lady Tragabigzanda. Thither she sent him, with a request that he should be well treated; but the rude Pasha paid no heed to his sister's message, and our young hero was treated as badly as the other slaves, of whom this tyrant had many. "Among these slavish fortunes," says Smith, "there was no great choice; for the best was so bad, a dog could hardly have lived to endure [it]." He was dressed in the skin of a wild beast, had an iron collar fastened around his neck, and was cuffed and kicked about until he grew desperate. One day, as he was threshing wheat in a lonely grange more than a league distant from Timour's castle, the Pasha came in and reviled and struck him, whereupon Smith suddenly knocked him down with his threshing-stick and beat his brains out. Then he stripped the body and hid it under the straw, dressed up in the dead man's clothes and mounted his horse, tied a sack of grain to his saddle-bow, and galloped off into the Scythian desert. The one tormenting fear was of meeting some roving party of Turks who might recognize the mark on his iron collar and either send him back to his late master's place or enslave him on their own account. But in sixteen days of misery he saw nobody; then he arrived at a Russian fortress on the Don and got rid of his badge of slavery. He was helped on his way from one Russian town to another, and everywhere treated most kindly. Through the Polish country he went, finding by the wayside much mirth and entertainment, and then through Hungary and Bohemia, until at length he reached Leipsic, where he found Prince Sigismund. It was then, in December, 1603, that he obtained the letter of safe conduct already mentioned. In the course of the next year Smith travelled in Germany, France, Spain, and Morocco, and after some further adventures made his way back to England in the nick of time for taking part in the enterprise projected by the London Company. Meeting with Newport and Gosnold, and other captains who had visited the shores of America, it was natural that his strong geographical curiosity should combine with his love of adventure to urge him to share in the enterprise.

and cruelly treated.

His escape,

and return to
England.

The brevity of Smith's narrations now and then leaves the story obscure. Like many another charming old writer, he did not always consult the

convenience of the historians of a later age. So much only is clear, that during the voyage across the Atlantic the seeds of quarrel were sown which bore fruit in much bitterness and wrangling after the colonists had landed. Indeed, after nearly three centuries some smoke of the conflict still hovers about the field. To this day John Smith is one of the personages about whom writers of history are apt to lose their tempers. In recent days there have been many attempts to belittle him, but the turmoil that has been made is itself a tribute to the potency and incisiveness of his character. Weak men do not call forth such belligerency. Amid all the conflicting statements, too, there comes out quite distinctly the contemporary recognition of his dignity and purity. Never was warrior known, says one old writer, "from debts, wine, dice, and oaths so free;"^[44] a staunch Puritan in morals, though not in doctrine.

The smoke of controversy.

Captain Newport's voyage was a long one, for he followed the traditional route, first running down to the Canary Islands and then following Columbus's route, wafted by the trade-wind straight across to the West Indies. It seems strange that he should have done so, for the modern method of great-circle sailing,—first practised on a great scale by Americus Vesputius, in 1502, in his superb voyage of 4,000 miles in 33 days, from the ice-clad island of South Georgia to Sierra Leone,^[45]—this more scientific method had lately been adopted by Captain Gosnold, who in 1602 crossed directly from the English Channel to Cape Cod. As Gosnold was now second in command in this expedition to Virginia, it would seem as if the shorter route might once more have been tried to advantage. So many weeks upon the ocean sadly diminished the stock of provisions. In the course of the voyage some trouble arose between Smith and Wingfield, and while they were stopping at Dominica, on the 24th of March, an accusation of plotting mutiny was brought against the former, so that he was kept in irons until the ships reached Virginia. After leaving the West Indies they encountered bad weather and lost their reckoning, but the 26th of April brought them to the

A tedious voyage.

Arrival in Chesapeake Bay.

Founding of Jamestown; Wingfield chosen president.

cape which was forthwith named Henry, after the Prince of Wales, as the opposite cape was afterwards named for his younger brother, Prince Charles. A few of the company ventured on shore, where they were at once attacked by Indians and two were badly wounded with arrows. That evening the sealed box was opened, and it was found that Bartholomew Gosnold, Edward Wingfield, John Smith, John Ratcliffe, John Martin, and George Kendall were appointed members of the Council,—six in all, of whom the president was to have two votes. As the ships proceeded into Hampton Roads after so much stress of weather, they named the promontory at the entrance Point Comfort.^[46] The name of the broad river which the voyagers now entered speaks for itself. They scrutinized the banks until they found a spot which seemed suited for a settlement, and there they landed on the 13th of May. It was such a place as the worthy Hakluyt (or whoever wrote their letter of instructions) had emphatically warned them against, low and damp, and liable to prove malarious.^[47] At high tide the rising waters half covered the little peninsula, but in this there was an element of military security, for the narrow neck was easy to guard, and perhaps it may have been such considerations that prevailed. Smith says there was a dispute between Wingfield and Gosnold over the selection of this site. As soon as the company had landed here the members of the Council, all save Smith, were sworn into office, and then they chose Wingfield for their president for the first year. On the next day the men went to work at building their fort, a wooden structure of triangular shape, with a demi-lune at each angle, mounting cannon. They called it Fort James, but soon the settlement came to be known as Jamestown.^[48] For a church they nailed a board between two trees to serve as a reading desk, and stretched a canvas awning over it, and there the Rev. Robert Hunt, a high-minded and courageous divine, first clergyman of English America, read the Episcopal service and preached a sermon twice on every Sunday.

Smith's enemies were a majority in the Council and would not admit him as a member, but he was no longer held as a prisoner. Newport's next business was to explore the river, and Smith with four other gentlemen, four skilled mariners, and fourteen common sailors, went along with him, while the Jamestown fort was building. They sailed up about as far as the site of Richmond, frequently meeting parties of Indians on the banks or

The Powhatan tribe, confederacy, and head war-chief.

passing Indian villages. Newport was uniformly kind and sagacious in his dealings with the red men, and they seemed quite friendly. These were Algonquins, of the tribe called Powhatans, and the natives who had assaulted the English at Cape Henry belonged to a hostile tribe, so that that incident furnished a bond of sympathy between the Powhatans and the white men. After a few days they reached the village called Powhatan (*i.e.* "Falling Waters"), which Thomas Studley, the colonial storekeeper, describes as consisting of about a dozen houses "pleasantly seated on a hill." Old drawings indicate that they were large clan houses, with framework of beams and covering of bark, similar in general shape though not in all details to the long houses of the Iroquois. The Powhatans seem to have been the leading or senior tribe in a loose confederacy. Their principal village was called Werowocomoco, situated on the north side of the York River, about fifteen miles northeast from Jamestown as the crow flies. The place is now called Putin Bay, a name which is merely a corruption of Powhatan. At Werowocomoco dwelt the head war-chief of the tribe, by name Wahunsunakok, but much more generally known by his title as The Powhatan, just as the head of an Irish or Scotch clan is styled The O'Neill or The MacGregor. Newport and Smith, hearing that The Powhatan was a chief to whom other chiefs were in a measure subordinate, spoke of him as the emperor and the subordinate chiefs as kings, a grotesque terminology which was natural enough at that day but which in the interest of historical accuracy it is high time for modern writers to drop. ^[49]

When Newport and Smith returned to Jamestown, they found that it had been attacked by a force of 200 Indians. Wingfield had beaten them off, but one Englishman was killed and eleven were wounded. In the course of the next two weeks these enemies were very annoying; they would crouch in the tall grass about the fort and pick off a man with their barbed stone-tipped arrows. Hakluyt had warned the settlers against building near the edge of a wood; ^[50] it seems strange that bitter experience was needed to teach them that danger might lurk in long grass. Presently some of their new acquaintances from the Powhatan tribe came to the fort and told Newport that the assailants were from a hostile tribe against which they would willingly form an alliance; and they furthermore advised him to cut his grass, which seems to prove that they were sincere in what they said.

Smith now demanded a trial on the charges which had led to his imprisonment. In spite of objections from Wingfield a jury was granted, and Smith was acquitted of all the charges; so that on the 10th of June he was allowed to take his seat in the Council. On the 15th the fort was finished, and on the 22d Captain Newport sailed for England with a cargo of sassafras and fine wood for wainscoting. He took the direct route homeward, for need was now visibly pressing. He promised to be back in Virginia within twenty weeks, but all the food he could leave in the fort was reckoned to be scarcely enough for fifteen weeks, so that the company were put upon short rations. According to Studley, 105 persons were left at Jamestown, of whom besides the 6 councillors, the clergyman and the surgeon, there were mentioned by name 29 gentlemen, 6 carpenters, 1 mason, 2 bricklayers, 1 blacksmith, 1 sailor, 1 drummer, 1 tailor, 1 barber, 12 labourers, and 4 boys, with 38 whom he neither names or classifies but simply mentions as "divers others." The food left in store for this company was not appetizing. After the ship had gone, says Richard Potts, "there remained neither tavern, beer-house, nor place of relief but the common kettle; ... and that was half a pint of wheat and as much barley, boiled with water, for a man a day; and this, having fried some 26 weeks in the ship's hold, contained as many worms as grains.... "Our [only] drink was water.... Had we been as free from all sins as gluttony and drunkenness, we might have been canonized for saints."^[51] Chickens were raised, but not enough for so many mouths, and as there were no cattle or sheep a nourishing diet of meat and milk was out of the question. Nor do we find much mention of game, though there were some who warded off the pangs of starvation by catching crabs and sturgeon in the river. With such inadequate diet, with unfamiliar kinds of labour, and with the frightful heat of an American summer, the condition of the settlers soon came to be pitiable. Disease soon added to their sufferings. Fevers lurked in the air of Jamestown. Before the end of September more than fifty of the company were in their graves. The situation is graphically described by one of the survivors, the Hon. George Percy, brother of the Earl of Northumberland: "There were neuer Englishmen left in a forreigne Countrey in such miserie as wee were in this new discovered Virginia. Wee watched euey three nights, lying on the bare ... ground, what weather soeuer came; [and] warded all the next day; which

Newport sails for
England June 22,
1607.

Suffering of the
colonists.

Percy's account.

brought our men to bee most feeble wretches. Our food was but a small Can of Barlie sodden in water to fiue men a day. Our drink cold water taken out of the River; which was at a floud verie salt: at a low tide full of slime and filth; which was the destruction of many of our men. Thus we lived for the space of fiue months in this miserable distresse, not hauing fiue able men to man our Bulwarkes upon any occasion. If it had not pleased God to haue put a terrour in the Sauages hearts, we had all perished by those vild and cruell Pagans, being in that weake estate as we were; our men night and day groaning in every corner of the Fort most pittiful to heare. If there were any conscience in men, it would make their harts to bleed to heare the pitifull murmurings and outcries of our sick men without reliefe, euery night and day for the space of sixe weekes: some departing out of the World, many times three or foure in a night; in the morning their bodies being trailed out of their Cabines like Dogges, to be buried. In this sort did I see the mortalitie of diuers of our people,"^[52]

In such a state of things our colonists would have been more than human had they shown very amiable tempers. From the early wanderings of the Spaniards in Darien down to the recent marches of Stanley in Africa, men struggling with the wilderness have fiercely quarrelled. The fever at Jamestown carried off Captain Gosnold in August, and after his death the feud between Smith's friends and Wingfield's flamed up with fresh virulence. Both gentlemen have left printed statements, and in our time the quarrel is between historians as to which to believe. Perhaps it is Smith's detractors who are just at this moment the more impetuous and implacable, appealing as they do to the churlish feeling that delights in seeing long-established reputations assailed. Such writers will tell you as positively as if there could be no doubt about it, that Smith was engaged in a plot with two other members of the Council to depose Wingfield from his presidency and establish a "triumvirate" over that tiny woodland company. Others will assert, with equal confidence, that Wingfield was a tyrant whose ruthless rule became insupportable. A perusal of his "Discourse of Virginia," written in 1608 in defence of his conduct, should make it clear, I think, that he was an honourable gentleman, but ill fitted for the trying situation in which he found himself. To control the rations of so many hungry men was no pleasant or easy matter. It was charged against Wingfield that he kept back

Quarrels.

Wingfield deposed;
Ratcliffe chosen
president, Sept.,
1607.

sundry dainties, and especially some wine and spirits for himself and a few favoured friends; but his quite plausible defence is that he reserved two gallons of sack for the communion table and a few bottles of brandy for extreme emergencies, but the other members of the Council, whose flasks were all empty, "did long for to sup up that little remnant!"^[53] At length a suspicion arose that he intended to take one of the small vessels that remained in the river and abandon the colony. Early in September the Council deposed him and elected John Ratcliffe in his place. A few days later Wingfield was condemned to pay heavy damages to Smith for defaming his character. "Then Master Recorder," says poor Wingfield, "did very learnedly comfort me that if I had wrong I might bring my writ of error in London; whereat I smiled.... I tould Master President I ... prayed they would be more sparing of law vntill wee had more witt or wealthe."^[54]

An awful dignity hedged about the sacred person of the president of that little colony of fifty men. One day President Ratcliffe beat James Reed, the blacksmith, who so far forgot himself as to strike back, and for that heinous offence was condemned to be hanged; but when already upon the fatal ladder, and, so to speak *in extremis*, like Reynard the Fox, the resourceful blacksmith made his peace with the law by revealing a horrid scheme of mutiny conceived by George Kendall, a member of the Council. Of the details of the affair nothing is known save that Kendall was found guilty, and instead of a plebeian hanging there was an aristocratic shooting. In telling the story Wingfield observes that if such goings-on were to be heard of in England, "I fear it would drive many well-affected myndes from this honourable action of Virginia."

Execution of a member of the Council.

Wingfield's pamphlet freely admits that Smith's activity in trading with the Indians for corn was of great service to the suffering colony. With the coming of autumn so many wild fowl were shot that the diet was much improved. On the 10th of December Smith started on an exploring expedition up the Chickahominy River. Having gone as far as his shallop would take him, he left seven men to guard it while he went on in a canoe with only two white men and two Indian guides. This little party had arrived at White Oak Swamp, or somewhere in that neighbourhood, when they were suddenly attacked by 200 Indians led by Opekankano, a brother of The Powhatan. Smith's two

Smith is captured by Opekankano,

comrades were killed, and he was captured after a sturdy resistance, but not until he had slain two Indians with his pistol. It was quite like the quick-witted man to take out his ivory pocket compass, and to entertain the childish minds of the barbarians with its quivering needle which they could plainly see through the glass, but, strange to say, could not feel when they tried to touch it. Very like him it was to improve the occasion with a brief discourse on star craft, eked out no doubt with abundant gesticulation, which may have led his hearers to regard him as a wizard. There seems to have been a difference of opinion among them. They tied Smith to a tree, and the fate of Saint Sebastian seemed in store for him, when Opekankano held up the compass; then the captive was untied, and they marched away through the forest, taking him with them.

It is not at all clear why the red men should have made this attack. Hitherto the Powhatans had seemed friendly to the white men and desirous of an alliance with them. There is a vague traditional impression that Opekankano

who takes him to
Werowocomoco,
Jan., 1608.

was one of a party opposed to such a policy; so that his attitude might remind us of the attitude of Montezuma's brother Cuitlahuatzin toward the army of Cortes approaching Mexico. Such a view is not improbable. Wingfield, moreover, tells us that two or three years before the arrival of the English at Jamestown some white men had ascended a river to the northward, probably the Pamunkey or the Rappahannock, and had forcibly kidnapped some Indians. If there is truth in this, the kidnappers may have belonged to the ill-fated expedition of Bartholomew Gilbert. Wingfield says that Opekankano carried Smith about the country to several villages to see if anybody could identify him with the leader of that kidnapping party. Smith's narrative confirms this statement, and adds that it was agreed that the captain in question was a much taller man than he. His story is full of observations on the country. Opekankano's village consisted of four or five communal houses, each about a hundred feet in length, and from the sandy hill in which it stood some scores of such houses could be seen scattered about the plain. At length Smith was brought to Werowocomoco and into the presence of The Powhatan, who received him in just such a long wigwam. The elderly chieftain sat before the fireplace, on a kind of bench, and was covered with a robe of raccoon skins, all with the tails on and hanging like ornamental tassels. Beside him sat his young squaws, a row of women with their faces and bare shoulders painted bright red and chains of

white shell beads about their necks stood around by the walls, and in front of them stood the grim warriors.

This was on the 5th of January, 1608, and on the 8th Smith returned to Jamestown, escorted by four Indians. What had happened to him in the interval? In his own writings we have two different accounts. In his tract published under the title, "A True Relation,"—which was merely a letter written by him in or about June, 1608, to a "worshipful friend" in London and there published, apparently without his knowledge, in August,—Smith simply says that The Powhatan treated him very courteously and sent him back to Jamestown. But in the "General History of Virginia," a far more elaborate and circumstantial narrative, published in London in 1624, written partly by Smith himself and partly by others of the colony, we get a much fuller story. We are told that after he had been introduced to The Powhatan's long wigwam, as above described, the Indians debated together and presently two big stones were placed before the chief, and Smith was dragged thither and his head laid upon them; but even while warriors were standing, with clubs in hand, to beat his brains out, the chief's young daughter Pocahontas rushed up and embraced him and laid her head upon his to shield him, whereupon her father spared his life.

The rescue by
Pocahontas.

For two centuries and a half the later and fuller version of this story was universally accepted while the earlier and briefer was ignored. Every schoolboy was taught the story of Pocahontas and John Smith, and for most people I dare say that incident is the only one in the captain's eventful career that is remembered. But in recent times the discrepancy between the earlier and later accounts has attracted attention, and the conclusion has been hastily reached that in the more romantic version Smith is simply a liar. It is first assumed that if the Pocahontas incident had really occurred, we should be sure to find it in Smith's own narrative written within a year after its occurrence; and then it is assumed that in later years, when Pocahontas visited London and was lionized as a princess, Smith invented the story in order to magnify his own importance by thus linking his name with hers. By such specious logic is the braggadocio theory of Smith's career supported, and underneath the whole of it lies the tacit assumption that the Pocahontas incident is an extraordinary one, something that in an Indian community or anywhere would not have been likely to happen.

Recent attempt to
discredit the story.

As this view of the case has been set forth by writers of high repute for scholarship, it has been generally accepted upon their authority; in many quarters it has become the fashionable view. Yet its utter flimsiness can be exhibited, I think, in very few words.

The first occasion on which Smith mentions his rescue by Pocahontas was the occasion of her arrival in London, in 1616, as the wife of John Rolfe. In an eloquent letter to King James's queen, Anne of Denmark, he bespeaks the royal favour for the strange visitor from Virginia and extols her good qualities and the kindness she had shown to the colony. In the course of the letter he says "she hazarded the beating out of her own brains to save mine." There were then several persons in London, besides Pocahontas herself, who could have challenged this statement if it had been false, but we do not find that anybody did so.^[55] In 1624, when Smith published his "General History," with its minutely circumstantial account of the affair, why do we not find, even on the part of his enemies, any intimation of the falsity of the story? Within a year George Percy wrote a pamphlet^[56] for the express purpose of picking the "General History" to pieces and discrediting it in the eyes of the public; he was one of the original company at Jamestown. If Smith had not told his comrades of the Pocahontas incident as soon as he had escaped from The Powhatan's clutches, if he had kept silent on the subject for years, Percy could not have failed to know the fact and would certainly have used it as a weapon. There were others who could have done the same, and their silence furnishes a very strong presumption of the truth of the story.

Percy's pamphlet, 1625.

Why then did Smith refrain from mentioning it in the letter to a friend in England, written in 1608, while the incidents of his captivity were fresh in his mind? Well, we do not know that he did refrain from mentioning it, for we do know that the letter, as published in August, 1608, had been tampered with. Smith was in Virginia, and the editor in London expressly states in his Preface that he has omitted a portion of the manuscript: "somewhat more was by him written, which being (as I thought) fit to be private, I would not adventure to make it public." Nothing could be more explicit. Observe that thus the case of Smith's detractors falls at once to the ground. Their rejection of the Pocahontas story is based upon its absence

The printed text of the "True Relation" is incomplete.

from the printed text of the "True Relation," but inasmuch as that printed text is avowedly incomplete no such inference is for a moment admissible. For the omitted portion is as likely as not to have been the passage describing Smith's imminent peril and rescue.

On this supposition, what could have been the editor's motive in suppressing the passage? We need not go far afield for an answer if we bear in mind the instructions with which the first colonists started,—*"to suffer no man ... to write [in] any letter of anything that may discourage others."*^[57] This very necessary and important injunction may have restrained Smith himself from mentioning his deadly peril; if he did mention it, we can well understand why the person who published the letter should have thought it best to keep the matter private. After a few years had elapsed and the success of the colony was assured, there was no longer any reason for such reticence. My own opinion is that Smith, not intending the letter for publication, told the whole story, and that the suppression was the editor's work. It will be remembered that in the fight in which he was captured, Smith slew two Indians. In the circumstantial account given in the "General History" we are told that while Opekankano was taking him up and down the country, a near relative of one of these victims attempted to murder Smith but was prevented by the Indians who were guarding him. The "True Relation" preserves this incident, while it omits all reference to the two occasions when Smith's life was officially and deliberately imperilled, the tying to the tree and the scene in The Powhatan's wigwam. One can easily see why the editor's nerves should not have been disturbed by the first incident, so like what might happen in England, while the more strange and outlandish exhibitions of the Indian's treatment of captives seemed best to be dropped from the narrative.

Reason for omitting the Pocahontas incident.

But, we are told, the difficulty is not merely one of omission. In the "True Relation" Smith not only omits all reference to Pocahontas, but he says that he was kindly and courteously treated by his captors, and this statement is thought to be incompatible with their having decided to beat his brains out. Such an objection shows ignorance of Indian manners. In our own time it has been a common thing for Apaches and Comanches to offer their choicest morsels of food,

There is no incongruity between the two narratives, except the omission.

with their politest bows and smiles, to the doomed captive whose living flesh will in a few moments be hissing under their firebrands. The irony of such a situation is inexpressibly dear to the ferocious hearts of these men of the Stone Age, and American history abounds in examples of it. In his fuller account, indeed, Smith describes himself as kindly treated on his way to the scene of execution^[58] and after his rescue. Drop out what happened in the interval and you get the account given in the "True Relation."

Now that omission creates a gap in the "True Relation" such as to fatally damage its credibility. We are told that Smith, after killing a couple of Indians, is taken captive and carried to the head war-chief's wigwam, and is then forsooth allowed to go scot free with no notice taken of the blood debt that he owes to the tribe! To any one who has studied Indians such a story is well-nigh incredible. As a prisoner of war Smith's life was already forfeited.^[59] It is safe to say that no Indian would think of releasing him without some equivalent; such an act might incur the wrath of invisible powers. There were various ways of putting captives to death; torture by slow fire was the favourite mode, but crushing in the skull with tomahawks was quite common, so that when Smith mentions it as decided upon in his case he is evidently telling the plain truth, and we begin to see that the detailed account in the "General History" is more consistent and probable than the abridged account in the "True Relation."

The account in the "General History" is the more probable.

The consistency and probability of the story are made complete by the rescue at the hands of Pocahontas. That incident is precisely in accordance with Indian usage, but it is not likely that Smith knew enough about such usage to have invented it, and his artless way of telling the story is that of a man who is describing what he does not understand. From the Indian point of view there was nothing romantic or extraordinary in such a rescue; it was simply a not uncommon matter of business. The romance with which white readers have always invested it is the outcome of a misconception no less complete than that which led the fair dames of London to make obeisance to the tawny Pocahontas as to a princess of imperial lineage. Time and again it used to happen that when a prisoner was about to be slaughtered, some one of the dusky assemblage, moved by pity or admiration or some unexplained freak, would interpose in

The rescue was in strict accordance with Indian usage.

Adoption of Smith.

behalf of the victim; and as a rule such interposition was heeded. Many a poor wretch, already tied to the fatal tree and benumbed with unspeakable terror, while the firebrands were heating for his torment, has been rescued from the jaws of death, and adopted as brother or lover by some laughing young squaw, or as a son by some grave wrinkled warrior. In such cases the new-comer was allowed entire freedom and treated like one of the tribe. As the blood debt was cancelled by the prisoner's violent death, it was also cancelled by securing his services to the tribe; and any member, old or young, had a right to demand the latter method as a substitute for the former. Pocahontas, therefore, did not "hazard the beating out of her own brains," though the rescued stranger, looking with civilized eyes, would naturally see it in that light. Her brains were perfectly safe. This thirteen-year-old squaw liked the handsome prisoner, claimed him, and got him, according to custom. Mark now what happened next. Two days afterward The Powhatan, "having disguised himselfe in the most fearfullest manner he could, caused Captain Smith to be brought forth to a great house in the woods, and there vpon a mat by the fire be left alone. Not long after frome behind a mat that divided the house [*i. e.* a curtain] was made the most dolefullest noyse he ever heard."^[60] Then the old chieftain, looking more like the devil than a man, came to Smith and told him that now they were friends and he might go back to Jamestown; then if he would send to The Powhatan a couple of cannon and a grindstone, he should have in exchange a piece of land in the neighbourhood, and that chief would evermore esteem him as his own son. Smith's narrative does not indicate that he understood this to be anything more than a friendly figure of speech, but it seems clear that it was a case of ceremonious adoption. As the natural result of the young girl's intercession the white chieftain was adopted into the tribe. A long incantation, with dismal howls and grunts, propitiated the tutelar deities, and then the old chief, addressing Smith as a son, proposed an exchange of gifts. The next time that Smith visited Werowocomoco, The Powhatan proclaimed him a "werowance" or chief of the tribe, and ordered "that all his subjects should so esteem us, and no man account us strangers ... but Powhatans, and that the corn, women, and country should be to us as to his own people."^[61]

I have dwelt at some length upon the question of Smith's veracity for three good reasons. First, in the interests of

Importance of the story of Pocahontas.

sound historical criticism, it is desirable to show how skepticism, which is commonly supposed to indicate superior sagacity, is quite as likely to result from imperfect understanding. Secondly, justice should be done to the memory of one of the noblest and most lovable characters in American history. Thirdly, the rescue of Smith by Pocahontas was an event of real historic importance. Without it the subsequent relations of the Indian girl with the English colony become incomprehensible. But for her friendly services on more than one occasion, the tiny settlement would probably have perished. Her visits to Jamestown and the regular supply of provisions by the Indians began at this time.^[62]

On the very day that Smith returned to Jamestown the long expected ship of Captain Newport arrived with what was known as the First Supply of men and provisions. Part came now, the rest a few weeks later. Only 38 men had survived the hardships at Jamestown; to these the First Supply added 120, bringing the number up to 158. For so many people, besides the food they brought with them more corn was needed. So Smith took his "Father Newport," as he called him, over to Werowocomoco, where they tickled "Father Powhatan's" fancy with blue glass beads and drove some tremendous bargains. As spring came on, Newport sailed for England again, taking with him the deposed Wingfield. The summer of 1608 was spent by Smith in two voyages of exploration up Chesapeake Bay and into the Potomac, Patapsco, and Susquehanna rivers. He met with warriors of the formidable Iroquois tribe of Susquehannocks, and found them carrying a few French hatchets which had evidently come from Canada. During his absence things went badly at Jamestown and Ratcliffe was deposed. On Smith's return in September he was at once chosen president. Only 28 men had been lost this year, so that the colony numbered 130, when Newport again arrived in September, with the Second Supply of 70 persons, bringing the total up to 200. In this company there were two women, a Mrs. Forrest and her maid, Anne Burroughs, who was soon married to John Laydon, the first recorded English wedding on American soil.

Arrival of the First Supply, Jan. 8, 1608.

Ratcliffe deposed; Smith chosen president, Sept., 1608; arrival of the Second Supply.

Newport's instructions show that the members of the London Company, sitting at their cosy English firesides,

Captain Newport's

were getting impatient and meant to have something done. He was told that he must find either the way to the South Sea, or a lump of gold, or one of White's lost colonists, or else he need not come back and show his face in England! One seems taken back to the Arabian Nights, where such peremptory behests go along with enchanted carpets and magic rings and heroic steeds with pegs in the neck. No such talismans were to be found in Old Virginia. When Newport read his instructions, Smith bluntly declared that the London Company were fools, which seems to have shocked the decorous mariner. The next order was grotesque enough to have emanated from the teeming brain of James I. after a mickle noggin of his native Glenlivet. Their new ally, the mighty Emperor Powhatan, must be crowned! Newport and Smith did it, and much mirth it must have afforded them. The chief refused to come to Jamestown, so Mahomet had to go to the mountain. Up in the long wigwam at Werowocomoco the two Englishmen divested the old fellow of his raccoon-skin^[63] garment and put on him a scarlet robe which greatly pleased him. Then they tried to force him down upon his knees—which he did not like at all—while they put the crown on his head. When the operation was safely ended, the forest-monarch grunted acquiescence and handed to Newport his old raccoon-skin cloak as a present for his royal brother in England.

instructions.

Coronation of The Powhatan.

An Indian masquerading scene at one of these visits to Werowocomoco is thus described by one of the English party: "In a fayre playne field they made a fire, before which [we] sitting upon a mat, suddainly amongst the woods was heard ... a hydeous noise and shrieking.... Then presently [we] were presented with this anticke; thirtie young women came [nearly] naked out of the woods, ... their bodies all painted, some white, some red, some black, some particolour, but all differing; their leader had a fayre payre of buck's horns on her head, and an otter's skin at her girdle, and another at her arm, a quiver of arrowes at her back, a bow and arrowes in her hand; the next had in her hand a sword, another a club, ... all horned alike.... These fiends with most hellish shouts and cries, rushing from among the trees, cast themselves in a ring about the fire, singing and dauncing with most excellent ill varietie; ... having spent neare an houre in this mascarado, as they entred in like manner they departed. Having reaccommodated themselves, they solemnly invited [us] to their lodgings, where [we] were

How the Indian girls danced at Werowocomoco.

no sooner within the house but all these nymphes more tormented us than ever, with crowding, pressing, and hanging about [us], most tediously crying, *Love you not me?* This salutation ended, the feast was set, consisting of fruit in baskets, fish and flesh in wooden platters; beans and peas there wanted not, nor any salvage dainty their invention could devise: some attending, others singing and dancing about [us]; which mirth and banquet being ended, with firebrands [for] torches they conducted [us] to [our] lodging."

The wood-nymphs who thus entertained their guests are in one account mentioned simply as "Powhatan's women," in another they are spoken of as "Pocahontas and her women;" which seems to give us a realistic sketch of the little maid with her stag-horn headdress and skin all stained with puccoon leading her companions in their grotesque capers. Truly, it was into a strange world and among a strange people that our colonists had come. Their quaint descriptions of manners and customs utterly new and unintelligible to them, though familiar enough to modern students of barbaric life, have always the ring of truth. Nowhere in the later experiences of white men with Indians do we find quite so powerful a charm as in the early years of the seventeenth century. No other such narratives are quite so delightful as those of Champlain and his friends in Canada, and those of Smith and his comrades in Virginia. There is a freshness about this first contact with the wilderness and its uncouth life that makes every incident vivid. There is a fascination too, not unmingled with sadness, in watching the early dreams of El Dorado fade away as the stern reality of a New World to be conquered comes to make itself known and felt. Naturally the old delusions persisted at home in England long after the colonists had been taught by costly experiences to discard them, and we smile at the well-meant blundering of the ruling powers in London in their efforts to hasten the success of their enterprise. In vain did the faithful Newport seek to perform the mandates of the London Company. No nuggets of gold were to be found, nor traces of poor Eleanor Dare and her friends, and The Powhatan told the simple truth when he declared that there were difficult mountains westward and it would be useless to search for a salt sea behind them. Newport tried, nevertheless, but came back exhausted long before he had reached the Blue Ridge; for what foe is so pertinacious as a strange and savage continent? In pithy terms does Anas Todkill, one of

Accuracy of Smith's descriptions.

Todkill's complaint.

the first colonists, express himself about these wild projects: "Now was there no way to make us miserable but to neglect that time to make our provision whilst it was to be had; the which was done to perfourme this strange discovery, but more strange coronation. To lose that time, spend that victuall we had, tire and starue our men, having no means to carry victuall, munition, the hurt or sicke, but their own backes: how or by whom they were invented I know not." How eloquent in grief and indignation are these rugged phrases! A modern writer, an accomplished Oxford scholar, expresses the opinion that the coronation of The Powhatan, although "an idle piece of formality," "had at least the merit of winning and retaining the loyalty of the savage."^[64] Master Todkill thought differently: "as for the coronation of Powhatan and his presents of bason, ewer, bed, clothes, and such costly nouelties; they had bin much better well spared than so ill spent; for we had his favour much better onlie for a poore peece of copper, till this stately kinde of soliciting made him so much overvalue himselfe, that he respected vs as much as nothing at all."^[65]

When Newport sailed for England, he took with him Ratcliffe, the deposed president, a man of doubtful character of whom it was said that he had reasons for using an alias, his real name being Sickelmore. Deposed presidents were liable to serve as tale-bearers and mischief-makers. Wingfield had gone home on the previous voyage, and Newport had brought back to Virginia complaints from the Company about the way in which things had been managed. Now Smith sent to London by Newport his new map of Virginia embodying the results of his recent voyages of exploration, a map of remarkable accuracy and witness to an amount of original labour that is marvellous to think of. That map is a living refutation of John Smith's detractors; none but a man of heroic mould could have done the geographical work involved in making it.

Smith's map of Virginia.

With the map Smith sent what he naïvely calls his "Rude Answer" to the London Company, a paper bristling with common-sense and not timid when it comes to calling a spade a spade. With some topics suggested by this "Rude Answer" we shall concern ourselves in the next chapter.

CHAPTER IV.

THE STARVING TIME.

THE men of bygone days were quite as fond as ourselves of playing with names, and the name of Christopher, or "Christ-bearer," was a favourite subject for such pastime. The old Syrian saint and martyr was said to have forded a river carrying Christ on his back in the form of a child; and so when in the year 1500 Columbus's famous pilot, Juan de La Cosa, made his map of the new discoveries, and came to a place where he did not know how to draw his coast-line, he filled the space with a picture of the new Christopher wading in mid-ocean and bringing over Christ to the heathen. At the court of James I. it was fashionable to make similar mild jests upon the name of Captain Christopher Newport, whose ships were carrying year by year the gospel to the tawny natives of Virginia. Very little of the good tidings, however, had the poor heathen of Pamunkey and Werowocomoco as yet received. So much ado had the English colonists to keep their own souls from quitting their bodies that they had little leisure to bestow upon the spiritual welfare of the Indians. By the accident of Smith's capture and the intercession of Pocahontas, they had effected a kind of alliance with the most powerful tribe in that part of the country, and this alliance had proved extremely valuable throughout the year 1608; without it the little colony might have perished before the arrival of the Second Supply. Nevertheless the friendship of the red men was a very uncertain and precarious factor in the situation. The accounts of the Englishmen show confused ideas as to the relations between the tribes and chieftains of the region; and as for the Indians, their acquaintanceship with white men was so recent that there was no telling what unforeseen circumstance might at any time determine their actions. The utmost sagacity was needed to retain the slight influence already acquired over them, while to alienate them might easily prove fatal. The colony was far from able to support itself, and as things were going there seemed little hope of improvement. The difficulties involved in the

The name of
Christopher.

Value of the Indian
alliance.

founding of colonies were not well understood, and the attempts to cope with them were unintelligent.

In the lists of these earliest parties of settlers one cannot fail to notice the preponderance of those who are styled gentlemen, an epithet which in those days was not lavishly and indiscriminately but charily and precisely applied. As a rule the persons designated as gentlemen were not accustomed to manual labour. To meet the requirements of these aristocratic members of the community, we find in one of the lists the name of a dealer in perfumes. A few score of farmers, with abundance of live-stock, would have been far more to the purpose. Yet let us do justice to the gentlemen. One of the first company of settlers, the sturdy soldier Anas Todkill, thus testifies to their good spirit and efficiency: "Thirty of us [President Smith] conducted 5 myles from the fort, to learn to ... cut down trees and make clapboard.... Amongst the rest he had chosen Gabriel Beadell and John Russell, the only two gallants of this last supply [he means October, 1608] and both proper gentlemen. Strange were these pleasures to their conditions; yet lodging, eating and drinking, working or playing, they [were] but doing as the President did himselfe. All these things were carried on so pleasantly as within a week they became masters; making it their delight to heare the trees thunder as they fell; but the axes so oft blistered their tender fingers that many times every third blow had a loud othe to drowne the eccho; for remedie of which sinne, the President devised how to have every man's othes numbred, and at night for every othe to have a cann of water powred downe his sleeue, with which every offender was so washed (himselfe and all) that a man should scarce hear an othe in a weeke.

Gentlemen as
pioneers.

For he who scorns and makes but jests of cursings and his othe,
He doth contemne, not man but God; nor God, nor man, but both.

By this let no man thinke that the President and these gentlemen spent their time as common woodhackers at felling of trees, or such other like labours; or that they were pressed to it as hirelings or common slaues; for what they did, after they were but once a little invred, it seemed and some conceited it only as a pleasure and recreation: ... 30 or 40 of such voluntary gentlemen would doe more in a day than 100 of the rest that must be prest to it by

compulsion." Nevertheless, adds this ingenuous writer, "twentie good workmen had been better than them all."^[66]

One strong motive which drew many of these gentlemen to the New World, like the Castilian hidalgos of a century before, was doubtless the mere love of wild adventure. Another motive was the quest of the pearls and gold about gold that which the poet Drayton had written. In the spring of 1608, while Newport was on the scene with his First Supply, somebody discovered a bank of bright yellow dirt, and its colour was thought to be due to particles of gold. Then there was clatter and bustle; "there was no thought, no discourse, no hope, and no work but to dig gold, wash gold, refine gold, and load gold." In the list of the First Supply we find the names of two goldsmiths, two refiners, and one jeweller; ^[67] but such skill as these artisans had was of little avail,

for Newport carried a shipload of the yellow stuff to London, and found, to his chagrin, that all is not gold that glitters. On that same voyage he carried home a coop of plump turkeys, the first that ever graced an English bill of fare. Smith seems early to have recovered from the gold fever, and to have tried his hand at various industries. If precious metals could not be found, there was plenty of excellent timber at hand. The production of tar and soap was also attempted, as well as the manufacture of glass, to assist in which eight Germans and Poles were brought over in the Second Supply. It was hardly to be expected that such industries should attain remunerative proportions in the hands of a little company of settlers who were still confronted with the primitive difficulty of getting food enough to keep themselves alive. The arrival of reinforcements was far from being an unmixed benefit. Each new supply brought many new mouths to be filled, while by the time the ship was ready to sail for England, leaving all the provisions it could safely spare, the remnant was so small that the gaunt spectre of threatening famine was never quite out of sight. Moreover the new-comers from the civilized world arrived with their heads full of such wild notions as the older settlers were beginning to recover from under the sharp lessons of experience; thus was confusion again and again renewed. While the bitter tale was being enacted in the wilderness, people in London

All is not gold that glitters.

Glass and soap.

Disappointment of the Company.

Tale-bearers and complaints.

Smith's "Rude Answer."

were wondering why the symptoms of millennial happiness were so slow in coming from this Virginian paradise. From the golden skewers and dripping-pans adorning the kitchens of barbaric potentates,^[68] or the priceless pearls that children strolling on the beach could fill their aprons with, the descent to a few shiploads of ignoble rough boards and sassafras was truly humiliating. No wonder that the Company should have been loth to allow tales of personal peril in Virginia to find their way into print. No wonder that its directors should have looked with rueful faces at the long columns of outgoes compared with the scant and petty entries on the credit side of the ledger. No wonder if they should have arrived at a state of impatience like that of the urchin who has planted a bed full of seed and cannot be restrained from digging them up to see what they are coming to. At such times there is sure to be plenty of fault-finding; disappointment seeks a vent in scolding. We have observed that Wingfield, the deposed president, had returned to England early in 1608; with him went Captain Gabriel Archer, formerly a student of law at Gray's Inn, and one of the earliest members of the legal profession in English America. His name is commemorated in the little promontory near Jamestown called Archer's Hope. He was a mischief-maker of whom Wingfield in his "Discourse of Virginia" speaks far more bitterly than of Smith. To the latter Archer was an implacable enemy. On the return of Smith from his brief captivity with the Indians, this crooked Archer exhibited his legal ingenuity in seeking to revive a provision in the laws of Moses that a captain who leads his men into a fatal situation is responsible for their death. By such logic Smith would be responsible for the deaths of his followers slain, by Opekankano's Indians; therefore, said Archer, he ought to be executed for murder! President Ratcliffe, alias Sickelmore, appears to have been a mere tool in Archer's hands, and Smith's life may really have been in some danger when Newport's arrival discomfited his adversaries. One can see what kind of tales such an unscrupulous enemy would be likely to tell in London, and it was to be expected that Newport, on arriving with his Second Supply, would bring some message that Smith would regard as unjust. The nature of the message is reflected in the reply which Smith sent home by Newport in November, 1608. The wrath of the much-enduring man was thoroughly aroused; in his "Rude Answer," as he calls it, he strikes out from the shoulder, and does not even spare his friend Newport for bringing such messages. Thus does he address the Royal Council of Virginia, sitting in

London: "Right Honourable Lords and Gentlemen: I received your letter wherein you write that our minds are so set upon faction and idle conceits, ... and that we feed you but with ifs and ands, hopes, and some few proofes; as if we would keep the mystery of the businesse to ourselues; and that we must expresly follow your instructions sent by Captain Newport, the charge of whose voyage amounts to neare £2000 the which if we cannot defray by the ship's returne, we are like to remain as banished men. To these particulars I humbly intreat your pardons if I offend you with my rude answer.

"For our factions, vnlesse you would haue me run away and leaue the country, I cannot prevent them: ... I do make many stay that would els fly anywhither.... [As to feeding] you with hopes, etc., though I be no scholar, I am past a school-boy; and I desire but to know what either you [or] these here do know but I have learned to tell you by the continual hazard of my life. I have not concealed from you anything I know; but I feare some cause you to believe much more than is true.

I cannot prevent quarrels.

"Expressly to follow your directions by Captain Newport, though they be performed, I was directly against it; but according to our Commission, I was content to be ruled by the major part of the council, I fear to the hazard of us all; which now is generally confessed when it is too late.... I have crowned Powhatan according to your instructions. For the charge of this voyage of £2000 we have not received the value of £100.... For him at that time to find ... the South Sea, [or] a mine of gold, or any of them sent by Sir Walter Raleigh: at our consultation I told them was as likely as the rest. But during this great discovery of thirty miles (which might as well have been done by one man, and much more, for the value of a pound of copper at a seasonable time) they had the pinnace and all the boats with them [save] one that remained with me to serve the fort.

Your instructions were not wise.

"In their absence I followed the new begun works of pitch and tar, glass, soap ashes, and clapboard; whereof some small quantities we have sent you. But if you rightly consider what an infinite toil it is in Russia and Swedeland, where the woods are proper for naught else, and though there be the help both of man and beast in those ancient

From our infant industries you must not expect too much.

commonweals which many an hundred years have [been] used [to] it; yet thousands of those poor people can scarce get necessaries to live but from hand to mouth. And though your factors there can buy as much in a week as will fraught you a ship ...; you must not expect from us any such matter, which are but a many of ignorant miserable souls, that are scarce able to get wherewith to live and defend ourselves against the inconstant salvages; finding but here and there a tree fit for the purpose, and want[ing] all things else [which] the Russians have.

"For the coronation of Powhatan, by whose advice you sent him such presents I know not; but this give me leave to tell you, I fear they will be the confusion of us all ere we hear from you again. At your ship's arrival the salvages's harvest was newly gathered and we [were] going to buy it; our own not being half sufficient for so great a number. As for the two [shiploads] of corn [which] Newport promised to provide us from Powhatan,^[69] he brought us but 14 bushels ... [while most of his men were] sick and near famished. From your ship we had not provision in victuals worth £20, and we are more than 200 to live upon this; the one half sick, the other little better.... Our diet is a little meal and water, and not sufficient of that. Though there be fish in the sea, fowls in the air, and beasts in the woods, their bounds are so large, they so wild, and we so weak and ignorant that we cannot much trouble them.

While we suffer for want of food,

"The soldiers say many of your officers maintain their families out of that you send us; and that Newport hath £100 a year for carrying news.... Captain Ratcliffe is now called Sickelmore, a poor counterfeited imposture. I have sent you him home, lest the company [here] should cut his throat. What he is now, every one can tell you. If he and Archer return again, they are sufficient to keep us always in factions.

peculation and intrigue are rife.

"When you send again I intreat you [to] send but 30 carpenters, husbandmen, gardeners, fishermen, blacksmiths, masons, and diggers up of trees' roots, well provided, [rather] than 1000 of such as we have; for except we be able both to lodge them and feed them, the most will consume with want of necessaries before they can be made good for anything.... And I humbly entreat you hereafter, let us know what we [are to] receive, and not stand to the sailors's courtesy to leave us what they please....

Send us next time some useful workmen.

"These are the causes that have kept us in Virginia from laying such a foundation [as] ere this might have given much better content and satisfaction; but as yet you must not look for any profitable returns; so I humbly rest."^[70]

It is to be hoped that the insinuation that some of the Company's officers were speculators was ill founded; as for the fling at Newport, it was evidently made in a little fit of petulance and is inconsistent with the esteem in which Smith really held that worthy mariner. These are slight blemishes in a temperate, courageous, and manly letter. It is full of hard common-sense and tells such plain truths as must have set the Company thinking. It was becoming evident to many persons in London that some new departure must be made. But before Newport's home-bound ship could cross the ocean, and before the Company could decide upon its new plan of operations, some months must needs elapse, and in the interim we will continue to follow the fortunes of the little colony, now left to itself in the wilderness for the third time.

A sensible letter.

It is evident from Smith's letter that he anticipated trouble from the Indians. In The Powhatan's promise to count him forever as his own son he put little faith. His own view of the noble savage seems to have been much the same as that expressed about this time by Rev. Richard Hakluyt, in a letter of advice and warning to the London Company: "But for all their fair and cunning speeches, [these natives] are not overmuch to be trusted; for they be the greatest traitors of the world, as their manifold most crafty contrived and bloody treasons ... do evidently prove. They be also as unconstant as the weathercock, and most ready to take all occasions of advantages to do mischief. They are great liars and dissemblers; for which faults oftentimes they had their deserved payments.... To handle them gently, while gentle courses may be found to serve, ... will be without comparison the best; but if gentle polishing will not serve, [we] shall not want hammerers and rough masons enow—I mean our old soldiers trained up in the Netherlands—to square and prepare them to our Preacher's hands."^[71]

Richard Hakluyt on the Indian character.

There is something delicious in the naïve promptness with which this worthy clergyman admits the probable need of prescribing military measures as a preparation

What Smith dreaded.

for the cure of souls. The London Company may have stood in need of such advice; Smith did not. He looked upon Indians already with the eyes of a frontiersman, and the rough vicissitudes of his life had made him quick to interpret signs of mischief. It was not so much a direct assault that he feared as a contest arising from the Indians' refusal to sell their corn. During the past winter Pocahontas had made frequent and regular visits to Jamestown, bringing corn and occasionally venison, raccoons, and other game; and this aid had been so effective as to ward off famine for that season. But a change had come over her father and his councillors. As the English kept strengthening their fortifications and building houses, as the second and third shiploads of colonists arrived, the Indians must have begun to realize that it was their intention to stay in the country. On Smith's first visit to Werowocomoco, when The Powhatan said that he should henceforth regard him as a son, he showed himself extremely curious to know why the English had come to his part of the world. Smith did not think it safe to confess that they had come to stay; so he invented a story of their having been defeated by the Spaniards and driven ashore; then, he added, the pinnacle being leaky, they were obliged to stay until their Father Newport should come back and get them and take them away. Since that conversation Father Newport had come twice, and each time he had brought many of his children and taken away but few. Instead of 38 men at Jamestown there were now 200. Every painted and feathered warrior knew that these pale children were not good farmers, and that their lives depended upon a supply of corn. By withholding this necessary of life, how easy it might be to rid the land of their presence!

How the red men's views of the situation were changed.

As the snows began to come, toward Christmas of 1608, Smith's fears began to be realized. When the Indians were asked for corn they refused with a doggedness that withstood even the potent fascination of blue glass beads. Smith fully comprehended the seriousness of the situation. "No persuasion," he says, "could persuade him to starve." If the Indians would not trade of their own free will they must be made to trade. The Powhatan asked for some men who could aid him in building a house, and Smith sent to Werowocomoco fourteen men, including four of the newly arrived Germans. Smith followed with twenty-seven men in the pinnacle and barge. In the party were George Percy and Francis West,

A bold resolve.

Voyage to Werowocomoco.

brother of the Lord Delaware of whom we shall have soon to speak. At Warrasqueak Bay, where they stopped the first night, a chieftain told them to beware of treachery at Werowocomoco; The Powhatan, he said, had concocted a scheme for cutting their throats. Captain Smith thanked the redskin for his good counsel, assured him of his undying affection, and proceeded down the river to Hampton, where he was very hospitably entertained by the Kecoughtans, a small tribe numbering about twenty warriors. For about a week, from December 30, 1608, till January 6, 1609, a fierce blizzard of snow and sleet obliged the party to stay in the dry and well-warmed wigwams of the Kecoughtans, who regaled them with oysters, fish, venison, and wild fowl. As they passed around to the northern side of the peninsula and approached the York River, the Indians seemed less friendly. When they arrived at Werowocomoco the river was frozen for nearly half a mile from the shore, but Smith rammed and broke the ice with his barge until he had pushed up to a place where it was thick enough to walk safely; then sending the barge back to the pinnacle the whole party were landed by instalments. They quartered themselves in the first house they came to, and sent to The Powhatan for food. He sent them venison, turkeys, and corn-bread.

The next day, January 13, the wily barbarian came to see Smith and asked him bluntly how soon he was going away. He had not asked the English, he said, to come and visit him, and he was sure he had no corn for them, nevertheless he thought he knew where he could get forty baskets of it for one good English sword per basket. Hearing this speech, Captain Smith pointed to the new house already begun, and to the men whom he had sent to build it, and said, "Powhatan, I am surprised to hear you say that you have not invited us hither; you must have a short memory!" At this retort the old chieftain burst into fits of laughter, but when he had recovered gravity it appeared that his notions as to a bargain remained unchanged. He would sell his corn for swords and guns, but not for copper; he could eat corn, he could not eat copper. Then said Captain Smith, "Powhatan, ... to testify my love [for you] I sent you my men for your building, neglecting mine own. What your people had, you have engrossed, forbidding them our trade; and now you think by consuming the time we shall consume for want, not having [wherewith] to fulfill your strange demands. As for swords and guns, I told you long ago I had none to spare.... You must know [that the weapons] I

Smith's parley with
The Powhatan.

have can keep me from want; yet steal or wrong you I will not, nor dissolve that friendship we have mutually promised, except you constrain me by ... bad usage." This covert threat was not lost upon the keen barbarian. He quickly replied that within two days the English should have all the corn he could spare, but said he, "I have some doubt, Captain Smith, [about] your coming hither, [which] makes me not so kindly seek to relieve you as I would. For many do inform me [that] your coming hither is not for trade, but to invade my people and possess my country. [They] dare not come to bring you corn, seeing you thus armed with your men. To free us of this fear, leave your weapons aboard [the ship], for here they are needless, we being all friends, and forever *Powhatans*."

This last remark, that Smith's men were virtually or constructively members of the Powhatan tribe is in harmony with my suggestion that the rescue of their leader by Pocahontas a year before had directly led to his adoption, according to the usual Indian custom in such cases of rescue. With many such discourses, says our chronicle, did they spend the day; and on the morrow the parley was renewed. Again and again the old chief insisted that before the corn could be brought, the visitors must leave their arms on shipboard; but Smith was not so blind as to walk into such a trap. He said, "Powhatan, ... the vow I made you of my love, both myself and my men have kept. As for your promise, I find it every day violated by some of your subjects; yet ... for your sake only we have curbed our thirsting desire of revenge; else had they known as well the cruelty we use to our enemies as our true love and courtesy to our friends. And I think your judgment sufficient to conceive—as well by the adventures we have undertaken as by the advantage we have [in] our arms [over] yours—that had we intended you any hurt, we could long ere this have effected it. Your people coming to Jamestown are entertained with their bows and arrows, without any exceptions; we esteeming it with you as it is with us, to wear our arms as our apparel." Having made this hit, the captain assumed a still loftier tone. It would never do to admit that this blessed corn, though the cause of so much parley, was an indispensable necessity for the white men. "As for your hiding your provisions ... we shall not so unadvisedly starve as you conclude; your friendly care in that behalf is needless, for we have [ways of finding food that are quite] beyond your knowledge."

A game of bluff.

The narrative which I am here following^[72] is written by William Phettiplace, captain of the pinnace, Jeffrey Abbot, described as sergeant, and two of the original settlers, Anas Todkill and Richard Wiffin. Abbot and Phettiplace were on the spot, and the narrative was revised by Captain Smith himself, so that it has the highest kind of authority. One need but examine the similar parleys described so frequently by Francis Parkman, to realize the faithful accuracy with which these Englishmen portrayed the Indian at that early period when English experience of the red man's ways was only beginning.

The hint that perhaps white men could get along without his corn after all seems to have wrought its effect upon the crafty Powhatan. Baskets filled with the yellow grain were brought, and dickering as distinguished from diplomacy began. Yet diplomacy had not quite given up its game. With a sorrowful face and many sighs the chief exclaimed: "Captain Smith, I never used any chief so kindly as yourself, yet from you I receive the least kindness of any. Captain Newport gave me swords, copper, clothes, a bed, towels, or what[ever] I desired; ever taking what I offered him, and would send away his guns when I entreated him. None doth ... refuse to do what I desire but only you; of whom I can have nothing but what you regard not, and yet you will have whatsoever you demand.... You call me father, but I see ... you will do what you list.... But if you intend so friendly as you say, send hence your arms that I may believe you."

The corn is brought.

Smith felt sure that this whimpering speech was merely the cover for a meditated attack. Of his thirty-eight Englishmen but eighteen were with him at the moment.

Suspicious of treachery.

He sent a messenger to his vessels, ordering all save a guard of three or four men to come ashore, and he set some Indians to work breaking the ice, so that the barge could be forced up near to the bank. For a little while Captain Smith and John Russell were left alone in a house with The Powhatan and a few squaws, when all at once the old chief slipped out and disappeared from view. While Smith was talking with the women a crowd of armed warriors surrounded the house, but instantly Smith and Russell sprang forth and with drawn swords charged upon them so furiously that they all turned and fled, tumbling over one another in their headlong terror.

This incident gave the Englishmen a moral advantage. The Indian plot, if such it was, had failed, and now the red men "to the uttermost of their skill sought excuses to dissemble the matter; and Powhatan, to excuse his flight and the sudden coming of this multitude, sent our Captain a great bracelet and a chain of pearl,^[73] by an ancient orator that bespoke us to this purpose; perceiving even then from our pinnacle, a barge and men departing and coming unto us:—Captain Smith, our [chief] is fled; fearing your guns, and knowing when the ice was broken there would come more men, sent these numbers but to guard his corn from stealing, [which] might happen without your knowledge. Now, though some be hurt by your misprision, yet [The] Powhatan is your friend, and so will forever continue. Now since the ice is open he would have you send away your corn, and if you would have his company send away also your guns." It was ingeniously if not ingenuously said, but the concluding request remained unheeded, and Smith never set eyes on his Father Powhatan again. With faces frowning, guns loaded and cocked, the Englishmen stood by while a file of Indians with baskets on their backs carried down the corn and loaded it into the barge. The Indians were glad to get safely done with such work; as the chronicle observes, "we needed not importune them to make despatch."

A wily speaker.

The Englishmen would at once have embarked, but the retreating tide had left the barge stranded, so that it was necessary to wait for the next high water. Accordingly it was decided to pass the night in the house where they were already quartered, which was a kind of outpost at some distance from the main village, and they sent word to The Powhatan to send them some supper. Then the Indians seem to have debated the question whether it would be prudent to surprise and slay them while at supper or afterward while asleep. But that "dearest jewel," Pocahontas, says the narrative, "in that dark night came through the irksome woods, and told our Captain great cheer should be sent us by and by; but Powhatan and all the power he could make would after[ward] come kill us all, if [indeed] they that brought it [did] not kill us ... when we were at supper. Therefore if we would live she wished us presently to be gone. Such things as she delighted in [we] would have given her; but with the tears running down her cheeks she said she durst not be seen to have any, for if Powhatan should know it she were but dead; and so she ran away by herself

Pocahontas reveals the plot.

Smith's message to The Powhatan.

as she came. Within less than an hour eight or ten stalwart Indians appeared, bringing venison and other dainties, and begged the English to put out the matches of their matchlocks, for the smell of the smoke made them sick. Our narrator tells us nothing of the sardonic smile which we are sure that he and his comrades can hardly have suppressed. The captain sent the messengers back to Father Powhatan, with a concise but significant message: "If he is coming to visit me to-night let him make haste, for I am ready to receive him." One can imagine how such an announcement would chill the zeal of the Indians. A few of their scouts prowled about, but the English kept vigilant guard till high tide and then sailed away. A queer interview it had been. With some of hell's fiercest passions smouldering beneath the surface, an explosion had been prevented by watchful tact on the one side and vague dread on the other. Peace had been preserved between the strange white chieftain and his dusky father, and two Englishmen were left at Werowocomoco, with the four Germans, to go on with the house-building. If our chronicle is to be trusted, the Germans played a base part. Believing that the English colony would surely perish of famine, they sought their own profit in fraternizing with the Indians. So, no sooner had Smith's vessels departed from Werowocomoco on their way up to Opekankano's village, than two of these "damned Dutchmen," as the narrator calls them, went overland to Jamestown and said that Captain Smith had sent them for more weapons; in this way they got a number of swords, pikes, muskets, and hatchets, and traded them off to the redskins at Werowocomoco.

Meanwhile Smith's party arrived at Opekankano's village, near the place where the Pamunkey and Mattaponi rivers unite to form the York. The chief of the Pamunkeys received them with smiles and smooth words, but seems to have meditated treachery. At all events the Englishmen so interpreted it when they found themselves unexpectedly surrounded by a great crowd of armed warriors numbering several hundreds. It was not prudent to fire on such a number if it could be avoided; actual bloodshed might do more harm than good; a peaceable display of boldness was better. It might have been and probably was remembered that the Spaniards in the West Indies had often overawed all opposition by seizing the person of the chief. After a brief consultation Smith, accompanied by West and Percy and Russell, rushed into Opekankano's house, seized him by the long scalp-

How Opekankano was brought to terms.

lock, dragged him before the astonished multitude, and held a pistol to his breast. Such prompt audacity was its own safeguard. The corn was soon forthcoming, and the little expedition made its way back to Jamestown, loaded with some 300 bushels of it, besides a couple of hundredweight of venison and deer suet. In itself it was but a trifle of a pound of meat and a bushel and a half of grain for each person in the colony. But the chief result was the profound impression made upon the Indians. A few years later such a bold treatment of them would have been attended with far more difficulty and danger, would seldom indeed have been possible. But in 1609 the red man had not yet learned to gauge the killing capacity of the white man; he was aware of terrible powers there which he could not estimate, and was therefore inclined to err on the side of prudence. This sudden irruption of about forty white men into the principal Indian villages and their masterful demeanour there seemed to show that after all it would be wiser to have them for friends than for enemies. A couple of accidents confirmed this view of the case.

One day as three of the Chickahominy tribe were loitering about Jamestown, admiring the rude fortifications, one of them stole a pistol and fled to the woods with it. His two comrades were arrested and one was held in durance, while the other was sent out to recover the pistol. He was made to understand that if he failed to bring it back, the hostage would be put to death. As it was intensely cold, some charcoal was charitably furnished for the prisoner's hut. In the evening his friend returned with the pistol, and then the prisoner was found apparently dead, suffocated with the fumes of the charcoal, whereupon the friend broke forth into loud lamentations. But the Englishmen soon perceived that some life was still left in the unconscious and prostrate form, and Smith told the wailing Indian that he could restore his friend to life, only there must be no more stealing. Then with brandy and vinegar and friction the failing heart and arteries were stimulated to their work, the dead savage came to life, and the two comrades, each with a small present of copper, went on their way rejoicing.

Smith as a worker of miracles.

The other affair was more tragic. An Indian at Werowocomoco had got possession of a bag of gunpowder, and was playing with it while his comrades were pressing closely about him, when all at once it took fire and exploded,

A pretty accident.

killing three or four of the group and scorching the rest. Whereupon our chronicler tells us, "These and other such pretty accidents so amazed and affrighted Powhatan and all his people, that from all parts with presents they desired peace, returning many stolen things which we never demanded nor thought of; and after that ... all the country became absolutely as free for us as for themselves."

The good effects of this were soon apparent. With his mind relieved from anxiety about the Indians, Smith had his hands free for work at Jamestown. One of the most serious difficulties under which the colony laboured was the communistic plan upon which it had been started. The settlers had come without wives and children, and each man worked not to acquire property for himself and his family but to further the general purposes of the colony. In planting corn, in felling trees, in repairing the fortifications, even in hunting or fishing, he was working for the community; whatsoever he could get by his own toil or by trade with the natives went straightway into the common stock, and the skilful and industrious fared no better than the stupid and lazy. The strongest kind of premium was thus at once put upon idleness, which under circumstances of extreme anxiety and depression is apt enough to flourish without any premium. Things had arrived at such a pass that some thirty or forty men were supporting the whole company of two hundred, when President Smith applied the strong hand. He gathered them all together one day and plainly told them that he was their lawfully chosen ruler and should promptly punish all infractions of discipline, and they must all understand that hereafter he that will not work shall not eat. His authority had come to be great, and the rule was enforced. By the end of April some twenty houses had been built, a well of pure sweet water had been dug in the fort, thirty acres or more of ground had been broken up and planted, and nets and weirs arranged for fishing. A few hogs and fowl had been left by Newport, and now could be heard the squeals of sixty pigs and the peeping of five hundred spring chickens. The manufacture of tar and soap-ashes went on, and a new fortress was begun in an easily defensible position upon a commanding hill.

This useful work was suddenly interrupted by an unforeseen calamity. Rats brought from time to time by the ships had quickly multiplied, and in April these

Communism.

Unbidden
messmates.

unbidden guests were found to have made such havoc in the granaries that but little corn was left. Harvest time was a long way off, and it was necessary to pause for a while and collect provisions. Several Indian villages were again visited and trading went on amicably, but there was a limit to the aid the barbarians had it in their power to give, and in the quest of sustenance the settlers were scattered. By midsummer a few were picking berries in the woods, others were quartered among the Indians, some were living on oysters and caviar, some were down at Point Comfort catching fish, and it was these that were the first to hail the bark of young Samuel Argall, who was coming for sturgeon and whatever else he could find, and had steered a straighter course from London than any mariner before him. Argall brought letters from members of the Company complaining that the goods sent home in the ships were not of greater value in the market, and saying that Smith had been accused of dealing harshly with the Indians. This must have referred to some skirmishes he had had with the Rappahannocks and other tribes in the course of his exploration of the Chesapeake waters during the previous summer. Another piece of news was brought by Argall. The London Company had obtained a new charter, and a great expedition, commanded by Lord Delaware, was about to sail for Virginia.

Arrival of Argall.

This was true. The experience of two years had convinced the Company that its methods needed mending. In the first place more money was needed and the list of shareholders was greatly enlarged. By the second charter, dated May 23, 1609, the Company was made a corporation and all its members were mentioned by name. The list was headed by Robert Cecil, Earl of Salisbury, and contained among other interesting names those of the philosopher Bacon and of Sir Oliver Cromwell, from whose nephew, then a lad at Huntingdon School, the world was by and by to hear. On the list we find the names of 659 persons, of whom 21 were peers, 96 were knights, 11 were clergymen and physicians, 53 are described as captains, 28 as engineers, 58 as gentlemen, 110 as merchants, while the remaining 282 are variously designated or only the name is given. "Of these about 230 paid £37 10s., or more, about 229 paid less than £37 10s., and about 200 failed to pay anything."^[74] It should be borne in mind that £37 10s. at that time was equivalent to at least \$750 of to-day. Besides these individuals, the list contains the companies of mercers, grocers, drapers,

Second Charter of the London Company, 1609.

fishmongers, vintners, brewers, masons, lawyers, fletchers, armourers, and others,—in all fifty-six companies of the city of London. Such a list, as well as the profusion of sermons and tracts on Virginia that were poured forth at the time, bespeaks a general interest in the enterprise. The Company was incorporated under the name of "The Treasurer and Company of Adventurers and Planters of the City of London for the First Colony in Virginia." Nothing was said about the Second Colony, so that by this charter the London Company was unyoked from the Plymouth Company.

The jurisdiction of the reorganized London Company was to extend 200 miles south and 200 miles north of Old Point Comfort, which would not quite contain all of North Carolina but would easily include Maryland and Delaware. The government of this region was vested in a supreme council sitting in London, the constitution of which was remarkable. Its members were at the outset appointed by the king, but all vacancies were thereafter to be filled by the vote of the whole body of 659 persons and 56 trade-guilds constituting the Company. The sole power of legislation for Virginia, with the right to appoint all colonial officers, was vested in the council. Besides thus exercising entire sovereignty over Virginia, the Company was authorized to levy and collect custom-house duties and even to wage war for purely defensive purposes. Thus this great corporation was made virtually independent of Parliament, with a representative government of its own.

The council in London.

As for the local government in Virginia, it was entirely changed. The working of the local council with its elected president had been simply ludicrous. Two presidents had been deposed and sent home, while the councillors had done nothing but quarrel and threaten each other's lives, and one had been shot for mutiny. Order and quiet had not been attained until President Smith became autocratic, after the other members of the council had departed or died. Now the new charter abolished the local council, and the direct rule was to be exercised by a governor with autocratic power over the settlers, but responsible to the supreme council in London, by which he was appointed.

The local government.

For the Company as thus reorganized the two most important executive offices were filled by admirable appointments. The treasurer was the

eminent merchant Sir Thomas Smith, of whom some account has already been given. For governor of Virginia the council appointed Thomas West, third Baron Delaware, whose younger brother, Francis West, we have seen helping John Smith to browbeat the Indians at Werowocomoco and Pamunkey. This Lord Delaware belonged to a family distinguished for public service. On the mother's side he was nearly related to Queen Elizabeth. In America he is forever identified with the history of Virginia, and he has left a name to one of our great rivers, to a very interesting group of Indians, and to one of the smallest states in our Union. With New England, too, he has one link of association; for his sister, Penelope West, married Herbert Pelham, and their son was the first treasurer of Harvard College. Thomas West, born in 1577, was educated at Oxford, served with distinction in the Netherlands, and was knighted for bravery in 1599. He succeeded to the barony of Delaware in 1602, and was a member of the Privy Council of Elizabeth and James I. No one was more warmly enlisted than he in the project of founding Protestant English colonies in the New World. To this cause he devoted himself with ever growing enthusiasm, and when the London Company was remodelled he was appointed governor of Virginia for life. With him were associated the sturdy soldier, Sir Thomas Gates, as lieutenant-governor, and the old sea rover, Sir George Somers, as admiral.

Thomas, Lord Delaware.

The spring of 1609 was spent in organizing a new expedition, while Smith and his weary followers were struggling with the damage wrought by rats. People out of work were attracted by the communistic programme laid down by the Company. The shares were rated at about \$300 each, to use our modern figures, and emigration to Virginia entitled the emigrant to one share. So far as needful the proceeds of the enterprise "were to be spent upon the settlement, and the surplus was either to be divided or funded for seven years. During that period the settlers were to be maintained at the expense of the Company, while all the product of their labours was to be cast into the common stock. At the end of that time every shareholder was to receive a grant of land in proportion to his stock held."^[75] Doubtless the prospects of becoming a shareholder in a great speculative enterprise, and of being supported by the Company, must have seemed alluring to many people in difficult circumstances. At all events, some 500 people—men, women, and children—were got together. A fleet of nine ships, with ample supplies, was

A communistic programme.

entrusted to Newport, and in his ship, the Sea Venture, were Gates and Somers, who were to take the colony under their personal supervision. Lord Delaware remained in London, planning further developments of the enterprise. Three more trusty men he could hardly have sent out. But a strange fate was knocking at the door.

On the first of June, 1609, the fleet set sail and took the route by the Azores. Toward the end of July, as they were getting within a week's sail of the American coast, the ships were "caught in the tail of a hurricane," one of them was sunk, and the Sea Venture was separated from all the rest. That gallant ship was sorely shaken and torn, so that for five days the crew toiled steadily in relays, pumping and baling, while the water seemed to be gaining upon them. Many of the passengers abandoned themselves to despair and to rum, or, as an eye-witness tells us, "some of them, having good and comfortable waters in the ship, fetched them and drank one to the other, taking their last leave one of the other until their more joyful and happy meeting in a more blessed world."^[76] The company were saved by the skill and energy of the veteran Somers, who for three days and nights never once left the quarter-deck. At length land was sighted, and presently the Sea Venture was driven violently aground and wedged immovable between two rocks, a shattered wreck. But all her people, a hundred and fifty or so, were saved, and most of their gear was brought away.

Wreck of the Sea Venture.

The island on which they were wrecked was one of a group the early history of which is shrouded in strange mystery. If my own solution of an obscure problem is to be trusted, these islands had once a fierce cannibal population, whose first white visitors, Vincent Pinzon and Americus Vespucius, landed among them on St. Bernard's day in August, 1498, and carried off more than 200 slaves.^[77] Hence the place was called St. Bernard's archipelago, but on crudely glimmering maps went wide astray and soon lost its identity. In 1522 a Spanish captain, Juan Bermudez, happened to land there and his name has remained. But in the intervening years Spanish slave-hunters from San Domingo had infested those islands and reaped and gleaned the harvest of heathen flesh till no more was to be had. The ruthless cannibals were extirpated by the more ruthless seekers for gold, and when Bermudez stopped there he found no human inhabitants, but only swine running wild,

The Bermudas.

a sure witness to the recent presence of Europeans. Then for nearly a century the unvisited spot was haunted by the echoes of a frightful past, wild traditions of ghoulish orgies and infernal strife. But the kidnapper's work in which these vague notions originated was so soon forgotten that when the Sea Venture was wrecked those islands were believed to have been from time immemorial uninhabited. Sailors shunned them as a scene of abominable sorceries, and called them the Isles of Demons. Otherwise they were known simply by the Spanish skipper's name as the Bermoothes, afterward more completely anglicized into Bermudas. From the soil of those foul goblin legends, that shuddering reminiscence of inexpiable crime, the potent sorcery of genius has reared one of the most exquisitely beautiful, ethereally delicate works of human fancy that the world has ever seen. The wreck of the Sea Venture suggested to Shakespeare many hints for the Tempest, which was written within the next two years and performed before the king in 1611. It is not that these islands were conceived as the scene of the comedy; the command to Ariel to go and "fetch dew from the still-vexed Bermoothes" seems enough to show that Prospero's enchanted isle was elsewhere, doubtless in some fairy universe hard by the Mediterranean. But from the general conception of monsters of the isle down to such incidents as the flashing light on the shrouds of the ship, it is clear that Shakespeare made use of Strachey's narrative of the wreck of the Sea Venture, published in 1610.

Gates and Somers found the Isles of Demons far pleasanter than their reputation, and it was well for them that it was so, for they were obliged to stay there nearly ten months, while with timber freshly cut and with bolts and beams from the wreck the party built two pinnaces which they named Patience and Deliverance. They laid in ample stores of salted pork and fish, traversed the 700 miles of ocean in a fortnight, and arrived at Jamestown on the 10th of May, 1610. The spectacle that greeted them was enough to have appalled the stoutest heart. To explain it in a few words, we must go back to August, 1609, when the seven ships that had weathered the storm arrived in Virginia and landed their 300 or more passengers, known in history as the Third Supply.

Arrival of the pinnaces at Jamestown, May, 1610.

Since the new dignitaries and all their official documents were in the Bermuda wreck, there was no one among the

Arrival of the Third Supply, August,

new-comers in Virginia competent to succeed Smith in the government, but the mischief-makers, Ratcliffe and Archer, were unfortunately among them, and the former instantly called upon Smith to abdicate in his favour. He had persuaded many of the new-comers to support him, but the old settlers were loyal to Smith, and there was much confusion until the latter arrested Ratcliffe as a disturber of the peace. The quality of the new emigration was far inferior to the older. The older settlers were mostly gentlemen of character; of the new ones far too many were shiftless vagabonds, or, as Smith says, "unruly gallants, packed thither by their friends to escape ill destinies." They were sure to make trouble, but for a while Smith held them in check. The end of his stay in Virginia was, however, approaching. He was determined to find some better site for a colony than the low marshy Jamestown; so in September he sailed up to the Indian village called Powhatan and bought of the natives a tract of land in that neighbourhood near to where Richmond now stands,—a range of hills, salubrious and defensible, with so fair a landscape that Smith called the place Nonesuch. On the way back to Jamestown a bag of gunpowder in his boat exploded and wounded him so badly that he was completely disabled. The case demanded such surgery as Virginia could not furnish, and as the ships were sailing for England early in October he went in one of them. He seems also to have welcomed this opportunity of answering sundry charges brought against him by the Ratcliffe faction. Some flying squirrels were sent home to amuse King James. ^[78]

1609.

Smith returns to England, October, 1609.

The arrival of the ships in England, with news of the disappearance of the Sea Venture and the danger of anarchy in Virginia, alarmed Lord Delaware, and he resolved to go as soon as possible and take command of his colony. About the first of April he set sail with about 150 persons, mostly mechanics. He had need to make all haste. Jamestown had become a pandemonium. Smith left George Percy in command, but that excellent gentleman was in poor health and unable to exert much authority. There were now 500 mouths to be filled, and the stores of food diminished with portentous rapidity. The "unruly gallants" got into trouble with the Indians, who soon responded after their manner. They slaughtered the settlers' hogs for their own benefit, and they murdered the settlers themselves when opportunity was offered. The worthless

Lord Delaware sails for Virginia, April, 1610.

Horrible sufferings.

Ratcliffe and thirty of his men were slain at one fell swoop while they were at the Pamunkey village, trading with The Powhatan.^[79] As the frosts and snows came more shelter was needed than the cabins already built could furnish. Many died of the cold. The approach of spring saw the last supplies of food consumed, and famine began to claim its victims. Soon there came to be more houses than occupants, and as fast as one was emptied by death it was torn down for firewood. Even palisades were stripped from their framework and thrown into the blaze, for cold was a nearer foe than the red men. The latter watched the course of events with savage glee, and now and then, lurking in the neighbourhood, shot flights of arrows tipped with death. A gang of men stole one of the pinnaces, armed her heavily, and ran out to sea, to help themselves by piracy. After the last basket of corn had been devoured, people lived for a while on roots and herbs, after which they had recourse to cannibalism. The corpse of a slain Indian was boiled and eaten. Then the starving company began cooking their own dead. One man killed his wife and salted her, and had eaten a considerable part of her body before he was found out. This was too much for people to endure; the man was tied to a stake and burned alive. Such were the goings on in that awful time, to which men long afterward alluded as the Starving Time. No wonder that one poor wretch, crazed with agony, cast his Bible into the fire, crying "Alas! there is no God."

When Smith left the colony in October, it numbered about 500 souls. When Gates and Somers and Newport arrived from the Bermudas in May, they found a haggard remnant of 60 all told, men, women, and children scarcely able to totter about the ruined village, and with the gleam of madness in their eyes. The pinnaces brought food for their relief, but with things in such a state there was no use in trying to get through the summer. The provisions in store would not last a month. The three brave captains consulted together and decided, with tears in their eyes, that Virginia must be abandoned. Since Raleigh first began, every attempt had ended in miserable failure and this last calamity was the most crushing of all. What hope could there be that North America would ever be colonized? What men could endure more than had been endured already? It was decided to go up to the Newfoundland fishing stations and get fish there, and then cross to England. On Thursday the 7th of June, 1610, to the funeral roll of drums, the cabins were stripped of such things

Virginia abandoned.

Arrival of Lord Delaware, June 8, 1610.

as could be carried away, and the doleful company went aboard the pinnaces, weighed anchor, and started down the river. As the arching trees at Jamestown receded from the view and the sombre silence of the forest settled over the deserted spot, it seemed indeed that "earth's paradise," Virginia, the object of so much longing, the scene of so much fruitless striving, was at last abandoned to its native Indians. But it had been otherwise decreed. That night a halt was made at Mulberry Island, and next morning the voyage was resumed. Toward noonday, as the little ships were speeding their way down the ever widening river, a black speck was seen far below on the broad waters of Hampton Roads, and every eye was strained. It was no red man's canoe. It was a longboat. Yes, Heaven be praised! the governor's own longboat with a message. His three well-stocked ships had passed Point Comfort, and he himself was with them!

Despair gave place to exultant hope, words of gratitude and congratulation were exchanged, and the prows were turned up-stream. On Sunday the three staunch captains stood with their followers drawn up in military array before the dismantled ruins of Jamestown, while Lord Delaware stepped from his boat, and, falling upon his knees on the shore, lifted his hands in prayer, thanking God that he had come in time to save Virginia.

CHAPTER V.

BEGINNINGS OF A COMMONWEALTH.

OF late years there has been some discussion as to which of the flowers or plants indigenous to the New World might most properly be selected as a national emblem for the United States of America, and many persons have expressed a preference for that most beautiful of cereals, Indian corn. Certainly it would be difficult to overrate the historic importance of this plant. Of the part which it played in aboriginal America I have elsewhere treated.^[80] To the first English settlers it was of vital consequence. But for Indian corn the company of Pilgrims at Plymouth would have succumbed to famine, like so many other such little colonies. The settlers at Jamestown depended upon corn from the outset, and when the supply stopped the Starving Time came quickly. We can thus appreciate the value to the Pilgrims of the alliance with Massasoit, and to the Virginians of the amicable relations for some time maintained with The Powhatan. We are also furnished with the means of estimating the true importance of John Smith and his work in the first struggle of English civilization with the wilderness. Whether we suppose that Smith in his writings unduly exalts his own work or not, one thing is clear. It is impossible to read his narrative without recognizing the hand of a man supremely competent to deal with barbarians. No such character as that which shines out through his pages could ever have been invented. To create such a man by an effort of imagination would have been far more difficult than to be such a man. One of the first of Englishmen to deal with Indians, he had no previous experience to aid him; yet nowhere have the red men been more faithfully portrayed than in his pages, and one cannot fail to note this unrivalled keenness of observation, which combined with rare sagacity and coolness to make him always say and do the right things at the right times. These qualities kept the Indians from hostility and made them purveyors to the needs of the little struggling colony.

Indian corn.

Importance of
Smith's work.

Besides these qualities Smith had others which marked him out as a natural leader of men. His impulsiveness and plain speaking, as well as his rigid enforcement of discipline, made him some bitter enemies, but his comrades in general spoke of him in terms of strong admiration and devotion. His nature was essentially noble, and his own words bear witness to it, as in the following exhortation: "Seeing we are not born for ourselves, but each to help other, and our abilities are much alike at the hour of our birth and the minute of our death; seeing our good deeds and our bad, by faith in Christ's merits, is all we have to carry our souls to heaven or to hell; seeing honour is our lives' ambition, and our ambition after death to have an honourable memory of our life; and seeing by no means we would be abated of the dignities and glories of our predecessors, let us imitate their virtues to be worthily their successors." So wrote the man of whom Thomas Fuller quaintly said that he had "a prince's heart in a beggar's purse," and to whom one of his comrades, a survivor of the Starving Time, afterward paid this touching tribute: "Thus we lost him that in all our proceedings made justice his first guide, ... ever hating baseness, sloth, pride, and indignity more than any dangers; that never allowed more for himself than his soldiers with him; that upon no danger would send them where he would not lead them himself; that would never see us want what he either had or could by any means get us; that would rather want than borrow, or starve than not pay; that loved action more than words, and hated falsehood and covetousness worse than death; whose adventures were our lives and whose loss our deaths."^[81]

Nobility of his nature.

It is, indeed, in all probability true that losing Smith was the chief cause of the horrors of the Starving Time. The colony was not ill supplied when he left it, in October, 1609, for the stock of hogs had increased to about 600, and the Third Supply had brought sheep and goats as well as horses. All this advantage had been destroyed by the active hostility of the Indians, which was due to the outrageous conduct of white ruffians whom Smith would have restrained or punished. But for this man's superb courage and resourcefulness, one can hardly believe that the colony would have lasted until 1609. More likely it would have perished in one of the earlier seasons of sore trial. It would have succumbed like Lane's colony, and White's, and Popham's; one more would have been added to the sickening list of failures, and the hopes built upon Virginia in England

But for Smith the colony would probably have perished.

would have been sadly dashed. The utmost ingenuity on the part of Smith's detractors can never do away with the fact that his personal qualities did more than anything else to prevent such a direful calamity; and for this reason he will always remain a great and commanding figure in American history.

The arrival of Lord Delaware in June, 1610, was the prelude to a new state of things. The pathetic scene in which that high-minded nobleman knelt in prayer upon the shore at Jamestown heralded the end of the chaos through which Smith had steered the colony. But the change was not effected all in a moment. The evils were too deep-seated for that. There had been three principal sources of weakness: first, the lack of a strong government with unquestioned authority; secondly, the system of communism in labour and property; thirdly, the low character of the emigrants. This last statement does not apply to the earlier settlers so much as to those who began to come in 1609. The earliest companies were mainly composed of respectable persons, but as the need for greater numbers grew imperative, inducements were held out which attracted a much lower grade of people. Neither this evil nor the evils flowing from communism were remedied during Lord Delaware's brief rule, but the first evil was entirely removed. In such a rude settlement a system by which a council elected its president annually, and could depose him at any time, was sure to breed faction and strife; strong government had been attained only when the strong man Smith was left virtually alone by the death or departure of the other councillors. Now there was no council, but instead of it a governor appointed in London and clothed with despotic power. Lord Delaware was a man of strict integrity, kind and humane, with a talent for command, and he was obeyed. His first act on that memorable June Sunday, after a sermon had been preached and his commission read, was to make a speech to the settlers, in which, to cite his own words, "I did lay some blames on them for many vanities and their idleness, earnestly wishing that I might no more find it so, lest I should be compelled to draw the sword of justice to cut off such delinquents, which I had much rather draw in their defence to protect from enemies."^[82] Happily he was not called upon to draw it except against the Indians, to whom he administered some wholesome doses of chastisement. The colonists were kept at work, new fortifications were erected and dismantled houses put in

Three sources of weakness.

Lord Delaware's administration.

repair. The little church assumed a comfortable and dignified appearance, with its cedar pews and walnut altar, its tall pulpit and baptismal font. The governor was extremely fond of flowers and at all services would have the church decorated with the bright and fragrant wild growth of the neighbourhood. At such times he always appeared in the full dignity of velvet and lace, attended by a body-guard of spearmen in scarlet cloaks. A full-toned bell was hung in its place, and daily it notified the little industrial army when to begin and when to leave off the work of the day.

Discipline was rigidly maintained, but the old danger of famine was not yet fully overcome. The difficulty was foreseen immediately after Delaware's arrival, and the veteran Somers at once sailed with the two pinnaces for the Bermudas, intending to bring back a cargo of salted pork and live hogs for breeding. His consort was commanded by Samuel Argall, a young kinsman of Sir Thomas Smith, the treasurer of the London Company. The two ships were parted by bad weather, and Somers, soon after landing at Bermuda, fell sick and died, with his last breath commanding his men to fulfil their errand and go back to Virginia. But they, disgusted with the wilderness and thinking only of themselves, went straight to England, taking with them the old knight's body embalmed. As for young Argall, the stress of weather drove him to Cape Cod, where he caught many fish; then cruising along the coast he reached Chesapeake Bay and went up the Potomac River, where he found a friend in the head sachem of the Potomac tribe and bought as much corn as his ship could carry. With these welcome supplies Argall reached Jamestown in September, and then Newport took the ships back to England, carrying with him Sir Thomas Gates to make a report of all that had happened and to urge the Company to fresh exertions. The winter of 1610-11 was a hard one, though not to be compared with the Starving Time of the year before. There were about 150 deaths, and Lord Delaware, becoming too ill to discharge his duties, sailed for England in March, 1611, intending to send Gates immediately back to Virginia. George Percy, who had commanded the colony through the Starving Time, was again left in charge.

Death of Somers,
and cruise of
Argall, 1610.

Meanwhile the Company had been bestirring itself. A survey of the subscription list for that winter shows that English pluck was getting aroused; the colony must be

Sir Thomas Dale.

set upon its feet. The list of craftsmen desired for Virginia is curious and interesting: millwrights, iron founders, makers of edge tools, colliers, woodcutters, ship-wrights, fishermen, husbandmen, gardeners, bricklayers, lime-burners, blacksmiths, shoemakers, coopers, turners, gunmakers, wheelwrights, masons, millers, bakers, and brewers figure on the list with many others. But there must have been difficulty in getting enough of such respectable workmen together in due season for Newport's return trip; for when that mariner started in March, 1611, with three ships and 300 passengers, it was a more shiftless and graceless set of ne'er-do-weels than had ever been sent out before. One lesson, however, had been learned; and victuals enough were taken to last the whole colony for a year. Gates, the deputy-governor, was not ready to go, and his place was supplied by Sir Thomas Dale, who for the purpose was appointed High Marshal of Virginia. Under that designation this remarkable man ruled the colony for the next five years, though his superior, Gates, was there with him for a small part of the time. Lord Delaware, whose tenure of office as governor was for life, remained during those five years in England. If the Company erred in sending out scapegraces for settlers, it did its best to repair the error in sending such a man as Dale to govern them. Hard-headed, indomitable, bristling with energy, full of shrewd common-sense, Sir Thomas Dale was always equal to the occasion, and under his masterful guidance Virginia came out from the valley of the shadow of death. He was a soldier who had seen some of the hardest fighting in the Netherlands, and had afterward been attached to the suite of Henry, Prince of Wales. He was connected by marriage with Sir Walter Raleigh and with the Berkeleys.

Dale was a true English mastiff, faithful and kind but formidable when aroused, and capable of showing at times some traits of the old wolf. The modern excess of pity misdirected, which tries to save the vilest murderers from the gallows, would have been to him incomprehensible. To the upright he was a friend and helper; toward depraved offenders he was merciless, and among those over whom he was called to rule there were many such. John Smith judiciously criticised the policy of the Company in sending out such people; for, he says, "when neither the fear of God, nor shame, nor displeasure of their friends could rule them [in England], there is small hope ever to bring one in twenty of them ever to be good [in Virginia], Notwithstanding I confess divers amongst them had better minds and grew much more industrious than was expected; yet ten good workmen would

have done more substantial work in a day than ten of them in a week."^[83] It was not against those who had better minds that Dale's heavy hand was directed; it was reserved for the incorrigible and crushed them. When he reached Jamestown, in May, 1611, he found that the two brief months of Percy's mild rule had already begun to bear ill fruit; men were playing at bowls in working hours, quite oblivious of planting and hoeing.

To meet the occasion, a searching code of laws had already been sanctioned by the Company. In this code several capital crimes were specified. Among them were failure to attend the church services, or blaspheming God's name, or speaking "against the known articles of the Christian faith." Any man who should "unworthily demean himself "toward a clergyman, or fail to "hold him in all reverent regard," was to be thrice publicly whipped, and after each whipping was to make public acknowledgment of the heinousness of his crime and the justice of the punishment. Not only to speak evil of the king, but even to vilify the London Company, was a treasonable offence, to be punished with death. Other capital offences were unlicensed trading with the Indians, the malicious uprooting of a crop, or the slaughter of cattle or poultry without the High Marshal's permission. For remissness in the daily work various penalties were assigned, and could be inflicted at the discretion of a court-martial. One of the first results of this strict discipline was a conspiracy to overthrow and perhaps murder Dale. The principal leader was that Jeffrey Abbot whom we have seen accompanying Smith on his last journey to Werowocomoco. The plot was detected, and Abbot and five other ringleaders were put to death in what the narrator calls a "cruel and unusual" manner, using the same adjectives which happen to occur in our Federal Constitution in its prohibition of barbarous punishments. It seems clear that at least one of the offenders was broken on the wheel, after the French fashion; and on some other occasion a lawbreaker "had a bodkin thrust through his tongue and was chained to a tree till he perished." But these were rare and extreme cases; the ordinary capital punishments were simply hanging and shooting, and they were summarily employed. Ralph Hamor, however, one of the most intelligent and fair-minded of contemporary chroniclers, declares that Dale's severity was less than the occasion demanded, and that he could not have been more lenient without

A Draconian code.

Cruel punishments.

imperilling the existence of the colony.^[84] So the "Apostle of Virginia," the noble Alexander Whitaker, seems to have thought, for he held the High Marshal in great esteem. "Sir Thomas Dale," said he, "is a man of great knowledge in divinity, and of a good conscience in all things, both which be rare in a martial man." In his leisure moments the stern soldier liked nothing so well as to sit and discuss abstruse points of theology with this excellent clergyman.

But Dale was something more than a strong ruler and merciless judge. With statesmanlike insight he struck at one of the deepest roots of the evils which had afflicted the colony. Nothing had done so much to discourage steady labour and to foster idleness and mischief as the communism which had prevailed from the beginning. This compulsory system of throwing all the earnings into a common stock had just suited the lazy ones. Your true communist is the man who likes to live on the fruits of other people's labour. If you look for him in these days you are pretty sure to find him in a lager beer saloon, talking over schemes for rebuilding the universe. In the early days of Virginia the creature's nature was the same, and about one fifth of the population was thus called upon to support the whole. Under such circumstances it is wonderful that the colony survived until Dale could come and put an end to the system. It would not have done so, had not Smith and Delaware been able more or less to compel the laggards to work under penalties. Dale's strong common-sense taught him that to put men under the influence of the natural incentives to labour was better than to drive them to it by whipping them and slitting their ears. Only thus could the character of the colonists be permanently improved and the need for harsh punishments relaxed. So the worthy Dale took it upon himself to reform the whole system. The colonist, from being a member of an industrial army, was at once transformed into a small landed proprietor, with three acres to cultivate for his own use and behoof, on condition of paying a tax of six bushels of corn into the public treasury, which in that primitive time was the public granary. Though the change was but partially accomplished in Dale's time, the effect was magical. Industry and thrift soon began to prevail, crimes and disorders diminished, gallows and whipping-post found less to do, and the gaunt wolf of famine never again thrust his head within the door.

Communism in
practice.

Effects of
abolishing
communism.

Six months after Dale's administration had begun, a fresh supply of settlers raised the whole number to nearly 800, and a good stock of cows, oxen, and goats was added to their resources. The colony now began to expand itself beyond the immediate neighbourhood of Jamestown. Already there was a small settlement at the river's mouth, near the site of Hampton. The want of a better site than Jamestown was freely admitted, and Dale selected the Dutch Gap peninsula. He built a palisade across the neck and blockhouses in suitable positions. The population of about 300 souls were accommodated with houses arranged in three streets, and there was a church and a storehouse. This new creation Dale called the City of Henricus, after his patron Prince Henry. A city, in any admissible sense of the word, it never became, but it left its name upon Henrico County. Afterward Dale founded other communities at Bermuda and Shirley Hundreds, and left his name upon the settlement known as Dale's Gift on the eastern peninsula near Cape Charles.

The "City of
Henricus."

This expansion of the colony made it more than ever desirable to pacify the Indians, whose attitude had been hostile ever since Smith's departure. During all this time nothing had been seen of Pocahontas, whose visits to Jamestown had been so frequent, but that can hardly be called strange, since her tribe was on the war-path against the English. The chronicler Strachey says that in 1610, being about fifteen years old, she was married to a chieftain named Kocoum. Be that as it may, it is certain that in 1612 young Captain Argall found her staying with the Potomac tribe, whose chief he bribed with a copper kettle to connive at her abduction. She was inveigled on board Argall's ship and taken to Jamestown, to be held as a hostage for her father's good behaviour.^[85] It is not clear what might have come of this, for The Powhatan's conduct was so unsatisfactory that Dale had about made up his mind to use fire and sword against him, when all at once the affair took an unexpected turn. Among the passengers on the ill-fated Sea Venture were John Rolfe and his wife, of Heacham, in Norfolk. During their stay on the Bermuda Islands, a daughter was born to them and christened Bermuda. Shortly after their arrival in Virginia, Mrs. Rolfe died, and now an affection sprang up between the widower and the captive Pocahontas. Whether the Indian husband of the latter (if Strachey is to be believed) was living or

Pocahontas seized
by Argall, 1612.

Marriage of
Pocahontas to John
Rolfe, April, 1614.

dead, would make little difference according to Indian notions; for among all the Indian tribes, when first studied by white men, marriage was a contract terminable at pleasure by either party. Scruples of a different sort troubled Rolfe, who hesitated about marrying a heathen unless he could make it the occasion of saving her soul from the Devil. This was easily achieved by converting her to Christianity and baptizing her with the Bible name Rebekah. Sir Thomas Dale improved the occasion to renew the old alliance with The Powhatan, who may have welcomed such an escape from a doubtful trial of arms; and the marriage was solemnized in April, 1614, in the church at Jamestown, in the presence of an amicable company of Indians and Englishmen. One could wish that more of the details connected with this affair had been observed and recorded for us, so that modern studies of Indian law and custom might be brought to bear upon them. How much weight this alliance may have had with the Indians, one can hardly say; but at all events they made little or no trouble for the next eight years.

Other foes than red men called for Dale's attention. In the neighbourhood of the Gulf of St. Lawrence the French were as busily at work as the English in Virginia.

Argall attacks the French

The 45th parallel, the northern limit of oldest Virginia, runs through the country now called Nova Scotia. At Port Royal, on the Bay of Fundy, a small French colony

and warns the Dutch.

had been struggling against dire adversity ever since 1604, and more lately a party of French Jesuits had begun to make a settlement on Mount Desert Island, off the coast of Maine. In one of his fishing excursions Captain Argall discovered this Jesuit settlement and promptly extinguished it, carrying his prisoners to Jamestown. Then Dale sent him back to patrol that northern coast, and presently Argall swooped upon Port Royal and burned it to the ground, carrying off the live-stock as booty and the inhabitants as prisoners. The French ambassador in London protested and received evasive answers until the affair was allowed to drop and Port Royal was rebuilt without further molestation by the English. These events were the first premonition of a mighty conflict, not to be fully entered upon till the days of Argall's grandchildren, and not to be finally decided until the days of their grandchildren, when Wolfe climbed the Heights of Abraham. We are told that on his way back to Jamestown the unceremonious Argall looked in at the Hudson River, and finding Hendrick Christiansen there with his colony of Dutch traders, ordered him under penalty of a broadside

to haul down the flag of the Netherlands and run up the English ensign. The philosophic Dutchman quietly obeyed, but as soon as the ship was out of sight he replaced his own flag, consigning Captain Argall *sotto voce* to a much warmer place than the Hudson River.

In 1616 George Yeardley, who was already in Virginia, succeeded Sir Thomas Gates as deputy-governor, and Dale, who had affairs in Europe that needed attention, sailed for England. He had much reason to feel proud of what had been accomplished during his five years' rule. Strict order had been maintained and the Indians had been pacified, while the colony had trebled in numbers, and symptoms of prosperity were everywhere visible. In the ship which carried Dale to England went John Rolfe and his wife Pocahontas. Much ado was made over the Indian woman, who was presented at court by Lady Delaware and everywhere treated as a princess. There is a trustworthy tradition that King James was inclined to censure Rolfe for marrying into a royal family without consulting his own sovereign. In the English imagination The Powhatan figured as a sovereign; and when European feudal ideas were applied to the case it seemed as if in certain contingencies the infant son of Rolfe and Pocahontas might become "King of Virginia." The dusky princess was entertained with banquets and receptions, she was often seen at the theatre, and was watched with great curiosity by the people. It was then that "La Belle Sauvage" became a favourite name for London taverns. Her portrait, engraved by the celebrated artist, Simon Van Pass,^[86] shows us a rather handsome and dignified young woman, with her neck encircled by the broad serrated collar or ruff characteristic of that period, an embroidered and jewelled cap on her head, and a fan in her hand. The inscription on the portrait gives her age as one-and-twenty, which would make her thirteen at the time when she rescued Captain Smith. While she was in England, she had an interview with Smith. He had made his exploring voyage on the New England coast two years before, when he changed the name of the country from North Virginia to New England. In 1615 he had started in the service of the Plymouth Company with an expedition for colonizing New England, but had been captured by French cruisers and carried to Rochelle. After his return from France he was making preparations for another voyage to New England, when he heard of Pocahontas and called on her. When he addressed her, as all did in England, as Lady Rebekah, she seemed

Visit of Pocahontas
to London, 1616.

Her interview with
Smith.

hurt and turned away, covering her face with her hands. She insisted upon calling him Father and having him call her his child, as formerly in the wilderness. Then she added, "They did always tell us you were dead, and I knew not otherwise till I came to Plymouth."^[87]

Early in 1617 Argall was appointed deputy-governor of Virginia and sailed in March to supersede Yeardley. Rolfe was made secretary of the colony and went in the same ship; but Pocahontas fell suddenly ill, and died before leaving Gravesend. She was buried in the parish church there. Her son, Thomas Rolfe, was left with an uncle in England, where he grew to manhood. Then he went to Virginia, to become the ancestor, not of a line of kings, but of the families of Murray, Fleming, Gay, Whittle, Robertson, Bolling, and Eldredge, as well as of the branch of Randolphs to which the famous John Randolph of Roanoke belonged.^[88] One cannot leave the story of Pocahontas without recalling the curious experiences of a feathered chieftain in her party named Tomocomo, whom The Powhatan had instructed to make a report on the population of England. For this purpose he was equipped with a sheaf of sticks on which he was to make a notch for every white person he should meet. Plymouth must have kept poor Tomocomo busy enough, but on arriving in London he uttered an amazed grunt and threw his sticks away. He had also been instructed to observe carefully the king and queen and God, and report on their personal appearance. Tomocomo found it hard to believe that so puny a creature as James Stuart could be the chief of the white men, and he could not understand why he was not told where God lived and taken to see him.

Death of
Pocahontas, 1617.

A baffled census-
taker.

When Argall arrived in Virginia, he found that a new industry, at which sundry experiments had been made under Dale, was acquiring large dimensions and fast becoming established. Of all the gifts that America has vouchsafed to the Old World, the most widely acceptable has been that which a Greek punster might have called "the Bacchic gift," τὸ βακχικὸν δῶρημα, tobacco. No other visible and tangible product of Columbus's discovery has been so universally diffused among all kinds and conditions of men, even to the remotest nooks and corners of the habitable earth. Its serene and placid charm has everywhere proved irresistible, although from the outset its use has been frowned upon with an

Tobacco.

The Mask of
Flowers.

acerbity such as no other affair of hygiene has ever called forth. The first recorded mention of tobacco is in Columbus's diary for November 20, 1492. The use of it was soon introduced into the Spanish peninsula, and about 1560 the French ambassador at Lisbon, Jean Nicot, sent some of the fragrant herb into France, where it was named in honour of him Nicotiana. It seems to have been first brought to England by Lane's returning colonists in 1586, and early in the seventeenth century it was becoming fashionable to smoke, in spite of the bull of Pope Urban VIII. and King James's "Counterblast to Tobacco." Every one will remember how that royal author characterized smoking as "a custom loathsome to the eye, hateful to the nose, harmful to the brain, dangerous to the lungs, and in the black stinking fume thereof nearest resembling the horrible Stygian smoke of the pit that is bottomless." On Twelfth Night, 1614, a dramatic entertainment, got up by the gentlemen of Gray's Inn and called the Mask of Flowers, was performed before the king and queen at Whitehall. In it the old classic Silenus appears, jovial and corpulent, holding his goatskin wine-bag, and with him a novel companion, an American chieftain named Kawasha, dressed in an embroidered mantle cut like tobacco leaves, with a red cap trimmed with gold on his head, rings in his ears, a chain of glass beads around his neck, and a bow and arrows in his hand. These two strange worthies discuss the merits of wine and tobacco:—

Silenus.

Kawasha comes in majesty;
Was never such a god as he.
He's come from a far country
To make our nose a chimney.

Kawasha.

The wine takes the contrary way
To get into the hood;
But good tobacco makes no stay,
But seizeth where it should.
More incense hath burned at
Great Kawasha's foot
Than to Silen and Bacchus both,
And take in Jove to boot.

Silenus.

The worthies they were nine, 'tis true.
And lately Arthur's knights I knew,
But now are come up worthies new,
The roaring boys, Kawasha's crew.

Kawasha.

Silenus tops^[89] the barrel, but
Tobacco tops the brain
And makes the vapours fine and soote,^[90]
That man revives again,
Nothing but fumigation
Doth charm away ill sprites.
Kawasha and his nation
Found out these holy rites.^[91]

In Virginia the first settlers found the Indians cultivating tobacco in small gardens. The first Englishman to make experiments with it is said to have been John Rolfe in 1612. Under Yeardley's first administration, in 1616, the cultivation of tobacco became fairly established, and from that time forth it was a recognized staple of the colony. The effects of this were very notable. As the great purchasing power of a tobacco crop came to be generally known,

Effects of tobacco
culture.

the people of Virginia devoted themselves more and more to its cultivation, until nearly all other crops and most other forms of industry were neglected. Thus the type of society, as we shall hereafter see, was largely determined by the cultivation of tobacco. Moreover a clear and positive inducement was now offered for emigration such as had not existed before since the first dreams of gold and silver were dispelled. After the first disappointments it became difficult to persuade men of hard sense to go to Virginia, and we have seen what a wretched set of people were drawn together by the Company's communistic schemes. But those who came to acquire wealth by raising tobacco were of a better sort, men of business-like ideas who knew what they wanted and how to devote themselves to the task of getting it. With the establishment of tobacco culture there began a steady improvement in the characters and fortunes of the colonists, and the demand for their staple in Europe soon became so great as forever to end the possibility of perishing from want. Henceforth whatever a Virginian needed he could buy with tobacco.

We have now to see how Virginia, which was fast becoming able to support itself, became also a self-governing community. The administrations of Lord Delaware, of Dale, of Yeardley, and of Argall, were all despotisms, whether mild or harsh. To trace the evolution of free government, we must take our start in the year 1612, when the London Company obtained its third charter. The immediate occasion for taking out this charter was the desire of the Company to include among its possessions the Bermuda Islands, and they were now added to Virginia. At the same time it was felt that the government of the Company needed some further emendation in order to give the members more direct and continuous control over its proceedings. It was thus provided that there should be weekly meetings, at which not less than five members of the council and fifteen of the Company must be present. Besides this there were to be held four general courts or quarter sessions in the course of each year, for electing the treasurer and council and passing laws for the government of the colony. At these quarter sessions charges could be brought against delinquent servants of the Company, which was clothed with full judicial powers of hearing and deciding such cases and inflicting punishments. A good many subscribers had been alarmed by evil tidings from Virginia so that they would refuse or more

The London Company's third charter, 1612.

Lotteries.

often would simply neglect to pay in the amount of their subscriptions. To remedy these evils the Company was empowered to expel delinquent members or to bring suits in law and equity against them to recover damages or compel performance. Furthermore, it was allowed to replenish its treasury by setting up lotteries, a practice in which few people at that time saw anything objectionable. Such a lottery was held at a house in St. Paul's Churchyard, in July, 1612, of which the continuator of Stow's Chronicle tells us: "This lottery was so plainly carried and honestly performed that it gave full satisfaction to all persons. Thomas Sharplisse, a tailor of London, had the chief prize, viz., 4,000 crowns in fair plate, which was sent to his house in very stately manner. During the whole time of the drawing of this lottery, there were always present divers worshipful knights and esquires, accompanied with sundry grave discreet citizens." In September the Spanish ambassador, Zuñiga, wrote home that "there was a lottery on foot to raise 20,000 ducats [equivalent to about \$40,000]. In this all the livery companies adventured. The grocers ventured £62 15s., and won a silver [dish] and cover valued at £13 10s."^[92]

This remodelling of the Company's charter was an event of political importance. Formerly the meetings of the Company had been few and far between, and its affairs had been practically controlled by the council, and in many cases by its chief executive officer, the treasurer, Sir Thomas Smith. Now the weekly meetings of the Company, and its courts of quarter sessions, armed with such legislative and judicial powers, put a new face upon things. It made the Company a democratic self-governing body, and when we recall the membership of the Company we can see what this meant. There were fifty-six of the craft-guilds or liveried companies of the city of London, whose lord mayor was also a prominent member, and the political spirit of London was aggressively liberal and opposed to high prerogative. There were also more than a hundred London merchants and more than two hundred persons belonging to the nobility and gentry, including some of the foremost peers and knights in the party hostile to the Stuart king's pretensions. The meetings of the Company were full of discussions which could not help taking a political turn, since some of the most burning political questions of the day—as, for example, the great dispute over monopolies and other disputes—were commercial in character. Men's eyes

The Company becomes an important force in politics.

Opposition to the charter: Middleton's speech.

were soon opened to the existence of a great deliberative body outside of Parliament and expressing itself with much freedom on exciting topics. The social position and weighty character of the members drew general attention to their proceedings, especially as many of them were also members of either the House of Lords or the House of Commons. We can easily believe the statement that the discussions of the Company were followed with even deeper interest than the debates in Parliament. It took a few years for this aspect of the situation to become fully developed, but opposition to the new charter was soon manifested, even by sundry members of the Company itself. Some of them agreed with Sergeant Montague that to confer such vast and vague powers upon a mercantile corporation was unconstitutional. In a debate in Parliament in 1614 a member of the Company named Middleton attacked the charter on the ground that trade with Virginia and agriculture there needed more strict regulation than it was getting. "The shopkeepers of London," he said, "sent over all kinds of goods, for which they received tobacco instead of coin, infinitely to the prejudice of the Commonwealth. Many of the divines now smell of tobacco, and poor men spend 4d. of their day's wages at night in smoke. [He] wished that this patent may be damned, and an act of Parliament passed for the government of the colony by a company."^[93]

So much effect was produced by speeches of this sort that the council of the Company as a counterstroke presented a petition for aid, and had it defended before the House of Commons by the eminent lawyer, Richard Martin, one of the most brilliant speakers of the day. Martin gave a fine historical description of English colonizing enterprise since Raleigh's first attempts, then he dwelt upon the immediate and pressing needs of Virginia, especially the need for securing an ample reinforcement of honest workmen with their wives and children, and he urged the propriety of a liberal parliamentary grant in aid of the Company and its operations. Then at the close of an able and effective speech his eloquence carried him away, and he so far forgot himself as to remind the House that it had been but a thriftless penury which had led King Henry VII. to turn the cold shoulder upon Columbus, and to predict for them similar chagrin if they should neglect the interests of Virginia. This affair, as he truly said, was of far greater importance than many of the trifles on which the House was in the habit of wasting its time. Poor Martin should

Mr. Martin forgets himself,

and has to apologize.

have stopped a minute sooner. His last remark was heard with indignation. One member asked if he supposed the House was a school and he the schoolmaster; another moved that he should be committed for contempt; finally it was decided that he should make a public apology. So the next day, after a mild and courteous rebuke from the Speaker, Mr. Martin apologized as follows, according to the brief memorandum entered upon the journal of the House of Commons for that day: "All men liable to err, and he particularly so, but he was not in love with error, and as willing as any man to be divorced therefrom. Admits that he digressed from the subject; that he was like a ship that cutteth the cable and putteth to sea, for he cut his memory and trusted to his invention. Was glad to be an example to others, and submitted to the censure not with a dejected countenance, for there is comfort in acknowledging an error."^[94]

While such incidents, trifling in themselves, tended to create prejudice against the Company on the part of many members of Parliament, factions were soon developed within the Company itself. There was, first, the division between the court party, or supporters of the king, and the country party, opposed to his overweening pretensions. The difference between court and country parties was analogous to the difference between Tories and Whigs that began in the reign of Charles II. A second division, crossing the first one, was that between the defenders and opponents of the monopolies. A third division grew out of a personal quarrel between the treasurer, Sir Thomas Smith, and a prominent shareholder, Lord Rich, afterwards Earl of Warwick. This man's title remains to-day in the name of Warwick County near the mouth of James River. At first he and Sir Thomas Smith were on very friendly terms. Samuel Argall was closely connected by marriage with Smith's family, and it was Lord Rich and his friends who in 1617 secured Argall's appointment as deputy-governor of Virginia. The appointment turned out to be far from creditable. Argall's rule was as stern as Dale's, but it was not public-spirited. From the upright and spotless Dale severity could be endured; with the self-seeking and unscrupulous Argall it was quite otherwise. He was so loudly accused of speculation and extortion that after one year the Company sent out Lord Delaware to take personal charge of the colony once more. That nobleman sailed in the spring of 1618, with 200 emigrants. They went by way of the Azores, and while touching at the

Factions within the Company.

Death of Lord Delaware, 1618.

island of St. Michael, Lord Delaware and thirty of his companions suddenly fell sick and died in such manner as to raise a strong suspicion that their Spanish hosts had poisoned them. Among the governor's private papers was one that instructed him to arrest Argall and send him to England for trial. When the ship arrived in Virginia this document fell into Argall's hands. Its first effect was to make him behave worse than ever, until renewed complaints of him reached England at the moment of a great change in the governorship of the Company.

The chief executive officer of the Company was the treasurer. Since 1609 Sir Thomas Smith had held that office, and it had naturally enough become fashionable to charge all the ills of the colony to his mismanagement. There may have been some ground for this. Sir Thomas was a merchant of great public spirit and talent for business, but he was apt to keep too many irons in the fire, and the East India Company, of which he was governor, absorbed his attention much more than the affairs of Virginia. The country party, led by such men as the Earl of Southampton, Sir Edwin Sandys, and Nicholas Ferrar, were opposed to Smith and twitted him with the misconduct of Argall. At this moment broke out the quarrel between Smith and Lord Rich. One of the merchant's sons aged only eighteen fell madly in love with the nobleman's young sister, Lady Isabella Rich, and his passion was reciprocated. There was fierce opposition to their marriage on the part of the old merchant; and this led to an elopement and a private wedding, at which the Earls of Southampton and Pembroke and the Countess of Bedford assisted.^[95] These leaders of the country party thus mortally offended Sir Thomas Smith, while between him and the young lady's brother, Lord Rich, there was a furious explosion. Lord Rich, who in the midst of these scenes became Earl of Warwick, by which title posterity remembers him, was a prominent leader of the court party, but this family quarrel led him to a temporary alliance with the opposition, with the result that in the annual election for the treasurership of the Company, in April, 1619, Sir Thomas Smith was defeated, and Sir Edwin Sandys chosen in his place. This victory of the king's opponents called forth much excitement in England; for the remaining five years of its existence the Company was controlled by Sandys and his friends, and its affairs were "administered

Quarrel between
Lord Rich and Sir
Thomas Smith.

Election of Sir
Edwin Sandys.

with a degree of energy, unselfishness, and statesmanlike wisdom, perhaps unparalleled in the history of corporations."^[96]

This victory in the spring election consummated the ascendancy of Sandys and his party, but that ascendancy had been already shown in the appointment of George Yeardley to succeed Lord Delaware as governor of Virginia. The king can hardly have relished this appointment, but as Yeardley was of rather humble birth, being the son of a poor merchant tailor, he gave him a certain sanction by making him a knight. High official position seemed in those days more than now to need some such social decoration. Yeardley was ordered to send Argall home; but that independent personage being privately notified, it is said by the Earl of Warwick, loaded his ship and sailed for England before the governor's arrival. He was evidently a man who could carry things with a bold face. His defence of himself satisfied the court party but not the country party; the evidence against him seems to have reached the point of moral conviction, but not of legal certainty; he was put in command of a warship for the Mediterranean service, and presently the king, perhaps to relieve his own qualms for knighting Yeardley, slapped him on the back and made him Sir Samuel Argall.

Sir George Yeardley
appointed governor
of Virginia.

On many occasions the development of popular liberty in England has gone hand in hand with its development in America. The growing strength of the popular antagonism to Stuart methods of government was first conspicuously marked by the ascendancy of Sir Edwin Sandys and his party in Parliament and in the management of affairs in Virginia. Its first fruit was the introduction of parliamentary institutions into America. Despotic government in Virginia had been thoroughly discredited by the conduct of Argall. More than 1,000 persons were now living in the colony, and the year 1619 saw the number doubled.^[97] The people called for self-government, and Sandys believed that only through self-government could a colony really prosper. Governor Yeardley was accordingly instructed to issue writs for the election of a General Assembly in Virginia, and on the 30th of July, 1619, the first legislative body of Englishmen in America was called together in the wooden church at Jamestown. Eleven local constituencies were represented under the various designations of *city*, *plantation*, and

The first American
legislature, 1619.

hundred; and each constituency sent two representatives, called *burgesses*, so that the assembly was called from 1619 until 1776 the House of Burgesses. The eleven boroughs were James City, Charles City, the City of Henricus, Martin Brandon, Martin's Hundred, Lawne's Plantation, Ward's Plantation, Argall's Gift, Flowerdieu Hundred, Smith's Hundred, and Kecoughtan. The last two names were soon changed. Smith's Hundred, at first named after the treasurer, took for its sponsor one of the opposite party and became Southampton Hundred. The name of this friend of Shakespeare, somewhat curtailed, was also given to Kecoughtan, which became Hampton, and so remains to this day. These eleven names indicate the extent of the colony up the James River about to seventy miles from its mouth as the crow flies, and laterally five or six miles inland from either bank, with a population rather less sparse than that of Idaho at the present day. Such was the first American self-governing state at its beginning,—a small beginning, but what a change from the summer day that witnessed Lord Delaware's arrival nine years before!

Concerning this House of Burgesses I shall have something to say hereafter. Let it suffice for the present to observe that along with the governor and deputy-governor there was an appointed upper house called the council; and that the governor, with the assistant council, and the House of Burgesses, altogether constituted a General Assembly essentially similar to the General Court of Massachusetts, to their common prototype, the old English county court, and to their numerous posterity, the bicameral legislatures of nearly all the world in modern times. The functions of this General Assembly were both legislative and to some extent judicial. It was endowed with full powers of legislation for the colony. Its acts did not acquire validity until approved by the General Court of the London Company, but on the other hand no enactment which the Company might make for the colony was to be valid until approved by its General Assembly. These provisions were confirmed by a charter issued in 1621.

Nature of the
General Assembly.

This gift of free government to England's first colony was the work of the London Company—or, as it was now in London much more often called, the Virginia Company—under the noble management of Sir Edwin Sandys and his friends. That great corporation was soon to perish, but its boon to Virginia and to American liberty was to be abiding. The story of the Company's downfall, in its broad outlines, can be briefly told, but first I may mention a few incidents that occurred before the crisis. One was the first introduction of negro slaves into Virginia, which, by a rather curious freak of dates, came in 1619, just after the sitting of the first free legislature, and thus furnished posterity with a theme for moralizing. "About the last of August," says Secretary Rolfe, "[there] came in a Dutch man of warre that sold us twenty negars." A census taken five years later, however, shows only twenty-two negroes in the colony. The increase in their numbers was for some time very slow, and the establishment of slave labour will best be treated in a future chapter.

The first negro
slaves, 1619.

The same year, 1619, which witnessed the introduction of slaves and a House of Burgesses, saw also the arrival of a shipload of young women—spinsters carefully selected and matronized—sent out by the Company in quest of husbands. In Virginia, as in most new colonies, women were greatly in the minority, and

A cargo of maidens,
1619.

the wise Sir Edwin Sandys understood that without homes and family ties a civilized community must quickly retrograde into barbarism. On arriving in Virginia these girls found plenty of suitors and were entirely free to exercise their own choice. No accepted suitor, however, could claim his bride until he should pay the Company 120 pounds of tobacco to defray the expense of her voyage. This practice of sending wives continued for some time, and as homes with pleasant society grew up in Virginia, life began to be made attractive there and the immigration rapidly increased. By 1622 the population of Virginia was at least 4,000, the tobacco fields were flourishing and lucrative, durable houses had been built and made comfortable with furniture brought from England, and the old squalor was everywhere giving way to thrift. The area of colonization was pushed up the James River as far as the site of Richmond.

This long narrow colony was dangerously exposed to attack from the Indian tribes along the York and Pamunkey rivers and their confederates to the west and north. But an Indian attack was something that people had ceased to expect. For eight years the Indians had been to all appearance friendly, and it was not uncommon to see them moving freely about the villages and plantations. There had been a change of leadership among them. Wahunsunakok, the old Powhatan whom Smith called "Father," was dead; his brother Opekankano was now The Powhatan. It is a traditional belief that Opekankano had always favoured hostile measures toward the white men, and that for some years he awaited an opportunity for attacking them. How much truth there may be in this view of the case it would be hard to say; there is very little evidence to guide us, but we may well believe that Opekankano and his people watched with grave concern the sudden and rapid increase of the white strangers. That they were ready to seize upon an occasion for war is by no means unlikely, and the nature of the event indicates careful preparation. Early in 1622 an Indian chief whom the English called Jack of the Feather killed a white man and was killed in requital. Shortly afterward a concerted attack was made upon the colony along the entire line from Chesapeake Bay up to the Berkeley Plantation, near the site of Richmond, and 347 persons were butchered. Such a destruction of nearly nine per cent. of the white population was a terrible blow, but the quickness with which the colony recovered from it shows what vigorous vitality it had been gaining under the administration of Sir

The great Indian
massacre, 1622.

Edwin Sandys. So lately as 1618 such a blow would have been almost prostrating, but in 1622 the settlers turned out with grim fury and hunted the red men like wild beasts till the blood debt was repaid with compound interest, and peace was restored in the land for more than twenty years.

While these fiendish scenes were being enacted in Virginia a memorable drama was moving toward its final catastrophe in London. In the next chapter we shall witness the overthrow of the great Virginia Company.

CHAPTER VI.

A SEMINARY OF SEDITION.

FEW episodes in English history are more curious than the founding of Virginia. In the course of the mightiest conflict the world had witnessed between the powers of despotism and the powers of freedom, considerations chiefly strategical led England to make the ocean her battle-ground, and out of these circumstances grew the idea of establishing military posts at sundry important strategic points on the North American coast, to aid the operations of the navy. In a few far-sighted minds this idea developed into the scheme of planting one or more Protestant states, for the increase of England's commerce, the expansion of her political influence, and the maintenance of her naval advantages. After royal assistance had been sought in vain and single-handed private enterprise had proved unequal to the task of founding a state, the joint-stock principle, herald of a new industrial era, was resorted to, and we witness the creation of two rival joint-stock companies for the purpose of undertaking such a task. Of the two colonies sent out by these companies, one meets the usual fate, succumbs to famine, and retires from the scene. The other barely escapes a similar fate, but is kept alive by the energy and sagacity and good fortune of one extraordinary man until sturdy London has invested so much of her treasure and her life-blood in it that she will not tamely look on and see it perish. Then the Lord Mayor, the wealthy merchants, the venerable craft-guilds, with many liberal knights and peers, and a few brilliant scholars and clergymen, turn to and remodel the London Company into a truly great commercial corporation with an effective government and one of London's foremost merchant princes at its head. As if by special intervention from heaven, the struggling colony is rescued at the very point of death, and soon takes on a new and more vigorous life.

Summary review of
the founding of
Virginia.

1606-1610.

But for such lavish outlay to continue, there must be some solid return, and soon a new and unexpected source of wealth is found. All this sort of work is a novel

1610-1624.

experiment, mistakes are at first made in plenty; neither the ends to be obtained nor the methods of obtaining them are distinctly conceived, and from the parties of brave gentlemen in quest of El Dorado to the crowd of rogues and pickpockets amenable only to rough martial law, the drift of events seems somewhat indefinite and aimless. But just as the short-lived system of communism falls to the ground, and private ownership of land and earnings is established, the rapidly growing demand for tobacco in England makes its cultivation an abundant and steady source of wealth, the colonists increase in numbers and are improved in quality. Meanwhile as the interest felt by the shareholders becomes more lively, the Company acquires a more democratic organization. It exerts political influence, the court party and country party contend with each other for the control of it, and the latter wins. Hitherto the little Virginia colony has been, like the contemporary French colony in Canada and like all the Spanish colonies, a despotically governed community closely dependent upon the source of authority in the mother country, and without any true political life. But now the victorious party in the Company gives to Virginia a free representative government, based not upon any ideal theory of the situation, but rooted in ancient English precedent, the result of ages of practical experience, and therefore likely to thrive. Finally we see the British king awakening to the fact that he has unloosed a power that threatens danger. The doctrine of the divine right of kings—that ominous bequest from the half-orientalized later Roman Empire to post-mediæval Europe—was dear to the heart of James Stuart, and his aim in life was to impose it upon the English people. His chief obstacle was the country party, which if he could not defeat in Parliament, he might at least weaken by striking at the great corporation that had come to be one of its strongholds. In what we may call the embryonic development of Virginia the final incident was the overthrow of the London Company; but we shall see that the severing of that umbilical cord left the colony stronger and more self-reliant than before. In the unfolding of these events there is poetic beauty and grandeur as the purpose of Infinite Wisdom reveals itself in its cosmic process, slowly but inexorably, hasting not but resting not, heedless of the clashing aims and discordant cries of short-sighted mortals, sweeping their tiny efforts into its majestic current, and making all contribute to the fulfilment of God's will.

From the very outset the planting of Virginia had been watched with wrath and chagrin by the Spanish court. Within the last few years a Virginian scholar, Alexander Brown, has collected and published a large number of manuscript letters and other documents preserved in the Spanish archives at Simancas, which serve to illustrate the situation in detail. Very little of importance happened in London that the ambassador Zuñiga did not promptly discover and straightway report in cipher to Madrid. We can now read for the first time many memoranda of secret sessions of Philip III. and his ministers, in which this little Protestant colony was the theme of discussion. It was a thorn in the flesh not easy to extract unless Spain was prepared for war with Great Britain. At first the very weakness of the colony served to keep this enemy's hands off; if it was on the point of dying a natural death, as seemed likely, it was hardly worth while to repeat the horrors of Florida. In 1612, after Sir Thomas Dale's administration had begun, Spain again took the alarm; for the moment a war with England was threatened, and if it had broken out Virginia would have been one of the first points attacked. But the deaths of Lord Salisbury and of Henry, Prince of Wales, in 1612, changed the policy of both Philip and James. There was now some hope of detaching the latter from Protestant alliances, and Philip's designs upon Virginia were subordinated to the far larger purpose of winning back England herself into the Catholic ranks. A plan was made for marrying the Infanta Maria to Baby Charles, and with this end in view one of the ablest of Spanish diplomats, Count Gondomar (to give him at once his best-known title), was sent as ambassador to London. Charles was only twelve years old, and an immediate wedding was not expected, but the match could be kept dangling before James as a bait, and thus his movements might be guided. Should the marriage finally be made, Gondomar believed that Charles could be converted to his bride's faith, and then England might be made to renew her allegiance to Rome. Gondomar was mightily mistaken in the English people, but he was not mistaken in their king. James was ready to swallow bait, hook, and all. Gondomar completely fascinated him,—one might almost say, hypnotized him,—so that for the next ten years one had but to shake that Spanish match before him and he would follow, whatever might betide. The official policy of England was thus often made distasteful to Englishmen, and the sentiment of loyalty to the sovereign was impaired.

Hostility of Spain.

Gondomar and the Spanish match.

To Gondomar the king was in the habit of confiding his grievances, and in 1614, after his angry dissolution of Parliament, he said to him one day: "There is one thing I have here, which your king in Spain has not, and that is a Parliament of 500 members.... I am surprised that my ancestors should ever have permitted such an institution to come into existence. I am a stranger and found it here when I arrived, so I am obliged to put up with what I cannot get rid of." Here James stopped short and turned red in the face, at having thus carelessly admitted his own lack of omnipotence, whereupon the wily Spaniard smiled and reminded him that at all events it was only at his royal pleasure that this very disagreeable assembly could be called together.^[98] James acted on this hint, and did not summon a Parliament again for seven years. It is worth remembering in this connection that at this very time the representatives of the people in France were dismissed and not called together again until 1789.

Gondomar's advice to the king.

While Parliament was not sitting, the sort of discussion that James found so hateful was kept up at the meetings of the London Company for Virginia, which were commonly held at the princely mansion of Sir Thomas Smith. Against this corporation Gondomar dropped his sweet poison into the king's ear. The government of colonies, he said, is work fit only for monarchs, and cannot safely be entrusted to a roomful of gabbling subjects; beware of such meetings; you will find them but "a seminary to a seditious Parliament." Before James had profited by these warnings, however, the case of Sir Walter Raleigh came up to absorb his attention. A rare chance—as strange and sad as anything that the irony of human destiny can show—was offered for Spain to wreak her malice upon Virginia in the person of the earliest and most illustrious of its founders.

More advice.

In 1603, not long after King James's arrival in England, Raleigh had been charged with complicity in Lord Cobham's abortive conspiracy for getting James set aside in favour of his cousin, Lady Arabella Stuart. This charge is now proved to have been ill-founded; but James already hated Raleigh with the measure of hatred which he dealt out to so many of Elizabeth's favourites. After a trial in which the common-law maxim, that

Imprisonment of Raleigh.

Raleigh released and sent to Guiana.

The king's

innocence must be presumed until guilt is proved, was read backward, as witches were said to read the Lord's Prayer in summoning Old Nick, Sir Walter was found guilty of high treason and condemned to death. The wrath of the people was such that James, who did not yet feel his position quite secure, did not venture to carry out the sentence. He contented himself with plundering Sir Walter's estates, while the noble knight was kept for more than twelve years a prisoner in the Tower, where he solaced himself with experiments in chemistry and with writing that delightful *History of the World* which is one of the glories of English prose literature. In 1616, at the intercession of Villiers, Raleigh was set free. On his expedition to Guiana in 1595 he had discovered gold on the upper waters of the Caroni River in what is now Venezuela. In his attempt to dispense with parliaments James was at his wits' end for money, and he thought something might be got by sending Raleigh back to take possession of the place. It is true that Spain claimed that country, but so did James on the strength of Raleigh's own discoveries, and if any complication should arise there were ways of crawling out. Raleigh had misgivings about starting on such an adventure without first obtaining a pardon in set form; but Sir Francis Bacon is said to have assured him that the king, having under the privy seal made him admiral of a fleet, with power of martial law over sailors and officers, had substantially condoned all offences, real or alleged. A man could not at one and the same time be under attain of treason and also an admiral in active service. Before Raleigh started James made him explain the details of his scheme and lay down his route on a chart, and he promised on the sacred word of a king not to divulge this information to any human creature. It was only the sacred word of a Stuart king. James may have meant to keep it, but his evil genius was not far off. The lifelike portrait of Count Gondomar, superbly painted by the elder Daniel Mytens, hangs in the palace at Hampton Court, and one cannot look on it for a moment without feeling that Mephistopheles himself must have sat for it. The bait of the Infanta, with a dowry of 2,000,000 crowns in hard cash, was once more thrown successfully, and James told every detail of Raleigh's plans to the Spaniard, who sent the intelligence post-haste to Madrid. So when the English fleet arrived at the mouths of the Orinoco, a Spanish force awaited them and attacked their exploring party. In the fight that ensued Raleigh's son Walter was slain; though the English were victorious, the approaches to the gold

treachery.

Judicial murder of
Raleigh, 1618.

fields were too strongly guarded to be carried by the force at their command, and thus the enterprise was baffled. The gold fields remained for Spain, but with the fast increasing paralysis of Spanish energy they were soon neglected and forgotten; their existence was denied and Raleigh's veracity doubted, until in 1889 they were rediscovered and identified by the Venezuelan Inspector of Mines.^[99] Since the expedition was defeated by the treachery of his own sovereign, nothing was left for the stricken admiral but to return to England. The Spanish court loudly clamoured for his death, on the ground that he had undertaken a piratical excursion against a country within Spanish jurisdiction. His wife cleverly planned an escape to France, but a Judas in the party arrested him and he was sent to the Tower. The king promised Gondomar that Raleigh should be publicly executed, either in London or in Madrid; but on second thought the latter would not do. To surrender him to Spain would be to concede Spain's claim to Guiana. Without conceding this claim there was nothing for which to punish him. Accordingly James in this year 1618 revived the old death sentence of 1603, and Spain drank a deep draught of revenge when the hero of Cadiz and Fayal was beheaded in the Palace Yard at Westminster; a scene fit to have made Elizabeth turn in her grave in the Abbey hard by. A fouler judicial murder never stained the annals of any country.^[100]

The silly king gained nothing by his vile treachery. Popular execration in England at once set him up in a pillory from which posterity is not likely to take him down. The Spanish council of state advised Philip III. to send him an autograph letter of thanks,^[101] but the half-promised Infanta with her rich dowry kept receding like the grapes from eager Tantalus. A dwindling exchequer would soon leave James with no resource except summoning once more that odious Parliament. Meanwhile in the London Company for Virginia there occurred that change of political drift whereof the election of Sir Edwin Sandys over Sir Thomas Smith, aided though it had been by a private quarrel, was one chief symptom. That election revealed the alarming growth of hostility in the city of London to the king's pretensions and to the court party.^[102] James had said just before the election, "Choose the Devil if you will, but not Sir Edwin Sandys." From that time forth the king's hostility to the Company scarcely needed Gondomar's skilful nursing. It grew apace till it

The Company's election in 1620.

The king's attempt to interfere.

became aggressive, not to say belligerent. At the election in 1620 it was the intention of the majority in the Company to reëlect Sandys, with whose management they were more than pleased. Nearly 500 members were present at the meeting. It was the custom for three candidates to be named and voted for, one after another, by ballot, and a plurality sufficed for a choice. On this occasion the name of Sir Edwin Sandys, first of three, was about to be put to vote, when some gentlemen of the king's household came in and interrupted the proceedings. The king, said their spokesman, positively forbade the election of Sir Edwin Sandys. His Majesty was unwilling to infringe the rights of the Company, and would therefore himself propose names, even as many as four, on which a vote might be taken. The names were forthwith read, and turned out to be those of Sir Thomas Smith and three of his intimate friends.

This impudent interference was received with a silence more eloquent than words, a profound silence that might be felt. After some minutes came murmurs and wrathful ejaculations, among which such expressions as "tyranny" and "invasion of chartered rights" could be plainly heard. The motion was made that the king's messengers should leave the room while the situation was discussed. "No," said the Earl of Southampton, "let them stay and hear what is said." This motion prevailed. Then Sir Lawrence Hyde moved that the charter be read, and his motion was greeted with one of those dutiful but ominous cries so common in that age; from all parts of the room it resounded, "The charter! the charter!! God save the King!" The roll of parchment was brought forward and read aloud by the secretary. "Mr. Chairman," said Hyde, "the words of the charter are plain; the election of a treasurer is left to the free choice of this Company. His Majesty seems to labour under some misunderstanding, and I doubt not these gentlemen will undeceive him."

Reading of the
charter.

For a few minutes no one replied, and there was a buzz of informal conversation about the room, some members leaving their seats to speak with friends not sitting near them. One of our accounts says that some of the king's emissaries stepped out and sought his presence, and when he heard what was going on he looked a little anxious and his stubbornness was somewhat abated; he said of course he did not wish to restrict the Company's choice to the names he had

Withdrawal of
Sandys.

Election of
Southampton.

mentioned. Whether this concession was reported back to the meeting, we are not informed, but probably it was. When the meeting was called to order, Sir Robert Phillips, who was sitting near Sandys, got up and announced that that gentleman wished to withdraw his name; he would therefore propose that the king's messengers should nominate two persons while the Company should nominate a third. The motion was carried, and the Company nominated the Earl of Southampton. The balloting showed an extremely meagre vote for the king's nominees. It was then moved and carried that in the earl's case the ballot should be dispensed with and the choice signified by acclamation; and then with thundering shouts of "Southampton! Southampton," the meeting was brought to a close. The rebuke to the king could hardly have been more pointed, and in such a scene we recognize the prophecy of the doom to which James's wrong policy was by and by to hasten his son.

The choice of Shakespeare's friend instead of Sandys made no difference whatever in the policy of the Company. From that time forth its ruling spirits were Southampton and Sandys and Nicholas Ferrar, the deputy-treasurer. The name of this young man calls for more than a passing mention. Better known in ecclesiastical than in political history, he was distinguished and memorable in whatever he undertook, and among all the thronging figures in England's past he is one of the most sweetly and solemnly beautiful. His father, the elder Nicholas Ferrar, who died in April, 1620, just before the election I have been describing, was one of London's merchant princes, and it was in the parlour of his hospitable house in St. Osyth's Lane—now known as Size Lane, near the Poultry—that the weekly meetings of the Virginia Council were in these latter days regularly held. In this house the young Nicholas was born in 1593. He had spent seven years in study at Cambridge and five years in very extensive travel upon the continent of Europe, when at the age of twenty-seven he came to devote all his energies for a time to the welfare of the colony of Virginia. From early boyhood he was noticeable for taking a grave and earnest but by no means sombre view of life, its interests and its duties. For him frivolity had no charm, coarse pleasures were but loathsome, yet he was neither stern nor cold. Through every fibre of his being he was the refined and courteous gentleman, a true Sir Galahad fit to have found the Holy Grail. His scholarship was thorough and broad. An excellent

Nicholas Ferrar.

Little Gidding.

mathematician and interested in the new dawning of physical science, he was also well versed in the classics and in modern languages and knew something of Oriental philology, but he was most fond of the devotional literature of the church. His intensely religious mood was part of the great spiritual revival of which Puritanism was the mightiest manifestation; yet Nicholas Ferrar was no Puritan either in doctrine or in ecclesiastical policy. In these matters his sympathies were rather with William Laud. At the same time his career is a living refutation of the common notion that there is a necessary connection between the religion of Laud and the politics of Strafford, for his own political views were as liberal as those of Hampden and Pym. Indeed Ferrar was a rare product of the harmonious coöperation of the tendencies represented respectively in the Renaissance and in the Reformation, tendencies which the general want of intelligence and moral soundness in mankind has more commonly brought into barren conflict. His ideal of life was much like that which Milton set forth with matchless beauty in "Il Penseroso." Its leading motive, strengthening with his years, was the feeling of duty toward the "studious cloister's pale," and the part of his career that is now best remembered is the founding of that monastic home at Little Gidding, where study and charitable deeds and prayer and praise should go on unceasing, where at whatsoever hour of day or night the weary wayfarer through the broad fen country should climb that hilly range in Huntingdon, he should hear the "pealing organ blow to the full-voiced choir below," and entering should receive spiritual comfort and strength, and go thence on his way with heart uplifted. In that blest retreat, ever busy with good works, lived Nicholas Ferrar after the downfall of the great London Company until his own early death in 1637 at the age of forty-four. Of great or brilliant deeds according to the world's usual standard this man did none; yet the simple record of his life brings us into such an atmosphere of holiness and love that mankind can never afford to let it fade and die.

This Protestant saint, withal, was no vague dreamer, but showed in action the practical sagacity that came by inheritance from London's best stock of bold and thrifty citizens. As one of the directing minds of a commercial corporation, he showed himself equal to every occasion that arose. He is identified with the last days of the London Company, and his family archives preserve the record of its downfall. It is thence that we get the account of the election of Southampton and many other interesting scenes and important facts that would otherwise have passed into oblivion.

After Southampton's election the king's hostility to the Company became deadly, and within that corporation itself he found allies who when once they found themselves unable to rule it were only too willing to contribute to its ruin. Sir Thomas Smith and his friends now accepted their defeat as decisive and final, and allowed themselves to become disloyal to the Company. Probably they would have expressed it differently; they would have said that out of regard for Virginia they felt it their duty to thwart the reckless men who had gained control of her destinies. Unfortunately for their version of the case, the friends of Sir Thomas Smith were charged with the burden of Argall's misdemeanours, and the regard which that governor had shown for Virginia was too much like the peculiar interest that a wolf feels in the sheepfold. It is not meant that the members of the court party who tried to screen Argall were all unscrupulous men; such was far from being the case, but in public contests nothing is more common than to see men personally stainless blindly accept and defend the rogues of their own party. In the heat of battle the private quarrel between Smith and the Earl of Warwick was either made up or allowed to drop out of sight. Both worked together, and in harmony with the king, to defeat Southampton and Sandys and Ferrar. In the Company's quarter sessions the disputes rose so high that the meetings were said to be more like cockpits than courts.^[103] On one occasion a duel between the Earl of Warwick and Lord Cavendish, eldest son of the first Earl of Devonshire, was narrowly prevented. As Chamberlain, one of the court gossips of the day, writes: "Last week the Earl of Warwick and the Lord Cavendish fell so foul at a Virginia ... court that the lie passed and repassed, and they are [gone out] to try their fortune, yet we do not hear they are met, so that there is hope they may return safe. In the meantime their ladies forget not their old familiarity, but meet daily to lament that misfortune. The factions in [the Company] are grown so violent as Guelfs and Ghibellines were not more animated one against another; and they seldom meet upon the Exchange, or in the streets, but they brabble and quarrel."^[104]

Disputes in the Company.

In 1621 the king, having arrived at the end of his purse, seized what he thought a favourable moment for summoning Parliament, but found that body more intractable than ever. The Commons busied themselves

The king rebuked by the House of Commons.

with attacking monopolies and impeaching the Lord Chancellor Bacon for taking bribes. Then they expressed unqualified disapproval of the Spanish match, whereupon the king told them to mind their own business and not meddle with his. "A long and angry dispute ensued, which terminated in a strong protest, in which the Commons declared that their privileges were not the gift of the Crown, but the natural birthright of English subjects, and that matters of public interest were within their province."^[105] This protest so infuriated the king that he tore it into pieces, and forthwith dissolved Parliament, sending Pym, Southampton, and other leaders to prison. This was in January, 1622.

As more than a hundred members of this froward Parliament were also members of the Company, it is not strange that the king should have watched more eagerly than ever for a chance to attack that corporation. A favourable opportunity was soon offered him. A certain Nathaniel Butler, governor of the Bermuda Islands, was accused of extorting a large sum of money from some Spaniards who had been shipwrecked there, and very damaging evidence was brought against him; but he seems to have known how to enlist powerful friends on his side. On being summoned to England he went first to Virginia, where his services were in demand during the brief but bloody Indian war that followed upon the massacre of 1622. Then after arriving in England he published, in April, 1623, a savage attack upon the London Company, entitled "The Unmasked Face of our Colony in Virginia." Simultaneously with the publication of this pamphlet the charges against its author were dropped and were nevermore heard of. Such a coincidence is extremely significant; it was commonly believed at the time that Butler bought the suppression of the charges by turning backbiter. His attack upon the Company is so frivolous as plainly to indicate its origin in pure malice. It is interesting as the first of the long series of books about America printed in England which have sorely irritated their American readers. Sixteen of the old Virginia settlers who were at that moment in London answered it with convincing force. Some of this Butler's accusations, with the answers of the settlers, may fitly be cited for the side-light they throw upon the state of things in Virginia, as well as upon the peculiar sinuosities of Stuart kingcraft.

Nathaniel Butler
and his pamphlet.

Some charges and
answers:

"1. I found the plantations generally seated upon meer salt marishes full of infectious bogs and muddy creeks and lakes, and thereby subjected to all those inconveniencies and diseases which are so commonly found in the most unsound and most unhealthy parts of England, whereof every country and climate hath some.

as to malaria;

"Answer: We say that there is no place inhabited but is conveniently habitable. And for the first plantation, which is Kiccoutan, ... men may enjoy their healths and live as plentifully as in any part of England, ... yet that there are marishes in some places we acknowledge.... As for bogs, we know of none in all the country, and for the rest of the plantations, as Newport's News, Blunt Point, Warriscoyak, Martin's Hundred ... and all the plantations right over against James City, and all the plantations above these (which are many) ... they are [all] very fruitful, ... pleasant, ... healthful, and high land, except James City, which yet is as high as Deptford or Ratcliffe.

"2. I found the shores and sides of those parts of the main river where our plantations are settled everywhere so shallow as no boats can approach the shores, so that—besides the difficulty, danger, and spoil of goods in the landing of them—people are forced to a continual wading and wetting of themselves, and that [too] in the prime of winter, when the ships commonly arrive, and thereby get such violent surfeits of cold upon cold as seldom leave them until they leave [off] to live.

as to wetting one's feet;

"Answer: That generally for the plantations at all times from half flood to half ebb any boat that draws betwixt 3 and 4 foot water may safely come in and land their goods dry on shore without wading. And for further clearing of his false objections, the seamen ... do at all times deliver the goods they bring to the owners dry on shore, whereby it plainly appears not any of the country people ... are by this means in danger of their lives. And at ... many plantations below James City, and almost all above, they may at all times land dry.

"3. The new people that are yearly sent over [who] arrive here (for the most part very unseasonably in winter) find neither guest-house, inn, nor any the like place to shroud themselves in at their arrival; [and] not so much as a stroke

as to dying under hedges;

is given toward any such charitable work; [so that] many of [these new comers] by want hereof are not only seen dying under hedges and in the woods, but being dead lie some of them many days unregarded and unburied.

"*Answer:* The winter is the most healthful time and season for arrival of new comers. True it is that as yet there is no guest-house or place of entertainment for strangers. But we aver it was a late intent ... to make a general gathering for the building of such a convenient house, which by this time had been in good forwardness, had it not pleased God to suffer this disaster to fall out by the Indians. But although there be no public guest-house, yet are new comers entertained and lodged and provided for by the governor in private houses. And for any dying in the fields through this defect, and lying unburied, we are altogether ignorant; yet that many [persons] die suddenly by the hand of God, we often see it ... fall out even in this flourishing and plentiful city [of London] in the midst of our streets. As for dying under hedges, there is no hedge in all Virginia.

"5. Their houses are generally the worst that ever I saw, the meanest cottages in England being every way equal (if not superior) with the most of the best. And besides, so improvidently and scatteringly are they seated one from another as partly by their distance but especially by the interposition of creeks and swamps ... they offer all advantages to their savage enemies....

as to the houses,
and their situations.

"*Answer:* The houses ... were ... built for use and not for ornament, and are so far from being so mean as they are reported that throughout [England] labouring men's houses ... are in no wise generally for goodness to be compared unto them. And for the houses of men of better rank and quality, they are so much better and [so] convenient that no man of quality without blushing can make exception against them. [As] for the creeks and swamps, every man ... that cannot go by land hath either a boat or a canoe for the conveying and speedy passage to his neighbour's house...."[\[106\]](#)

So go the charges and the answers. It is unnecessary to cite any further. The animus of Captain Butler's pamphlet is sufficiently apparent. He wished to

make it appear that things were wretchedly managed in Virginia, and that there was but a meagre and contemptible result to show for all the treasure that had been spent and all the lives that had been lost. Whatever could weaken people's faith in the colony, check emigration, deter subscriptions, and in any way embarrass the Company, he did not fail to bring forward. Not only were the sites unhealthy and the houses mean, but the fortifications were neglected, plantations were abandoned, the kine and poultry were destroyed by Indians, the assembly enacted laws wilfully divergent from the laws of England, and speculators kept engrossing wheat and maize and selling them at famine prices; so said Butler, and knowing how effective a bold sweeping lie is sure to be, in spite of prompt and abundant refutation, he ended by declaring that not less than 10,000 persons had been sent out to Virginia, of whom "through the aforementioned abuses and neglects" not more than 2,000 still remained alive. Therefore, he added, unless the dishonest practices of the Company in London and the wretched bungling of its officials in Virginia be speedily redressed "by some divine and supreme hand, ... instead of a Plantation it will shortly get the name of a slaughter house, and [will] justly become both odious to ourselves and contemptible to all the world."

Object of the charges.

All these allegations were either denied or satisfactorily explained by the sixteen settlers then in London, and their sixteen affidavits were duly sworn to before a notary public. Some months afterward, Captain Butler's pamphlet was laid before the assembly of Virginia and elaborately refuted. Nothing can be clearer than the fact that the sympathies of the people in Virginia were entirely on the side of the Company under its present management, and no fact could be more honourable to the Company. From first to last the proceedings now to be related were watched in Virginia with intense anxiety and fierce indignation.

The assembly denies the allegations.

On Thursday of Holy Week, 1623, a formal complaint against the Company, embodying such charges as those I have here recounted, was laid before the Privy Council, and the Lord Treasurer Cranfield, better known as Earl of Middlesex, sent notice of it to Nicholas Ferrar, with the demand that a complete answer to every particular should be returned by the next Monday afternoon. Ferrar

An answer demanded of Ferrar.

protested against such unseemly haste, but the Lord Treasurer was inexorable. Then the young man called together as many of the Company as he could find at an hour's notice that afternoon; they met in his mother's parlour, and he read aloud the complaint, which took three hours. Then Lord Cavendish, Sir Edwin Sandys, and Nicholas Ferrar were appointed a committee to prepare the answer. "These three," says our chronicle, "made it midnight ere they parted; they ate no set meals; they slept not two hours all Thursday and Friday nights; they met to admire each other's labours on Saturday night, and sat in judgment on the whole till five o'clock on Sunday morning; then they divided it equally among six nimble scribes, and went to bed themselves, as it was high time for them. The transcribers finished by five o'clock Monday morning; the Company met at six to review their labours, and by two in the afternoon the answer was presented at the Council Board."^[107]

This answer was a masterpiece of cogency. It proved the baselessness of the charges. Either they were complete falsehoods, or they related to disasters directly connected with the Indian massacre, which was not due to any provocation on the part of the whites, or else they showed the effects of mismanagement in Sir Thomas Smith's time, especially under the tyrannical administration of Argall from which the colony had not yet fully recovered. In short, such of the charges as really bore against the Company were successfully shown up as affecting its old government under Smith and Warwick, and not its new government under Sandys and Southampton. The latter was cleared of every calumny, and its absolute integrity and vast efficiency were fully established. Such, at least, is the decisive verdict of history, but the lords of the Privy Council were not willing to accept such a result. It amounted almost to an impeachment of the court party, and it made them angry. So the Earl of Warwick succeeded in obtaining an order that Lord Cavendish, Sir Edwin Sandys, and Rev. Nicholas Ferrar,—as "chief actors in inditing and penning ... an impertinent declaration containing bitter invectives and aspersions" should be confined to their own houses until further notice.^[108] The object of this was to prevent them from conferring with each other. Further hostile inquiries were prosecuted, and an attempt was made to detach Ferrar from his associates. One day, as he was answering some queries before the Privy

A cogent answer is returned.

Attempts to corrupt Ferrar.

Council, one of the lords handed him an important official letter to the governor of Virginia. "Who draws up such papers?" asked the lord. "The Company," replied Ferrar modestly. "No, no!" interrupted another lord, "we know your style; these papers are all yours, and they are masterpieces." The letter was shown to the king, who was pleased to observe, "Verily, the young man hath much worth in him." To detach him from the Company the king offered to make him clerk of the Privy Council or ambassador to the court of Savoy. Both were fine offers for a man only in his thirtieth year, but Ferrar was not to be tempted. Then an effort was made to induce him to advise the Company to surrender its charter, but he refused with some scorn. A great number of the nobility and gentry, he said, besides merchants and artisans of the city of London, relying upon the royal charter, had engaged in a noble enterprise, one of the most honourable that England had ever undertaken; many planters in Virginia had risked their estates and lives in it; the Lord had prospered their endeavours, and now no danger threatened the colony save the malice of its enemies; as for himself he was not going to abuse his trust by deserting it.

While these things were going on, the king appointed a board of commissioners to investigate the affairs of Virginia, and the spirit in which they were appointed is sufficiently revealed by the fact that they all belonged to the disaffected faction in the Company and held their meetings at the house of Sir Thomas Smith. One of their number was the vindictive and unscrupulous ex-governor, Sir Samuel Argall,—which was much like setting the wolf to investigate the dogs. Some of these commissioners went out to Virginia and tried to entrap the assembly into asking for a new charter. It was all in vain. Governor, council, and House of Burgesses agreed that they were perfectly satisfied with the present state of things and only wanted to be let alone. Not a morsel of evidence adverse to the present management of the Company could be obtained from any quarter. On the contrary, the assembly sent to England an eloquent appeal, afterward entitled "The Tragical Declaration of the Virginia Assembly," in which the early sufferings of the colony and its recent prosperity were passed in review; the document concluded with an expression rather more forcible than one is accustomed to find in decorous and formal state papers. After describing the kind of management under which such creatures as Argall could flourish, the document goes on to say, "Rather [than] be reduced to live under the

A board of
commissioners.

like government, we desire his Majesty that commissioners may be sent over with authority to hang us."

Long before this appeal reached England, the final assault upon the Company had begun. In July, 1623, the attorney-general reported his opinion that it was advisable for the king to take the government of Virginia into his own hands. In October an order of the Privy Council announced that this was to be done. The Company's charter was to be rescinded, and its deputed powers of sovereignty were to be resumed by the king. This meant that the king would thereafter appoint the council for Virginia sitting in London. He would also appoint the governor of Virginia with his colonial council. Such a transformation would leave the joint-stock company in existence, but only as a body of traders without ascertained rights or privileges and entirely dependent upon royal favour. No settled policy could thereafter be pursued, and under the circumstances the change was a deathblow to the Company. Southampton and Ferrar refused to surrender, and referred the question to their next quarter-sessions to be held in November. Then the king brought suit against the Company in the court of King's Bench, and a writ of *quo warranto* was served.

Attorney-general's opinion; a *quo warranto* served.

Then came the most interesting moment of all. The only hope of the Company lay in an appeal to Parliament, and that last card was boldly played. Early in 1624 the Spanish match, to secure which the miserable king had for ten years basely truckled and licked the hand of England's bitterest enemies, was finally broken off. War with Spain was at hand; a new policy, of helping the German Protestants, and marrying Baby Charles to a French princess, was to be considered; and much money was needed. So James reluctantly issued writs for an election, and the new Parliament, containing Sandys and Ferrar, with many other members of the Virginia Company, met in February. In April a petition was presented in behalf of the Virginia Company, and a committee had been appointed to consider it, when the Speaker read a message from the king, forbidding Parliament to meddle with the matter. He distinctly announced the doctrine that the government of colonies was the business of king and his Privy Council, and that Parliament had nothing to do with it. This memorable doctrine was just that which afterwards found favour with the

Appeal to Parliament.

The king refuses to allow the appeal.

American colonists for very different reasons from those which recommended it to King James. The Americans took this view because they were not represented in Parliament, and intended with their colonial assemblies to hold the crown officials, the royal governors, in check just as Parliament curbed the Crown. By the middle of the eighteenth century this had come to be the generally accepted American doctrine; it is interesting to see it asserted early in the seventeenth by the Crown itself, and in the interests of absolutism.

In 1624 Parliament was not in good condition for quarrelling with the king upon too many issues at once. So it acquiesced, not without some grumbling, in the royal prohibition, and the petition of the Virginia Company was laid upon the table. A few weeks later the case on the *quo warranto* was argued before the court of King's Bench. The attorney-general's argument against the charter was truly ingenious. That charter allowed the Company to carry the king's subjects across the ocean to Virginia; if such a privilege were to be exercised without limitation, it might end in conveying all the king's subjects to America, leaving Great Britain a howling wilderness! Such a privilege was too great to be bestowed upon any corporate body, and therefore the charter ought to be annulled. Such logic was irresistible, and on the 16th of June the chief justice declared "that the Patent or Charter of the Company of English Merchants trading to Virginia, and pretending to exercise a power and authority over his Majesty's good subjects there, should be thenceforth null and void." Next day Thomas Wentworth, afterward Earl of Strafford, gave vent to his glee in a private letter: "Methinks, I imagine the Quaternity before this have had a meeting of comfort and consolation, stirring up each other to bear it courageously, and Sir Edwin Sandys in the midst of them sadly sighing forth, Oh, the burden of Virginia." By the Quaternity he meant Southampton, Sandys, Ferrar, and Cavendish. On the 26th of June the Privy Council ordered Nicholas Ferrar to bring all the books and papers of the late Company and hand them over to its custody.

Attorney-general's argument.

The charter annulled, June 16, 1624.

Ferrar could not disobey the order, but he had made up his mind that the records of the Company must be preserved, for its justification in the eyes of posterity. As

Ferrar has the records copied.

soon as he saw that the day of doom was at hand he had copies made. One of Ferrar's dearest friends was the delightful poet, George Herbert, a young man of his own age, whose widowed mother had married Sir John Danvers, a prominent member of the Company. They lived in a fine old house in Chelsea, that had once been part of the home of Sir Thomas More. There Nicholas Ferrar passed many a pleasant evening with George Herbert and his eccentric and skeptical brother, afterward Lord Herbert of Cherbury; and if ever their talk grew a bit too earnest and warm, we can fancy it mellowed again as that other sweet poet, Dr. Donne, dropped in, with gentle Izaak Walton, as used often to happen. In that house of friends, Ferrar had a clerk locked up with the records until they were all copied, everything relating to the administrations of Sandys and Southampton, from the election of the former, in April, 1619, down to June 7, 1624. The copy was then carefully compared with the original documents, and its perfect accuracy duly attested by the Company's secretary, Edward Collingwood. Sir John Danvers then carried the manuscript to the Earl of Southampton, who exclaimed, as he threw his arms about his neck, "God bless you, Danvers! I shall keep this with my title-deeds at Tichfield; it is the evidence of my honour, and I prize it more than the evidence of my lands." About four months afterward Southampton died. Forty-three years afterward, in 1667, his son and successor passed away, and then this precious manuscript was bought from the executors by William Byrd, of Virginia, father of the famous historian and antiquary. From the Byrd library it passed into the hands of William Stith, president of William and Mary College, who used it in writing his History of Virginia, published at Williamsburg in 1747, one of the most admirable of American historical works. From Stith's hands the manuscript passed to his kinsman, Peyton Randolph, president of the Continental Congress, and after his death in 1775, Thomas Jefferson bought it. In 1814 ex-president Jefferson sold his library to the United States, and this manuscript is now in the Library of Congress, 741 folio pages bound in two volumes. As for the original documents, they are nowhere to be found among British records; and when we recollect how welcome their destruction must have been to Sir Thomas Smith, to the Earl of Warwick, and to James I., we cannot help feeling that the chest of the Privy Council was not altogether a safe place in which to keep them.

History of a
manuscript.

It is to the copy preserved through the careful forethought of Nicholas Ferrar that we owe our knowledge of one of the most interesting chapters in early American history. In the development of Virginia the overthrow of the great London Company was an event of cardinal importance. For the moment it was quite naturally bewailed in Virginia as a direful calamity; but, as we shall presently see, it turned out to be a blessing in disguise. Stuart despotism gained not one of its ends, except the momentary gratification of spleen, and self-government in Virginia, which seemed in peril, went on to take root more deeply and strongly than before.

CHAPTER VII.

THE KINGDOM OF VIRGINIA.

From the busy streets of London, from the strife in Parliament and the Privy Council, we must turn once more to the American wilderness and observe what progress had been made in Virginia during the seventeen years of its government by a great joint-stock company.

Retrospect.

Tidewater Virginia.

But for a correct appreciation of the situation we must qualify and limit this period of seventeen years. The terrible experience of the first three years left the colony at the point of death, and it was not until the administration of Sir Thomas Dale that any considerable expansion beyond Jamestown began. The progress visible in 1624 was mostly an affair of ten years' duration, dating from the abolition of communism and the beginnings of tobacco culture. By far the greater part of this progress had been achieved within the last five years, since the establishment of self-government and the greater part played by family life. In 1624 the colony of Virginia extended from the mouth of James River up nearly as far as the site of Richmond, with plantations on both banks; and it spread over the peninsula between the James and the broad stream next to the north of it, which at that time was called the Charles, but since 1642 has been known as the York River. There were also a few settlements on the Accomac peninsula east of Chesapeake Bay. It would be hard to find elsewhere upon the North American coast any region where the land is so generally and easily penetrable by streams that can be navigated. The country known as "tidewater Virginia" is a kind of sylvan Venice. Into the depths of the shaggy woodland for many miles on either side the great bay the salt tide ebbs and flows. One can go surprisingly far inland on sea-faring craft, while with a boat there are but few plantations on the old York peninsula to which one cannot approach very near. In the absence of good roads this ubiquity of navigable water was a great convenience, but doubtless the very convenience of it may have delayed the arduous work of breaking good land-routes through the wilderness, and thus have tended to maintain the

partial isolation of the planters' estates, to which so many characteristic features of life in Old Virginia may be traced.

If in 1624 we had gone up stream to Werowocomoco, where Smith had broken the ice with his barge fifteen years before, we should probably have found very little of its strange barbaric life remaining. The first backward step of the Indian before the encroaching progress of Englishmen had been taken. The frontier was fast receding to the Pamunkey region along the line joining the site of West Point with that of Cold Harbor; and from that time forward a perpetually receding frontier of barbarism was to be one of the most profoundly and variously significant factors in the life of English-speaking America until the census of 1890 should announce that such a frontier could no longer be definitely located. In the last year of James I. the grim Opekankano and his warriors still held the Pamunkey River; in that neighbourhood and to the north of it one might have seen symptoms of the wild frontier life of the white hunter and trapper. Returning thence to the great bay, the plantation called Dale's Gift on the Accomac shore would have little about it that need detain us, and so sweeping across from Cape Charles to Point Comfort, we should come to Elizabeth City, named for King James's daughter Elizabeth, Queen of Bohemia. The only plantation here, standing like a sentinel to guard the principal avenue into the colony, bears the name of the last treasurer of the Company, curtailed into Hampton. The next borough bears the name of Southampton's enemy, the Earl of Warwick, and opposite are the plantations on Warrasqueak Bay. Passing Jamestown, we arrive at the mouth of the Chickahominy, above which lies an extensive territory known as Charles City, with the plantations of Wyanoke and Westover, while over on the south side of the James the settlements known as Martin Brandon, Flowerdieu Hundred, and Bermuda successively come into sight and disappear. Then we sail around the City of Henricus, and passing the ruins of Falling Creek, destroyed by the Indians, we come at length to the charming place that Smith called Nonesuch. Here, a few miles below the spot where Richmond is in future to stand, we reach once more the frontier. Beyond are endless stretches of tangled and mysterious woods through which the sturdy Newport once vainly tried to find his way to some stream flowing into the Pacific Ocean. Here we may turn our prow and make our way down to Jamestown, where the House of Burgesses is in session.

Receding frontier.

The plantations.

It is called a House of Burgesses because its members are regarded as the representatives of boroughs, and such a name sounds queer as applied to little areas of scattered farms in the forest. Still more strange is the epithet "city" for tracts of woodland several miles in extent, and containing half a dozen widely isolated plantations. The apparent absurdity is emphasized on the modern map, where such names as Charles City and James City are simply names of counties. How came such names first to be used in such senses? One's mind naturally reverts to what goes on to-day in the Far West, where geographical names, like doubtful promissory notes, must usually be taken with heavy discount for an uncertain future, where in every such appellation there lurks the hope of a boom, and any collection of three or four log-cabins, with a saw-mill and whiskey-shop, surrounded by a dozen acres of blackened tree-stumps, may forthwith appear in the Postal Guide under some such title as Chain Lightning City. In oldest Virginia we may perhaps see marks of such a spirit of buoyant confidence in such names as Charles City or the City of Henricus. No doubt Sir Thomas Dale, when he fortified the little Dutch Gap peninsula and marked out its streets, believed himself to be founding a true city with urban destinies awaiting it. This explanation, however, does not cover the whole case. Whatever the title of each individual settlement in oldest Virginia,—whether plantation, or hundred, or city,—all were alike conceived, for legal and political purposes, as equivalent to boroughs, although they were not thus designated. Now the primary meaning of the word "borough" is "fortress," and in early English usage a borough was a small and thickly peopled hundred surrounded by a durable wall. A "hundred" was a small aggregation of townships united by a common responsibility for the good behaviour of its people; it was therefore the smallest area for the administration of justice, the smallest social community which possessed a court. Ordinarily the hundred was a rural community, but that special compact and fortified form of it known as the borough retained all the legal features of the ordinary hundred; it had its own court, and was responsible for its own malefactors and vagrants. In old English boroughs the responsible men—those who owned property, and paid taxes, and chose representatives—were the burgesses. Bearing always in mind this equivalence between the borough and the hundred, we may note further that in early times the hundred was a unit for military purposes;

Boroughs and
burgesses.

Boroughs and
hundreds.

it was about such a community as could furnish to the general levy a company of a hundred armed men. It was also a unit of representation in the ancient English shire-moot or county court. Now in oldest Virginia the colonial assembly, when instituted in 1619, the earliest legislature of civilized men in the western hemisphere, was patterned after the old English county court, and it was natural that its units should be conceived as hundreds and in some instances called so. Moreover, there are indications that at times the hundred was regarded as a military division, and also as the smallest area for the administration of justice, as in the law passed in 1624 providing that Charles City and Elizabeth City should hold monthly courts.

[109] Whatever names the early settlers of Virginia gave to their settlements individually, they seem to have regarded them all in the legal light of hundreds, and as they were familiar with the practical equivalence of the borough as a unit for judicial and representative purposes, it was natural that when they came to choose a general assembly they should speak of its members as if they were representatives of boroughs. They were familiar with burgesses in England, but the designations "hundred-men" and "hundred-elders" had become obsolete.

Resuming our pilgrimage through the Virginia of 1624, we find no walls of massive masonry with frowning turrets encompassing these rudimentary boroughs, but at the most exposed points we meet with stout wooden blockhouses and here and there a row of palisades. At some places there are wharves for the convenient shipping of tobacco, but now and then, if the tide is not

just right, we may be in danger of wetting our feet in going ashore, about which that ill-disposed Captain Butler has lately made so much fuss. The wooden frame houses, having been built without regard to æsthetic effects, with beams here and there roughly hewn and boards not always smoothly planed, are not so attractive in outward appearance as they might be, but they are roomy and well-aired, and the settlers already point to them with some degree of pride as more comfortable than the houses of labouring men in England. These houses usually stand at wide intervals, and nowhere, perhaps, except at Henricus and Jamestown, would one see them clustering in a village with streets. Here and there one might come across a handsomer and more finished mansion, like an English manor house, with cabins for servants and farm buildings at some distance. Of negroes scarcely any are

The houses.

Labourers.

Indians.

to be seen, only twenty-two all told, in this population of perhaps 4,000 souls. Cheap labour is supplied by white servants, bound to their masters by indentures for some such term as six or seven years; they are to some extent a shiftless and degraded set of creatures gathered from the slums and jails of English seaport towns, but many of them are of a better sort. Of red men, since the dreadful massacre of two years ago, one sees but few; they have been driven off to the frontier, the alliance cemented by the marriage of Pocahontas is at an end, and no more can white men be called Powhatans. On this point the statute book speaks in no uncertain tones: "Ffor the Indians we hould them our irrecosileable enimies," and it is thought fit that if any of them be found molesting cattle or lurking about any plantation, "then the commander shall have power by virtue of this act to rayse a sufficient partie and fall out uppon them, and persecute them as he shall finde occasion."^[110]

In the plantations, thus freed from the presence of Indians, European domestic animals have become plenty. Horses, indeed, are not yet so much in demand as boats and canoes, but oxen draw the plough, the cows are milked night and morning, sheep and goats browse here and there, pigs and chickens are innumerable. Pigeons coo from the eaves, and occasionally one comes upon a row of murmurous bee-hives. The broad clearings are mostly covered with the cabbage-like tobacco plant, but there are also many fields of waving wheat and barley, and many more of the tasselled Indian corn. John Smith's scheme for manufacturing glass and soap has not yet been abandoned; the few workmen from Poland, brought here by him, have remained, or else others have come in place of them, for we find the House of Burgesses passing a statute admitting them to the franchise and other privileges of English citizenship, because of their value to the commonwealth in these branches of industry. Skilled workmen of another sort have been sent over by Nicholas Ferrar from France, for since mulberries grow in Virginia it has been thought that silk-worms might be profitably raised here, but such hopes are not destined to be realized.

Agriculture, etc.

Such was the outward aspect of things along the banks of the James River in the year when, amid general grief and forebodings, the London Company was dissolved; and such it continued to be for many a year to come, save that the cultivated

Tobacco.

area increased in extent and the settlers in number, and that in spite of divers efforts to check it, the raising of tobacco encroached more and more upon all other forms of industry, tending to crush them out of existence, while at the same time the plantations grew larger and the demand for cheap labour was vastly increased. For some time the cultivation of Indian corn assumed considerable proportions, so that not only was there enough for home consumption, but in 1634 more than ten thousand bushels were exported to Winthrop's new colony on Massachusetts Bay. Nevertheless the encroachments of tobacco went on without cessation, until the features of social life in old Virginia came to be those of a wealthy and powerful community economically based upon one single form of agricultural industry.

In the Virginia of 1624 one could not look for any highly developed forms of social recreation, or for means of education or literary attainment. Various episodes of farm work, such as the harvesting of the crops, or now and then the raising of the frame of a house or barn, seem to have been occasions for a gathering of neighbours with some sort of merrymaking, very much as in other primitive rural communities. Among the leading colonists were men of university education who brought with them literary tastes, and in their houses might have been found ponderous tomes of controversial theology, as well as those little thin quarto tracts of political discussion that nowadays often fetch such fabulous prices. Captain John Smith was spending his last years quietly in England, making maps and writing or editing books. His "General History of Virginia," published in 1624, can hardly fail to have been read with interest in the colony; and the same ship that brought it may well have brought the first folio edition of Shakespeare's complete works, which came from the press in the preceding year. Literary production of a certain sort went on in the colony. Such tracts as Ralph Hamor's "True Discourse" and Whitaker's "Good News from Virginia," though books of rare interest and value, will perhaps hardly come under the category of pure literature. But the translation of Ovid's *Metamorphoses* by George Sandys, youngest brother of Sir Edwin, has been well known and admired by scholars from that time to our own. George Sandys came to Virginia in 1621 as treasurer of the colony, fortified with some rather dull verses from the poet laureate, Michael Drayton:—

Literature.

"And worthy George, by industry and use
Let's see what lines Virginia will produce;
Entice the Muses thither to repair,
Entreat them gently, train them to that air;
For they from hence may thither hap to fly."

On the bank of James River the worthy George entreated the Muses with success and wrote the greater part of his poetical version, which was published at London in 1626.

But the Muses could not be enticed to stay long in Virginia without some provision for higher education there, and this was well understood by Sir Edwin Sandys and the enlightened gentlemen who supported him. In 1621 the Company resolved that funds should be appropriated "for the erecting of a public free school ... for the education of children and grounding of them in the principles of religion. Civility of life and humane learning," said the committee's report, "seemed to carry with it the greatest weight and highest consequence unto the plantations as that whereof both Church and Commonwealth take their original foundation and happy estate, this being also like[ly] to prove a work most acceptable unto the planters, through want whereof they have been hitherto constrained to their great costs to send their children from thence hither to be taught." Rev. Patrick Copeland, a missionary returning from the East Indies, raised £70 toward the endowment of this school, and was busily engaged in doing more for it. It was accordingly called the East India School, it was to be established in Charles City, and its courses of study were to be preparatory to those of a university which was to be set up in the city of Henricus. Great interest was felt in this university. Like Harvard College, founded somewhat later, it was designed not only for the education of white youths but also for civilizing and missionary work among the Indians. The Bishop of London raised by subscription £1,000 for the enterprise; one anonymous benefactor gave a silver communion service; another, who signed himself "Dust and Ashes," sent £550, and promised, after certain progress should have been made, to add £450 more; this man was afterward discovered to be a member of the Company, named Gabriel Barber. The elder Nicholas

Education.

Project for a
university.

Ferrar left £300 in his will, and various contributions were added by his sons. A tract of land in Henricus was appropriated for the site of the college, and George Thorpe was sent out to be its rector, or, as we should say, its president. But Thorpe, as well as others who were interested in the enterprise, perished in the Indian massacre of 1622. It seems that Copeland was about to be sent to take his place, and the enterprise was about to be vigorously pushed on by Ferrar and his friends, when the overthrow of the Company took away all control over Virginian affairs from the people most interested in this work. So the scheme for a college remained in a state of suspended vitality for seventy years, until Dr. Blair revived it in 1692, and established it in the town of Williamsburg.

Everybody knows that the college of William and Mary is the oldest in the United States, after Harvard. It is not so generally known that the former was planned and all but established in 1622, eight years before Winthrop and his followers came to Massachusetts Bay. It is a just and wholesome pride that New England people feel in recalling the circumstances under which Harvard College was founded, in a little colony but six years of age, still struggling against the perils of the wilderness and the enmity of its sovereign. Such an event is quite properly cited in illustration of the lofty aims and intelligent foresight of the founders of Massachusetts. But it should not be forgotten that aims equally lofty and foresight equally intelligent were shown by the men who from 1619 to 1624 controlled the affairs of Virginia. One of the noblest features in the great Puritan movement was its zeal for education, elementary education for everybody and higher education for all who could avail themselves of it. It is important to remember that this zeal for education, as well as the zeal for political liberty, was not confined to the Puritans. Within the established Church of England and never feeling a desire to leave it, were eminent men who to the political principles of Pym joined a faith in education as strong as Locke's. The general temper of these men, of whom Richard Hooker was the illustrious master, was broadly tolerant. Sir Edwin Sandys was friendly to the Leyden Pilgrims, and it was under his administration that the Virginia Company granted them the patent under which they would have founded their colony on the coast of New Jersey or Delaware, had not foul weather driven the Mayflower to Cape Cod. It was Sandys and Nicholas Ferrar that were most energetic in the attempt to found a college in Virginia, and there were some curious points

Puritans and Liberal Churchmen.

of resemblance between their situation in 1622 and the situation of Winthrop and his friends while they were laying the foundations of Harvard College. In 1622, while James I. was plotting the overthrow of the London Company, the horrors of Indian massacre, as sudden as lightning from a cloudless sky, fell upon the people of Virginia. In 1637 the people of Massachusetts had the Pequot war on their hands, and Charles I. was plotting the overthrow of the Company of Massachusetts Bay, against whose charter he was on the point of issuing a writ of *quo warranto*, when in St. Giles's church at Edinburgh one Sunday old Jenny Geddes threw her camp-stool at the bishop's head, and in the ensuing turmoil American affairs were quite forgotten.

The comparison reminds us that the Company of Massachusetts Bay knew how to profit by the fate of its great predecessor, the London Company for Virginia. In the summer of 1629, when things were looking very dark in England, the leaders of the Massachusetts Bay Company held a meeting at Cambridge and decided to carry their company, with its charter, across the ocean to New England, where they might work out their purposes without so much danger from royal interference. This transfer of the Company to America was the most fundamental circumstance in the early history of New England. The mere physical fact of distance transformed the commercial company into a self-governing republic, which for more than fifty years managed its own affairs in almost entire independence of the British government. Difficulty of access and infrequency of communication were the safeguards of the Massachusetts Bay Company. If it had held its meetings and promulgated its measures in London, its life would not have been worth a five years purchase. It had the fate of the Virginia Company for a warning, and most adroitly did it profit by the lesson. If the Virginia Company could have been transferred bodily to America in 1620, it might perhaps have become similarly changed into a self-governing semi-independent republic; the interests of the Company would have been permanently identified with those of the colony, and the course of Virginian history might have been profoundly affected. As it was, Virginia attained through the fall of the Company to such measure of self-government as it had throughout the colonial period, a self-government much like that of Massachusetts after 1692, but far less complete than that of Massachusetts before 1684.

Massachusetts and
Virginia.

It was not the intention of James I. that the overthrow of the Company should contribute in any way to increase the liberties of the colony of Virginia. All colonizable territory claimed by Great Britain was, in his opinion, just so much royal domain, something which came to him by inheritance like the barony of Renfrew or the manor of Windsor; it was his to do what he liked with it, and for settlers in such territory no better law was needed than such as he could make for them himself. A shadow of doubt as to his own omniscience was never one of James's weaknesses, and no sooner had the Company's charter been annulled than he set himself to work to draw up a constitution for Virginia. It was work of a sort that he thoroughly enjoyed, but what might have come of it will never be known, for while he was busy with it there came upon him what the doctors called a tertian ague, which carried him off in March, 1625.

Death of James I.

In the history of England no era is marked by the accession of Charles I. In its policy and methods, and in the political problems at issue, his reign was merely the continuation of his father's. But in the history of Virginia his accession marks an important era. For if James had lived to complete his constitution for Virginia he would in all probability have swept away the representative government introduced by Sir Edwin Sandys; but Charles allowed it to stand. As the situation was left by the death of James, so it remained without essential change until 1776. The House of Burgesses was undisturbed, but the governor and council were thenceforth appointed by the crown. The colony was thus left less independent than it would have been if the Company, with its power of electing its own executive officers, could have been transferred bodily to Virginia; but it was left more independent than it would have been if the existence of the Company had been continued in London. The change from governors appointed by the Company to governors appointed by the crown was a relaxation of the supervision which England exercised over Virginia. For the Company could devote all its attention to the affairs of the colony, but the crown could not. Especially in such reigns as those of the two Charleses, the attention of the crown was too much absorbed with affairs in Great Britain to allow it to interfere decisively with the course of events in Virginia. The colony was thus in the main thrown back upon its own resources, and such a state of things was most favourable to its wholesome development. The Company,

Effect of the
downfall of the
Company.

after all, was a commercial corporation, and the main object of its existence was to earn money for its shareholders. The pursuit of that object was by no means always sure to coincide with the best interests of the colony. Moreover, although the government of the Company from 1619 to 1624 was conducted with energy and sagacity, disinterestedness, honesty, and breadth of view such as history has seldom seen rivalled, yet there was no likelihood that such would always be the case. Such a combination of men in responsible positions as Southampton and Sandys and Ferrar is too rare to be counted upon. The Company might have passed for a weary while under the control of incompetent or unscrupulous men, and to a young colony like Virginia such a contingency would have been not only disagreeable but positively dangerous. No community, indeed, can long afford to have its affairs administered by a body of men so far away as to be out of immediate touch with it. On the other hand, even if we could suppose a commercial company to go on year after year managing a colony with so much intelligence and sympathy as the London Company showed in its last days, such a situation would not be permanently wholesome for the colony. What men need is not fostering or coddling, but the chance to give free play to their individual capacities. If coddling and fostering could make a colony thrive, the French in Canada ought to have dominated North America. From all points of view, therefore, it seems to have been well for Virginia that the Company fell when it did. It established self-government there, set its machinery successfully to work, and then vanished from the scene, like the Jinni in some Oriental tale, leaving its good gift behind.

The boon of self-government was so congenial to the temper of the Virginians that they would doubtless have contrived somehow to obtain it sooner or later.

The virus of liberty.

Hutchinson tells us that when the second American house of representatives was instituted, namely, that of Massachusetts Bay in 1634, the people were well aware that no provision for anything of the sort had been made in of their charter, but they assumed that the right to such representation was implied by that clause of the charter which reserved to them the natural rights of Englishmen;^[111] and elsewhere the same eminent historian quaintly speaks of a House of Burgesses as having *broken out* in Virginia in 1619, as if there were an incurable virus of liberty in the English blood, as if it were something that must come out as inevitably as original sin. But if James I. had lived longer, as I have already observed, he would undoubtedly

have made an effort to repress this active spirit of liberty. The colonists, on hearing of the downfall of the Company, were in great alarm lest they should lose their House of Burgesses, and have some arbitrary governor appointed to rule over them, perhaps the hated Argall himself, whom we have seen King James selecting as one of a board of commissioners to investigate affairs in Virginia. In 1621, when for some reason or other the amiable and popular Yeardley had asked to be relieved of the duties of governor, Argall had tried to get himself appointed in his place, but the Company had chosen Sir Francis Wyatt, who held the office until 1626, while Yeardley remained in Virginia as a member of the council. In 1625, as soon as the assembly heard of King James's death, they sent Yeardley to England to pay their respects to King Charles and to assure him that the people of Virginia were thoroughly satisfied with their government and hoped that no changes would be made in it.

Now it happened that Charles had a favour to ask of the settlers in Virginia, and was in the right sort of mood for a bargain. He was no more in love than his father with the many-tongued beast called Parliament, he saw how comfortably his brother-in-law of France was getting along without such assistance, and he was determined if possible to do likewise. But to get along without parliaments a poor king must have some means of getting money. The Virginia tobacco crop was fast becoming a great source of wealth; why should not the king himself go into the tobacco trade? If all tobacco brought to England from Virginia could be consigned to him, then he could retail it to consumers at his own price and realize a gigantic profit; or, what was perhaps still better, having obtained this monopoly, he could farm it out to various agents who would be glad to pay roundly for the privilege. Now the only way in which he could treat with the people of Virginia on such matters was through the representatives of the people. Accordingly, when Governor Wyatt in 1626 had occasion to return to England, the king sent back Sir George Yeardley as royal governor, which under the circumstances was a most emphatic assurance that the wishes of the settlers should be granted. Furthermore, in a message to their representatives Charles graciously addressed them as "Our trusty and well-beloved Burgesses of the Grand Assembly of Virginia," and thus officially recognized that house as a coördinate branch of the colonial government. Some arrangements made with regard to the tobacco trade were calculated to please the colonists.

Charles I. and the tobacco trade.

James I., under the influence of his mentor, Count Gondomar, had browbeaten the Company into an arrangement by which they consented to import into England not more than 60,000 or less than 40,000 pounds of tobacco yearly from the Spanish colonies. Charles I. on the other hand prohibited the importation of Spanish tobacco, so that Virginia and the Bermudas had a monopoly of the market. In spite of this friendly attitude of the king toward the colonists, he never succeeded in becoming the sole purchaser of their tobacco at a stipulated price. The assembly was ready from time to time to entertain various proposals, but it never went so far as that; and if Charles, in sanctioning this little New World parliament, counted upon getting substantial aid in ignoring his Parliament at home, he was sadly disappointed.

It is now time for us to attend a session of this House of Burgesses, to make a report of its work, and to mention some of the vicissitudes which it encountered in the course of the reign of Charles I. The place of meeting was the wooden church at Jamestown, 50 feet in length by 20 in width, built in 1619, for Lord Delaware's church had become dilapidated; a solid brick church, 56 feet by 28, was built there in 1639. From the different plantations and hundreds the burgesses came mostly in their barges or sloops to Jamestown. In 1634 the colony was organized into counties and parishes, and the burgesses thenceforth represented counties, but they always kept their old title. At first the governor, council, and burgesses met together in a single assembly, just as in Massachusetts until 1644, just as in England the Lords and Commons usually sat together before 1339.^[112] A member of this Virginia parliament must take his breakfast of bacon and hoe-cake betimes, for the meeting was called together at the third beat of the drum, one hour after sunrise. The sessions were always opened with prayers, and every absence from this service was punished with a fine of one shilling. The fine for absence during the whole day was half a crown. In the choir of the church sat the governor and council, their coats trimmed with gold lace. By the statute of 1621, passed in this very church, no one was allowed to wear gold lace except these high officials and the commanders of hundreds, a class of dignitaries who in 1634 were succeeded by the county lieutenants. In the body of the church, facing the choir, sat the burgesses in their best attire, with starched ruffs, and coats of silk or velvet in bright colours. All sat with their hats on, in imitation of the time-honoured custom of the

The first American legislature.

House of Commons, an early illustration of the democratic doctrine, "I am as good as you." These burgesses had their speaker, as well as their clerk and sergeant-at-arms. Such was the first American legislature, and two of its acts in the year 1624 were especially memorable. One was the declaration, passed without any dissenting voice, "that the governor shall not lay any taxes or impositions upon the colony, their lands or commodities, otherway than by the authority of the general assembly, to be levied and employed as the said assembly shall appoint." The other was the punishment of Edward Sharpless, clerk of the house. When the king's commissioners to inquire into the affairs of Virginia asked for the public records of the colony the assembly refused to show them, albeit they were ready to answer questions propounded in a becoming temper. But the commissioners practised upon Sharpless and induced him to furnish them with a copy of the records, whereupon the assembly condemned the said Sharpless to stand in the pillory and have half of one ear cut off.

This general assembly was both a legislative and a judicial body. It enacted laws and prescribed the penalties for breaking them, it tried before a jury persons accused of crime and saw that due punishment was inflicted upon those who were adjudged guilty, it determined civil causes, assessed the amount of damages, and saw that they were collected. From sweeping principles of constitutional law down to the pettiest sumptuary edicts, there was nothing which this little parliament did not superintend and direct. On one occasion, "the delegates from Captain John Martin's plantation were excepted to because of a peculiar clause in his patent releasing him from obeying any order of the colony except in times of war." A few days afterward the said Captain Martin appeared at the bar of the house, and the speaker asking whether he would relinquish the particular clause exempting him from colonial authority, replied that he would not yield any part of his patent. The assembly then resolved that the burgesses of his plantation were not entitled to seats.^[113] Such exemptions of individual planters by especial license from the home government, although rare, were of course anomalies not to be commended; in some cases they proved to be nuisances, and in course of time all were got rid of. From this constitutional question the assembly turned to the conversion of the red men, and enacted that each borough or hundred should obtain from the Indians by just and fair means a certain number of Indian children to be

Martin's case.

Education of
Indians.

educated "in true religion and a civil course of life; of which children the most towardly boys in wit and graces of nature [are] to be brought up by them in the first elements of literature, so as to be fitted for the college intended for them, that from thence they may be sent to that work of conversion." Few enactments of any legislature have ever been better intended or less fruitful than this.

It was moreover enacted that any person found drunk was for the first offence to be privately reproved by the minister; the second time this reproof was to be publicly administered; the third time the offender must be put in irons for twelve hours and pay a fine; for any subsequent offences he must be severely punished at the discretion of the governor and council.

Drunkards.

To guard the community against excessive vanity in dress, it was enacted that for all public contributions every unmarried man must be assessed in church "according to his own apparel;" and every married man must be assessed "according to his own and his wife's apparel."

Dress.

Not merely extravagance in dress, but such social misdemeanours as flirting received due legislative condemnation. Pretty maids were known to encourage hopes in more than one suitor, and gay deceivers of the sterner sex would sometimes seek to win the affections of two or more women at the same time. Wherefore it was enacted that "every minister should give notice in his church that what man or woman soever should use any word or speech tending to a contract of marriage to two several persons at one time ... as might entangle or breed scruples in their consciences, should for such their offense, either undergo corporal correction [by whipping] or be punished by fine or otherwise, according to the quality of the person so offending."^[114]

Flirting.

Men were held to more strict accountability for the spoken or written word than in these shameless modern days. One of the most prominent settlers we find presenting a petition to the assembly to grant him due satisfaction against a neighbour who has addressed to him a letter "wherein he taxeth him both unseemly and amiss of certain things wherein he was never faulty." Speaking against the governor or any

Scandal.

Clergymen.

member of the council was liable to be punished with the pillory. It was also imprudent to speak too freely about clergymen, who were held in great reverence. No planter could dispose of so much as a pound of tobacco until he had laid aside a certain specified quantity as his assessment toward the minister's salary, which was thus assured even in the worst times, so far as legislation could go. It was enacted that "noe man shall disparage a mynister whereby the myndes of his parishoners may be alienated from him and his mynistrie prove less effectuall, upon payne of severe censure of the governor and councell."^[115] At the same time clergymen were warned against unseemly practices in terms so concrete as to raise a suspicion that such warning may have been needed. "Mynisters shall not give themselves to excesse in drinking or ryott, spending their tyme idelie by day or by night playing at dice, cards, or any other unlawfull game, but at all tymes convenient they shall heare or reade somewhat of the holy scriptures, or shall occupie themselves with some other honest studies or exercise, alwayes doinge the things which shall apperteyne to honestie and endeavour to profitt the church of God, having alwayes in mind that they ought to excell all others in puritie of life, should be examples to the people, to live well and christianlie."^[116]

The well-being of Virginia society was further protected by sundry statutes such as the one which punished profane swearing by a fine of one shilling per oath. "For the better observation of the Saboth" it was enacted that no person "shall take a voyage vppon the same, except it be to church or for other causes of extreme necessitie," under penalty of forfeiting twenty pounds of tobacco for each offence. A similar fine was imposed for firing a gun upon Sunday, unless it might be for defence against the Indians. Selling arms or ammunition to Indians was punished by imprisonment for life, with confiscation of goods. Every master of a family was required, under penalty of ten pounds of tobacco, to bring with him to church every Sunday a serviceable gun with plenty of powder and shot.

Sabbath-breaking.

Stringent legislation protected the rights of thirsty persons. "Whereas there hath been great abuse by the vnreasonable rates enacted by ordinary keepers, and retaylers of wine and strong waters," maximum prices were established as follows: for Spanish wines 30 lbs. of tobacco per gallon, for Madeira 20

Strong drink.

lbs., for French wines 15 lbs., for brandy 40 lbs., for "the best sorte of all English strong waters" 80 lbs.; and any vender charging above these rates was to be fined at double the rate. For corrupting or "sophisticating" good liquor by fraudulent admixtures, a fine was imposed at the discretion of the commissioners of the county courts. The inn-keeper who sold wines and spirits to his guests did so at his own risk, for such debts were not recoverable at law.^[117]

The ancient prejudice against forestalling survives in the following statute, which would make havoc of the business of some modern brokers: "Whatsoever person or persons shall buy or cause to be bought any marchandize, victualls, or any other thinge, comminge by land or water to the markett to be sold, or make any bargaine, contract or promise for the haveinge or buyinge of the same ... before the said marchandize, victualls, or other thinge shall bee at the markett readie to be sold; or make any motion by word, letter or message or otherwise to any person or persons for the enhaunsing of the price, or dearer sellinge of any thinge or thinges above mentioned, or else dissuade, move, or stirr any person or persons cominge to the marquett, to abstaine or forbear to bringe or conveye any of the things above rehearsed to any markett as aforesayd, shall be deemed and adjudged a forestaller. And yf any person or persons shall offend in the things before recited and beinge thereof dylie convicted or attaynted shall for his or their first offence suffer imprisonment by the space of two mounthes without baile or maine-prize, and shall also loose and forfeite the value of the goods soe by him or them bought or had as aforesayd; and for a second offence ... shall suffer imprisonment by the space of one halfe yeare ... and shall loose the double value of all the goods ... soe bought ... and for the third offence ... shall be sett on the pillorie ... and loose and forfeit all the goods and chattels that he or they then have to their owne use, and also be committed to prison, there to remayne duringe the Governor's pleasure."^[118]

Forestallers.

Edmund Spenser, in his dedication of the "Faëry Queene," in 1590, calls Elizabeth the queen of England, France, and Ireland, and of Virginia, thus characterizing

The kingdom of
Virginia.

as a kingdom the vast and vague domain in the New World which she was appropriating. Soon after the downfall of the Virginia Company, the document containing Charles I.'s appointment of William Claiborne as secretary of state in the colony mentioned it as "our kingdom of Virginia;" and the phrase occurs in other writings of the time. It is a phrase that seems especially appropriate for the colony after it had come to be a royal province, directly dependent upon the king for its administration. During the reign of Charles I. the relations of the kingdom of Virginia to the mother country were marked by few memorable incidents. In this respect the contrast with the preceding reign is quite striking. One must read the story in the original state papers, correspondence, and pamphlets of the time, in order to realize to what an extent the colony was cut loose by the overthrow of the Company. The most interesting and important questions that came up were connected with the settlement of Maryland, but before we enter upon that subject, a few words are needed on the succession of royal governors in Virginia.

The commission of Yeardley in 1626 named Sir John Harvey as his successor. When Yeardley died in 1627, Harvey had not arrived upon the scene, and needed to be notified. In such cases it was the business of the council to appoint a governor *ad interim*, and the council appointed one of the oldest and most honoured settlers, Francis West, brother of the late Lord Delaware. After one year of service business called West to England, and his place was taken by Dr. John Pott, who held the government until Sir John Harvey's arrival in March, 1630. This Dr. Pott is described as "a Master of Arts, ... well practised in chirurgery and physic, and expert also in distilling of waters, [besides] many other ingenious devices."^[119] It seems that he was likewise very fond of tasting distilled waters, and at times was more of a boon companion than quite comported with his dignity, especially after he had come to be governor. A letter of George Sandys to a friend in London says of Dr. Pott, "at first he kept company too much with his inferiors, who hung upon him while his good liquor lasted. After, he consorted with Captain Whitacres, a man of no good example, with whom he has gone to Kecoughtan."^[120] What was done by the twain at Kecoughtan is not matter of record, but we are left with a suggestion of the darkest possibilities of a carouse.

A convivial
governor.

After Harvey's arrival ex-Governor Pott was arrested, and held to answer two charges: one was for having abused the powers entrusted to him by pardoning a culprit who had been convicted of wilful murder; the other was for stealing cattle. The first charge was a matter of common notoriety; on the second Dr. Pott was tried by a jury and found guilty. The ex-governor was not only a pardoner of felony, but a felon himself. The affair reads like a scene in comic opera. Some reluctance was felt about inflicting vulgar punishment upon an educated man of good social position; so he was not sent to jail but confined in his own house, while Sir John Harvey wrote to the king for instructions in the matter. He informed the king that Dr. Pott was by far the best physician in the colony, and indeed the only one "skilled in epidemics," and recommended that he should be pardoned. Accordingly the doctor was set free and forthwith resumed his practice.

Soon it was Governor Harvey's turn to get into difficulties. How he was "thrust out" from his government in 1635 and restored to it by Charles I. in 1637 will best be told in a future chapter in connection with the affairs of Maryland. After Harvey's final

Growth of Virginia.

Other colonies.

departure in 1639, Sir Francis Wyatt was once more governor for three years, and then came the famous Sir William Berkeley, who remained for five-and-thirty years the most conspicuous figure in Virginia. When Berkeley arrived upon the scene, in 1642, on the eve of the great Civil War, he received from Wyatt the government of a much greater Virginia than that over which Wyatt was ruling in 1624. Those eighteen years of self-government had been years of remarkable prosperity and progress. Instead of 4,000 English and 22 negroes, the population now numbered 15,000 English and 300 negroes. Moreover, Virginia was no longer the only English colony. In 1624 there were no others, except the little band of about 200 Pilgrims at Plymouth. In 1642 the population of New England numbered 26,000, distributed among half-a-dozen self-governing colonies. There was also a community of Dutchmen laying claim to the whole region between the Mohawk valley and Delaware Bay, with a flourishing town on Manhattan Island in the finest commercial situation on the whole Atlantic coast. The Virginians did not relish the presence of these Dutchmen, for they too laid claim to that noble tract of country. The people of Virginia had made the first self-supporting colony and felt that they had established a claim upon the middle zone. The very name Virginia had not yet ceased to

cling to it. In books of that time one may read of the town of New Amsterdam upon the island of Manhattan in Virginia. In 1635 a party of Virginians went up to the Delaware River and took possession of an old blockhouse there, called Fort Nassau, which the Dutch had abandoned; but a force from New Amsterdam speedily took them prisoners and sent them back to Virginia,^{[\[121\]](#)} with a polite warning not to do so any more. They did not.

Still nearer at hand, by the waters of the Potomac and Susquehanna, other rivals and competitors, even more unwelcome to the Virginians, had lately come upon the scene. The circumstances of the founding of Maryland, with its effects upon the kingdom of Virginia, will be recounted in the two following chapters.

CHAPTER VIII.

THE MARYLAND PALATINATE.

ON the southwestern coast of Ireland, not far from Cape Clear, the steamship on its way from New York to Liverpool passes within sight of a small promontory crowned by an ancient village bearing the Gaelic name of Baltimore, which signifies "large townlands."^[122] The events which transferred this Irish name to the banks of the Patapsco River make an interesting chapter of history.

The Irish Baltimore.

George Calvert, son of a wealthy Yorkshire farmer of Flemish descent, was born about 1580. After taking his degree at Oxford and travelling for some time on the Continent, he was employed as an under-secretary in the state department by Sir Robert Cecil, after whom he named his eldest son Cecilius. His warm advocacy of the Spanish marriage made him a great favourite of James I., so that in 1617 he was knighted and in 1619 was appointed secretary of state. He seems always to have had a leaning toward the Roman Church. Whether he was converted in 1624, or simply made public profession of a faith long cherished in secret, is matter of doubt. At all events, he resigned his secretaryship at that time. The next year one of the last things done by James, a few days before his death, was to raise Calvert to the Irish peerage as Baron Baltimore.

George Calvert.

The son of Mary Stuart had a liberal way of dealing with his favourites. In March, 1623, he granted the great southeastern promontory in Newfoundland—the region now known as Ferryland, between Trinity and Placentia bays—to George Calvert, to be held by him and his heirs forever. The government was to be a "palatinate," a statement which calls for a somewhat detailed explanation.

A palatinate in Newfoundland.

When that great and far-sighted ruler William the Conqueror arranged the affairs of England after the battle of Hastings, he sought to prevent such evils as

Origin of palatinates.

those against which the newly founded Capetian monarchy in France was struggling for life, evils arising from the imperfect subordination of the great feudal lords. To this end he made it a rule not to grant large contiguous estates to the same lord, and in every county he provided that the king's officer, the sheriff, should be clothed with powers overriding those of the local manorial officers. He also obliged the tenants of the barons to swear fealty directly to the crown. This shrewd and wholesome policy, as developed under his able son Henry I. and his still abler great-grandson Henry II., has profoundly affected the political career of the English race. But to this general policy William admitted one class of exceptions. In the border counties, which were never quite free from the fear of invasion, and where lawlessness was apt to be more or less prevalent in time of peace, it was desirable to make the local rulers more powerful. Considerations of this sort prevailed throughout mediæval Europe. Universally, the ruler of a march or border county, the count or graf or earl placed in such a responsible position, acquired additional power and dignity, and came to be distinguished by a grander title, as margrave, marquis, or count of the marches. In accordance with this general principle, William the Conqueror granted exceptional powers and consolidation of authority to three counties, to Durham on the Scotch border, to Chester on the border of Wales, and to Kent, where an invader from the Continent might with least difficulty effect a landing. Local administration in those counties was concentrated in the hands of the county ruler; they were made exceptionally strong to serve as buffers for the rest of the kingdom, and they were called "palatinates" or "counties palatine," implying that within their boundaries the rulers had quasi-regal rights as complete as those which the king had in his palace. They appointed the officers of justice, they could pardon treasons and felonies, forfeitures at common law accrued to them, and legal writs ran in their name instead of the king's. The title of "count palatine" carries us back to the times of the Merovingian kings in Gaul, when it belonged to one of the highest officers in the royal household, who took judicial cognizance of all pleas of the crown. Hence the title came to be applied to other officers endowed with quasi-regal powers. Such were the counts palatine of the Rhine and Bavaria, who in the course of the thirteenth century became electoral princes of the Holy Roman Empire. One of their domains, the Rhenish Palatinate, of which Heidelberg in its peerless

beauty is the crown and glory, has contributed, as we shall hereafter see, an element of no small importance to the population of the United States.

To return to William the Conqueror: in an age when the organization of society was so imperfect, and action at a distance so slow and difficult, the possession of quasi-regal powers by the rulers of the palatine counties made it much easier for them to summon quickly their feudal forces in case of sudden invasion. In view of the frequency of quarrels and raids on the border, the quasi-regal authority was liable at any moment to be needed to prevent war from breaking out, and the proper administration of justice demanded a short shrift and a sharp doom for evil-doers. The powers granted by William to the palatine counties resembled those wielded by the French dukedoms of the same period, but with admirable forethought he appointed to rule them priests who could not marry and found feudal families. Durham and for a time Chester were ruled by their bishops, and over Kent as a secular jurisdiction William placed his own brother, Odo, Bishop of Bayeux. In course of time many changes occurred. Kent soon lost its palatine privileges, while those of Chester were exercised by its earls until the reign of Henry III., when the earldom lapsed to the crown. After the conquest of Wales the county of Pembroke on its southwestern coast was made a palatinate, but its privileges were withdrawn by Henry VIII. For a time such privileges were enjoyed by Hexhamshire, between Durham and Northumberland, but under Elizabeth that little county was absorbed in Northumberland. One other northern shire, the duchy of Lancaster, was made a palatinate by Edward III., but that came to an end in 1399, when the Duke of Lancaster ascended the throne of England as Henry IV. Traces of its old palatinate jurisdiction, however, still survive. Until the Judicature Act of 1873 Lancaster and Durham had each its own distinct and independent court of common pleas, and the duchy of Lancaster has still its own chancellor and chancery court outside of the jurisdiction of the lord chancellor. As for the palatine authority of the bishops of Durham, it was vested in the crown in the year preceding the accession of Victoria.

Changes in English palatinates.

From this survey it appears that by the end of the sixteenth century the bishopric of Durham was left as the only complete instance of a palatinate, or kingdom within the kingdom. In the northern marches the need for such a buffer was

The bishopric of Durham.

longer felt than elsewhere, and the old political structure remained very much as it had been created by William I., with the mitred bishop at its head. The great Norman cathedral, in its position of unequalled grandeur,

Avalon and
Durham.

"Half house of God,
Half castle 'gainst the Scot,"

still rears its towers in the blue sky to remind us of the stern days when tartan-clad thousands came swarming across the Tweed, to fall in heaps before the longbow at Halidon Hill and Neville's Cross and on many another field of blood. When the king of Scots came to be king of England, this principality of Durham afforded an instance of a dominion thoroughly English yet semi-independent, unimpeachable for loyalty but distinct in its administration. It was not strange, therefore, that it should have served as a pattern for colonial governments to be set up in the New World. For such governments virtual independence combined with hearty allegiance was the chief desideratum, a fact which in later days George III. unfortunately forgot. From the merely military point of view a colony in the American wilderness stood in at least as much need of palatine authority as any frontier district in the Old World. Accordingly, when it was decided to entrust the work of founding an American colony to a nobleman with his clientage of followers, an example of the needful organization was already furnished by the great northern bishopric. Calvert's province in Newfoundland, which received the name of Avalon,^[123] was to be modelled after the palatinate of Durham, and the powers granted to its lord proprietor were perhaps the most extensive ever bestowed by the English crown upon any subject.

A party of colonists went at once to Newfoundland in 1623, but various affairs detained Lord Baltimore at home until 1627, when he came with his wife and children to dwell in this New World paradise of Avalon. The trail of the serpent was already there. A French fleet came to attack the colony, meditating revenge for Argall's treatment of the French at Mount Desert and Port Royal, but Baltimore's ships were heavily armed and well handled, and the Frenchmen got the worst of it. Then a party of Puritans came to Avalon,

Baltimore's colony
in Newfoundland.

and these unbidden guests were horrified at what they saw. The Rev. Erasmus Stourton returned to England with a shocking story of how Lord Baltimore not only had the mass performed every Sunday, but had even allowed a Presbyterian child to be baptized by a Romish priest. Then the climate of Avalon proved to be anything but what had been expected. One Captain Richard Whitbourne had published an enthusiastic book in which he recorded his memories of June days in Newfoundland, with their delicious wild strawberries and cherries, the soft air redolent with the fragrance of red and white roses, the woods vocal with thrushes and other songsters that rivalled the nightingale; of wild beasts there were none that were harmful, and "in St. John's harbour he once saw a mermaid."^[124] Lord Baltimore learned that it was not always June in Avalon. He wrote to Charles I. in August, 1629, as follows: "I have met with difficulties and encumbrances here which in this place are no longer to be resisted, but enforce me presently to quit my residence and to shift to some other warmer climate of this New World, where the winters be shorter and less rigorous. For here your Majesty may please to understand that I have found by too dear-bought experience, which other men for their private interests always concealed from me, that from the middle of October to the middle of May there is a sad fare of winter upon all this land; both sea and land so frozen for the greater part of the time as they are not penetrable, no plant or vegetable thing appearing out of the earth until the beginning of May, nor fish in the sea; beside the air so intolerable cold as it is hardly to be endured. By means whereof, and of much salt meat, my house hath been an hospital all this winter; of a hundred persons fifty sick at a time, myself being one, and nine or ten of them died. Hereupon I have had strong temptations to leave all proceedings in plantations, and being much decayed in my strength, to retire myself to my former quiet; but my inclination carrying me naturally to these kind of works, and not knowing how better to employ the poor remainder of my days than ... to further, the best I may, the enlarging your Majesty's empire in this part of the world, I am determined to commit this place to fishermen that are able to encounter storms and hard weather, and to remove myself with some forty persons to your Majesty's dominion Virginia; where, if your Majesty will please to grant me a precinct of land, with such privileges as the king your father ... was pleased to grant me here, I shall endeavour to the utmost of my power, to deserve it."^[125]

To this letter the king returned a gracious reply, in which he advised Lord Baltimore, for the sake of his own comfort and peace of mind, to give up such arduous kind of work and return to England; but before this reply reached Avalon, its proprietor had sailed for Virginia, with Lady Baltimore and the children, and a small retinue of servants and followers. He wished to see that country with his own eyes and learn if it were really fit for his purposes. On the first day of October, 1629, he arrived at Jamestown, where he found the assembly in session. That versatile physician, Dr. Pott, so skilled in "epidemics" and strong waters and afterward convicted of lifting cattle, was then acting as governor. The reception given to Lord Baltimore was anything but cordial. All good Virginians hated Papists, and this particular Papist was known to stand in high favour with the king, so that he might turn out to be dangerous. He had been one of the commissioners appointed by James I. to look into the affairs of Virginia; what if he were to persuade Charles I. to turn over the colony into his hands for safe-keeping? There was really not the slightest danger of such a thing. Baltimore's wish was not to take possession of a colony already established, but to found one himself in accordance with his own ideas. It was not his purpose to become lord over the Virginians, but their neighbour, who might dwell near them on amicable terms. But the Virginians did not wish to receive him in any capacity or on any terms, except as a transient guest. There was an obvious and easy device for getting rid of him. Dr. Pott and the council tendered to him the oath of supremacy, which of course he could not take. This oath was a sworn recognition of the English sovereign as the only supreme authority throughout the British dominions in all matters ecclesiastical and spiritual. No Catholic could take such an oath. Baltimore proposed an alternative declaration of allegiance to which he could swear, but such a compromise was of course refused. Even had Dr. Pott and the council felt authorized to assume such responsibility, accommodation was not what they desired, and the royal favourite was told that he must sail for England at once. It appears that he met with some very rude treatment at Jamestown, which does not seem to have been publicly rebuked until the arrival of the new royal governor, Sir John Harvey, in the following March; for on the records of the assembly for March 25, 1630, occurs the entry: "Thomas Tindall to be pilloried two hours, for giving my Lord Baltimore the lie and threatening to knock him down." It is evident, however, that such unseemly

Baltimore's visit to Virginia.

conduct could not have met with approval among respectable people at Jamestown, for when Baltimore sailed he left his wife and children there. It is clear that he intended soon to return, and wished to save them the discomforts and perils of the double voyage. He knew that Virginian hospitality could be relied on. His purpose of returning must have been well known, for the secretary of the colony, William Claiborne, was sent to London to keep an eye upon him and thwart his schemes as far as possible. After arriving in England, Lord Baltimore found so many hindrances to be reckoned with that he sent for his family and they followed him by a later ship.

Baltimore's first request was for a tract of territory lying south of James River as far as the mouth of the Chowan (or Passamagnus) River in Albemarle Sound. This province was to be called Carolina, either in honour of Charles I., or because the name had been given by the Huguenots in 1562 in honour of Charles IX. of France to a point farther south on that coast and was vaguely applicable to territory between Virginia and Florida. A charter conveying this land to Lord Baltimore had already been made out when Claiborne appeared with his objections, which were supported by other persons in London who were entertaining schemes for founding a sugar-planting colony in Carolina. The matter was discussed in the Privy Council, and Baltimore's attention was called to the fact that the Dutch were taking possession of the country between the Hudson and Delaware rivers; would it not therefore be desirable to found a colony north of the Potomac, and squeeze these unwelcome intruders into as narrow a space as possible? Baltimore accepted this suggestion, and a charter was drawn up, granting to him as lord proprietor the province which received the name of Maryland, after Charles's Catholic queen, Henriette Marie, in England commonly called Queen Mary. The charter, which Baltimore drew up with his own hand, was in the main a copy of the Avalon charter; but before it had received the royal seal he died, in April, 1632. In June the charter was issued to his eldest son Cecilius Calvert, second baron of Baltimore.

The charter of Maryland.

In obtaining this new grant of Maryland, the Calverts did not regard themselves as giving up their hold upon Newfoundland. Cecilius appointed a governor for Avalon as a fishing station, but in 1637, with characteristic recklessness, the

Fate of the Avalon charter.

king granted it to the Marquis of Hamilton and some other noblemen, on the ground that the charter had been forfeited by disuse. More or less controversy went on until 1663, when in consequence of a judgment in the courts pronouncing the Hamilton grant void, Avalon was surrendered to Cecilius. But his descendants really neglected it, until in 1754 the charter was again declared forfeited, and the crown resumed its rights over the whole of that large island.

It seems to have been the physical hardships sustained in Newfoundland that cut off the first Lord Baltimore prematurely in his fifty-third year and prevented his witnessing the success of the enterprise which he had so much at heart. His plan was to found in the New World a commonwealth where Catholics might find a welcome refuge from the oppressive legislation to which they were subjected in England. It was a plan that could be carried out only by adopting a policy of universal toleration utterly unknown in that age outside of the Netherlands. It called for the utmost sagacity and tact, and was likely to require on the part of the ruler all the well-nigh royal powers with which Lord Baltimore had been endowed. Though the scheme was left for the son to put into successful operation, it was devised by the father and stamps him as no ordinary man. It is right that he should be honoured as the first founder of Maryland. His portrait, painted for Lord Bacon by the illustrious Daniel Mytens, is now in the gallery of the Earl of Verulam, and there is a fine copy of it in the state-house at Annapolis. The face is courteous and amiable, albeit somewhat melancholy, and shows refinement and intelligence, as well as the honesty for which he was noted. George Calvert's integrity was such that throughout his public life men respected and trusted him without distinction of party. Of the sincerity of his religious feelings one gets a glimpse in such characteristic passages as the following, from a letter to his friend, the great Earl of Strafford: "All things, my lord, in this world pass away; wife, children, honours, wealth, friends, and what else is dear to flesh and blood. They are but lent us till God please to call for them back again, that we may not esteem anything our own, or set our hearts upon anything but Him alone, who only remains forever."^[126]

Character of the
first Lord
Baltimore.

Of the early life of the son, Cecilius Calvert, very little is known. He was born in 1606 and entered Trinity

Cecilius Calvert,
second Lord

College, Oxford, in 1621, but there is no record of his having taken a degree. He was hardly more than eighteen years old when he became the husband of Lady Anne Arundel, whose name is left upon one of the counties of Maryland, and whose portrait by Vandyck, preserved in Wardour Castle, shows her to have been one of the most beautiful women of her time. An engraved portrait of Cecilius, made in 1657 and now in possession of the Maryland Historical Society, gives us the impression of great sagacity and power, with the repose that comes from undisturbed self-control. There is perhaps more astuteness than in the father's face, but the look is also frank, as well as lofty and refined. Through many difficulties the plan conceived by George Calvert was put into operation by Cecilius, who is to be regarded as preëminently the founder of Maryland. His strong personality is impressed upon the whole history of that interesting community; yet singularly enough, the second Lord Baltimore never visited the colony to which the labours of his long life were devoted. He cherished at first an intention of going out with the first party of colonists, but finding that London fairly swarmed with enemies to the enterprise, he found it most prudent to stay there and contend with them. This was only the beginning of long years of arduous work in which the right time for leaving England never came, and the Moses of this new migration and fresh departure in the way of founding states was at last gathered unto his fathers without ever having set foot in the Promised Land.

Baltimore.

In two ways the founding of Maryland was a new departure in methods of colonization. In the first place, it introduced into America a new type of colonial government. The Spanish and French colonies were simple despotisms administered by viceregal governors, sometimes with advisory councils, sometimes partly held in check by an officer called the intendant, who was himself a counter-despot. The government of Virginia after the suppression of the Company was called a crown government because the governor and council were appointed by the king; it was not a despotism, because there was an assembly elected by the people, without whose consent no taxes could be assessed or collected. The bond of connection with the mother country was loose but real. A contrast was afforded by Massachusetts, which under its first charter, from 1629 to 1684, was a true republic, with governor, council, and assembly all elected within

A new type of colonial government.

the colony, so that the administration could move on quite independently of any action in England. In the proprietary governments, of which Maryland was the first example, the lord proprietor stepped into the place of the crown, while a charter, which might be forfeited in case of abuse, made it impossible for him to become an absolute monarch. The elective legislature of Maryland, which in point of seniority ranks third in America, next after Virginia and Massachusetts, was expressly provided for in the charter. The lord proprietor's sovereignty was limited by this elected assembly of freemen, but his dependence upon the king of England was little more than nominal. In token of allegiance and homage he was to send to the king each year two Indian arrows. His rent was to be one fifth part of all gold or silver mined in Maryland, but as no precious metals were found there, this rent amounted to nothing. Moreover, whenever it might seem necessary, the oath of allegiance might be administered to any of the inhabitants. Saving this formal recognition of his overlord, the lord proprietor was virtually king in Maryland. Laws passed by the assembly became valid as soon as he had signed them, and did not need to be seen by the king. In case the assembly could not conveniently be brought together in an emergency, he could issue ordinances by himself, analogous to the orders of the Privy Council. He could coin money and grant titles of nobility, he could create courts, appoint judges, and pardon criminals. It was moreover expressly stipulated that within the limits of Maryland no taxes could be either assessed or collected by any British government. Finally the lord proprietorship was vested in Cecilius Calvert and his heirs, and in point of fact was exercised by them with some interruptions for five generations; so that the government of colonial Maryland was really a hereditary constitutional monarchy.

Thus Lord Baltimore introduced into America a new and quite remarkable type of colonial government. But in the second place his attempt to inaugurate a policy of complete religious toleration was a still more memorable departure from familiar methods. Among the express provisions of the charter there was nothing that looked toward such complete toleration. Any express toleration of Catholics would have ruined the whole scheme at the start. The words of the charter were conveniently vague. In the original charter of Avalon the lord proprietor was entrusted with "the patronage and advowsons of all churches which, with the increasing worship and religion of Christ within the said region, hereafter shall happen to be built; together

Ecclesiastical
powers of the lord
proprietor.

with license and faculty of erecting and founding churches, chapels, and places of worship, in convenient and suitable places, within the premises, and of causing the same to be dedicated and consecrated according to the ecclesiastical laws of England." This Avalon grant of 1623 was made when Sir George Calvert was still a member of the English church; it empowered him to found Anglican churches, but did not expressly prohibit him from founding Romanist or Nonconformist places of worship along with the others if he should see fit. Now exactly the same words were repeated in the Maryland charter, although it was generally known that Lord Baltimore intended to make that colony an asylum for such English Catholics as wished to escape from their grievances at home. The fact that no prohibition was inserted shows that the king connived at Baltimore's scheme, perhaps through sympathy with his Catholic queen. None of the Stuarts were fierce Protestants, and it is worth noting that it was at the king's request that the colony was named Maryland. Mr. Gardiner's opinion seems well sustained, that "the phrases of the charter were intended to cover a secret understanding between Baltimore and the king."[\[127\]](#)

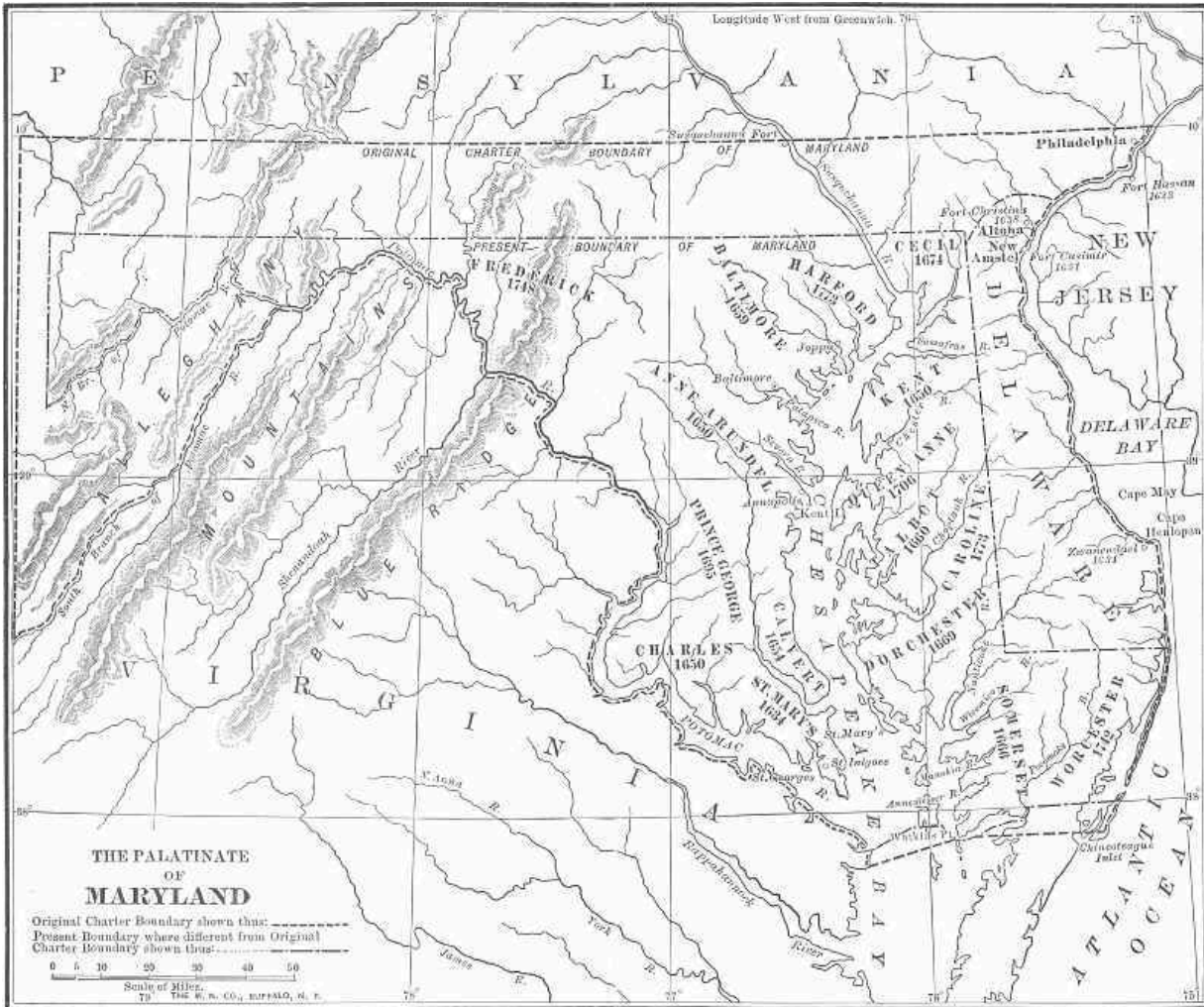
Starting with such a charter, religious toleration in Maryland was a happy product of circumstances. In view of the regal powers wielded by Lord Baltimore it was not easy for the Protestant settlers to oppress the Catholics; while, on the other hand, if the Catholic settlers had been allowed to annoy the Protestants, it would forthwith have raised such a storm in England as would have overwhelmed the lord proprietor and blasted his enterprise. The situation thus created was improved to the best advantage by the strong common-sense and unfailing tact of Cecilius Calvert. It is not likely that he had arrived at such advanced views of the entire separation of church and state as those which were set forth with such luminous cogency by Roger Williams, but there was a statesmanlike instinct in him that led him in a similar direction. In point of religious toleration Rhode Island unquestionably holds the foremost place among the colonies, while next after it come Quaker Pennsylvania, with New Netherland, which for its brief season maintained the wholesome Dutch traditions. There are some respects in which Maryland's record may vie with the brightest, but her success was not attained without struggles. We shall presently have occasion to see how curiously her beginnings were complicated with the affairs of her elder sister Virginia and with some phases of the Puritan revolution.

Religious toleration
in Maryland.

If Lord Baltimore felt obliged himself to stay in England, he was able to send excellent agents to America in the persons of his younger brothers, Leonard and George Calvert. The former he appointed governor of Maryland. The most important member of the council was Thomas Cornwallis, of an ancient and highly honourable London family, the same to which in later days belonged the Earl Cornwallis who surrendered an army to George Washington at Yorktown.^[128] Leonard Calvert's ships were the Ark, of 300 tons burthen, with its attendant pinnace, the Dove, of 50 tons; and his company comprised 20 "gentlemen adventurers" with about 300 labourers. So alarmed were London people at the expedition that it took the ships a full month to get away from the Thames River. All kinds of rumours flew about. It was assumed that all Catholics must be in league with Spain and that these ships must be concerned in some foul conspiracy against the English colonies in America. At the last moment a great fuss was made in

First settlement at
St. Mary's.

the Star Chamber, and Coke sent an order post-haste to Admiral Pennington commanding the channel fleet to stop the ships at Dover. The oath of supremacy was administered, and we hear of 128 persons taking it at one time. It is generally believed that the majority of the company were Protestants; the leaders were nearly all Catholics, including the amiable Jesuit, Father Andrew White, who has left us in quaint and very charming Latin a full narrative of the voyage.^[129] The ships finally started on the 22d of November, 1633, stopped for a while in January at Barbadoes, and on the 27th of February reached Point Comfort, where a letter from the king ensured them courteous treatment at the hands of Governor Harvey. With a fresh stock of supplies they sailed up Chesapeake Bay and into the broad Potomac, and presently on a little wooded island which they called St. Clement's—since dwindled to the mere vestige of a sand-bank—they celebrated Mass for the first time in English America on the 25th of March, 1634.



THE PALATINATE OF MARYLAND

On a bluff overlooking the deep and broad St. Mary's River the settlers found an Indian village, which they bought from its occupants with steel hatchets and hoes and pieces of cloth. These Indians were a tribe of Algonquins, who had been so persecuted by their terrible Iroquois neighbours, the Susquehannocks, that they were already intending to move away to some safer region; so they welcomed the white purchasers and the chance for buying steel hatchets. Leonard Calvert was as scrupulously just in his dealings with red men as William Penn in later days, and like Penn he was exceptionally favoured by the circumstances of his Indian neighbours. After the Algonquins had departed from St. Mary's, the fierce Susquehannocks to the northward were so hard pressed by their hostile kinsmen of the Five Nations, that they were only too glad to live on amicable terms with the

Relations with the Indians.

settlers of Maryland. Thus one of the most formidable difficulties in the way of American colonization was removed at the start.

At St. Mary's, moreover, there was no Starving Time. The land had so long been cleared by the Indians for their own cornfields that Calvert's settlers at once began planting for themselves. Father White speaks with approval of two native dishes which the Indians call "pone" and "hominy," and from their squaws the English women soon learned how to bake and fry these viands to perfection. In the course of the very first autumn the Marylanders were able to export a shipload of corn to New England in exchange for a cargo of salted codfish.^[130] Cattle and swine were obtained from Virginia, and soon the neighbourhood of St. Mary's was covered with thrifty and smiling farms. New colonists came quite steadily, and presently from St. Mary's the plantations spread about the shores of the Potomac River and Chesapeake Bay. The first assembly was convened and the first laws were enacted in 1635, and when Cecilius, Lord Baltimore, died, just forty years afterward, his Maryland had grown to be a prosperous community of 20,000 souls.

Prosperity of the settlement.

Some of the more important details of this growth will form part of our story. At present we have to consider somewhat more closely the nature of this palatinate government, and the modifications which it underwent in its transfer from England to America.

The Bishop of Durham was feudal landlord of the territory in his bishopric, and the most considerable part of his revenue came from rents.^[131] Until 1660 he also received a fluctuating but not insignificant income from such feudal incidents as escheats, forfeitures, and wardships. The rents and feudal dues were collected by the bailiffs, each in his bailiwick, and were by them paid over to the receiver-general, who was superintendent of the palatinate's finances. As for Durham's share of the national taxes, Parliament simply determined the amount; the bishop's government decided how it should be raised and his constables collected it. The only taxes collected by the king's officers were the customs.

Constitution of Durham: the receiver-general.

After 1536 the militia force of Durham, like that of other counties, was commanded by an officer known as lord lieutenant. Formerly the command of the militia and

Lord lieutenant and high sheriff.

collecting and disbursing of revenue were concentrated in the hands of the high sheriff, who continued to be nominally the superior officer over the lord lieutenant and receiver-general, while his actual duties were restricted, like those of sheriffs in other counties, to enforcing the decisions of the courts. But whereas all other sheriffs were crown officers, the high sheriff of Durham was accountable only to the bishop.

The only officer of higher dignity than the high sheriff was the chancellor of temporalities, who exercised a twofold function. He was the bishop's chief minister and head of the civil government, and he presided over the bishop's high court of chancery. Below this high tribunal there were two kinds of courts. The one was like the ordinary courts of quarter sessions, composed of justices of the peace, save that these justices were appointed by the bishop and punished breaches not of the king's peace but of the bishop's peace. The other kind of court was one that could be held in any manor of the bishopric. It was the manorial court or "halmote," the most interesting of these ancient institutions of Durham. The business of the halmote courts was to adjust all questions relating to the tenure of land, rights or easements in land, and such other matters as intimately concerned the little agricultural community of tenants of the manor. They could also issue injunctions and inflict sundry penalties. These courts were held by the seneschal, an officer charged with the general supervision of manors, but all the tenants of the manor in question could attend the halmote, and could speak and vote there, so that it was like a town-meeting. When we add that it could enact by-laws, thus combining legislative with judicial functions, we see its ancestry disclosed. This halmote in Durham was a descendant of the ancient folkmote or primary assembly which our forefathers brought into Britain from their earlier home in the wilds of northern Germany. In this assembly the people of Durham preserved their self-government in matters of local concern. But the circumstances in which the palatinate grew up seem to have retarded the development of representative government. There was no shire-mote in Durham, attended by selected men from every manor or parish or township, as in the other counties of England. Instead of laws enacted by such a representative body, there were ordinances passed by the bishop in his council, which was composed of the principal magistrates already

Chancellor of
temporalities.

The halmote.

The seneschal.

The bishop's
council.

mentioned, and of such noblemen or other prominent persons as might choose to come or such as might be invited by the bishop. It thus resembled in miniature a witenagemote or house of lords. The bishops of Durham seem to have been in general responsive to public opinion in their little world, and it does not appear that the people fared worse than they would have done with a representative assembly. The bishop was not an autocrat, but a member of a great ecclesiastical body, and if he made himself unpopular it was quite possible to take steps that would lead to his removal.

The lack of representative institutions in Durham, coupled with its semi-independence, long retarded its participation in the work of national legislation. The bishop, of course, sat in the House of Lords, but not until the reign of Charles II. was this county palatine represented in the House of Commons. The change was inaugurated by Cromwell, under whose protectorship the palatine privileges were taken away, and Durham, reduced to the likeness of other counties, elected its members of Parliament. In 1660 the restored monarchy undid this change and replaced the bishop, although with his palatinate privileges slightly shorn. In 1675 Durham began to be regularly represented in the House of Commons, but that date was subsequent to the founding of the Maryland palatinate. At the time when Lord Baltimore's charter was issued, the bonds of connection between Durham and the rest of England were three: 1. the bishop was a tenant *in capite* of the crown, besides being an officer of the Church and a member of the House of Lords; 2. the county regularly paid its share of the national taxes; and 3. cases in litigation between the bishop and his subjects could be appealed to the Court of Exchequer in London. Saving these important limitations, Durham was independent. The only way in which the king could act within its limits was by addressing the bishop, who by way of climax to his many attributes of sovereignty was endowed with the powers of coining money, chartering towns, and exercising admiralty jurisdiction over his seacoast.

National representation.

Limitations upon autonomy.

As I have already observed it was natural that in founding new governments in America, this familiar example of the Durham palatinate should be made to serve as a model. In point of fact not only Maryland, but every colony afterwards founded, except in New England, was at first a palatinate, with

The palatinate type in America.

either a single lord proprietor or a board of proprietors at its head. Of the four colonies older than Maryland, three—English Virginia and Massachusetts, and Dutch New Netherland—were founded through the instrumentality of charters granted to joint-stock companies, organized really or ostensibly for commercial purposes; one, Plymouth, was founded by the people and ignored by the crown until finally suppressed by it. Of the four New England colonies younger than Maryland, all were founded by the people themselves, one of them, New Haven, was soon suppressed, another, New Hampshire, was turned into a royal province, the other two, Connecticut and Rhode Island, were for the most part let alone. The governments of all the other colonies began as proprietary governments. This was the case with New York and the two Jerseys after the English conquest of New Netherland; it was the case with Pennsylvania and Delaware, with the two Carolinas, and with Georgia. One and all of these were variations upon the theme first adopted in the founding of Maryland. All were based upon the palatinate principle, with divers modifications suggested by experience as likely to be more acceptable to the proprietors or to the crown. And just as the crown, for purposes of its own and without regard to the wishes of the people, changed the governments of Virginia and New Hampshire and extinguished those of New Haven and Plymouth; so in nearly every case we find the people becoming so dissatisfied with the proprietary governments that one after another they are overturned and the palatinates become transformed into royal provinces. We shall, therefore, find it profitable to trace the history of the palatinate principle in America through its initial theme and its subsequent variations.

That initial theme was mainly an echo of the Old World music, but the differences were not without importance. In administrative machinery there was a strong resemblance between Maryland and Durham. The governor of Maryland was Lord Baltimore's chief minister, the head of the civil administration of the colony. He also presided over its court of chancery, and in this double capacity he resembled the chancellor of temporalities. But, as befitted the head of a community planted in a hostile wilderness, he added to these functions those of the lord lieutenant and was commander-in-chief of the militia. Laws passed by the assembly required his signature to make them valid, and thus he possessed the power of veto; but he could not assent to a law repealing any law to

Similarities
between Durham
and Maryland: the
governor.

which the lord proprietor had assented. Such matters had to be referred to the lord proprietor, whose prerogatives were jealously guarded, while the extensive powers accorded to the governor were such as convenience dictated in view of the fact that the lord proprietor was absent in England. An instance of the principle and its limits is furnished by the governor's pardoning power, which extended to all offences except treason. [\[132\]](#)

The personage next in importance to the governor was the secretary, who as receiver and disburser of revenues resembled the receiver-general of Durham, but to these functions he added those of recorder and judge of probate, and sometimes also those of attorney-general. Next came the surveyor-general, whose functions in determining metes and bounds and in supervising manorial affairs, resembled those of the Durham seneschal. Then there was a lieutenant commander of militia known as master-general of the muster. In each county there was a sheriff, who, in addition to such functions as we are familiar with, collected all taxes, held all elections, and made the returns. These four officers—the secretary, surveyor-general, muster master-general, and sheriff—were paid by fees, the amount of which was determined by the assembly, which thus exercised some control over them; but the governor received a salary from the lord proprietor, and was to that extent independent of the legislature. [\[133\]](#)

Secretary: surveyor-general.

Muster master-general: sheriffs.

Of courts there was one in each county, but besides this a considerable number of manors were created, and each manor had its court baron and court leet for the transaction of local business. Small civil cases involving less than the worth of 1,200 pounds of tobacco, and criminal cases not involving the death penalty, were tried in the county courts. Above these was the provincial court, which dealt with common law, chancery, or admiralty, as the case might be. The judges of this court were all members of the council, to which the secretary and other chief executive officers belonged, while the governor presided alike over the provincial court and over the council. Appeals could be taken from the provincial court to the council sitting as the upper house in the assembly, after the analogy of the appellate jurisdiction of the House of Lords; but this virtually meant that a case once

The courts.

decided could be tried over again by the same judges with a few colleagues added.

The assembly, at the mention of which we have thus arrived, was the principal point of difference between the palatinate of Maryland and that of Durham. The governor of Maryland, like the bishop of Durham, had his council, consisting solely, as the other consisted chiefly, of high officials; but in Maryland there was popular representation, while in Durham there was not. At first, however, the popular house was not a representative but a primary assembly, and its sittings were not separate from those of the council. In the first assembly, which met at St. Mary's in February, 1635, all the freemen, or all who chose to come, were gathered in the same room with Leonard Calvert and his council. They drew up a body of laws and sent it to England for the lord proprietor's assent, which was refused. The ground of the refusal was far more than the mere technicality which on a hasty glance it might seem to be. Cecilius refused because the charter gave the lord proprietor the power of making laws with the assent of the freemen, but did not give such power to the freemen with the assent of the lord proprietor. In other words, the initiative in legislation must always come from above, not from below. Obviously there could be no higher authority than Cecilius as to what the charter really intended. But the assembly of Maryland insisted upon the right of initiating legislation, and Cecilius was wise enough to yield the point gracefully. He consented, in view of the length of time required for crossing the ocean, that laws enacted by the assembly should at once become operative and so remain unless vetoed by him. But he reserved to himself the right of veto without limitation in time. In other words, he could at any time annul a law, and this prerogative was one that might become dangerous.

The primary
assembly.

Initiative in
legislation.

In 1638 the primary assembly was abandoned as cumbrous. For purposes of the military levy the province was divided into hundreds, and each hundred sent a representative to the assembly at St. Mary's. At a later date the county came to be the basis of representation, as in Virginia. For some time the representatives sat with the council, as at first in Massachusetts and Virginia; but in 1650 the representatives began to sit as a lower house, while

The representative
assembly.

the council formed an upper house. As there was a tendency, which went on increasing, for the highest offices to be filled by Calverts and their kinsmen, the conditions were soon at hand for an interesting constitutional struggle between the two houses. It was to be seen whether the government was to be administered for the Calverts or for the people, and to the story of this struggle we shall presently come.

As a result of our survey it appears that Lord Baltimore occupied a far more independent position than any bishop of Durham. Not only was he exempt from imperial taxation, but in case of a controversy between himself and his subjects no appeal could be taken to any British court. His power seemed to approach more nearly to despotism than that of any king of England, save perhaps Henry VIII. The one qualifying feature was the representative assembly, the effects of which time was to show in unsuspected ways. From various circumstances mentioned in the course of the present chapter there resulted a strange series of adventures, which will next claim our attention.

Regal power of
Lord Baltimore.

CHAPTER IX.

LEAH AND RACHEL.

WE have already had occasion to observe that, while from the outset Lord Baltimore's enterprise found many enemies in England, it was at the same time regarded with no friendly feelings in Virginia. We have seen the Virginians sending to London their secretary of state, William Claiborne, to obstruct and thwart the Calverts in their attempt to obtain a grant of territory in America. For Claiborne there were interests of his own involved, besides those of the colony which he represented. This William Claiborne, younger son of an ancient and honourable family in Westmoreland, had come to Virginia in 1621 and prospered greatly, acquiring large estates and winning the respect and confidence of his fellow planters. By 1627 he had begun to engage in trade with the natives along the shores of Chesapeake Bay and the Potomac and Susquehanna rivers. Such traffic, if well managed, was lucrative, since with steel knives and hatchets, or with ribbons and beads, one could buy furs which would fetch high prices in England. To the enterprising Claiborne it seemed worth while to extend this trade far to the north. His speculative vision took in the Delaware and Hudson rivers and even included New England and Nova Scotia. So he entered into an arrangement with a firm of London merchants, Cloberry & Company, to supply them with furs and other such eligible commodities as might be obtained from the Indians, and in 1631 he obtained a royal license for trading in any and all parts of North America not already preëmpted by monopolies. This was done while he was in London opposing Lord Baltimore. The place most prominently mentioned in the license was Nova Scotia, and it was obtained under the seal of Scotland, from the Secretary of State for Scotland, Sir William Alexander, to whom Nova Scotia had some time before been granted. On returning to Virginia, where Sir John Harvey had lately superseded the convivial Dr. Pott as governor, Claiborne obtained a further license to trade with any of the English colonies and with the Dutch on Henry Hudson's river.

William Claiborne
and his projects

Armed with these powers, Claiborne proceeded to make a settlement upon an island which he had already, before his visit to London, selected for a trading post. It was Kent Island, far up in Chesapeake Bay, almost as far north as the mouth of the Patapsco River. Here dwellings were built, and mills for grinding corn, while gardens were laid out, and orchards planted, and farms were stocked with cattle.^[134] A clergyman was duly appointed, to minister to the spiritual needs of the little settlement, and in the next year, 1632, it was represented in the House of Burgesses by Captain Nicholas Martian, a patentee of the land where Yorktown now stands.

Kent Island
occupied by
Claiborne.

When in that same year the news of the charter granted to Lord Baltimore arrived in Virginia, it was greeted with indignation. No doubt there was plenty of elbow-room between the old colony and the land assigned to the new-comers, but the example of Claiborne shows what far-reaching plans could be cherished down on James River. The Virginians had received a princely territory, and did not like to see it arbitrarily curtailed. There was no telling where that sort of thing might end. According to the charter of 1609, Virginia extended 200 miles northward from Old Point Comfort,^[135] or about as far north as the site of Chester in Pennsylvania; which would have left no room for Maryland or Delaware. That charter had indeed been annulled in 1624, but both James I. and Charles I. had expressly declared that the annulling of the charter simply abolished the sovereignty that had been accorded to the Virginia Company, and did not infringe or diminish the territorial rights of the colony. Undoubtedly the grant to the Calverts was one of the numerous instances in early American history in which the Stuart kings gave away the same thing to different parties. Or perhaps we might better say that they made grants without duly heeding how one might overlap and encroach upon another. This was partly the result of carelessness, partly of ignorance and haziness of mind; flagrant examples of it were the grants to Robert Gorges in Massachusetts and to Samuel Gorton in Rhode Island. No serious harm has come of this recklessness, but it was the cause of much bickering in the early days, echoes of which may still be heard in silly pouts and sneers between the grown-up children of divers neighbour states. As regards the grant to Lord Baltimore, a protest from Virginia was not only natural but as inevitable as sunrise. It was discussed in the Star Chamber in July, 1633,

Conflicting grants.

and the decision was not to disturb Lord Baltimore's charter; the Virginians might, if they liked, bring suit against him in the ordinary course of law. From this decision came many heart-burnings between Leah and her younger sister Rachel, as a quaint old pamphleteer calls Virginia and Maryland. [\[136\]](#)

Viewed in the light of all the circumstances, it is difficult to avoid seeing in Claiborne's occupation of Kent Island a strategic move. Considered as such, it was bold and not ill-judged. With his far-reaching schemes the Susquehanna River was a highway which would enable him to compete with the Dutch for the northwestern fur trade. By establishing himself on Kent Island he might command the approach to that highway. The maxim that actual possession is nine points in the law was in his favour. If the Star Chamber had decided to uphold Virginia's wholesale claim to the territory granted her in 1609, Claiborne would have been master of the situation. Even with the decision as rendered, his own case was far from hopeless. In the autumn of 1633 he petitioned the king to protect his interests and those of Virginia in Kent Island. He contended that Baltimore's charter gave jurisdiction only over territory unsettled and unimproved,—*hactenus in culta*,—whereas Kent Island had been settled as a part of Virginia and heavy expenses incurred there before that charter had been issued. In sending this petition it was hoped that by resolutely keeping hold upon the strategic point it might be possible to make Lord Baltimore reconsider his plans and take his settlers to some other region than the shores of Chesapeake Bay. But this hope was dashed in February, 1634, when Leonard Calvert with the first party of settlers arrived in those waters. Claiborne's petition had not yet been answered, but Lord Baltimore's instructions to his brother were conceived in a conciliatory spirit. Leonard was to see Claiborne and offer him all the aid in his power toward building up the new settlement on Kent Island, at the same time reminding him that the place was in Baltimore's territory and not a part of Virginia. In other words, Claiborne was welcome to the property, only he must hold it as a tenant of the lord proprietor of Maryland, not as a tenant of the king in Virginia. While the Ark and the Dove were halting at anchor off Old Point Comfort, and while Leonard Calvert was ashore exchanging courtesies with Governor Harvey, he communicated this

Claiborne's
resistance.

Lord Baltimore's
instructions.

The Virginia
council supports
Claiborne.

message to Claiborne. At the next meeting of the council, Claiborne asked his fellow-councillors what he should do in the matter. In reply they wondered that he should ask such a question. Was not the case perfectly clear? Was there any reason why they should surrender Kent Island, more than any other part of Virginia? No, they would keep it until his Majesty's pleasure should be known, and meanwhile they would treat the Maryland company civilly and expected to be so treated by them. Behind this answer there was much bad feeling. Not only were the Virginians angry at the curtailment of their domains, not only were they alarmed as well as angry at the arrival of Papists in their neighbourhood, but they were greatly disgusted because Lord Baltimore's charter gave him far more extensive trading privileges than they possessed. Calvert's message to Claiborne had signified that before trading any further in the upper parts of Chesapeake Bay he must obtain a license from Maryland. Assured now of support from Virginia, Claiborne returned an answer in which he refused in any way to admit Lord Baltimore's sovereignty.

Leonard's instructions had been in case of such a refusal not to molest Claiborne for at least a year. But soon complications arose. The settlers at St. Mary's observed indications of distrust or hostility on the part of a neighbouring Algonquin tribe, known as the Patuxents; so they appealed to one Captain Henry Fleete, who understood the Algonquin language, to learn what was the matter. This Captain Fleete wished to supplant Claiborne in the fur trade and may have welcomed a chance of discrediting him with the Marylanders. At all events, he reported that the Indians had been told that the Marylanders were not Englishmen but Spaniards, and for this calumny, which might have led to the massacre of the new-comers, he undertook to throw the blame upon Claiborne. In the substance of this story there is a strong appearance of truth. On the Virginia coast in those days common parlance was not nice as to discriminating between Papists of any kind and Spaniards, and one can easily see how from ordinary gossip the Indians may have got their notion. There is no reason for casting atrocious imputations upon Claiborne, who was examined in June, 1634, by a joint commission of Virginians and Marylanders, and completely exonerated. But before the news of this verdict reached London, the charge that Claiborne was intriguing with the Indians had been carried to Lord Baltimore and evidently alarmed him. Convinced that forbearance had ceased to be a

Complications with
the Indians.

virtue, he sent word to his brother to seize Kent Island, arrest Claiborne, and hold him prisoner until further instructions.

This was in September, 1634. News of the message came to the ears of Claiborne's London partners, Clobery & Company, and they petitioned the king for protection in the possession of their island. Charles accordingly instructed Lord Baltimore not to molest Claiborne and his people, and he sent a letter to the governor and council of Virginia, in which he declared that the true intention or the charter which he had granted to Baltimore would not justify that nobleman in any interference with Kent Island and its settlers. So the winter wore away without incident, but early in April, 1635, one of Claiborne's ships, commanded by one Thomas Smith, was seized in the Patuxent River by Captain Fleete; she was condemned for trading without a license, and was confiscated and sold with all her cargo. Claiborne then sent out an armed sloop, the Cockatrice, to make reprisals upon Maryland shipping; but Calvert was wide awake and sent Cornwallis with a stronger force of two armed pinnaces, which overtook the Cockatrice in Pocomoke River and captured her after a brisk skirmish in which half a dozen men were killed and more wounded. That was on April 23, and on May 10 there was another fight in the harbour of Great Wighcocomoco, at the mouth of the Pocomoke, in which Thomas Smith commanded for Claiborne and defeated the Marylanders with more bloodshed.

Reprisals and skirmishes.

In the midst of these unseemly quarrels the kingdom of Virginia witnessed something like a revolution. We have already had occasion to mention Sir John Harvey, the governor who came in March, 1630, after the brief administration of that versatile practitioner, Dr. John Pott. Harvey was not long in getting into trouble. It was noticed at first that his manners were intolerably rude. He strutted about Jamestown as if he were on a quarter deck, and treated the august members of the council with as little ceremony as if they had been boot-blacks. On his own confession he once assaulted a councillor and knocked out some of his teeth "with a cudgel."^[137] But it presently appeared that arrogance was not his worst fault. He was too fond of money, and not particular as to how it came to him. He had a right to make grants of land to settlers for a consideration to be paid into the public treasury; it was charged against him that part of the consideration found its way into his

Complaints against Governor Harvey.

own pockets. Nor was this all, for it happened, after the fashion of his royal master, that some of the lands which he granted were already private property. Besides this, he seems to have undertaken to draw up laws and proclaim them of his own authority without submitting them to the assembly; he refused to render an account of the ways in which he spent the public money; he had excessive fees charged, multiplied the number of fines beyond all reason, and took the proceeds or a part of them for his private use and behoof. In short, he seems to have been a second and more vulgar Argall.

Five years of this sort of thing had driven the men of Virginia to the last pitch of desperation, when the Claiborne imbroglio brought on a crisis. In obedience to the king's instructions, Harvey showed such favour as he could to the Maryland settlers, and thus made himself the more fiercely hated in Virginia. The Kent Island question was one that bred dissension in families, separated bosom friends, and sowed seeds of distrust and suspicion far and wide. To speak well of Maryland was accounted little less than a crime. "Sell cattle to Maryland!" exclaimed the wrathful planters, "better knock them on the head!" From pious people this near approach of the Scarlet Woman drew forth strong words. We are told that one day Captain Samuel Mathews, that brave gentleman and decorous Puritan, on reading a letter from England, dashed his hat upon the ground and stamped in fury, shouting "A pox upon Maryland!"^[138]

Rage of Virginians
against Maryland.

In such a state of things we can imagine what a storm was raised when Governor Harvey removed from office the able and popular secretary of state, William Claiborne, and appointed one Richard Kemp in his place. One lively gleam of vituperation lights up the grave pages of the colonial records, when Kev. Anthony Panton called Mr. Kemp a "jackanapes," and told him that he was "unfit for the place of secretary," and that "his hair-lock was tied up with ribbon as old as St. Paul's." We shall hereafter see how the outraged secretary nursed his wrath; what he might have done in its freshness was prevented by a sudden revolution. The assembly drew up a protest against the king's attempts at monopolizing the tobacco trade, and Harvey refused to transmit the protest to England. About the same time the news arrived of the seizing of

An angry parson.

The meeting at
Warren's house.

Claiborne's ship in Maryland waters. On the petition of many of the people, a meeting of the assembly was called for May 7, to receive complaints against Sir John Harvey.^[139] In the mean time, on April 27, an indignation meeting was held at the house of William Warren, in York, where the principal speakers were Nicholas Martian, formerly member of the House of Burgesses for Kent Island, Francis Pott, the doctor's brother, and William English, sheriff of York County. The house where this meeting was held in 1635 seems to have stood on or near the site of the house afterward owned by Augustine Moore, where in 1781 the surrender of Lord Cornwallis was arranged; and by a curious coincidence the speaker Nicholas Martian was a direct ancestor both of George Washington, who commanded the army of the United States, and of Thomas Nelson, who commanded the forces of Virginia, on that memorable occasion.^[140]

Next morning Martian, Pott, and English were arrested, and when they asked the reason why, Governor Harvey politely told them that they "should know at the gallows." When the council met, the wrathful governor strode up and down the room, demanding that the prisoners be instantly put to death by martial law, but the council insisted that no harm should come to them without a regular trial. Then Harvey with a baleful frown put the question after the manner of Richard III., "What do they deserve that have gone about to dissuade the people from their obedience to his Majesty's substitute?" A young member, George Menefie, replied with adroit sarcasm that he was too young a lawyer to be ready with "a suddain opinion" upon such a question. Turning savagely upon him, Sir John asked what all the fuss was about. "Because of the detaining of the assembly's protest," said Menefie. Then the governor struck Menefie heavily upon the shoulder and exclaimed, "I arrest you on suspicion of treason," whereupon Captain John Utie, roughly seizing the governor, answered, "And we the like to you, sir!" Samuel Mathews threw his arms about Harvey and forced him down into a chair, while that connoisseur in beverages, Dr. Pott, waved his hand at the window, and in the twinkling of an eye the house was surrounded by armed men. Mathews then told the helpless governor that he must go to London to answer charges that would be brought against him. In vain did Harvey argue and storm. The sequel may best be told in the words of the terse and bleak entry in the colonial

Scene in the council.

Harvey deposed.

records: "On the 28th of April, 1635, Sir John Harvey thrust out of his government; and Capt. John West acts as governor till the king's pleasure known." When the assembly met on May 7, these proceedings of the council were approved, and commissioners were appointed to go to London and lay their complaints before the king. The indignant Harvey went by the same ship, in the custody of his quondam prisoner, Francis Pott, whom he had been so anxious to hang without ceremony.

Such were the incidents of the ever memorable "thrusting out of Sir John Harvey," the first revolutionary scene that was acted in English America.

Harvey's return.

When King Charles heard the story he did not feel quite so much fondness for his trusty and well-beloved burgesses as when he had been seeking commercial favours from them. He would not receive their commissioners or hear a word on their side of the case, and he swore that Sir John Harvey should straightway go back to Virginia as governor, even were it only for one day. But when it came to acting, Charles was not quite so bold as his words. Harvey did not return until nearly two years had elapsed.^[141] Then it was the turn of the rebellious councillors—Utie, Mathews, West, Menefie, and Dr. Pott—to go to London and defend themselves, while Harvey wreaked mean-spirited vengeance on his enemies. The day of reckoning had come for Anthony Panton, the minister who had called Mr. Secretary Kemp a "jackanapes," and had, moreover, as it seemed, spoken irreverently of Archbishop Laud. Panton's conduct was judged to be "mutinous, rebellious, and riotous,"^[142] his estate was confiscated, and he was banished. A shameful clause was inserted in the sentence, declaring him outlawed if he should venture to return to Virginia, and authorizing anybody to kill him at sight; but Harvey afterward tried to disown this clause, saying that it had been wickedly interpolated by the vindictive Kemp.

But Harvey's new lease of power was brief. Enemies to the throne were getting too numerous for comfort, and we may well believe that Charles, having once vindicated his royal dignity in the matter, was quite ready to yield. The statements of the councillors under examination in London no doubt had weight, for no proceedings were taken against them, but in 1639 the king removed Harvey, and sent the excellent Sir Francis Wyatt once more to govern Virginia. Harvey's numerous victims forthwith overwhelmed him

Harvey's fall and death.

with law-suits, his ill-gotten wealth was quickly disgorged, his estates were sold to indemnify Panton and others, and the fallen tyrant, bankrupt and friendless, soon sank into the grave,—such an instance of poetic justice as is seldom realized.

It was in December, 1637, during Harvey's second administration, that the Kent Island troubles were renewed. After Claiborne's victorious fight at Great Wighcocomoco, in May, 1635, he retained undisturbed possession of the island, but a quarrel was now brewing between himself and his London partners, Clobery & Company. They were dissatisfied because furs did not come in quantities sufficient to repay their advances to Claiborne. The disputes with the Marylanders had sadly damaged the business, and the partners sent over George Evelin to look after their interests, and armed him with power of attorney. They requested Claiborne to turn over to him the island, with everything on it, and to come to London and settle accounts. Claiborne tried to get a bond from Evelin not to surrender the island to Calvert, but that agent refused to give any assurances, except to express in strong language his belief that Calvert had no just claim to it. Nothing was left for Claiborne but to leave Evelin in possession. He did so under protest, and in May, 1637, sailed for England, where Clobery & Company immediately brought suit against him. Evelin then went to Virginia and attached all of Claiborne's property that he could find. Presently, whether from policy or from conviction, he changed his views as to the ownership of Kent Island and invited Leonard Calvert to come and take it. After some hesitation, in December, 1637, Calvert occupied the premises with forty or fifty armed men and appointed Evelin commandant of the island. Forthwith so many people were arrested for debts owed to Clobery & Company that an insurrection ensued, and in February, 1638, Calvert had to come over again and enforce his authority. Among his prisoners taken in December was Thomas Smith, the victor in the fight at Great Wighcocomoco, who was now tried for piracy and hanged, while the Maryland assembly passed a bill of attainder against Claiborne, and all his accessible property was seized for the benefit of Lord Baltimore's treasury.

Evelin sent to Kent Island.

Kent Island seized by Calvert.

Soon afterward the final and crushing blow was dealt in London. A Board of Commissioners for the Plantations

Decision is given

had lately been created there, a germ that in later years was to develop into the well-known body commonly called the Lords of Trade. To this board the dispute over Kent Island had been referred, and the decision was rendered in April, 1638. In the decision the claims of Virginia were ignored, and the matter was treated like a personal dispute between Claiborne and Lord Baltimore. The latter had a grant of sovereignty under the seal of England, the former had merely a trading license under the seal of Scotland, and this could not be pleaded in bar of the greater claim. Kent Island was thus adjudged to Lord Baltimore. Crestfallen but not yet conquered, the sturdy Claiborne returned to Virginia to await the turn of Fortune's wheel.

against Claiborne.

In curious ways the march of events was tending in Claiborne's favour. At first sight there is no obvious connection between questions of religion and the ownership of a small wooded island, but it would be difficult to name any kind of quarrel to which the Evil One has not contrived to give a religious colouring. By the year 1638 the population of Virginia had come to contain more than 1,000 Puritans, or about seven per cent. of the whole. They had begun coming to Virginia in 1611 with Sir Thomas Dale, whose friend, the Rev. Alexander Whitaker, the famous "Apostle of Virginia," was a staunch Puritan, son of an eminent Puritan divine who was Master of St. John's College, Cambridge. The general reader, who thinks of Whitaker correctly as a minister of the Church of England, must not forget that in 1611 the Puritans had not separated from the Established Church, but were striving to reform it from within. As yet there were few Separatists, save the Pilgrims who had fled to Holland three years before. The first considerable separation of Puritans occurred when the colony of Massachusetts Bay was founded in 1629. The great gulf between Puritans and Churchmen was dug by the Civil War, and the earliest date when it becomes strictly proper to speak of "Dissenters" is 1662, when the first parliament of Charles II. passed the Act of Uniformity. In the earliest days of Virginia, Puritan Churchmen were common there. When in 1617 the good Whitaker was drowned in James River, he was succeeded by George Keith, who was also a Puritan.^[143] Under the administration of Sandys and Southampton many came. Their chief settlements were south of James River, at first in Isle of Wight County and afterwards in Nansemond. Among their principal leaders were Richard Bennett, son of a wealthy London merchant and afterwards

Puritans in Virginia.

governor of Virginia, and Daniel Gookin, noted for his bravery in the Indian massacre of 1622.

An act of the assembly in 1631 prescribed "that there be a uniformity throughout this colony both in substance and circumstances to the canons and constitution of the Church of England." This legislation probably reveals the hand of William Laud, who had three years before become bishop of London; and it may be taken to indicate that a large majority of Virginians had come to disapprove of Puritanism. Probably the act was not vigorously enforced, for Governor Harvey seems to have

Act of Uniformity,
1631.

Puritan ministers
from New England.

New Act of
Uniformity, 1643.

looked with favour upon Puritans, but it may have caused some of their pastors to quit the colony. In 1641 an appeal for more ministers was sent to Boston, and in response three clergymen—William Thompson of Braintree, John Knowles of Watertown, and Thomas James of New Haven—sailed from Narragansett Bay in December, 1642. Their little ship was wrecked at Hell Gate and their welcome from the Dutch at Manhattan was but surly; nevertheless they were able to procure a new ship, and so, after a wintry voyage of eleven weeks, arrived in James River.^[144] They brought excellent letters of recommendation from Governor Winthrop to the governor of Virginia, but might as well have thrown them into the fire, for the new governor of Virginia, who arrived in 1642, was the famous Sir William Berkeley, a Cavalier of Cavaliers, a firm believer in the methods of Strafford and Laud, an implacable foe of Puritanism and all its advocates. At the next meeting of the assembly, in March, 1643, the following act was passed: "For the preservation of the purity of doctrine and unity of the Church, it is enacted that all ministers whatsoever, which shall reside in the colony, are to be conformed to the orders and constitution of the Church of England, and not otherwise to be admitted to teach or preach publicly or privately, and that the Governor and Council do take care that all non-conformists, upon notice of them, shall be compelled to depart the colony with all convenience."^[145]

Armed with this fulmination, Berkeley was not long in getting rid of the parsons whom Winthrop had commended to his hospitality. Knowles and James went in April, after some weeks of incessant and successful preaching but

Expulsion of the
ministers.

Thompson, "a man of tall and comely presence" as we are told, stayed through the summer and made many converts, among them the wayward son of Daniel Gookin, a junior Daniel whose conversion was from worldliness or perhaps devilry rather than from prelacy. This brand snatched from the burning by Thompson went to Massachusetts, where for many years he was superintendent of Indian affairs and won fame by his character and writings. Thompson's work in Virginia is thus commemorated by Cotton Mather:—

"A constellation of great converts there
Shone round him, and his heavenly glory were.
Gookin was one of them; by Thompson's pains
Christ and New England a dear Gookin gains."

The expulsion of the Boston ministers was the beginning of a systematic harassing of the Puritans in Virginia. It was strangely affected by the massacre perpetrated by the Indians in the spring of 1644.^[146] We seem carried back to the times of John Smith when we encounter once more the grim figure of Opekankano alive and on the war-path. We have no need, however, with some thoughtless writers, to call him a hundred years old. It was only thirty-six years since Smith's capture by the Indians, although so much history had been made that the interval seems much longer. Though a wrinkled and grizzled warrior, Opekankano need not have been more than sixty or seventy when he wreaked upon the white men his second massacre, on the eve of Good Friday, 1644. The victims numbered about 300, but the Indians were quickly put down by Berkeley, and a new treaty confined them to the north of York River; any Indian venturing across that boundary, except as an envoy duly marked with a badge, was liable to be shot at sight. Opekankano was taken captive and carried on a litter to Jamestown, whence Berkeley intended to send him to London as a trophy and spectacle, but before sailing time the old chief was ignobly murdered by one of his guards. It was the end of the Powhatan confederacy.

Indian massacre of
1644.

Some worthy people interpreted this massacre as a judgment of Heaven upon the kingdom of Virginia for the sin of harbouring Puritans; rather a tardy judgment,

Conflicting views
of theodicy.

one would say, coming a year after the persecution of such heretics had begun in earnest. In Governor Winthrop's opinion,^[147] on the contrary, the sin which received such grewsome punishment was the expulsion of the Boston ministers, with other acts of persecution that followed. Rev. Thomas Harrison, the bigoted Berkeley's bigoted chaplain, saw the finger of God in the massacre, repented of his own share in the work of persecution, and upbraided the governor, who forthwith dismissed him. Then Harrison turned Puritan and went to preaching at Nansemond, in flat defiance of Berkeley, who ordered and threatened and swore till he was out of breath, when suddenly business called him over to England.

It was the year of Marston Moor, an inauspicious year for Cavaliers, but a hopeful time for that patient waiter, William Claiborne. The governor of Maryland, as well as the governor of Virginia, had gone to England on business, and while the cats were away the mice did play. The king ordered that any Parliament ships that might be tarrying in Maryland waters should forthwith be seized. When this order was received at St. Mary's, the deputy-governor, Giles Brent, felt bound to obey it, and as there seemed to be no ships accessible that had been commissioned by Parliament, he seized the ship of one Richard Ingle, a tobacco trader who was known to be a Puritan and strongly suspected of being a pirate. This incident caused some excitement and afforded the watchful Claiborne his opportunity of revenge. He made visits to Kent Island and tried to dispel the doubts of the inhabitants by assuring them that he had a commission from the king.^[148] He may have meant by this some paper given him by Charles I. before the adverse decision of 1638 and held as still valid by some private logic of his own. When Governor Calvert returned from England in the autumn of 1644 he learned that Claiborne was preparing to invade his dominions, along with Ingle, who had brought upon the scene another ship well manned and heavily armed. It was a curious alliance, inasmuch as Claiborne had professed to be acting with a royal commission, while Ingle now boasted of a commission from Parliament. But this trifling flaw in point of consistency did not make the alliance a weak one. It is not sure that the invasion was concerted between Claiborne and Ingle, though doubtless the former welcomed the aid of the latter in reinstating himself in what he believed to be his right. The invasion was completely successful. While

Invasion of
Maryland by
Claiborne and
Ingle.

Claiborne recovered Kent Island, Ingle captured St. Mary's, and Leonard Calvert was fain to take refuge in Virginia. During two years of anarchy Ingle and his men roamed about "impressing" corn and tobacco, cattle and household furniture, stuffing ships with plunder to be exported and turned into hard cash. The estates of Cornwallis were especially ill-treated, the Indian mission was broken up, and good Father White, loaded with irons, was sent to England on a trumped-up charge of treason, of which he was promptly acquitted. Long afterward this Claiborne-Ingle frolic was remembered in Maryland as the "plundering time."

In 1645 Sir William Berkeley returned to Virginia, and from him the fugitive Calvert received effective aid and sympathy, so that late in 1646 he was able to invade his own territory with a force of Virginians and fugitive Marylanders. Claiborne and Ingle were soon expelled, and Leonard Calvert's authority was fully reestablished. Not long afterward, in June, 1647, this able governor died. For his brother Cecilius, Lord Baltimore, this was

Expulsion of
Claiborne and
Ingle.

Appointment of
William Stone as
governor.

a trying time. He was a royalist at heart, with little sympathy for Puritans, but like many other Catholics he thought it wise to keep on good terms with Parliament, in the hope of securing more toleration than heretofore. Such a course between Charybdis and Scylla was attended with perils. In 1648 Cecilius appointed to his governorship William Stone, a liberal-minded Protestant and supporter of Parliament. Soon after the king's beheading, the young Charles II., a fugitive in the island of Jersey, hearing of Stone's appointment, interpreted it as an act of disloyalty on Baltimore's part, and so in a fit of spite made out a grant handing over the palatinate of Maryland to Sir William Davenant, that poet-laureate who was said to resemble Shakespeare until ravening vanity made him pretend to be Shakespeare's illegitimate son. Sir William actually set sail for America, but was overhauled in the Channel by a Parliament cruiser and carried off to the Tower, where amid sore distress he found a generous protector in John Milton. It was not very long before Charles II. came to realize his mistake about Lord Baltimore.

In Maryland the great event of the year 1649, which witnessed the death of Charles I., was the passage on April 21 of the Act concerning Religion. This famous

The Toleration Act
of 1649.

statute, commonly known as the "Toleration Act, was drawn up by Cecilius himself, and passed the assembly exactly as it came from him, without amendment. With regard to Cecilius, therefore, it may be held to show, if not the ideas which he actually entertained, at least those which he deemed it prudent to embody in legislation. It is not likely to have surpassed his ideals, but it may easily have fallen somewhat short of them. The statute is so important that the pertinent sections of it deserve to be quoted at length: [\[149\]](#)__

"That whatsoever person or persons within this Province and the Islands thereunto belonging, shall from henceforth blaspheme God, that is curse him, or deny our Saviour Jesus Christ to bee the sonne of God, or shall deny the holy Trinity, the ffather sonne and holy Ghost, or the God head of any of the said three persons of the Trinity, or the unity of the Godhead, or shall use or utter any reproachfull speeches, words or language concerning the said Holy Trinity, or any of the said three persons thereof, shall be punished with death, and confiscation or forfeiture of all his or her lands and goods to the Lord Proprietary and his heires.

"That whatsoever person or persons shall from henceforth use or utter any reproachfull words, or speeches, concerning the blessed Virgin Mary, the mother of our Saviour, or the holy apostles, or Evangelists, or any of them, shall in such case for the first offence forfeit to the said Lord Proprietary and his heires the sume of ffive pound sterling."—

"That whatsoever person shall henceforth upon any occasion, declare, call, or denominate any person or persons whatsoever inhabiting, residing, traffiqueing, trading or commerceing within this Province, or within any of the Ports, Harbors, Creeks or Havens to the same belonging, an heretick, Scismatick, Idolator, Puritan, Independent, Prespiterian, popish priest, Iesuit, Iesuited papist, Lutheran, Calvenist, Anabaptist, Brownist, Antinomian, Barronist, Roundhead, Sep'atist, or any other name or term in a reproachfull manner relating to matter of Religion, shall for every such offence forfeit the sume of tenne shillings sterling.—

"Whereas the inforcing of the conscience in matters of Religion hath frequently fallen out to be of dangerous consequence in those commonwealths where it hath been practised, and for the more quiet and peaceable government of this Province, and the better to preserve mutuall

Love and amity amongst the Inhabitants thereof; Be it therefore also by the Lord Proprietary with the advice and consent of this Assembly, ordered and enacted (except as in this present act is before declared and sett forth,) that noe person or persons whatsoever within this Province, or the Islands: Ports, Harbors, Creeks or havens thereunto belonging, professing to believe in Jesus Christ, shall from henceforth bee any waies troubled, molested or discountenanced for or in respect to his or her religion."

A statute which threatens Unitarians with death leaves something to be desired in the way of toleration, even though it fines a man ten shillings for calling his neighbour a Calvinist in a reproachful manner. Nevertheless, for the age when it was enacted this statute was eminently liberal, and it certainly reflects great credit upon Lord Baltimore. To be ruler over a country wherein no person professing to believe in Jesus Christ should be molested in the name of religion was a worthy ambition, and one from which Baltimore's contemporaries in Massachusetts and elsewhere might have learned valuable lessons. Such a policy as was announced in this memorable Toleration Act was not easy to realize in the seventeenth century. The very year in which it was enacted saw the grim wolf of intolerance thrusting his paw in at the door.

As had happened before, the woes of the Virginia Leah brought woe upon the Maryland Rachel. When Governor Berkeley returned from England, he did more than swear at the defiant chaplain Harrison and the other preachers of Puritanism south of James River. He banished the pastors and made life unendurable for the flocks. In 1648 two of the Nansemond elders, Richard Bennett and William Durand, fleeing to Maryland, were kindly received by Governor Stone, who extended a most hospitable invitation to their people to leave Virginia and settle in the Baltimore palatinate. Cecilius had complained that settlers did not come fast enough and his colony was still too weak, whereupon Stone had promised to do his best to bring in 500 new people. His opportunity had now come; early in 1649 an advance body of 300 Puritans came from Nansemond. The rest of their brethren hesitated, fearing lest Catholics might be no pleasanter neighbours than the king's men, but the course of events soon decided them. The news of the execution of Charles I. was generally greeted in Virginia with indignation and horror, feelings which were greatly intensified by the

Migration of
Puritans from
Virginia to
Maryland.

arrival of the Cavaliers who in that year began to flock to Virginia. One ship in September brought 330 Cavaliers, and probably more than 1,000 came in the course of the year. In October the assembly declared that the beheading of the king was an act of treason which nobody in Virginia must dare to speak in defence of under penalty of death. It also spoke of the fugitive Charles II. as "his Majesty that now is," and made it treason to call his authority in question. These were the last straws upon the back of the Puritan camel, and in the course of the next few months the emigration from Nansemond went on till as many as 1,000 persons had gone over to Maryland. They settled upon land belonging to the Susquehannocks, near the mouth of a stream upon which they bestowed the name of the glorious English river that falls into the sea between Glamorgan and the Mendip Hills, and the county through which this new-found Severn flowed they called Providence from feelings like those which had led Roger Williams to give that comforting name to his settlement on Narragansett Bay. Presently this new Providence became a county bearing Lady Baltimore's name, Anne Arundel, and the city which afterwards grew up in it was called Annapolis. This country had not been cleared for agriculture by the Indians, like the region about St. Mary's, and there was some arduous pioneer work for the Puritan colony.

In changing the settlement or plantation of Providence into the county of Anne Arundel, something more than a question of naming was involved. The affair was full of political significance. Puritans at first entertained an idea that they might be allowed to form an *imperium in imperio*, maintaining a kind of Greek autonomy on the banks of their Severn, instead of becoming an integral portion of Baltimore's palatinate. At first they refused to elect representatives to the assembly at St. Mary's; when presently they yielded to Governor Stone's urgency and sent two representatives in 1650, one of them was straightway chosen speaker of the House; nevertheless, in the next year the Puritans again held aloof. They believed that the Puritan government in England would revoke Lord Baltimore's charter, and they wished to remain separated from his fortunes. Their willingness to settle within his territory was coupled with the belief that it would not much longer be his.

Designs of the
Puritans.

This belief was not wholly without reason. The war-ships of the Commonwealth were about to appear in Chesapeake Bay. Such audacious proceedings as those of the Virginia Assembly could not be allowed to go unnoticed by Parliament, and early in 1652 four commissioners were sent to receive the submission of Berkeley and his colony. One of these commissioners was Richard Bennett, the Puritan elder who had been driven from Nansemond. Another was the irrepressible Claiborne, whom Berkeley had helped drive out of Maryland. The Virginians at first intended to defy the commissioners and resist the fleet, but after some parley leading to negotiations, they changed their minds. It was not prudent to try to stand up against Oliver Cromwell, and he, for his part, was no fanatic. Virginia must submit, but she might call it a voluntary submission. She might keep her assembly, by which alone could she be taxed, all prohibitions upon her trade should be repealed, and her people might toast the late king in private as much as they pleased; only no public stand against the Commonwealth would be tolerated. On these terms Virginia submitted. Sir William Berkeley resigned the governorship, sold his brick house in Jamestown, and went out to his noble plantation at Green Spring near by, there to bide his time. For the next eight years things moved along peaceably under three successive Roundhead governors, all chosen by the House of Burgesses. The first was Richard Bennett, who was succeeded in March, 1655, by Edward Digges; and after a year Digges was followed by that gallant Samuel Mathews who had once given such a bear's hug to the arrogant Sir John Harvey. As for Claiborne, he was restored to his old office of secretary of state.

Submission of
Virginia to
Cromwell.

In Maryland there was more trouble. As soon as Claiborne had disposed of the elder sister, Leah, he went to settle accounts with the youthful Rachel, who had so many wooers. There was Episcopal Virginia, whose pretensions to the fair damsel were based on its old charter; there was the Catholic lord proprietor, to whom Charles I. had solemnly betrothed her; there were the Congregational brethren of Providence on the Severn, whose new pretensions made light of these earlier vows; but the master of the situation was Claiborne, with his commission from Parliament and his heavily armed frigate. Mighty little cared he, says a contemporary writer, for religion or for punctilios; what he was after was that sweet and rich

Claiborne and
Bennett in
Maryland.

country. Claiborne's conduct, however, did not quite merit such a slur. In this his hour of triumph he behaved without violence, nor do we find him again laying hands upon Kent Island. On arriving with Bennett at St. Mary's, they demanded that Governor Stone and his council should sign a covenant "to be true and faithful to the Commonwealth of England as it is now established without King or House of Lords." To this demand no objection was made, but the further demand, that all writs and warrants should run no longer in Baltimore's name, but in the name of the Keepers of the Liberty of England, was obstinately refused. For this refusal Stone was removed from office, a provisional government was established, and the commissioners sailed away. This was in April, 1652. After two months of meditation Stone sent word to Jamestown that he was willing to yield in the matter of the writs, whereupon Claiborne and Bennett promptly returned to St. Mary's and restored him to office.

But those were shifting times. Within a year, in April, 1653, Cromwell turned out of doors the Rump Parliament, otherwise called Keepers of the Liberty of England; and accordingly, as writs could no longer run in their name, Stone announced that he should issue them, as formerly, in the name of Lord Baltimore. He did this by order of Cecilius himself. Trouble arose at the same time between Stone and the Puritans of Providence, and the result of all this was the reappearance of Bennett and Claiborne at St. Mary's, in July, 1654. Again they deposed Stone and placed the government in the hands of a council, with William Fuller as its president. Then they issued writs for the election of an assembly, and once more departed for Jamestown. According to the tenor of these writs, no Roman Catholic could either be elected as a burgess or vote at the election; in this way a house was obtained that was almost unanimously Puritan, and in October this novel assembly so far forgot its sense of the ludicrous as to pass a new "Toleration Act" securing to all persons freedom of conscience, provided such liberty were not extended to "popery, prelacy, or licentiousness of opinion." In short, these liberal Puritans were ready to tolerate everybody except Catholics, Episcopalians, and anybody else who disagreed with them!

Renewal of the troubles.

When Lord Baltimore heard how Stone had surrendered the government, he wrote a letter chiding him for it. The legal authority of the commissioners, Bennett and

Battle of the Severn.

Claiborne, had expired with the Rump Parliament. Cromwell was now Lord Protector, and according to his own theory the Protectorate was virtually the assignee of the Crown and successor to all its rights and obligations. Baltimore's charter was therefore as sound under the Protectorate as it had ever been. Knowing that Cromwell favoured this view, Cecilius wrote to Stone to resume the government and withstand the Puritans. This led at once to civil war. Governor Stone gathered a force of 130 men and marched against the settlement at Providence, flying Baltimore's beautiful flag of black and gold. Captain Fuller, with 175 men, was ready for him, and the two little armies met on the bank of the Severn, March 25, 1655. Besides his superiority in numbers, Fuller was helped by two armed merchant ships, the one British, the other from New England, which kept up a sharp fire from the river. Stone's men were put to flight, leaving one third of their number in killed and wounded. One old Puritan writer tells us with keen enjoyment that the field whence they fled was strewn with their "Papist beads." Among the prisoners taken was Stone himself, who was badly wounded. Fuller at once held a court-martial at which Stone and nine other leading men were sentenced to death. Four were executed, but on the intercession of some kind-hearted women Stone and the others were pardoned.

The supremacy of the Puritans in Maryland thus seemed to be established, but it was of short duration. Some of the leading Puritans in Virginia, such as Bennett and Mathews, visited London and tried to get Baltimore's charter annulled. But their efforts soon revealed the fact that Cromwell was not on their side of the question, and so they gave up in despair, and the quarrel of nearly thirty years' standing was at last settled by a compromise in 1657. Lord Baltimore promised complete amnesty for all offences against his government from the very beginning, and he gave his word never to consent to the repeal of his Toleration Act of 1649. Upon these terms Virginia withdrew her opposition to his charter, and indemnified Claiborne by extensive land grants for the loss of Kent Island. Baltimore appointed Captain Josias Fendall to be governor of Maryland and sent out his brother Philip Calvert to be secretary. The men of Providence were fain to accept toleration at the hands of those to whom they had refused to grant it, and in March, 1658, Governor Fendall's authority was acknowledged throughout the palatinate. Peace reigned on the shores of Chesapeake Bay,

Lord Baltimore
sustained by
Cromwell.

the claims of Leah and Rachel were adjusted, and the fair sisters quarrelled no more.

FOOTNOTES:

- [1] E. E. Hale, in *Proc. Amer. Antiq. Soc.* N. S. viii. 190-212.
- [2] Grimm et Diderot, *Correspondance littéraire*, tom. xv. p. 325.
- [3] Genty, *L'influence de la découverte de l'Amérique*, etc., 2[^]e éd., Orleans, 1789, tom. ii. pp. 148-150.
- [4] Id. p. 192 ff.
- [5] Winsor, *Narr. and Crit. Hist.* iii. 19.
- [6] Froude, *History of England*, viii. 439.
- [7] Winsor, *Narr. and Crit. Hist.* iii. 61.
- [8] See my *Discovery of America*, i. 209.
- [9] Froude, *History of England*, x. 59.
- [10] *Brown's Genesis of the United States*, i. 9.
- [11] Originally the Pelican; see Barrow's *Life of Drake*, pp. 113, 166, 171.
- [12] *Barrow's Life of Drake*, p. 167.
- [13] See below, p. 61; and compare my *Discovery of America*, ii. 525.
- [14] Stebbing's *Sir Walter Raleigh*, p. 43.
- [15] *Brown's Genesis*, p. 10.
- [16] Froude, *History of England*, xii. 392.
- [17] *Brown's Genesis*, i. 20.
- [18] Stebbing's *Raleigh*, p. 129.
- [19] The fate of White's colony has been a subject for speculation even to the present day; and attempts have been made to detect its half-breed descendants among the existing population of North Carolina. The evidence, however, is too frail to support the conclusions.
- [20] Doyle, *Virginia*, etc. p. 106.
- [21] Hakluyt's *Discourse of Western Planting* (in *Maine Hist. Soc. Coll.*), Cambridge, 1877, p. x.
- [22] The case is put vigorously by Sir Thomas More in 1516: "Your sheep, that were wont to be so meek and tame, are now become so great devourers and so wild that they eat up and swallow down the very men themselves. They consume, destroy, and devour whole fields, houses, and cities; for look in what part of the realm doth grow the finest, and therefore dearest wool, there noblemen and gentlemen, yea, and certain abbots, holy men, God wot! not contenting themselves with the yearly revenues and profits that were wont to grow to their forefathers and predecessors of their lands, nor being content that

they live in rest and pleasure—nothing profiting, yea, much annoying the weal publick—leave no ground for tillage; they enclose all into pastures, they throw down houses, they pluck down towns, and leave nothing standing but only the church to be made a sheep-house. And, as though you lost no small quantity of ground by forests, chases, lands, and parks, those good holy men turn all dwelling places and all glebe lands into desolation and wilderness, enclosing many thousands acres of ground together within one pale or hedge," while those who formerly lived on the land, "poor, silly, wretched souls, men, women, husbands, wives, fatherless children, widows, and woeful mothers with young babes, were starving and homeless. And where many labourers had existed by field labour, only a single shepherd or herdsman was occupied."—*Utopia*, book i.

[23] Doyle, *Virginia*, etc. p. 103.

[24] In many cases the monasteries by injudicious relief had increased the number of paupers and beggars. The subject of this paragraph is admirably expounded in Ashley's *Introduction to English Economic History*, ii. 190-376.

[25] See my *Discovery of America*, i. 409.

[26] Payne, *European Colonies*, p. 55.

[27] Circumstances not wholly creditable to him; see Stebbing's *Raleigh*, pp. 89-94.

[28] Stith's *Virginia*, Sabin's reprint, New York, 1865, p. 30.

[29] *The Ancient British Drama*, London, 1810, vol. ii.

[30] Brown's *Genesis*, i. 46.

[31] See my *Civil Government in the United States*, chap. iv.

[32] He is commonly but incorrectly called the brother of the Chief Justice.

[33] The original is in the MS. *Minutes of the London Company*, in the Library of Congress, 2 vols. folio.

[34] Brown's *Genesis*, i. 91.

[35] Drayton's *Works*, London, 1620. Drayton was afterwards poet laureate.

[36] Some skepticism was manifested by one of Smith's contemporaries, Thomas Fuller, who says, in his *Worthies of England*, "It soundeth much to the diminution of his deeds that he alone is the herald to publish and proclaim them." The good Fuller was mistaken, however. Some of Smith's most striking deeds, as we shall see, were first proclaimed by others.

[37] Campbell's *Lives of the Chief Justices*, i. 210.

[38] This sketch of Smith's early life is based upon his *True Travels*, etc., in his *Works*, edited by Edward Arber, Birmingham, 1884, pp. 821-880.

[39] For a good sketch of Sigismund and his relations to the Empire and to the Turks, see Schlosser's *Weltgeschichte*, vol. xiii. pp. 325-344.

[40] Smith's *Works*, ed. Arber, pp. xxii., 842.

[41] Purchas, *His Pilgrimes*, ii. 1363.

[42] So many long missing historical documents have turned up of late years that it is never safe to assert that one is "lost." That great scholar, Don Pascual de Gayangos, seems to have seen a printed Spanish translation of Farnese's book, but I do not know where it is.

[43] It would be just like Smith, I think, not to make much account of his exploit. Hence he neglected to make any record of his grant of arms until the appearance of Purchas's book in 1625, and resulting talks among friends, probably impressed upon him the desirableness of making such a record.

[44] Thomas Carlton's verses, in Smith's *Works*, ed. Arber, p. 692.

[45] See my *Discovery of America*, ii. 105.

[46] It seems likely that the point at the upper end of the Roads received its name of Newport News from the gallant captain. On several old maps I have found it spelled Newport Ness, which is equivalent to Point Newport.

[47] See above, p. 75.

[48] It was not far from this spot that Ayllon had made his unsuccessful attempt to found a Spanish colony in 1526. See my *Discovery of America*, ii. 490.

[49] The Englishmen were bewildered by barbaric usages utterly foreign to their experience. Kinship among these Indians, as so generally among barbarians and savages, was reckoned through females only, and when the English visitors were told that The Powhatan's office would descend to his maternal brothers, even though he had sons living, the information was evidently correct, but they found it hard to understand or believe. So when one of the chiefs on the James River insisted upon giving back some powder and balls which one of his men had stolen, it was regarded as a proof of strict honesty and friendliness, whereas the more probable explanation is that a prudent Indian, at that early time, would consider it bad medicine to handle the thunder-and-lightning stuff or keep it about one. See my *Beginnings of New England*, p. 85.

[50] See above, p. 75.

[51] Smith's *Works*, ed. Arber, p. 95.

[52] Smith's *Works*, p. lxxii.

[53] Neil's *Virginia Company*, p. 19.

[54] Smith's *Works*, p. lxxxiv.

[55] It is true, this letter of 1616 was first made public in the "General History" in 1624 (see Smith's *Works*, p. 530); so that Smith's detractors may urge that the letter is trumped up and was never sent to Queen Anne. If so, the question recurs, Why did not some enemy or hostile critic of Smith in 1624 call attention to so flagrant a fraud?

[56] Brown's *Genesis*, ii. 964; Neill's *Virginia Vetusta*, pp. v-x.

[57] See above, p. 76.

[58] Even in The Powhatan's wigwam, it was only after "having feasted him [Smith] after their best barbarous manner they could," that the Indians brought the stones and prepared to kill him. Smith's *Works*, p. 400.

[59] It is true that in 1608 the Powhatans were still unfamiliar with white men and inclined to dread them as more or less supernatural; but they had thoroughly learned that fair skins and long beards were no safeguard against disease and death. If they did not know that the Jamestown colony had dwindled to eight-and-thirty men, they knew that their own warriors had slain all Smith's party and taken him captive.

[60] Smith's *Works*, p. 400.

[61] Id. p. 26. Of course the cases of rescue and adoption were endlessly various in circumstances; see the case of Couture, in Parkman's *Jesuits*, p. 223; on another occasion "Brigeac was tortured to death with the customary atrocities. Cuillérier, who was present, ... expected the same fate, but an old squaw happily adopted him, and thus saved his life." Parkman's *Old Régime in Canada*, revised ed. p. 108. For adoption in general see Morgan, *Ancient Society*, p. 80; *League of the Iroquois*, p. 342; Colden's *History of the Five Nations*, London, 1755, i. 9.

[62] Of the really critical attacks upon the story of Pocahontas, the most important are those of Charles Deane, in his *Notes on Wingfield's Discourse of Virginia*, Boston, 1859, and Henry Adams, in the *North American Review*, vol. civ. Their arguments have been ably answered by W. W. Henry, in *Proceedings of Virginia Historical Society*, 1882, and Charles Poindexter, in his *Captain John Smith and his Critics*, Richmond, 1893. There are two writers of valuable books who seldom allude to Smith without sneers and words of abuse,—Alexander Brown, of Virginia, and Edward Duffield Neill, of Minnesota; they seem to resent, as a personal grievance, the fact that the gallant captain ever existed. On the other hand, no one loves him better than the learned editor of his books, who has studied them with microscopic thoroughness, Edward Arber. My own defence of Smith, when set forth in a lecture at University College, London, 1879, was warmly approved by my friend, the late Henry Stevens.

[63] The word "raccoon" is a thorn in poor Smith's flesh, and his attempts to represent the sound of it from guttural Indian mouths are droll: "There is a beast they call *Aroughcun*, much like a badger, but useth to live on trees as squirrels do."—"He sent me presents of bread and *Raugroughcuns*."—"Covered with a great covering of *Rahoughcums*."—"A robe made of *Rarowcun* skins," etc., etc.

[64] Doyle's *Virginia*, p. 124.

[65] Smith's *Works*, p. 122.

[66] Smith's *Works*, p. 439.

[67] Id. p. 108.

[68] See above, p. 58.

[69] Smith here means the village of that name, on the James River, near the site of Richmond. See above, p. 94.

[70] Smith's *Works*, pp. 442-445.

[71] Neill's *Virginia Company*, p. 28.

[72] Smith's *Works*, pp. 448-465.

[73] Wampum is undoubtedly meant.

[74] Brown's *Genesis*, i. 228.

- [75] Doyle's *Virginia*, p. 128.
- [76] *Plain Description of the Bermudas*, p. 10; apud Force, vol. iii.
- [77] See my *Discovery of America*, ii. 59.
- [78] Neill's *Virginia Company*, p. 32.
- [79] See Spelman's account of the affair, in Smith's *Works*, pp. cii.-cv.
- [80] See my *Discovery of America*, i. 27, 28, and *passim*. For a national floral emblem, however, the columbine (*aquilegia*) has probably more points in its favour than any other.
- [81] Smith's *Works*, p. 486.
- [82] Brown's *Genesis*, i. 407.
- [83] Smith's *Works*, p. 487.
- [84] Smith's *Works*, p. 508.
- [85] Another interesting person sailed with Argall to Jamestown. A lad, Henry Spelman, son of the famous antiquary. Sir Henry Spelman, was at the Pamunkey village when Ratcliffe and his party were massacred by The Powhatan (see above, p. 153). The young man's life was saved by Pocahontas, and he was probably adopted. Argall found him with Pocahontas among the Potomacs, and bought him at the cost of a small further outlay in copper. Spelman afterward became a person of some importance in the colony. His "Relation of Virginia," containing an interesting account of the Ratcliffe massacre and other matters, was first published under the learned editorship of Henry Stevens in 1872, and has since been reprinted in Arber's invaluable edition of Smith's *Works*, pp. ci.-cxiv.
- [86] Neill's *Virginia Company*, p. 98.
- [87] Smith's *Works*, p. 533.
- [88] See Meade's *Old Churches and Families of Virginia*, ii. 79; a most useful and delightful hook, in about a thousand pages without an index!
- [89] There is a play upon words here. The first "top" is apparently equivalent to "drink up," as in the following: "Its no hainous offence (beleeve me) for a young man ... to toppe of a canne roundly," *Terence in English*, 1614. The second "top" seems equivalent to "put the finishing touch on."—"Silenus quaffs the barrel, but Tobacco perfects the brain."
- [90] Sweet.
- [91] Nichols, *Progresses of King James*, ii. 739.
- [92] Neill's *Virginia Company*, p. 66.
- [93] Neill's *Virginia Company*, p. 67.
- [94] Neill's *Virginia Company*, p. 71.
- [95] Brown's *Genesis*, ii. 1014.
- [96] Doyle's *Virginia*, p. 157.
- [97] Neill's *Virginia Company*, pp. 179, 181.

[98] Gardiner, *History of England*, ii. 251.

[99] Stebbing's *Raleigh*, p. 121; cf. Bates, *Central and South America*, p. 436.

[100] Some lines in sweet Saxon English, written by Raleigh on the fly-leaf of his Bible, shortly before his death, are worth remembering:—

"Even such is Time, that takes on trust
Our youth, our joys, and all we have,
And pays us but with age and dust;
Who in the dark and silent grave,
When we have wandered all our ways,
Shuts up the record of our days.
Yet from this earth, this grave, this dust,
The Lord shall raise me up, I trust."

[101] Stebbing's *Raleigh*, p. 386.

[102] Gardiner, *History of England*, iii. 161.

[103] Brown's *Genesis*, ii. 1016.

[104] Neill's *Virginia Company*, p. 413.

[105] Bright, *History of England*, ii. 604.

[106] Neill's *Virginia Company*, pp. 395-401.

[107] Carter's *Ferrar*, p. 71.

[108] Neill's *Virginia Company*, p. 411.

[109] Ingle, "Local Institutions of Virginia," *J. H. U. Studies*, iii. 148.

[110] Hening's *Statutes at Large*, i. 176, 193.

[111] Hutchinson, *Hist. Mass. Bay*, i. 37.

[112] Skottowe, *Short History of Parliament*, p. 19; Taswell-Langmead, *English Constitutional History*, p. 262.

[113] Neill's *Virginia Company*, p. 140.

[114] Cooke's *Virginia*, p. 149.

[115] Hening's *Statutes at Large*, i. 156.

[116] Hening, i. 158, 183.

[117] Hening, i. 194, 219, 261, 263, 300, 319, 350.

[118] Hening, i 194.

[119] Neill's *Virginia Company*, p. 221.

[120] Neill's *Virginia Carolorum*, p. 79.

[121] Brodhead's *History of New York*, i. 254.

[122] Joyce, *Irish Names of Places*, Dublin, 1869, p. 322.

[123] From the so-called isle of Avalon, in Somerset, reputed to be the place where Christianity was first preached in Britain; the site of the glorious minster of Glastonbury, where rest the ashes of Edgar the Peaceful and Edmund Ironside.

- [124] Browne's *Calverts*, p. 17.
- [125] Browne's *Calverts*, p. 25.
- [126] Browne's *Calverts*, p. 29.
- [127] Gardiner, *History of England*, viii. 179.
- [128] Neill's *Virginia Carolorum*, p. 99.
- [129] White's *Relatio Itineris*, publ. by Maryland Hist. Soc.
- [130] Winsor, *Narr. and Crit. Hist.* iii. 526.
- [131] There is an excellent summary of the institutions of Durham in Bassett's "Constitutional Beginnings of North Carolina," *Johns Hopkins University Studies*, vol. xii. For fuller accounts see Surtees, *History of the County Palatine of Durham*; also *Surtees Society Publications*, vols. xxxii., lxxxii., lxxxiv.
- [132] For an account of the Maryland constitution, see Sparks,
- [133] "Causes of the Maryland Revolution of 1689," *Johns Hopkins University Studies*, vol. xiv.
- [134] See Latané, "Early Relations between Maryland and Virginia," *Johns Hopkins University Studies*, vol. xiii.
- [135] See above, p. 145.
- [136] Hammond, *Leah and Rachel, or, The Two Fruitfull Sisters, Virginia and Maryland*, 1656.
- [137] Neill, *Virginia Carolorum*, p. 126.
- [138] *Maryland Archives—Council Proceedings*, i. 29.
- [139] Henning's *Statutes at Large*, i. 223.
- [140] "Memories of Yorktown," address by Lyon Gardiner Tyler, President of William and Mary College, *Richmond Times*, Nov. 25, 1894. The original letter of Captain Mathews and the declaration of Sir John Harvey concerning the "mutiny of 1635" are printed in the *Virginia Magazine of History and Biography*, i. 416-430. In my brief account I have tried to reconcile some apparent inconsistencies in the various statements with regard to time. Some accounts seem to extend over three or four days the events which more probably occurred on the 27th and 28th. The point is of no importance.
- [141] The interval was from April 28, 1635, to January 18, 1637.
- [142] Neill, *Virginia Carolorum*, p. 143.
- [143] In the famous picture of the baptism of Pocahontas, in the rotunda of the Capitol at Washington, Whitaker, as an Episcopal clergyman, is depicted as clothed in a surplice. A letter of Whitaker's, of June, 1614, tells us that no surplices were used in Virginia; see *Purchas His Pilgrimes*, iv. 1771. Surplices began to be used there about 1724 (see Hugh Jones, *Present State of Virginia*, 1724, p. 69), and did not come into general use till the nineteenth century (Latané, *Early Relations*, etc. p. 64).
- [144] Randall, "A Puritan Colony in Maryland," *Johns Hopkins University Studies*, iv.

[145] Henning's *Statutes at Large*, i. 277.

[146] Hildreth (*Hist. of the U. S.* i. 340) says that the Indians "were encouraged by signs of discord among the English, having seen a fight in James River between a London ship for the Parliament and a Bristol ship for the king."

[147] Winthrop's *Journal*, ii. 164.

[148] Browne's *Maryland*, p. 60.

[149] *Proceedings and Acts of the General Assembly of Maryland, 1637-1664*, pp. 244-246.

Transcriber's Notes

--A larger version of some images is obtained by clicking on them. This will not work for most e-readers.

--Footnotes have all been moved to the end of the text.

--Sidenotes have been moved to the beginning of the relevant paragraph.

--Silently corrected palpable typos.

--Variations in hyphenation have been maintained.

--Assumed printer's errors have been corrected:

-----Footnote 133 was not anchored by the printer. Placement is by the transcribers estimate.

-----In the table of contents "The mystery about White's colony 28,39" has been corrected to "...38,39".

-----"How a part of Virginia was granted to him and received the name of Maryland 235" to ".....265"

*** END OF THE PROJECT GUTENBERG EBOOK OLD VIRGINIA
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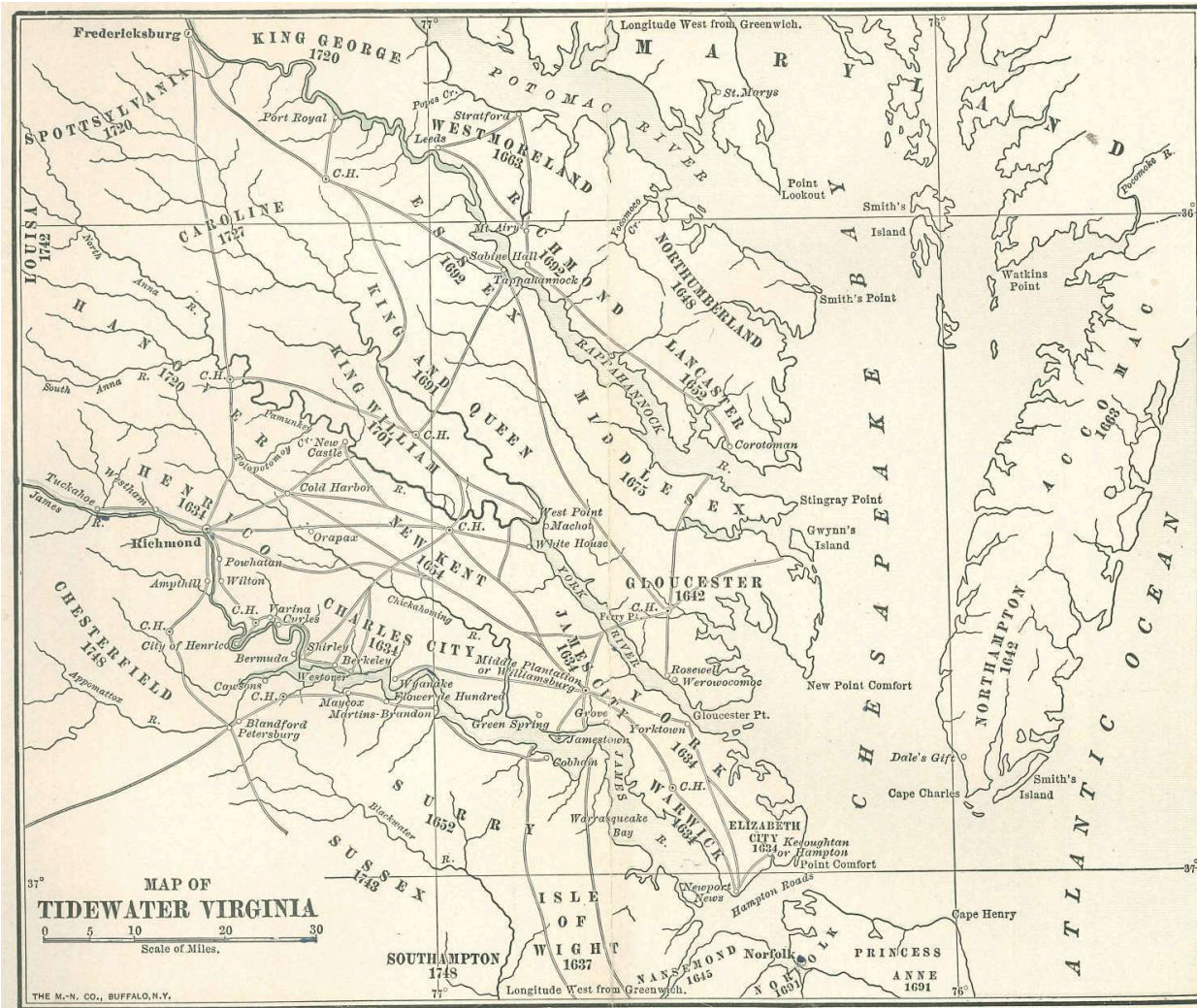
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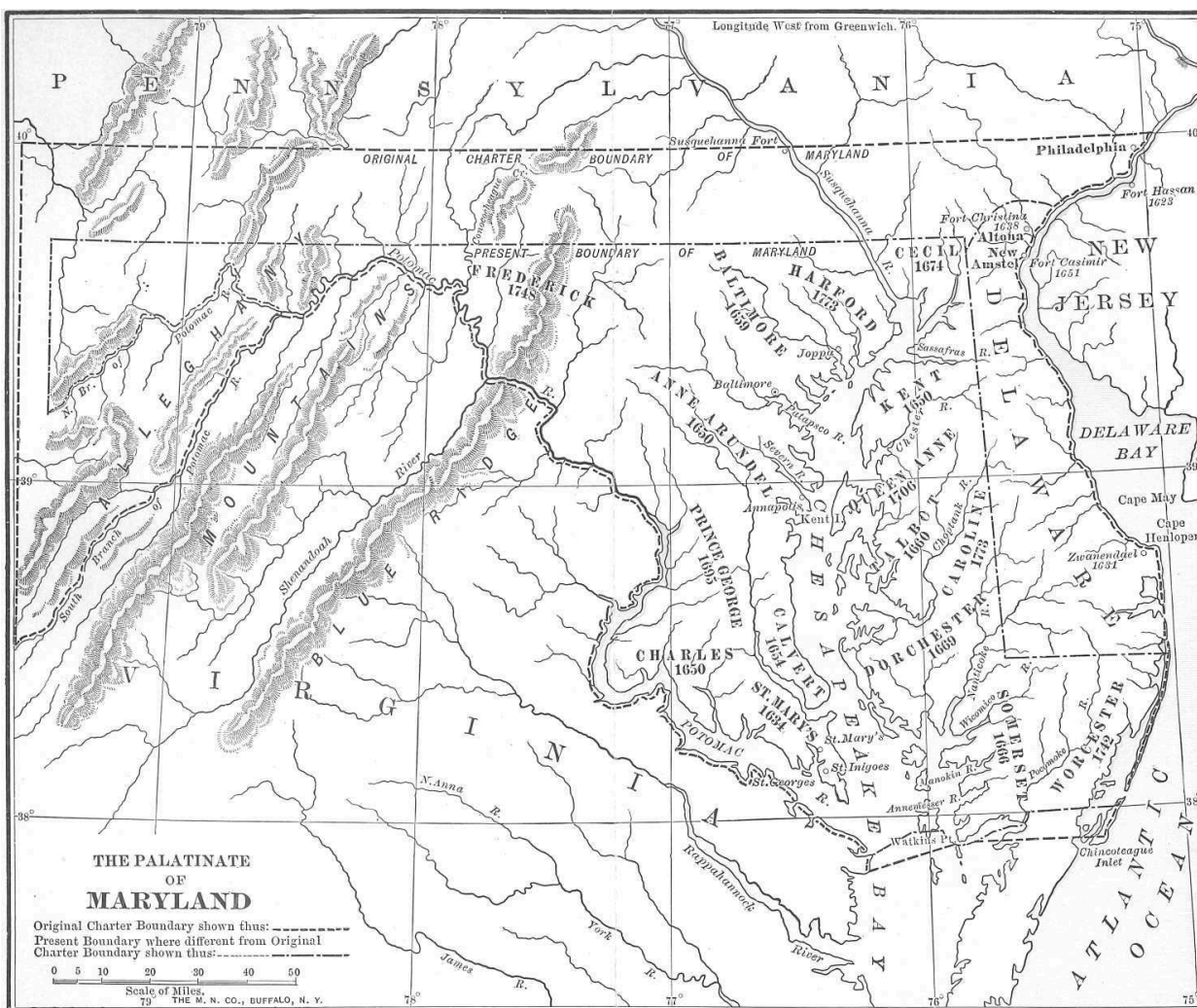
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